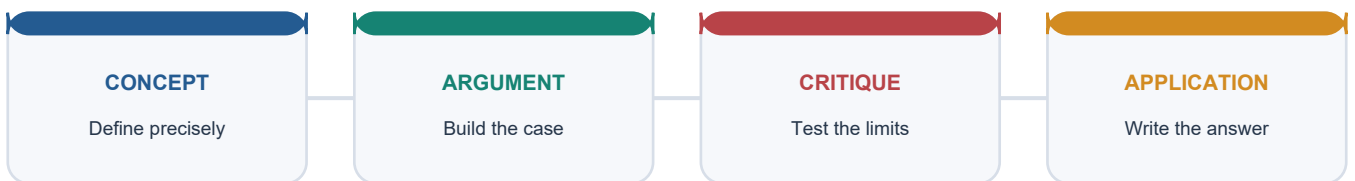


## COMPLETE LEARNING SESSION

# Crime and Punishment - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

### LEARNING PATH



*Deterministic fallback visual: move from precise concepts through argument and critique to exam application.*

---

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Crime and Punishment - Complete Learning Session

**Syllabus, verbatim:** *Crime and Punishment : Corruption, Mass Violence, Genocide, Capital Punishment.* - UPSC Philosophy Paper II, Section A, item 7. The clause prints one paired concept and four named applications. Crime and the general justification of punishment are not decoration: they are the indispensable prerequisite, because none of the four named applications can be assessed without a prior account of what makes conduct a public wrong, who may be held answerable for it and on what terms coercive punishment is permissible. Kant, Hegel, Bentham, Beccaria, H. L. A. Hart, Joel Feinberg, R. A. Duff, Michel Foucault, John Braithwaite, Hannah Arendt and Raphael Lemkin enter because each executes a distinction the owned previous-year parts actually require. **Gandhi and Rawls are not independently demanded by the 2018-2025 corpus and are not imported as decoration.** General rights, duties, accountability and the legitimacy of state coercion belong to **Individual and State**; justice, equality, liberty and dignity as ideals to **Social and Political Ideals**; regime design, propaganda and accountability to **Forms of Government**; structural harm, bodily integrity and agency as a gender doctrine to **Gender Discrimination**; graded inequality and institutional violence as caste doctrine to **Caste Discrimination: Gandhi and Ambedkar**; moral evil and theodicy to **Philosophy of Religion**. Those are routed here, never developed. Detailed criminal procedure, prison administration, crime statistics and current case-law survey belong to legal and Polity study and are outside this owner entirely.

**Evidence discipline:** FACT: marks doctrine on which the standard sources converge, ANALYSIS: marks analytical reconstruction offered for exam use, and CAUTION: marks a live scholarly dispute or a contested empirical claim. Model answers in this package are independent learner practice and are **never** official UPSC keys: UPSC publishes no descriptive model answer for Philosophy Paper II. Works are cited by author and title only - **Kant, The Metaphysics of Morals; Hegel, Philosophy of Right; Bentham, An Introduction to the Principles of Morals and Legislation; Beccaria, On Crimes and Punishments; Hart's** separation of the general justifying aim of punishment from the principles of liability and severity; **Feinberg, "The Expressive Function of Punishment"; Duff, Punishment, Communication, and Community; Foucault, Discipline and Punish (1975 French; 1977 English translation); Braithwaite, Crime, Shame and Reintegration; Arendt, Eichmann in Jerusalem and The Origins of Totalitarianism; and Lemkin, Axis Rule in Occupied Europe (1944).** No page, chapter, edition or verbatim wording is asserted for any of them, and no author is quoted anywhere in this package. Six dated facts are used, each classified before it is used: the **Convention on the Prevention and Punishment of the Crime of Genocide (1948)**, in force **1951**, an international instrument; **Lemkin's Axis Rule in Occupied Europe (1944)**, a scholarly work; the **Prevention of Corruption Act, 1988**, amended **2018**, an enacted criminal-law statute; the **Lokpal and Lokayuktas Act, 2013**, an enacted institutional-accountability statute; **Bachan Singh v. State of Punjab (1980)**, a Supreme Court judgment; and the **Law Commission of India, Report No. 262, The Death Penalty (2015)**, an official advisory report that recommends and does not enact. **WRONG: No country, community, party, government, movement, leader, technology, programme or historical episode is named anywhere in this package as an instance of mass violence, genocide, communal violence, pogrom, panopticism or surveillance.** Where a stem invites contemporary comment, the answer is written at the level of **criteria** - what would have to be shown, and by what evidence - never by identifying actors.

**Terminology rule:** the English concept leads and the technical term follows immediately in parentheses - *conduct prohibited and punishable by a valid criminal law (legal crime), conduct violating a justified ethical norm (moral wrong), the external act or legally relevant omission that links liability to conduct rather than to thought alone (actus reus), the fault element that grades answerability through intention, knowledge, recklessness or negligence (mens rea), a claim that the act was permissible in the circumstances (justification), a concession that the act was wrong coupled with a denial or reduction of blame because control, knowledge or competent agency was impaired (excuse), responsibility grounded in the capacity to recognise and act on reasons rather than in exemption from causation (reasons-responsive control, compatibilism), punishment imposed because culpable wrongdoing merits a proportionate response (retribution), punishment justified by the expected reduction of future offending (deterrence), restraint of a dangerous offender to protect others (incapacitation, prevention), transformation of the capacities and conditions of lawful agency (reform, rehabilitation), returning value or repairing loss (restitution), a participatory process in which victim, offender and community address harms, needs and obligations (restorative justice), authoritative public condemnation of the wrong (denunciation, the expressive function), punishment addressed to the offender as a responsible member of the moral community and inviting a response (communicative punishment, secular penance), the ranking of penalties against one another by seriousness (ordinal proportionality), the severity of the penalty scale as a whole (cardinal proportionality), the question why the institution of punishment should exist at all (general justifying aim), the question whom we may punish and on what condition (distribution, liability), the question how much punishment is permissible (amount, severity), a principle that limits an institution's pursuit of its aim without itself being that aim (side-constraint), the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage (corruption), norms assigning special weight to family, caste, friendship or patronage (particularistic standards), norms requiring office-holders to apply public criteria impartially (universalistic standards), avoidable deprivation, danger or exclusion produced by institutional arrangements rather than by an identifiable assault (structural harm), large-scale violence against populations produced through organised coercion, collective mobilisation or cascading participation (mass violence), the representation of victims as contaminants, threats or non-persons (dehumanisation), the withdrawal of ordinary moral restraints from an out-group (moral exclusion), the performance of extraordinary wrongdoing through cliché, careerism and failure of judgment rather than demonic depth (the banality of evil, thoughtlessness), specified acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such (genocide), the heightened mental element that must be proved for that offence (specific intent), the ordering, observation, timetabling, training and normalisation of subjects (discipline), an architecture of permanent asymmetrical visibility in which the observed cannot verify whether they are being watched (panopticism), and the state's intentional execution of a convicted offender (capital punishment). A technical term may sharpen an English explanation; it may never replace one.*

## What this package contains

| Component                                                      | Count    |
|----------------------------------------------------------------|----------|
| Progressive teaching sessions in the Basic block               | 20       |
| Original diagnostic MCQs - 24 core plus 8 remedial drills      | 32       |
| Question-specific option explanations                          | 128      |
| Unique examiner traps                                          | 32       |
| Directly owned verified PYQs solved in full, 2018-2025         | 12       |
| Original solved Mains models - two each at 10, 15 and 20 marks | 6        |
| Consolidated register parts                                    | 17 (A-Q) |
| ASCII master flow panels authored                              | 22       |

## BASIC LEARNING SESSION

### CONCEPT SPINE - ENGLISH FIRST, TECHNICAL TERM IMMEDIATELY AFTER

THE ONE THING THIS CLAUSE IS ABOUT  
WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM ON A PERSON  
BECAUSE OF SOMETHING THAT PERSON HAS DONE -- AND HOW MUCH?  
THE PAPER PRINTS ONE PAIRED CONCEPT AND FOUR APPLICATIONS. THE FOUR ARE  
NOT FOUR TOPICS: THEY ARE FOUR STRESS TESTS OF ONE ANSWER.

|  
+-----+  
| THE THREE QUESTIONS THAT MUST NOT BE MERGED |  
+-----+  
|

- Q1 . GENERAL JUSTIFYING AIM ... why should the institution of punishment  
exist at all? Forward-looking answers fit: prevention, protection,  
restoration of security.  
Q2 . DISTRIBUTION / LIABILITY .. WHOM may we punish, on what condition?  
Backward-looking answers fit: only the guilty, only for a voluntary  
act, only to the extent of culpability.  
Q3 . AMOUNT / SEVERITY ..... HOW MUCH is permissible? Proportionality:  
ordinal ranking under a cardinal ceiling fixed by desert.

|  
GIVING ONE ANSWER TO ALL THREE IS THE CLASSIC MISTAKE. PURE DETERRENCE  
FAILS AT Q2 AND Q3; PURE RETRIBUTION IS WEAKEST AT Q1.

v  
THE DEFENSIBLE POSITION: A MIXED OR LIMITING THEORY -- CONSEQUENTIALIST  
IN AIM, RETRIBUTIVIST IN CONSTRAINT.

|  
+-----+  
| THE SIX FAMILIES, AND WHAT EACH ANSWERS |  
+-----+  
|

RETRIBUTIVE ..... desert, backward-looking .... danger: vengeance/excess  
DETERRENT ..... expected prevention ..... danger: using the offender  
as a mere means  
PREVENTIVE ..... necessity and risk ..... danger: indefinite or  
discriminatory confinement  
REFORMATIVE ..... reintegration ..... danger: paternalism; the  
victim disappears  
RESTORATIVE ..... acknowledgement and repair .. danger: unequal bargaining  
EXPRESSIVE ..... authoritative censure ..... danger: hard treatment  
still needs justifying

|  
v  
+-----+  
| THE FOUR NAMED APPLICATIONS AS STRESS TESTS |  
+-----+  
|

CORRUPTION ..... tests whether a wrong with DIFFUSE victims and no  
physical assault can be a public wrong at all, and  
whether ETHICS or STRUCTURE explains it.  
MASS VIOLENCE .... tests whether responsibility SURVIVES division of  
labour, obedience and crowd participation.  
GENOCIDE ..... tests whether a wrong can be done to a GROUP AS SUCH  
and not merely to the aggregate of its members.  
CAPITAL PUNISH-  
MENT ..... tests every constraint at once, because the penalty is  
IRREVERSIBLE and removes the very agent whose  
responsibility, reform and rights grounded the theory.

|  
v  
THE WORKING THESIS THAT SURVIVES EVERY OWNED QUESTION IN THIS CLAUSE

+-----+  
| PUNISHMENT IS NOT JUSTIFIED MERELY BECAUSE CONDUCT IS ABHORRENT. A |  
| THEORY MUST SAY WHO MAY PUNISH, FOR WHAT PURPOSE, WITHIN WHAT |  
| LIMITS, AND UNDER WHAT CONDITIONS OF RESPONSIBILITY AND FAIR |  
| PROCEDURE. EVERY VERDICT IN THIS CLAUSE IS CONDITION-SPECIFYING. |  
+-----+  
|

THE SECOND GRID THAT CUTS ACROSS THE FIRST -- AND WINS MARKS  
GUILT IS INDIVIDUAL; \*RESPONSIBILITY\* ADMITS COLLECTIVE FORMS.  
CRIMINAL GUILT ..... planned, ordered, incited or committed -> YES  
ORGANISATIONAL LIABILITY . a body with decision procedures -> YES  
POLITICAL RESPONSIBILITY . what is done in citizens' name -> PARTLY:  
grounds reparation, memory, reform; NOT guilt  
RESPONSIBILITY FOR

OMISSION ..... bystanders who could have acted -> GRADED  
 METAPHYSICAL / INHERITED  
 GUILT ..... guilty by ancestry or membership -> REJECTED  
 AN ANSWER THAT ASSIGNS GUILT TO A COMMUNITY \*AS SUCH\* HAS REPRODUCED THE  
 PERPETRATOR'S OWN REASONING. SAY SO EXPLICITLY.

*Caption: the whole clause on one screen. One question, the three justifying questions that must be separated before any theory is named, the six theory families with their characteristic dangers, the four printed applications read as stress tests rather than as topics, the condition-specifying verdict this owner always demands, and the responsibility grid that decides every mass-violence and genocide answer.*

## ANSWER-WORTHINESS - WHAT EARNS MARKS AND WHAT DOES NOT

| Move                          | Earns marks                                                                                                                                                                                                                                          | Loses marks                                                                                       |
|-------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Opening any punishment answer | Naming <b>which of the three questions</b> the stem asks - why the institution exists, whom we may punish, or how much - and fixing the criterion on which the theory will be judged, inside the first three lines                                   | "Crime is a serious problem in society and punishment has always existed since ancient times..."  |
| Defining crime                | <b>Legal crime and moral wrong overlap but are not identical</b> , stated with both failure directions: an unjust law may criminalise innocent conduct, and grave moral wrongs may escape legal definition                                           | "Crime is an act against society", which leaves the examiner to supply the distinction            |
| Grounding liability           | External act or legally relevant omission ( <i>actus reus</i> ), a fault element ( <i>mens rea</i> ), causation and fair notice - <b>as philosophical prerequisites</b> , not as a criminal-law syllabus                                             | Announcing that "intention is necessary for crime" with no fault ladder and no legality condition |
| Handling responsibility       | <b>Responsibility is not causal contribution</b> . One may cause without knowledge or control; an official may be responsible for a culpable omission that caused nothing directly                                                                   | Treating "he caused it" as though it settled blame                                                |
| Handling determinism          | The <b>compatibilist working penal standard</b> - understanding of relevant reasons, adequate control, absence of responsibility-defeating coercion or incapacity - with the note that criminal responsibility need not prove metaphysical free will | "If determinism is true nobody is responsible", asserted and then abandoned                       |
| Presenting the theories       | Six families with <b>direction, central test and characteristic danger</b> , then adjudication                                                                                                                                                       | A catalogue of retribution, deterrence and reform with "all theories have merits and demerits"    |
| Handling retributivism        | <b>Limiting rather than maximising</b> retributivism: no one may be punished without desert, and no penalty may exceed it; plus the honest concession that desert alone does not explain why the <i>state</i> must add suffering                     | Equating retribution with revenge, or defending it as "an eye for an eye"                         |
| Handling deterrence           | Its four presuppositions, the punishing-the-innocent objection <b>located at Q2</b> , and the rule-utilitarian reply with the rights-based counter-reply                                                                                             | Asserting that severe penalties "obviously" deter, with no evidential qualification               |
| Handling reform               | Reform as <b>capability restored within proportionate limits</b> , joined at once to the paternalism objection and the bounded reply - proportionality, consent where possible, review and rights                                                    | Reform presented as leniency, or as unlimited therapeutic discretion                              |



| Move                               | Earns marks                                                                                                                                                                                                                      | Loses marks                                                                                                                     |
|------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| Handling proportionality           | <b>Ordinal against cardinal</b> proportionality, and on juvenile stems the five-factor integration of offence-centred and offender-centred perspectives                                                                          | Answering a juvenile stem by asserting that heinous crimes deserve adult punishment, with no developmental-capacity analysis    |
| Using Feinberg                     | The <b>condemnation criterion</b> : what distinguishes punishment from a penalty is authoritative reprobation, not the weight of the hardship                                                                                    | Saying punishment "sends a message to society", with no criterion and no consequence drawn                                      |
| Using Duff                         | Punishment as <b>communication addressed to the offender as a citizen</b> , with the <b>standing</b> condition - a polity that has denied someone the conditions of citizenship has weakened its standing to call him to account | The vague claim that "poverty causes crime", which is an empirical assertion the paper does not reward                          |
| Using Foucault                     | Placed in the <b>critical</b> paragraph with the caveat stated: genealogy of penal power, not a normative justification; the functional claim flagged as contested                                                               | Presenting Foucault as a fourth theory of punishment alongside retribution and deterrence - a category error, and marked as one |
| Using restorative justice          | The six-axis contrast with conventional process, Braithwaite's <b>stigmatising against reintegrative</b> shaming, and the conditional-appropriateness verdict                                                                    | Presenting restorative justice as universally applicable, without the power-imbalance limit                                     |
| Handling corruption                | Entrusted power plus the <b>particularistic/universalistic</b> tension; then agency <b>and</b> structure, with the verdict that corruption is an ethical act inside a systemic ecology                                           | "Corruption is due to greed and lack of values", or its mirror, "corruption is purely systemic"                                 |
| Handling the mass-violence analogy | Stating the <b>necessary conditions for violence first</b> , then testing corruption against each, and conceding the disanalogy in intention and directness before reaching a verdict                                            | Asserting the analogy because both are harmful and widespread                                                                   |
| Handling collective responsibility | The <b>five kinds</b> distinguished, with inherited guilt explicitly rejected and political responsibility explicitly limited to reparation, memory and reform                                                                   | Attributing guilt to a community, which reproduces the perpetrator's own reasoning                                              |
| Handling genocide                  | <b>Specific intent to destroy a protected group as such</b> , the four protected categories, and the honest statement that the Convention is narrower than Lemkin's conception                                                   | Calling every massacre genocide, or asserting that the Convention adopted Lemkin's conception in full                           |
| Handling capital punishment        | The <b>custody distinction</b> - self-defence and necessity respond to a present unjust threat, execution follows custody and adjudication - joined to fallibility, unequal administration and the foreclosure of reform         | Asserting that the right to life has exceptions, therefore execution is permissible                                             |
| Using the Indian legal facts       | Each <b>classified before use</b> : statute, judgment or advisory report, and expressly labelled as a legal fact rather than a philosophical proof                                                                               | Treating the 2015 Law Commission report as enacted law, or <i>Bachan Singh</i> as legislation                                   |
| Closing                            | A <b>condition-specifying verdict</b> : what the position secures, the condition on which it holds, and what it cannot do even when it holds                                                                                     | "Thus punishment should be reformative and corruption should be eradicated."                                                    |

## HOW TO READ THIS SESSION

1. **Every session opens with a picture.** Read the diagram or table before the prose; the visual carries the argument's shape and the prose only names its parts.
2. **Read the Basic block straight through.** It is deliberately answer-complete: after Session 20 you can write any of the twelve owned previous-year parts without opening the Advanced block.
3. **Do not import the Advanced block into a core answer.** It sits at the end, clearly fenced, and exists for one added debate or one sharper objection in a 15- or 20-marker.
4. **Treat the answer-grabbing line and the paragraph demonstration as drills.** Copy the demonstration's four-move shape - claim -> named evidence -> analysis -> qualification - and refill it in your own words until the shape is automatic.
5. **This clause punishes emotion.** Every one of the four applications invites indignation, and indignation earns nothing. Every session therefore ends with a limit, and every verdict states the condition on which it holds.
6. **Learn the classification of the six dated facts before you learn the facts.** In this clause the commonest single error is not forgetting a date but misclassifying a report as a law or a judgment as a statute.
7. **The consolidated register notes come last on purpose.** They are compressed recall, not a second reading of the teaching.

## ORIGIN AND CHRONOLOGY - THE MINIMUM NEEDED TO AVOID ANACHRONISM

This clause has no single institutional origin, but four of its load-bearing terms were **constructed at identifiable moments**, and using them without that chronology produces anachronism. What follows is the minimum, and every entry is classified.

| Date        | Item                                                                 | Classification           | What it fixes, and the discipline it imposes                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-------------|----------------------------------------------------------------------|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1944        | Lemkin, Axis Rule in Occupied Europe*                                | scholarly work           | The term <b>genocide</b> is coined here, from the Greek <i>genos</i> (race, tribe) and the Latin <i>-cide</i> (killing). ANALYSIS: Before this date there is no concept of "genocide" to apply; there are wrongs that the concept was later constructed to name. Lemkin's own conception is a <b>coordinated plan of different actions aiming at the destruction of the essential foundations of the life of a group</b> - killing being one method among several. |
| 1948        | Convention on the Prevention and Punishment of the Crime of Genocide | international instrument | Adopts a <b>narrower</b> definition than Lemkin's: specified acts committed with intent to destroy, in whole or in part, a <b>national, ethnical, racial or religious</b> group, <b>as such</b> . WRONG: Political groups are not among the protected categories, and the Convention does not adopt Lemkin's conception in full. Saying otherwise is the single commonest factual error in genocide answers.                                                       |
| 1951        | The 1948 Convention <b>enters into force</b>                         | dated legal fact         | ANALYSIS: Adoption and entry into force are different events. Keep them apart or the chronology collapses.                                                                                                                                                                                                                                                                                                                                                         |
| 1975 / 1977 | Foucault, Discipline and Punish* - French and English translation    | scholarly work           | Supplies <b>discipline</b> and <b>panopticism</b> as analytical concepts. ANALYSIS: It is a genealogy of penal power, not a theory of when punishment is justified; the two dates matter only so that the work is placed and not floated.                                                                                                                                                                                                                          |

| Date               | Item                                                               | Classification                                        | What it fixes, and the discipline it imposes                                                                                                                                           |
|--------------------|--------------------------------------------------------------------|-------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1980               | <b>Bachan Singh v. State of Punjab*</b>                            | Supreme Court <b>judgment</b>                         | Retained capital punishment while formulating the " <b>rarest of rare</b> " limitation. WRONG: Not legislation.                                                                        |
| 1988, amended 2018 | <b>Prevention of Corruption Act</b>                                | enacted <b>statute</b> (criminal law)                 | An enacted criminal-law framework against corruption. ANALYSIS: Enactment is not evidence that corruption has been ethically solved.                                                   |
| 2013               | <b>Lokpal and Lokayuktas Act</b>                                   | enacted <b>statute</b> (institutional accountability) | Created an institutional accountability framework. ANALYSIS: Independence, enforcement and public norms remain separate questions.                                                     |
| 2015               | <b>Law Commission of India, Report No. 262, The Death Penalty*</b> | official <b>advisory report</b>                       | Recommended abolition <b>for ordinary crimes</b> , expressly excluding specified terrorism-related and war contexts from that recommendation. WRONG: It recommends; it does not enact. |

ANALYSIS: **Where a full timeline is not meaningful, this is the conceptual origin to state instead.** The philosophical materials of this clause are older than any of these dates and are not datable in the same way: the retributive claim that punishment answers to desert, the utilitarian claim that it answers to prevention, and the reformatory claim that it answers to the offender's future agency are positions in a continuing argument, not events. **Kant** and **Hegel** supply the retributive structure; **Bentham** and **Beccaria** the deterrent and severity-limiting structure; **Hart** the separation of the justifying questions; **Feinberg**, **Duff** and **Braithwaite** the expressive, communicative and restorative developments; **Arendt** the analysis of routinised participation in atrocity. WRONG: Do not attach a year to a doctrine merely to look precise: in this clause a wrong date is worse than no date, and the classification of the six dated facts above carries far more marks than the dates themselves.

## EXACT OWNERSHIP BOUNDARY AND INDISPENSABLE BRIDGES

| Content                    | Owned here                                                                                                                                                      | Routed elsewhere                                                                                                                                          |
|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|
| Crime and punishment       | criminalisation, culpability, the six theory families, proportionality, and the conditions of legitimate penal authority                                        | general rights, duties, accountability and the legitimacy of state coercion -> <b>Individual and State</b>                                                |
| Corruption                 | entrusted office, particularism against universalism, ethical and systemic causation, regime conditioning, the mass-violence analogy and philosophical remedies | administrative compliance detail and integrity casework -> outside the Philosophy paper entirely                                                          |
| Mass violence and genocide | mechanisms, differentiated responsibility, the five kinds of collective responsibility, group-destruction intent and prevention criteria                        | justice, equality and dignity as ideals -> <b>Social and Political Ideals</b> ; regime propaganda and accountability design -> <b>Forms of Government</b> |
| Capital punishment         | desert, deterrence, dignity, fallibility, the right to life, and the bounded Indian legal illustrations                                                         | detailed criminal procedure and case-law survey -> legal and Polity study                                                                                 |

ANALYSIS: **Two bridges are indispensable and are named rather than developed.** First, **dignity and the equal moral status of persons** - the substance belongs to Social and Political Ideals, and here it functions only as the constraint that limits what may be done to a convicted person. Second, **the legitimacy of coercive state authority** - the substance belongs to Individual and State, and here it functions only through Duff's **standing** condition, which asks whether this polity retains the authority to call this person to account. WRONG: Do not re-expound either bridge; name it, use it and move on.

## ONE-SCREEN ROUTE MAP - WHICH SESSION ANSWERS WHICH OWNED PART

ANALYSIS: **Corpus signal:** this clause owns **12 of the 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 1, 2019: 2, 2020: 2, 2021: 1, 2022: 2, 2023: 1, 2024: 1, 2025: 2**. Corruption carries five of the twelve, capital punishment four, punishment theory two and proportionality one. ANALYSIS: Genocide has **no directly owned part in the held cycle** and remains a full syllabus obligation: it is printed in the clause, so it is examinable, and the absence of a past question is not evidence of absence in the next one.

| Year · part · marks | Owned demand                                                              | Sessions that answer it |
|---------------------|---------------------------------------------------------------------------|-------------------------|
| 2018 · Q1(e) · 10   | Measures to eradicate corruption in Indian democracy                      | 16, 17                  |
| 2019 · Q1(d) · 10   | Is corruption not a form of mass violence?                                | 17, 18                  |
| 2019 · Q4(c) · 15   | Does capital punishment weaken the doctrine of social justice?            | 20, 10, 9               |
| 2020 · Q3(c) · 15   | Is the retributive theory of punishment against human rights?             | 7, 11                   |
| 2020 · Q4(c) · 15   | How far do social and political regimes condition corrupt practices?      | 17                      |
| 2021 · Q2(b) · 15   | The reformatory theory and human dignity                                  | 9, 15                   |
| 2022 · Q1(c) · 10   | Is corruption a systemic issue or an ethical issue?                       | 17                      |
| 2022 · Q1(e) · 10   | Moral justifications of capital punishment                                | 20                      |
| 2023 · Q4(a) · 20   | Severity proportionate to seriousness; the juvenile question              | 10, 9, 11               |
| 2024 · Q3(b) · 15   | Capital punishment as an effective deterrent - accept or reject           | 20, 8                   |
| 2025 · Q1(a) · 10   | Particularistic against universalistic standards in corrupt practice      | 16                      |
| 2025 · Q3(a) · 20   | Can one's right to life be absolute? With reference to capital punishment | 20, 11                  |

# SESSION 1 - THE ONE QUESTION BEHIND ONE PAIRED CONCEPT AND FOUR NAMED APPLICATIONS

## The picture first

WHY THIS CLAUSE IS ONE QUESTION AND NOT FIVE MINI-ESSAYS

WHAT THE PAPER PRINTS

"Crime and Punishment :  
Corruption, Mass Violence,  
Genocide, Capital Punishment."

|

v

invites five separate  
definitions and a  
conclusion that says  
"punishment should be  
reformative"

|

v

ZERO ADJUDICATION

THE QUESTION IT IS ACTUALLY ASKING

WHEN, IF EVER, MAY THE STATE  
DELIBERATELY IMPOSE HARM ON A PERSON  
BECAUSE OF WHAT THAT PERSON HAS DONE,  
AND HOW MUCH?

|

v

THE PREREQUISITE: what makes conduct a PUBLIC  
WRONG, who is ANSWERABLE for it, and on what  
TERMS may coercion follow?

|

v

THE FOUR PRINTED NOUNS ARE \*STRESS TESTS\* OF  
THAT ANSWER, EACH ATTACKING A DIFFERENT JOINT

| APPLICATION           | THE JOINT IT ATTACKS                                                                                                        | IF THE THEORY SURVIVES                                                                                         |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| CORRUPTION            | can a wrong with<br>DIFFUSE victims and no<br>assault be a public<br>wrong at all?                                          | public wrong does not<br>require an identifiable<br>assaulted victim                                           |
| MASS VIOLENCE         | does RESPONSIBILITY<br>survive division of<br>labour, obedience and<br>crowd participation?                                 | division of labour<br>redistributes but does<br>not dissolve<br>responsibility                                 |
| GENOCIDE              | can a wrong be done to<br>a GROUP AS SUCH and<br>not merely to its<br>members one by one?                                   | a group's shared life is<br>a distinct object of<br>destruction, so the<br>wrong is irreducible                |
| CAPITAL<br>PUNISHMENT | every constraint at<br>once, because the<br>penalty is IRREVERS-<br>IBLE and removes the<br>agent the theory<br>presupposed | the theory must hold<br>where error cannot be<br>corrected and the agent<br>it presupposed no longer<br>exists |

v

THE ORGANISING MOVE THAT MUST COME FIRST IN EVERY ANSWER

SEPARATE Q1 (why the institution exists) FROM Q2 (whom we may  
punish) FROM Q3 (how much). THE STANDARD OBJECTIONS EACH LAND AT A  
DIFFERENT ONE, AND AN ANSWER THAT MERGES THEM CANNOT LOCATE ANY.

|

v

OWNERSHIP FENCE rights, duties, accountability, the legitimacy of  
coercion -> Individual and State | justice, equality, liberty, dignity as  
ideals -> Social and Political Ideals | regime design and propaganda ->  
Forms of Government | gender doctrine -> Gender Discrimination | caste  
doctrine -> Caste Discrimination | moral evil and theodicy -> Philosophy  
of Religion | procedure, prisons, statistics, case-law survey -> OUTSIDE  
THE PHILOSOPHY PAPER

NOT ROUTED GANDHI and RAWLS are not independently demanded by the  
2018-2025 corpus and are not imported as decoration.

CORPUS SHARE 12 of 112 parts (2018:1 2019:2 2020:2 2021:1 2022:2 2023:1  
2024:1 2025:2). Corruption 5 | Capital punishment 4 | Theory 2 |  
Proportionality 1 | GENOCIDE 0 -- and still a full syllabus obligation.

*Caption: the opening grid. One question, the prerequisite it presupposes, the four printed applications read as stress tests on four different joints of a single theory, the question-separating move that must open every answer, the*

*ownership fence, and the corpus share that shapes preparation.*

### In plain words

Ask what corruption, mass violence, genocide and capital punishment have in common and the usual answer is "they are all serious social evils". That is nearly useless, because it tells you nothing about how to arrange an answer. What actually unites them is that each is a **hard case for one theory** - the theory of when a political community may deliberately impose harm on a person because of what that person has done.

The clause therefore has a shape. At the centre sits a general account of crime and punishment: what makes conduct a public wrong rather than merely a private failing, what makes a particular person answerable for it, and what justifies the state in adding deliberate hardship on top of the wrong. Around that centre sit four applications, and each one attacks a different joint of the account. Corruption attacks the joint where the wrong is supposed to have a victim, because a bribe has no bleeding party and its costs fall on people who will never know their names were on the list. Mass violence attacks the joint where the wrong is supposed to have an author, because thousands of people can each contribute a fragment and no single fragment looks like the atrocity. Genocide attacks the joint where the victim is supposed to be an individual, because the destruction aimed at is the destruction of a shared form of life. Capital punishment attacks every joint at once, because it is irreversible and because it eliminates the very agent whose responsibility, capacity for reform and rights were the reason the theory demanded restraint in the first place.

ANALYSIS: Once the clause is seen this way, three things become easy. Structure becomes automatic, because every answer opens by identifying which joint the stem is attacking. Adjudication becomes possible, because each theory of punishment has a named failure point rather than a vague "demerit". And the closing verdict writes itself, because the shared demand of the clause - that a theory say **who may punish, for what purpose, within what limits, and under what conditions of responsibility and fair procedure** - supplies a condition-specifying conclusion for any stem.

### The doctrine, exactly

FACT: **The master distinction, stated once and used everywhere.** Punishment is not justified merely because conduct is abhorrent. Abhorrence is a reaction, not a justification. A theory of punishment must answer four separate things: **who** may punish, **for what purpose**, **within what limits**, and **under what conditions of responsibility and fair procedure**. Every objection in this clause attacks one of those four, and naming which one is attacked is the single most efficient opening move available.

FACT: **The three questions that must not be merged (developed fully in Session 11).** Following Hart's separation of the general justifying aim of punishment from the principles governing its distribution and severity: **Q1** asks why the institution of punishment should exist at all; **Q2** asks whom we may punish and on what condition; **Q3** asks how much punishment is permissible. Forward-looking answers fit Q1 well. Backward-looking desert answers fit Q2 and Q3 well. ANALYSIS: The classic mistake is to give one answer to all three, and it is the mistake that generates the false dilemma "retribution or deterrence?" which so many scripts spend an entire answer failing to resolve.

ANALYSIS: **Why the prerequisite is not padding.** A candidate who begins directly with capital punishment has no resources when the examiner asks *why the penalty must be proportionate*, *why the offender's culpability rather than his dangerousness is the measure*, or *whether the state's own conduct affects its authority to impose the penalty*. Those are questions about crime, culpability and legitimate penal authority, and they are answered before capital punishment is reached, not during it.

FACT: **The corpus fact that shapes preparation.** This clause owns **12 of the 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 1, 2019: 2, 2020: 2, 2021: 1, 2022: 2, 2023: 1, 2024: 1, 2025: 2**. **Corruption carries five** of the twelve - the heaviest single sub-theme in the clause - **capital punishment four**, punishment theory two and proportionality one.

ANALYSIS: **The genocide asymmetry, and what to do about it.** Genocide has **no directly owned part** in the 2018-2025 cycle. It is nevertheless printed in the clause, and printed terms are examinable. The correct inference is not that genocide can be skipped but that it must be prepared to a **definitional and conceptual** standard rather than to a question-bank standard: the specific-intent requirement, the four protected categories, Lemkin's broader conception and the boundary against crimes against humanity are what a first question on genocide would test.

### Named evidence you can cite

- **Hart's separation of the justifying questions** FACT: - the structural device that converts a punishment stem from a debate into an ordered analysis; it is the highest-yield opening in the clause and is developed in Session 11.
- **The stress-test reading of the four printed applications** ANALYSIS: - the analytical reconstruction that supplies the architecture of any comparative or "is X a form of Y?" stem in this clause.
- **The four-part demand on any theory of punishment** FACT: - who may punish, for what purpose, within what limits, under what conditions of responsibility and fair procedure; the checklist that generates the condition-specifying verdict this owner rewards.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Punishment is not justified merely because conduct is abhorrent: a defensible theory must say who may punish, for what purpose, within what limits, and under what conditions of responsibility and fair procedure - and the four applications printed in this clause are precisely the cases in which one of those four conditions is hardest to satisfy.

### MUST-WRITE KEYWORDS

public wrong · general justifying aim (Q1) · distribution or liability (Q2) · amount or severity (Q3) · conditions of responsible punishment · stress test rather than topic · irreversibility · diffuse victims · division of labour · group as such · condition-specifying verdict

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** The four applications printed in this clause are not four separate topics but four stress tests of a single theory of legitimate punishment, and an answer is organised by identifying which joint of that theory the stem is attacking.

**Named evidence.** The theory itself has a determinate structure: following Hart, the question why the institution of punishment should exist is distinct from the question whom we may punish and from the question how much, and forward-looking prevention answers the first while desert and culpability constrain the second and third. **Analysis.** Each printed application then attacks a different joint - corruption attacks the requirement of an identifiable victim, mass violence attacks the attribution of authorship under division of labour, genocide attacks the assumption that the victim of a wrong must be an individual, and capital punishment attacks every constraint simultaneously because it is irreversible and eliminates the agent whose responsibility and capacity for reform grounded the constraints.

**Qualification.** The architecture holds only if the general account is actually supplied rather than assumed: an answer that begins with the application and never states what makes conduct a public wrong, what grounds culpability or what limits severity has no resources when the examiner presses on proportionality, and it will therefore be read as indignation rather than as philosophy.

### Objection -> reply -> residual limit

- **Objection.** FACT: The stress-test architecture is imposed rather than found. The paper prints four nouns after a colon; nothing in the syllabus says they are tests of a prior theory, and treating them so risks answering a question about corruption with a paragraph about penal theory that the stem never requested.
- **Reply.** ANALYSIS: The architecture is a preparation device, not an answer template, and the corpus supports it. The owned parts do not ask for definitions of the four nouns; they ask whether corruption is a form of mass violence, whether regimes condition corrupt practice, whether retribution is against human rights, whether reform is in tune with dignity, whether severity must track seriousness for a juvenile, and whether the right to life is absolute. Every one of those is a question about the general theory, applied. An answer that has only the four nouns and no theory cannot address any of them.
- **Residual limit.** CAUTION: The architecture does not settle **how much** general theory a ten-mark part can carry. On a ten-mark corruption stem the theory must be compressed into a single controlling distinction, and a candidate who imports the full three-question grid will run out of time before reaching the measures the stem asked for. The device organises; it does not excuse a failure to answer the question actually printed.



### Examiner traps on this session

1. Writing five sequential definitions - crime, corruption, mass violence, genocide, capital punishment - and closing with "all are serious problems requiring reform". This is the commonest structural failure in the clause and it is visible in the first paragraph.
2. Treating the four applications as historically or logically sequential, as though corruption escalates into mass violence and mass violence into genocide. They are distinct wrongs with distinct structures; the analogical bridge between corruption and mass violence has to be **argued**, and Session 17 shows exactly how much of it survives argument.
3. Answering with indignation. Abhorrence is a reaction and not a justification, and a script whose energy is moral outrage rather than analysis will be marked as having felt the question rather than answered it.
4. Skipping genocide because no owned question has been asked on it. Printed terms are examinable, and the absence of a past question is not evidence about the next one.

### Mini recap

One question: when may the state deliberately impose harm because of what a person has done, and how much. One prerequisite: what makes conduct a public wrong, who is answerable, on what terms coercion follows. Three questions that must not be merged: aim, liability, amount. Four applications as stress tests: diffuse victims, divided authorship, the group as such, irreversibility. One fence: rights and legitimacy to Individual and State, ideals to Social and Political Ideals, procedure and statistics outside the paper. Twelve owned parts of 112 - corruption five, capital punishment four, theory two, proportionality one, genocide none and still compulsory.

#### CLOSURE FLOW -- SESSION 1

one question -> prerequisite (public wrong | answerability | terms of coercion)  
-> MECHANISM: Q1 aim / Q2 liability / Q3 amount kept separate  
-> CONSEQUENCE: each printed application tests a different joint  
-> TRAP: five definitions and "all are serious problems"  
-> ANSWER USE: open by naming the joint under attack, close with the condition on which the verdict holds

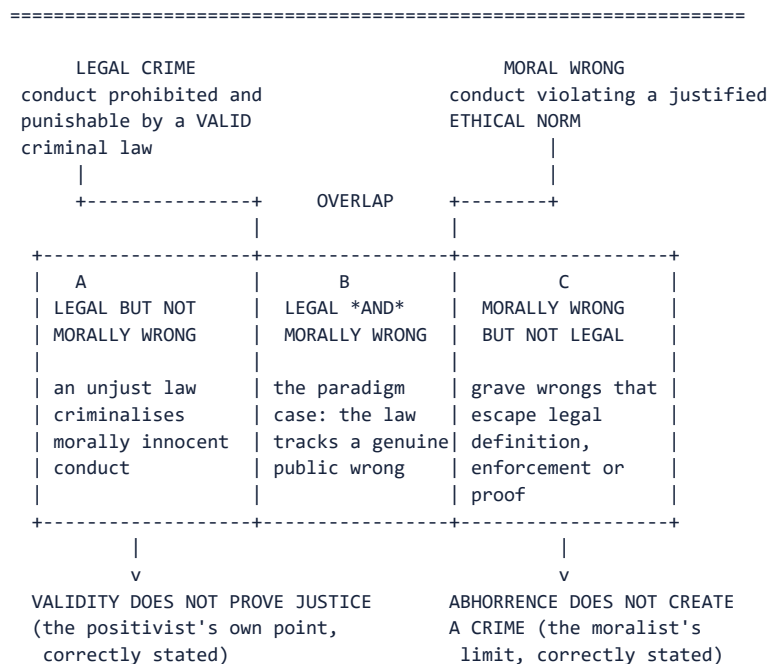
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# SESSION 2 - CRIME: LEGAL WRONG, MORAL WRONG, AND THE JUSTIFICATION OF CRIMINALISATION

## The picture first

THE TWO CIRCLES THAT DO NOT COINCIDE -- AND WHY BOTH FAILURES MATTER



THREE ACCOUNTS OF "CRIME", EACH ANSWERING A DIFFERENT QUESTION

| ACCOUNT          | ITS QUESTION                                     | ITS LIMITATION                        |
|------------------|--------------------------------------------------|---------------------------------------|
| LEGAL POSITIVIST | what has the law prohibited?                     | validity does not prove moral justice |
| MORAL            | what wrongful harm or violation occurred?        | disagreement and vagueness            |
| SOCIOLOGICAL     | which norms and POWER RELATIONS define deviance? | may weaken legal certainty            |

the three are not rivals for one prize: each answers a different question, and an answer that uses only one has left two questions unaddressed

CRIMINALISATION IS ITSELF AN ACT REQUIRING JUSTIFICATION

PROPOSED OFFENCE -> must pass FIVE FILTERS ->

- [1] HARM ..... does the conduct set back interests?
- [2] RIGHTS ..... does it violate a right, or would banning it?
- [3] PUBLIC WRONG .. is this the community's business, not only a private failing?
- [4] CULPABILITY .. can a fault element be fairly attributed?
- [5] PROPORTION-

ALITY ..... is criminal sanction the least severe adequate response, and is the penalty range defensible?

FAIL ANY FILTER -> the prohibition may be unwise, unjust, or better handled by regulation, civil liability, taxation or education

*Caption: the two circles and their three regions, the three accounts of crime with the distinct question each answers, and the five filters that criminalisation itself must pass before a prohibition is justified.*

## In plain words

Everyone knows that crime and moral wrong are "related". The examinable point is *how* they come apart, and it is important that they come apart in **both** directions.

They come apart in the first direction when a valid law prohibits conduct that is not morally wrong. The law is validly enacted, correctly promulgated and duly enforced, and it is still unjust. Whoever says this is not attacking legal positivism; he is agreeing with it, because the positivist's own claim is precisely that the validity of a law is one thing and its merit another. A candidate who writes "positivists think that whatever the law says is right" has misunderstood the position he is attacking.

They come apart in the second direction when conduct is gravely wrong and is nevertheless not a crime - because no offence has been defined, because the wrong falls outside the reach of enforcement, or because the harm cannot be proved to the standard criminal proof requires. This direction is the one that matters for the applications in this clause. Much of the harm involved in corruption and in structural deprivation lies here, and noticing that is what allows a candidate to say something exact rather than merely indignant.

ANALYSIS: From those two directions follows the point that makes this session load-bearing for the whole clause: **criminalisation is itself an exercise of power that requires justification**. It is not enough to feel that conduct is intolerable. The community must be able to say that the conduct sets back interests, that prohibiting it does not itself violate a right, that the wrong is a public one rather than a private failing, that a fault element can fairly be attributed to those who commit it, and that criminal sanction - the heaviest instrument a state has short of war - is proportionate and is the least severe adequate response.

### The doctrine, exactly

FACT: **Legal crime** is conduct prohibited and punishable by a valid criminal law. FACT: **Moral wrong** is conduct that violates a justified ethical norm. FACT: **The classes overlap but are not identical**, and the non-identity runs both ways: an unjust law may criminalise morally innocent conduct, while grave moral wrongs may escape legal definition.

FACT: **The three accounts, and what each is for**. The **legal positivist account** asks what the law has prohibited; its limitation is that validity does not prove moral justice. The **moral account** asks what wrongful harm or violation occurred; its limitation is disagreement and vagueness about which norms are justified. The **sociological account** asks which norms and power relations define deviance; its limitation is that pursued alone it may weaken legal certainty, since a standard that shifts with social reaction cannot give fair notice.

ANALYSIS: **They are not three rival answers to one question**. This is the distinction that earns marks. Each account answers a different question - what is prohibited, what is wrong, and how the category of deviance is socially produced - and a complete treatment needs all three: the first for legality and notice, the second for justification, the third for the critical question of whose interests the prohibition serves.

ANALYSIS: **Criminalisation needs justification through harm, rights, public wrong, culpability and proportionality**. Each filter does distinct work. **Harm** asks whether interests are set back. **Rights** asks both whether the conduct violates a right and whether prohibiting it would violate one. **Public wrong** asks whether the community has standing to condemn, or whether the matter is a private failing better left to conscience, contract or civil remedy. **Culpability** asks whether a fault element can be fairly attributed rather than liability imposed on the merely unlucky. **Proportionality** asks whether the criminal law is the least severe adequate instrument and whether the penalty range is defensible.

ANALYSIS: **Why the filters matter for the four applications**. Corruption passes the public-wrong filter with difficulty in a purely harm-based account, because its victims are diffuse - which is exactly why Session 16 grounds it in the **breach of entrusted office** rather than in identifiable damage. Mass violence and genocide pass every filter easily and fail elsewhere, at attribution. Capital punishment is not a criminalisation question at all but a **severity** question, which is why it belongs at Q3 and not at Q1.

### Named evidence you can cite

- **The two-directional non-identity of legal crime and moral wrong** FACT: - with the unjust-law direction and the undefined-wrong direction stated separately; this is the opening any crime or criminalisation stem requires.
- **The three accounts of crime with their distinct questions and limitations** FACT: - legal positivist, moral and sociological; the grid that prevents an answer from collapsing into one perspective.
- **The five criminalisation filters** ANALYSIS: - harm, rights, public wrong, culpability and proportionality; the analytical reconstruction that converts "should this be a crime?" from an opinion into a test.

## ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Legal crime and moral wrong overlap without coinciding, and they fail to coincide in both directions - an unjust law can criminalise the innocent, and a grave wrong can escape legal definition - which is why criminalisation is itself an exercise of power that must be justified through harm, rights, public wrong, culpability and proportionality rather than through the intensity of our disapproval.

## MUST-WRITE KEYWORDS

valid criminal law · justified ethical norm · overlap without identity · validity does not prove justice · legal positivist, moral and sociological accounts · fair notice · harm · rights · public wrong · culpability · proportionality · least severe adequate response · private failing against public wrong

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Crime and moral wrong overlap but are not identical, and the non-identity runs in both directions, which is why the act of criminalising conduct itself stands in need of justification. **Named evidence.** The legal positivist account tells us what has been prohibited but concedes that validity does not establish justice; the moral account tells us what wrongful harm or violation occurred but faces disagreement about which norms are justified; and the sociological account tells us which power relations define deviance but, pursued alone, weakens the legal certainty on which fair notice depends. **Analysis.** Because no single account is sufficient, a prohibition must be tested rather than asserted: it must identify a set-back to interests, avoid violating a right in the act of protecting one, show that the wrong is the community's business rather than a private failing, permit the fair attribution of a fault element, and demonstrate that criminal sanction is the least severe adequate response with a defensible penalty range. **Qualification.** These filters constrain rather than decide, since reasonable people disagree about what counts as harm and about which failings are public, so the test's value is that it forces the disagreement into the open at the point where it belongs - the justification of the prohibition - instead of allowing it to be smuggled in later as a claim about how severely the offender deserves to suffer.

## Objection -> reply -> residual limit

- **Objection.** FACT: The harm filter is too permissive and too restrictive at once. Too permissive, because almost any conduct can be described as setting back someone's interests, so the filter licenses whatever the legislature wishes to prohibit. Too restrictive, because some conduct that a community regards as gravely wrong - desecration, cruelty to the dead, serious dishonesty in office where no measurable loss follows - sets back no identifiable interest and would escape prohibition altogether.
- **Reply.** ANALYSIS: The filters are cumulative and mutually correcting, not a single test. Over-permissiveness is checked by the **public wrong** and **proportionality** filters, which ask whether the community has standing to condemn and whether criminal sanction is the least severe adequate instrument; a trivial set-back fails both. Under-restrictiveness is checked by the fact that **public wrong** is an independent filter and not a restatement of harm: conduct can be the community's business because it repudiates a norm constitutive of a shared institution - which is precisely the structure of corruption, where the wrong is the betrayal of entrusted office rather than a measurable loss.
- **Residual limit.** CAUTION: The reply concedes that the filters do not generate determinate results without a prior account of which institutions and norms are constitutive of the community's shared life - and that account is contested. The honest position is that the filters discipline the argument and locate the disagreement; they do not decide it, and an answer claiming that they do has overclaimed.

## Examiner traps on this session

1. Writing "crime is a moral wrong recognised by law", which collapses both circles into one and destroys the entire session in a single clause.
2. Attacking legal positivism for the view that "whatever the law says is right". The positivist's own thesis is the separation of validity from merit; misattributing its opposite is an error the examiner will notice immediately.
3. Stating only one direction of the non-identity - usually the unjust-law direction - and never mentioning that grave wrongs can escape legal definition, which is the direction the corruption and structural-harm material actually needs.

4. Treating criminalisation as automatic once conduct is judged immoral. This is the "enforcement of morals" assumption, and asserting it without argument concedes the whole debate.

### Mini recap

Two circles, three regions, two directions of non-identity. Three accounts: positivist (what is prohibited; validity is not justice), moral (what wrong occurred; disagreement and vagueness), sociological (which power relations define deviance; risk to legal certainty). Five filters on criminalisation: harm, rights, public wrong, culpability, proportionality. The filters discipline the argument without deciding it. Corruption strains the public-wrong filter, mass violence and genocide strain attribution, capital punishment is a severity question and not a criminalisation question.

CLOSURE FLOW -- SESSION 2

```
legal crime | moral wrong -> OVERLAP WITHOUT IDENTITY, in BOTH directions
-> MECHANISM: three accounts, three distinct questions, three limits
-> CONSEQUENCE: criminalisation itself must pass harm | rights |
    public wrong | culpability | proportionality
-> TRAP: "crime is a moral wrong recognised by law"
-> ANSWER USE: open a criminalisation stem with the two directions,
    close with the filter the stem's conduct actually fails
```

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# SESSION 3 - ELEMENTS AND DEFENCES: WHY COERCIVE BLAME MAY OR MAY NOT BE ATTRIBUTED

## The picture first

THE ATTRIBUTION LADDER -- WHY THIS PERSON, FOR THIS WRONG  
=====

- [1] EXTERNAL ACT OR OMISSION (actus reus)  
FUNCTION: links liability to CONDUCT rather than to THOUGHT alone  
CONTROL: an omission requires a relevant DUTY or responsibility  
|  
-- otherwise every bystander is a principal  
v
- [2] FAULT ELEMENT (mens rea)  
FUNCTION: GRADES answerability  
THE LADDER: INTENTION -> KNOWLEDGE -> RECKLESSNESS -> NEGLIGENCE  
-> ACCIDENT (no fault)  
CONTROL: not every offence requires the same fault, but punishment  
|  
must track ATTRIBUTABLE CULPABILITY  
v
- [3] CAUSATION AND HARM  
FUNCTION: connects AGENCY to the public wrong charged  
CONTROL: causal contribution ALONE is not sufficient responsibility  
|  
v
- [4] LEGALITY AND FAIR NOTICE  
FUNCTION: prevents RETROSPECTIVE or INDETERMINATE condemnation  
CONTROL: legal validity still does not prove moral justice  
|  
v

ATTRIBUTION ESTABLISHED -- but the defendant may still answer:

| +=====+                                                                    |                                                                                                     |
|----------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| JUSTIFICATION                                                              | EXCUSE                                                                                              |
| +=====+                                                                    |                                                                                                     |
| CLAIM: the act was PERMISS-<br>IBLE in the circumstances                   | CLAIM: the act was WRONG, but<br>blame is DENIED or REDUCED                                         |
| +-----+                                                                    |                                                                                                     |
| e.g. necessary PROPORTIONATE<br>defence against an UNJUST<br>threat        | e.g. DURESS; serious<br>INCAPACITY                                                                  |
| +-----+                                                                    |                                                                                                     |
| WHAT IS DENIED: that the<br>conduct was wrongful                           | WHAT IS DENIED: that this<br>agent is answerable for it                                             |
| +-----+                                                                    |                                                                                                     |
| IF UPHELD: no wrong was done                                               | IF UPHELD: a wrong was done,<br>but not by a fully answerable<br>agent                              |
| +-----+                                                                    |                                                                                                     |
| CONSEQUENCE FOR OTHERS: those<br>who ASSIST may share the<br>justification | CONSEQUENCE FOR OTHERS: the<br>wrong remains a wrong, so<br>resistance to it remains<br>permissible |
| +=====+                                                                    |                                                                                                     |

merging these two is the fastest way to lose a  
responsibility question -- they deny DIFFERENT things

BOUNDARY MARKER

| +-----+                                                                                                                                                                                                                                                   |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| THIS IS NOT A CRIMINAL-LAW SYLLABUS INSIDE PHILOSOPHY. THE FOUR<br>ELEMENTS AND THE TWO DEFENCES ARE HERE ONLY BECAUSE THEY IDENTIFY<br>WHY COERCIVE BLAME MAY OR MAY NOT BE ATTRIBUTED. NO CLINICAL<br>DIAGNOSIS AND NO LEGAL TEST IS ASSERTED ANYWHERE. |  |
| +-----+                                                                                                                                                                                                                                                   |  |

*Caption: the four-step attribution ladder with the philosophical function and the control on each step, and the justification/excuse contrast set out on five axes so the two are never merged.*

## In plain words

Suppose we have decided that some conduct is rightly prohibited. A further question remains, and it is a different question: may we blame **this person** for **this instance** of it? Attribution is not automatic, and the four steps that establish it are worth learning as steps rather than as a list, because each one blocks a distinct kind of injustice.

The first step insists on an external act or a legally relevant omission. Its point is that we do not punish thoughts. A person may fantasise about a wrong, plan it in imagination and abandon it, and there is nothing to attribute. When an **omission** is charged, something extra is needed: a relevant duty or responsibility, without which every bystander to every harm becomes a principal offender.

The second step grades the fault. Intention, knowledge, recklessness and negligence are not synonyms for "guilty mind" but a ladder of decreasing answerability, with accident at the bottom, outside fault altogether. Not every offence demands the same rung; what is required is that the punishment track the culpability that can actually be attributed.

The third step connects agency to the wrong charged. And the fourth insists that the prohibition was knowable in advance, since condemning a person under a rule invented afterwards is not adjudication.

ANALYSIS: Then come the defences, and here a distinction earns marks that almost no script makes. A **justification** says the act was permissible: nothing wrong was done. An **excuse** concedes the wrong and denies or reduces blame, because control, knowledge or competent agency was impaired. They deny different things, and the difference has consequences: those who assist a justified act may share its justification, whereas an excused wrong remains a wrong, so resisting it remains permissible.

### The doctrine, exactly

FACT: **Element 1 - external act or omission (actus reus)**. Function: links liability to conduct rather than to thought alone. Control: an omission requires a relevant duty or responsibility.

FACT: **Element 2 - fault element (mens rea)**. Function: grades answerability through intention, knowledge, recklessness or negligence. Control: not every offence requires the same fault, but punishment must track attributable culpability.

FACT: **Element 3 - causation and harm**. Function: connects agency to the public wrong charged. Control: causal contribution alone is not sufficient responsibility - the point developed in Session 4 and decisive for mass violence in Session 18.

FACT: **Element 4 - legality and fair notice**. Function: prevents retrospective or indeterminate condemnation. Control: legal validity still does not prove moral justice, so the legality condition is necessary and not sufficient.

FACT: **Justification**. A claim that the act was permissible in the circumstances - for example, necessary proportionate defence against an unjust threat.

FACT: **Excuse**. A concession that the act was wrong coupled with a denial or reduction of blame, because control, knowledge or competent agency was impaired - for example, duress or serious incapacity.

ANALYSIS: **The five-axis contrast**. They differ in what is claimed, in the example that illustrates them, in what is denied, in what follows if upheld, and in the consequence for third parties. A justified act was not wrongful; an excused act was. Assistance to a justified act may share its justification; an excused wrong remains a wrong, so resistance to it remains permissible.

ANALYSIS: **Mental incapacity enters only through competence, control and excuse**. WRONG: No clinical diagnosis, psychiatric category or legal test is asserted anywhere in this package. The philosophical claim is only that impaired competence or control defeats or reduces attribution; how any legal system operationalises that is outside this owner.

### Named evidence you can cite

- **The four-element attribution ladder** FACT: - external act or omission, fault element, causation and harm, legality and fair notice, each with its philosophical function and its control.
- **The fault ladder** FACT: - intention, knowledge, recklessness, negligence, accident; the grading device that lets an answer say *how much* culpability is attributable rather than merely that some is.
- **The justification/excuse contrast on five axes** FACT: - what is claimed, the example, what is denied, what follows if upheld, and the consequence for third parties; the distinction that most scripts merge and that examiners specifically look for.

## ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Attribution of coercive blame is built in four steps - an external act or a duty-grounded omission, a graded fault element, a causal connection to the public wrong, and a prohibition knowable in advance - and even when all four are satisfied the defendant may still answer either that the act was permissible, which is a justification, or that it was wrong but not fully his, which is an excuse.

## MUST-WRITE KEYWORDS

actus reus as conduct rather than thought · duty-grounded omission · mens rea as graded answerability · intention · knowledge · recklessness · negligence · accident · causation connects agency to the charged wrong · legality and fair notice · justification denies wrongfulness · excuse denies answerability · impaired competence or control

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Even where conduct is rightly prohibited, coercive blame may be attributed to a particular person only if four conditions are satisfied, and the defences that remain available afterwards deny two quite different things. **Named evidence.** Liability must rest on an external act or an omission grounded in a relevant duty rather than on thought; the fault element must grade answerability along the ladder from intention through knowledge and recklessness to negligence; causation must connect the agent to the public wrong actually charged; and the prohibition must have been knowable in advance, since condemnation under a retrospective rule is not adjudication. **Analysis.** These conditions are not procedural technicalities but the philosophical content of answerability, which is why the defences track them: a justification such as necessary proportionate defence against an unjust threat denies that the conduct was wrongful at all, whereas an excuse such as duress or serious incapacity concedes the wrong and denies that this agent is fully answerable for it - and the difference has consequences, since those who assist a justified act may share its justification while an excused wrong remains a wrong that may still be resisted. **Qualification.** These are philosophical prerequisites and not a complete legal test, and mental incapacity enters here only through competence, control and excuse: no clinical category or statutory formula is being asserted, and an answer that reaches for one has left the paper it is writing.

## Objection -> reply -> residual limit

- **Objection.** FACT: Grading fault by intention, knowledge, recklessness and negligence assumes that these are discoverable states of mind. In practice a court infers them from conduct and circumstance, so the ladder describes an evidential construction rather than a discovered fact, and building attribution on it makes culpability depend on what a tribunal finds it convenient to infer.
- **Reply.** ANALYSIS: Inference from conduct is how nearly every attribution of mental states works, inside and outside law, and it does not make the states fictional. What the objection correctly identifies is a **standard of proof** problem rather than a conceptual one: the remedy is a demanding evidential threshold and a presumption against the higher rungs of the ladder, not the abandonment of grading. Abandoning it would leave only strict liability, in which the ladder's whole protective function disappears.
- **Residual limit.** CAUTION: The reply does not remove the difficulty at the boundary between advertent recklessness and inadvertent negligence, where the difference is precisely a state of mind that no conduct uniquely displays. That boundary is genuinely contested, and it is also where the fault ladder does its most consequential work, since it is often the line between a grave offence and a minor one.

## Examiner traps on this session

1. Merging justification and excuse, or using the words interchangeably. They deny different things, and a script that treats self-defence and duress as the same kind of answer has lost the distinction the examiner is looking for.
2. Writing that "*mens rea* means guilty mind" and stopping. Without the ladder there is no grading, and without grading there is no proportionality between culpability and sanction.
3. Charging an omission without identifying a duty. Every bystander then becomes a principal, which is exactly the conclusion the duty requirement exists to block, and it will return to haunt the mass-violence answer in Session 18.
4. Importing a clinical or statutory test for incapacity. This owner asserts none, and the philosophical claim is only about competence, control and excuse.

## Mini recap

Four elements: external act or duty-grounded omission; graded fault; causation to the charged wrong; legality and fair notice. Fault ladder: intention, knowledge, recklessness, negligence, accident. Two defences that deny different things: justification denies wrongfulness, excuse denies answerability. Five axes of contrast including the consequence for assistants and for resisters. Boundary: philosophical prerequisites, not a criminal-law syllabus; incapacity enters only through competence, control and excuse.

CLOSURE FLOW -- SESSION 3

prohibited conduct -> may WE BLAME THIS PERSON for THIS instance?

-> MECHANISM: act/omission -> graded fault -> causation -> legality

-> CONSEQUENCE: two defences that deny DIFFERENT things

JUSTIFICATION denies wrongfulness | EXCUSE denies answerability

-> TRAP: merging them; "mens rea = guilty mind"; duty-free omission

-> ANSWER USE: use the ladder to say HOW MUCH culpability is attributable, not merely that some is

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## SESSION 4 - THE CONDITIONS OF RESPONSIBLE PUNISHMENT, AND WHY RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION

## The picture first

## SEVEN CONDITIONS A DEFENSIBLE PUNISHMENT PRESUPPOSES

Each condition blocks a DIFFERENT abuse. Learn the abuse, not the list.

| # | CONDITION                                                                     | THE ABUSE IT BLOCKS                                          |
|---|-------------------------------------------------------------------------------|--------------------------------------------------------------|
| 1 | a PUBLIC LAW known in advance                                                 | retrospective condemnation                                   |
| 2 | a VOLUNTARY ACT or legally relevant OMISSION                                  | punishment of thought, status or identity                    |
| 3 | CULPABILITY proportionate to intention, knowledge, recklessness or negligence | treating the reckless and the deliberate alike               |
| 4 | FAIR PROCEDURE and RELIABLE PROOF                                             | conviction on suspicion, rumour or confession under pressure |
| 5 | a COMPETENT and IMPARTIAL AUTHORITY                                           | private vengeance dressed as justice                         |
| 6 | PROPORTIONALITY between wrong, responsibility and sanction                    | escalation without ceiling                                   |
| 7 | EQUAL APPLICATION without status bias                                         | penalty tracking status, wealth or group rather than conduct |

## THE HINGE DISTINCTION -- RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION

| CAUSED IT?              |                                                           | RESPONSIBLE?                                 |                   |
|-------------------------|-----------------------------------------------------------|----------------------------------------------|-------------------|
| +                       | +                                                         | +                                            | +                 |
| ↓                       | ↓                                                         | ↓                                            | ↓                 |
| CASE A                  | CASE B                                                    | CASE C                                       | CASE D            |
| caused +<br>responsible | CAUSED but NOT<br>responsible                             | RESPONSIBLE<br>but did NOT<br>directly cause | neither           |
| the paradigm<br>case    | contributed without<br>sufficient KNOWLEDGE<br>or CONTROL | a CULPABLE<br>OMISSION by<br>an official     | no<br>attribution |
|                         | ↓                                                         | ↓                                            |                   |
| "he caused it" blame    | DOES NOT settle                                           | "he did nothing" DOES NOT settle             | innocence         |

### CONSEQUENCE FOR THE REST OF THE CLAUSE

CASE B protects the low-level participant in MASS VIOLENCE from automatic principal liability -> Session 18

CASE C reaches the ENABLER, the SUPERVISOR and the OFFICE-HOLDER whose inaction made the wrong possible -> Sessions 17, 18, 19

TOGETHER they generate DIFFERENTIATED RESPONSIBILITY, which is the single most valuable move available on any mass-violence stem

*Caption: the seven conditions matched to the abuse each blocks, the four-cell hinge showing that causing and being responsible come apart in both directions, and the consequence that generates differentiated responsibility later in the clause.*

### In plain words

A punishment can be deserved in the abstract and still be unjust in the way it is delivered, so it is worth having the conditions as a checklist. The useful way to learn them is not as seven items but as seven **defences against seven distinct abuses**: notice defeats retrospective condemnation, the act requirement defeats punishment of thought or identity, graded culpability defeats treating the reckless like the deliberate, procedure defeats conviction on rumour, impartial authority defeats vengeance in official dress, proportionality defeats escalation, and equal application defeats penalties that track status rather than conduct. A script that can name the abuse for each condition is doing philosophy; a script that lists the seven is reciting.

ANALYSIS: The hinge of the session, though, is a distinction rather than a list: **responsibility is not identical with causal contribution**. It comes apart in both directions. A person may causally contribute to a harm without the knowledge or control that grounds blame. And an official may be responsible for a culpable omission that caused nothing directly, because the duty attached to the office made the inaction itself a wrong.

Both directions do heavy work later. The first protects the low-level participant in mass violence from being treated automatically as a principal. The second reaches the enabler, the supervisor and the office-holder whose failure to act made the wrong possible. Put together, they generate **differentiated responsibility** - the graded assignment of liability by role, knowledge, capacity and contribution - which is the most valuable single move available on any mass-violence or corruption stem.

### The doctrine, exactly

FACT: **A defensible punishment normally presupposes**: a public law known in advance; a voluntary act or legally relevant omission; culpability proportionate to intention, knowledge, recklessness or negligence; fair procedure and reliable proof; a competent and impartial authority; proportionality between wrong, responsibility and sanction; and equal application without status bias.

FACT: **The hinge**. Responsibility is not identical with causal contribution. A person may causally contribute without sufficient knowledge or control; conversely, an official can be responsible for a culpable omission.

ANALYSIS: **The four cells**. Caused and responsible - the paradigm. Caused but not responsible - contribution without adequate knowledge or control. Responsible without direct causation - the culpable omission of a duty-bearer. Neither - no attribution. The two middle cells are where every hard case in this clause lives.

ANALYSIS: **Why condition 5 matters more than it looks**. "A competent and impartial authority" is not an administrative footnote. It is the condition that separates punishment from private vengeance, and it is the condition that Duff's **standing** argument later interrogates from a different angle: it is not enough that the authority be formally competent and procedurally impartial if it has itself denied the offender the conditions of citizenship. Session 13 develops that; here it is enough to see that the condition is normative rather than procedural.

ANALYSIS: **Why condition 7 matters more than it looks**. "Equal application without status bias" is the condition on which the entire capital-punishment argument from **unequal administration** rests, and on which the 2019 social-justice stem turns. A sanction whose abstract rule is neutral can still be applied through unequal defence, unequal investigation and unreviewed discretion, and where that happens the sanction fails condition 7 even though it satisfies conditions 1 to 6.

### Named evidence you can cite

- **The seven conditions of responsible punishment** FACT: - best deployed with the abuse each blocks, which converts a list into an argument.
- **The responsibility/causation hinge with its two directions** FACT: - contribution without control, and culpable omission by a duty-bearer; the distinction that generates differentiated responsibility.
- **Conditions 5 and 7 as normative rather than procedural** ANALYSIS: - impartial authority as the boundary against vengeance and the doorway to Duff's standing condition; equal application as the foundation of the unequal-administration objection to capital punishment.

## ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Responsibility is not causal contribution: a person may cause a harm without the knowledge or control that grounds blame, and an office-holder may be responsible for a culpable omission that caused nothing directly - which is why the just distribution of punishment is always a question of graded answerability by role, knowledge and capacity rather than of tracing a chain of events backwards until someone is found at the end of it.

## MUST-WRITE KEYWORDS

public law known in advance · voluntary act or legally relevant omission · proportionate culpability · fair procedure and reliable proof · competent and impartial authority · proportionality of wrong, responsibility and sanction · equal application without status bias · contribution without control · culpable omission · differentiated responsibility

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** A punishment can be deserved in the abstract and unjust in its delivery, because justified punishment presupposes seven conditions each of which blocks a specific abuse, and the most consequential of them turns on a distinction that scripts routinely miss. **Named evidence.** The conditions are a public law known in advance, a voluntary act or a legally relevant omission, culpability proportionate to intention, knowledge, recklessness or negligence, fair procedure and reliable proof, a competent and impartial authority, proportionality between wrong, responsibility and sanction, and equal application without status bias; and the distinction is that responsibility is not identical with causal contribution. **Analysis.** That distinction runs in both directions and does the work: a person may contribute causally to a harm while lacking the knowledge or control that grounds blame, and an official may be responsible for a culpable omission that caused nothing directly because the duty attached to the office made the inaction itself the wrong - so liability must be assigned by role, knowledge, capacity and contribution rather than by tracing a causal chain to its nearest human link. **Qualification.** The conditions are jointly necessary rather than sufficient, and two of them are normative rather than procedural: an authority may be formally competent and still lack the standing to call this offender to account, and a penalty rule may be neutral on its face while being applied through unequal defence and unreviewed discretion, so a punishment can satisfy the list on paper and fail it in operation.

## Objection -> reply -> residual limit

- **Objection.** FACT: The seven conditions are an idealisation that no functioning system satisfies. Proof is never fully reliable, discretion is never wholly impartial, defence is never actually equal, and proportionality between wrong and sanction is contested at every point on the scale. A standard that no institution meets cannot be used to evaluate institutions, since it condemns all of them equally and therefore distinguishes none.
- **Reply.** ANALYSIS: The conditions function as **thresholds and directions of criticism**, not as a pass/fail certificate. They distinguish institutions by identifying which condition is failing, how badly and whether the failure is remediable - which is precisely what allows a candidate to say something exact about capital punishment rather than something general about criminal justice. A system with reviewable discretion and a system with unreviewed discretion both fall short of impartiality, and the conditions tell us which shortfall matters more and why.
- **Residual limit.** CAUTION: The reply concedes that the conditions cannot fix the point at which a shortfall becomes disqualifying. That threshold is where the capital-punishment argument is genuinely decided, and it is a judgement rather than a deduction: an abolitionist and a retentionist can accept every one of the seven conditions and disagree about whether the observed shortfall in condition 7 is tolerable.

## Examiner traps on this session

1. Listing the seven conditions without naming the abuse each blocks. The list is recitation; the abuses are the argument.
2. Treating "he caused it" as settling blame. This is the error the hinge exists to prevent, and it destroys any mass-violence answer that relies on it.
3. Treating "he did nothing" as settling innocence. The culpable omission of a duty-bearer is the entire basis on which enablers and supervisors are reached.

4. Reading conditions 5 and 7 as procedural boxes. They carry the standing argument and the unequal-administration argument respectively, and answers that skip them lose the two strongest moves available later in the clause.

### Mini recap

Seven conditions, seven abuses blocked: notice against retrospectivity; act against punishing thought or status; graded culpability against flattening fault; procedure against conviction on rumour; impartial authority against vengeance; proportionality against escalation; equal application against status-tracking penalties. The hinge: responsibility is not causal contribution, in both directions - contribution without control, and culpable omission by a duty-bearer. Consequence: differentiated responsibility, the key move for mass violence and corruption. Conditions 5 and 7 are normative and carry the standing and unequal-administration arguments.

CLOSURE FLOW -- SESSION 4

deserved in the abstract -> may still be UNJUST IN DELIVERY

- > MECHANISM: seven conditions, each blocking a named abuse
  - > HINGE: responsibility != causal contribution, BOTH directions  
contribution without control | culpable omission by a duty-bearer
  - > CONSEQUENCE: DIFFERENTIATED RESPONSIBILITY by role, knowledge,  
capacity, contribution
  - > TRAP: reciting the seven; "he caused it"; "he did nothing"
  - > ANSWER USE: conditions 5 and 7 carry the STANDING and UNEQUAL  
ADMINISTRATION arguments -- never treat them as procedure
-

# SESSION 5 - FREE WILL, DETERMINISM AND THE WORKING PENAL STANDARD

## The picture first

THREE POSITIONS ON FREEDOM -- AND WHAT EACH DOES TO PUNISHMENT

| POSITION                                                                                         | PENAL IMPLICATION                                                                                                                         | DIFFICULTY                                                              |
|--------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| LIBERTARIAN<br>FREEDOM<br>the agent could<br>have done<br>otherwise, full<br>stop                | DESERT requires genuine<br>ALTERNATIVE POSSIBILITIES<br>-- the offender could<br>have done otherwise, so<br>he answers for what he<br>did | difficult to<br>reconcile with<br>CAUSAL EXPLANATION<br>of conduct      |
| HARD DETERMINISM<br>every event,<br>including choice,<br>is causally<br>necessitated             | BASIC DESERT is<br>UNDERMINED; PROTECTION<br>and REHABILITATION<br>replace blame                                                          | risks treating<br>persons ONLY as<br>DANGEROUS OBJECTS<br>to be managed |
| COMPATIBILISM<br>freedom is<br>reasons-responsive<br>control, not<br>exemption from<br>causation | responsibility depends on<br>REASONS-RESPONSIVE<br>CONTROL, without<br>metaphysical exemption<br>from causation                           | must DISTINGUISH<br>CONSTRAINED agency<br>from ORDINARY<br>CAUSATION    |

v

THE WORKING PENAL STANDARD -- WHAT A COURT ACTUALLY NEEDS

|                                                                                                 |
|-------------------------------------------------------------------------------------------------|
| CRIMINAL RESPONSIBILITY NEED NOT PROVE METAPHYSICAL FREE WILL.<br>IT REQUIRES THAT THE ACCUSED: |
| [i] could UNDERSTAND the relevant reasons;                                                      |
| [ii] could CONTROL conduct to an ADEQUATE degree;                                               |
| [iii] acted WITHOUT responsibility-defeating COERCION or<br>INCAPACITY.                         |

|

v

WHAT DETERMINISTIC EXPLANATION \*CAN\* AND \*CANNOT\* DO

CAN ..... MITIGATE (reduce the severity that desert permits)  
CAN ..... REDIRECT (from punitive to protective or therapeutic  
responses, within limits)  
CANNOT ..... ERASE the distinction between INTENTIONAL, RECKLESS,  
NEGLIGENT and ACCIDENTAL conduct -- because that  
distinction is about CONTROL AND KNOWLEDGE, which  
deterministic explanation does not equalise

|

v

THE TWO SYMMETRICAL ERRORS THIS SESSION EXISTS TO BLOCK

|                                                                                                                                                                    |                                                                                                                                                                                            |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ERROR 1: DETERMINISM AS BLANKET<br>ACQUITTAL<br>"the offender's history caused<br>the act, so nobody is to blame"<br>-> would abolish the fault<br>ladder entirely | ERROR 2: METAPHYSICAL FREEDOM<br>AS A COURTROOM FACT<br>"he freely chose, therefore<br>no explanation is relevant"<br>-> would make mitigation,<br>duress and incapacity<br>unintelligible |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

*Caption: the three positions with penal implication and difficulty, the compatibilist working standard that criminal responsibility actually needs, what deterministic explanation can and cannot do, and the two symmetrical errors the standard blocks.*

### In plain words

Every discussion of punishment eventually meets the objection that nobody is really free, and most scripts handle it badly in one of two ways. Either they announce that determinism destroys responsibility and then continue to talk about desert for two pages as though nothing had happened, or they dismiss the problem as metaphysical and irrelevant to law. Both are avoidable.

The three positions can be stated cleanly. **Libertarian freedom** says desert requires genuine alternative possibilities: the offender could have done otherwise, and that is what makes him answerable. Its difficulty is that it is hard to reconcile with the ordinary causal explanation of conduct. **Hard determinism** says every event including choice is causally necessitated, so basic desert is undermined and protection and rehabilitation must replace blame. Its difficulty is that it risks treating persons only as dangerous objects to be managed. **Compatibilism** says freedom is not exemption from causation but a kind of control - the capacity to recognise reasons and to act on them - so responsibility survives causal explanation. Its difficulty is that it must show where constrained agency ends and ordinary causation begins.

**ANALYSIS:** The examinable payoff is a **working standard** rather than a metaphysical verdict. Criminal responsibility does not require proof of metaphysical free will. What it requires is that the accused could understand the relevant reasons, could control conduct to an adequate degree, and acted without responsibility-defeating coercion or incapacity. That standard is usable, and it explains something the two extremes cannot: why deterministic explanation **mitigates** without **acquitting**.

### The doctrine, exactly

**FACT: Libertarian freedom.** Penal implication: desert requires genuine alternative possibilities. Difficulty: difficult to reconcile with causal explanation.

**FACT: Hard determinism.** Penal implication: basic desert is undermined; protection and rehabilitation replace blame. Difficulty: risks treating persons only as dangerous objects.

**FACT: Compatibilism.** Penal implication: responsibility depends on reasons-responsive control without metaphysical exemption from causation. Difficulty: must distinguish constrained agency from ordinary causation.

**ANALYSIS: The working penal standard.** Criminal responsibility need not prove metaphysical free will. It requires that the accused could understand relevant reasons, control conduct to an adequate degree and act without responsibility-defeating coercion or incapacity.

**ANALYSIS: What deterministic explanation does.** It can **mitigate** - reducing the severity desert permits - and it can **redirect** - moving the response from the punitive towards the protective or the rehabilitative within limits. It **cannot erase** every distinction between intentional, reckless, negligent and accidental conduct, because that distinction concerns knowledge and control, which deterministic explanation does not equalise across cases.

**ANALYSIS: The two symmetrical errors.** Treating determinism as automatic acquittal abolishes the fault ladder and with it proportionality. Treating metaphysical freedom as a courtroom fact makes duress, incapacity and mitigation unintelligible. The compatibilist standard is what allows both to be avoided at once.

**ANALYSIS: How this connects to hard determinism's own proposal.** Hard determinism does not simply abolish the penal system; it proposes replacing blame with protection and rehabilitation. That proposal has to be assessed on its own terms, and the assessment is the difficulty listed: a purely protective system evaluates persons by predicted dangerousness rather than by what they have done, which removes the desert ceiling and can therefore permit **longer** intervention than desert would allow. This is the point at which the hard determinist's humane motivation can produce an illiberal institution, and stating it is what shows an examiner that the position has been understood rather than dismissed.

### Named evidence you can cite

- **The three-position grid with penal implication and difficulty** **FACT:** - libertarian, hard determinist, compatibilist; the structure any free-will-and-punishment stem requires.
- **The compatibilist working penal standard** **ANALYSIS:** - understanding of reasons, adequate control, absence of responsibility-defeating coercion or incapacity; the reconstruction that makes the debate usable in an answer.
- **The mitigate-redirect-but-not-erase formula** **ANALYSIS:** - the precise statement of what causal explanation does to culpability, and the antidote to blanket-acquittal reasoning.

## ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Criminal responsibility does not require proof of metaphysical free will; it requires that the accused could understand the relevant reasons, could control his conduct to an adequate degree, and acted without responsibility-defeating coercion or incapacity - which is why a deterministic account of an offender's history can mitigate and redirect his punishment without erasing the difference between what he did intentionally and what merely happened.

## MUST-WRITE KEYWORDS

alternative possibilities · basic desert · reasons-responsive control · exemption from causation · working penal standard · understand relevant reasons · adequate control · responsibility-defeating coercion or incapacity · mitigate and redirect without erasing · dangerousness against desert

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** The free-will problem does not have to be settled before punishment can be justified, because criminal responsibility rests on a standard of control rather than on a metaphysical thesis. **Named evidence.** Libertarian freedom grounds desert in genuine alternative possibilities but sits awkwardly with the causal explanation of conduct; hard determinism undermines basic desert and replaces blame with protection and rehabilitation, at the price of treating persons as dangerous objects; and compatibilism grounds responsibility in reasons-responsive control that does not require exemption from causation, at the price of having to mark the boundary between constrained agency and ordinary causation. **Analysis.** The compatibilist route is the one a penal system can actually use, because it asks whether the accused could understand the relevant reasons, control his conduct to an adequate degree and act without responsibility-defeating coercion or incapacity - a standard that explains why causal explanation of an offender's history mitigates severity and can redirect the response towards protection or rehabilitation, while still preserving the distinction between intentional, reckless, negligent and accidental conduct, which turns on knowledge and control rather than on the absence of causes. **Qualification.** The standard settles the operational question and not the metaphysical one, and it carries a cost that must be stated: the threshold of "adequate" control is contestable, and where a protective rationale replaces a desert rationale the desert ceiling disappears with it, so a system built purely on dangerousness may detain for longer than the wrong would ever have warranted.

## Objection -> reply -> residual limit

- **Objection.** FACT: Compatibilism secures responsibility by redefining freedom rather than by locating it. If the agent's reasons-responsiveness is itself the product of causes he did not choose - constitution, upbringing, circumstance - then saying he "could have responded to reasons" describes his mechanism rather than establishing his authorship, and the desert it supports is desert in name only.
- **Reply.** ANALYSIS: The reply concedes the metaphysical point and denies its practical consequence. What penal responsibility needs is a distinction that does real work between agents, and reasons-responsiveness supplies one: it separates the person who could have registered the prohibition and adjusted from the person who could not, which is exactly the difference between the ordinary offender and the person under duress or serious incapacity. A criterion that separates cases is doing its job even if it does not confer ultimate authorship, and the alternative - abolishing the distinction - makes every excuse unintelligible.
- **Residual limit.** CAUTION: The reply relocates the difficulty rather than dissolving it. If ultimate authorship is unavailable to everyone, then desert as a **ceiling** may be defensible while desert as a **positive reason to inflict suffering** remains suspect, which pushes the theory towards limiting retributivism plus prevention rather than towards full-blooded retributivism. That is a substantive consequence and should be stated as one, not concealed.

## Examiner traps on this session

1. Treating determinism as automatic acquittal. It abolishes the fault ladder, and any answer that asserts it and then goes on to discuss proportionate desert has contradicted itself.
2. Treating metaphysical freedom as a fact established in the courtroom. Nothing in a trial establishes it, and asserting it makes duress and incapacity unintelligible.
3. Presenting hard determinism as simply humane. Its own proposal - protection and rehabilitation in place of blame - removes the desert ceiling, and a purely dangerousness-based system can detain longer than the wrong warranted.



4. Reciting the three positions without the working standard. The grid is preparation; the standard is what an answer actually uses.

### Mini recap

Three positions with penal implication and difficulty: libertarian (alternative possibilities; hard to reconcile with causal explanation), hard determinist (desert undermined, protection and rehabilitation; persons as dangerous objects), compatibilist (reasons-responsive control; must mark the boundary with ordinary causation). Working penal standard: understanding of reasons, adequate control, no responsibility-defeating coercion or incapacity. Causal explanation mitigates and redirects but does not erase the fault distinctions. Two symmetrical errors blocked: blanket acquittal, and metaphysical freedom as courtroom fact.

CLOSURE FLOW -- SESSION 5

"nobody is really free" -> does responsibility survive?

- > MECHANISM: libertarian | hard determinist | compatibilist, each with its penal implication AND its difficulty
  - > WORKING STANDARD: understand reasons + adequate control + no responsibility-defeating coercion or incapacity
  - > CONSEQUENCE: causal explanation MITIGATES and REDIRECTS, does NOT ERASE intentional/reckless/negligent/accidental
  - > TRAP: blanket acquittal | free will as courtroom fact
  - > ANSWER USE: concede the metaphysics, keep the criterion, and name the cost -- dangerousness without desert loses the CEILING
-



# SESSION 6 - THE SIX THEORY FAMILIES AND THE THREE JUSTIFICATORY LOGICS

## The picture first

THE SIX FAMILIES ON FOUR AXES -- DOCTRINE, DIRECTION, TEST, DANGER

| FAMILY                       | DOCTRINE                                                                                                                     | DIRECTION        | CENTRAL TEST                           | MAIN DANGER                                          |
|------------------------------|------------------------------------------------------------------------------------------------------------------------------|------------------|----------------------------------------|------------------------------------------------------|
| RETRIBUTIVE                  | punish because culpable wrongdoing deserves a proportionate response                                                         | BACKWARD         | DESERT                                 | vengeance / excess                                   |
| DETERRENT                    | threaten or impose penalty to reduce future offending                                                                        | FORWARD          | EXPECTED PREVENTION                    | using the offender as a MEANS                        |
| PREVENTIVE / INCAPACITATIVE  | restrain a dangerous offender to protect others                                                                              | FORWARD          | NECESSITY and RISK                     | indefinite or discriminatory confinement             |
| REFORMATIVE / REHABILITATIVE | transform capacities and conditions for lawful agency                                                                        | FORWARD          | REINTEGRATION                          | paternalism; neglect of victims                      |
| RESTITUTION / RESTORATIVE    | RESTITUTION returns value or repairs loss; RESTORATIVE JUSTICE adds accountable PARTICIPATION of victim, offender, community | RELATIONAL       | ACKNOWLEDGEMENT, REPAIR, REINTEGRATION | unequal bargaining; unsuitable for some crimes       |
| DENUNCIATORY / EXPRESSIVE    | publicly CONDEMN the wrong and AFFIRM the norm violated                                                                      | BACKWARD /PUBLIC | AUTHORITATIVE CENSURE                  | hard treatment still needs independent justification |

NOTE THE TWO FAMILIES SCRIPTS ROUTINELY OMIT: PREVENTIVE and EXPRESSIVE. Omitting them is why so many answers oscillate between only retribution and deterrence.

THE THREE JUSTIFICATORY LOGICS UNDERNEATH THE SIX FAMILIES

| LOGIC                      | CENTRAL QUESTION                                             | THEORIES                                     | NON-NEGOTIABLE OBJECTION                                        |
|----------------------------|--------------------------------------------------------------|----------------------------------------------|-----------------------------------------------------------------|
| DEONTOLOGICAL              | what is OWED because of culpable wrong and EQUAL AGENCY?     | retribution, desert, rights, proportionality | deserved suffering still needs a PUBLIC INSTITUTIONAL PURPOSE   |
| CONSEQUENTIALIST           | which response PREVENTS future harm at least justified cost? | deterrence, prevention, rehabilitation       | UTILITY ALONE can target INNOCENTS or permit EXCESSIVE severity |
| RELATIONAL / COMMUNICATIVE | what response CONDEMNS,                                      | expressive, communicative,                   | COERCION, STANDING and                                          |

|                                            |                                                                   |             |                   |
|--------------------------------------------|-------------------------------------------------------------------|-------------|-------------------|
|                                            | ADDRESSES and                                                     | restorative | UNEQUAL           |
|                                            | REPAIRS while                                                     |             | BARGAINING remain |
|                                            | RETAINING                                                         |             |                   |
|                                            | MEMBERSHIP?                                                       |             |                   |
| +-----+-----+-----+-----+                  |                                                                   |             |                   |
|                                            |                                                                   |             |                   |
|                                            |                                                                   | v           |                   |
| THE MIXED THEORY THIS GRID MAKES AVAILABLE |                                                                   |             |                   |
| +-----+-----+-----+-----+                  |                                                                   |             |                   |
|                                            | A DEFENSIBLE MIXED THEORY MAY BE CONSEQUENTIALIST ABOUT THE       |             |                   |
|                                            | INSTITUTION'S GENERAL AIM WHILE USING GUILT, DESERT AND RIGHTS AS |             |                   |
|                                            | DEONTOLOGICAL CONSTRAINTS ON LIABILITY AND AMOUNT.                |             |                   |
| +-----+-----+-----+-----+                  |                                                                   |             |                   |

*Caption: the six families on four axes with the two that scripts habitually omit flagged, the three justificatory logics with the objection each must answer, and the mixed theory the two grids together make available.*

### In plain words

Most candidates arrive with three theories - retribution, deterrence, reform - and an instinct to say that a combination of all three is best. The instinct is right and the equipment is inadequate, for two reasons.

First, there are **six** families, not three, and the two usually omitted are the two that do the most work in this clause.

**Preventive or incapacitative** punishment restrains a dangerous offender to protect others; it is the family that capital punishment's third argument invokes, and it is the family whose danger - indefinite or discriminatory confinement - explains why "he is dangerous" cannot be a complete justification. **Denunciatory or expressive** punishment publicly condemns the wrong and affirms the norm violated; it is the family that explains why a wrongful conviction is a distinct wrong even if compensation follows, and why victims often want the offence publicly named rather than only paid for.

Second, saying that a combination is best is not yet a position. A combination has to specify **which component answers which question**, or it is merely a list with a conjunction. That is what the second grid supplies. Underneath the six families sit three justificatory logics. **Deontological** reasoning asks what is owed because of culpable wrong and equal agency. **Consequentialist** reasoning asks which response prevents future harm at least justified cost. **Relational or communicative** reasoning asks what response condemns, addresses and repairs while retaining membership. ANALYSIS: Once the logics are separated, the mixed theory becomes statable: **consequentialist about the institution's general aim, deontological in the constraints on liability and amount, relational in the manner of address and repair.**

### The doctrine, exactly

FACT: **Retributive**. Punish because culpable wrongdoing deserves a proportionate response. Direction: backward-looking. Central test: desert. Main danger: vengeance and excess.

FACT: **Deterrent**. Threaten or impose penalty to reduce future offending. Direction: forward-looking. Central test: expected prevention. Main danger: using the offender as a means.

FACT: **Preventive or incapacitative**. Restrain a dangerous offender to protect others. Direction: forward-looking. Central test: necessity and risk. Main danger: indefinite or discriminatory confinement.

FACT: **Reformative or rehabilitative**. Transform capacities and conditions for lawful agency. Direction: forward-looking. Central test: reintegration. Main danger: paternalism and neglect of victims.

FACT: **Restitution and restorative**. Restitution returns value or repairs loss; restorative justice adds the accountable participation of victim, offender and community. Direction: relational. Central test: acknowledgement, repair and reintegration. Main danger: unequal bargaining; unsuitable for some crimes.

FACT: **Denunciatory or expressive**. Publicly condemn the wrong and affirm the norm violated. Direction: backward-looking and public. Central test: authoritative censure. Main danger: hard treatment still needs independent justification.

ANALYSIS: **Restitution and restoration are not the same thing**. Restitution is a remedial **outcome** - value returned, loss repaired. Restorative justice is a **process** of acknowledgement, participation and reintegration inside which restitution may be one outcome among several. Merging them is a listed trap and it costs marks whenever a stem asks about victim-centred justice.

FACT: **The deontological logic**. Central question: what is owed because of culpable wrong and equal agency? Theories: retribution, desert, rights and proportionality. Non-negotiable objection: deserved suffering still needs a

public institutional purpose.

**FACT: The consequentialist logic.** Central question: which response prevents future harm at least justified cost? Theories: deterrence, prevention and rehabilitation. Non-negotiable objection: utility alone can target innocents or permit excessive severity.

**FACT: The relational or communicative logic.** Central question: what response condemns, addresses and repairs while retaining membership? Theories: expressive, communicative and restorative approaches. Non-negotiable objection: coercion, standing and unequal bargaining remain.

**ANALYSIS: The mixed theory.** A defensible mixed theory may be consequentialist about the institution's general aim while using guilt, desert and rights as deontological constraints on liability and amount. Session 11 shows why this dissolves the classical dilemma rather than merely splitting the difference.

### Named evidence you can cite

- **The six-family grid on four axes** FACT: - doctrine, direction, central test, main danger; the classification that replaces "merits and demerits" with adjudication.
- **The preventive and expressive families** FACT: - the two habitually omitted, and the two that carry the incapacitation argument for capital punishment and the wrongful-conviction argument respectively.
- **The three justificatory logics with their non-negotiable objections** FACT: - deontological, consequentialist, relational; the deeper grid that makes a mixed theory statable rather than merely asserted.
- **The restitution/restoration distinction** FACT: - outcome against process; a listed trap and a quick mark on any victim-centred stem.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

There are six families of penal justification, not three, and each is defined by a direction, a central test and a characteristic danger - so the question is never which theory is true but which of them answers the question the stem is actually asking, and a defensible mixed theory is consequentialist about why the institution exists while remaining deontological about whom it may punish and by how much.

### MUST-WRITE KEYWORDS

**backward-looking desert · expected prevention · necessity and risk · reintegration · acknowledgement and repair · authoritative censure · restitution as outcome, restoration as process · deontological, consequentialist, relational logics · side-constraint · consequentialist in aim, retributivist in constraint**

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Penal theory contains six families rather than three, and they are best distinguished not by their slogans but by direction, central test and characteristic danger. **Named evidence.** Retribution looks backward and is tested by desert, with vengeance as its danger; deterrence looks forward and is tested by expected prevention, with instrumentalisation of the offender as its danger; incapacitation looks forward and is tested by necessity and risk, with indefinite or discriminatory confinement as its danger; reform looks forward and is tested by reintegration, with paternalism and the neglect of victims as its danger; restitution and restorative justice are relational and are tested by acknowledgement and repair, with unequal bargaining as their danger; and denunciation is backward-looking and public, tested by authoritative censure, with the residual need to justify hard treatment as its danger. **Analysis.** Beneath the six lie three justificatory logics - the deontological question of what is owed to culpable agency, the consequentialist question of what prevents harm at least justified cost, and the relational question of what condemns and repairs while retaining membership - and separating them converts the familiar instinct that "a combination is best" into a statable position: consequentialist about the institution's general aim, deontological in its constraints on liability and severity, relational in its manner of address. **Qualification.** A mixed theory owes an account of how its components cohere rather than merely coexist, since each logic carries an objection the others cannot answer for it - deserved suffering still needs a public institutional purpose, utility alone can target the innocent or escalate without ceiling, and communicative approaches still face coercion, standing and unequal bargaining - so the mixture must assign each logic a determinate role rather than invoking whichever is locally convenient.

### Objection -> reply -> residual limit

- **Objection.** FACT: A mixed theory is an evasion. It takes whichever component supports the conclusion it wants in each case - desert when leniency is unwelcome, prevention when severity needs defending, reform when the offender is sympathetic - and calls the result a synthesis. A theory that cannot be falsified by any case is not a theory.
- **Reply.** ANALYSIS: The charge holds against an **unstructured** mixture and fails against a **structured** one. If the mixture assigns each logic a determinate role - prevention answers why the institution exists, desert fixes who may be punished and sets a ceiling on how much, communication and repair govern the manner - then the theory does make determinate and refutable claims. It forbids punishing an innocent person however great the preventive gain, forbids exceeding the desert ceiling however great the deterrent gain, and forbids substituting repair for condemnation where the wrong is grave and public. Those are three testable prohibitions, and a system that violates any of them is condemned by the theory.
- **Residual limit.** CAUTION: The structured mixture still has to defend the priority ordering itself, and the ordering is not derived from the components. Why should desert operate as a ceiling rather than as a floor? Why should condemnation be non-negotiable for grave public wrongs but not for minor ones? Those are further substantive commitments, and an answer that presents the mixed theory as a neutral compromise between rivals has concealed the fact that it is a third position with its own burden of argument.

### Examiner traps on this session

1. Naming three theories and omitting prevention and expression. The omission is why so many answers oscillate uselessly between retribution and deterrence, and it removes the two families that later carry the incapacitation argument and the wrongful-conviction argument.
2. Merging restitution with restorative justice. Restitution is an outcome; restoration is a participatory process inside which restitution may be one outcome.
3. Writing "each theory has merits and demerits" instead of naming direction, test and danger. The grid is what turns a survey into adjudication.
4. Asserting that a combination is best without saying which component answers which question. That is a conjunction, not a theory, and it is exactly the failure the three-logic grid exists to correct.

### Mini recap

Six families on four axes: retributive (backward, desert, vengeance), deterrent (forward, expected prevention, instrumentalisation), preventive (forward, necessity and risk, indefinite confinement), reformative (forward, reintegration, paternalism), restitution and restorative (relational, acknowledgement and repair, unequal bargaining), denunciatory (backward and public, authoritative censure, unjustified hard treatment). Three logics with non-negotiable objections: deontological, consequentialist, relational. Mixed theory: consequentialist in aim, deontological in constraint, relational in manner. Restitution is an outcome; restoration is a process.

CLOSURE FLOW -- SESSION 6

"which theory of punishment is right?" -> WRONG QUESTION

-> MECHANISM: six families x (direction | central test | danger)

-> DEEPER GRID: deontological | consequentialist | relational, each with a non-negotiable objection

-> CONSEQUENCE: a STRUCTURED mixed theory -- aim consequentialist, liability and amount desert-constrained, manner communicative

-> TRAP: three theories only | restitution merged with restoration | "merits and demerits"

-> ANSWER USE: assign each logic a determinate role, then state the three prohibitions the mixture generates

# SESSION 7 - RETRIBUTIVISM: KANT, HEGEL, AND THE LIMITING REPLY

## The picture first

THE RETRIBUTIVE ARGUMENT -- FOUR STEPS FROM CRIME TO PUBLIC JUSTICE

- ```
[1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT
    the offender acts on a principle that, universalised, would
    destroy the very system of equal freedom he relies on
    |
    v
[2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE
    he is addressed as a rational agent, not managed as a hazard
    |
    v
[3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL MAXIM
    HEGEL: punishment is the NEGATION OF THE CRIME'S WRONGFUL CLAIM --
    it RESTORES RIGHT while taking the offender seriously as a
    responsible agent
    |
    v
[4] THEREFORE PUNISHMENT EXPRESSES RESPECT FOR RIGHT, NOT PRIVATE
    REVENGE
```

KANT'S CONTRIBUTION, STATED WITHOUT CARICATURE

```
+-----+
| PUNISHMENT MUST ANSWER TO THE OFFENDER'S CULPABLE ACT AND |
| CANNOT BE IMPOSED MERELY TO PRODUCE SOCIAL UTILITY. TREATING A |
| PERSON *ONLY* AS AN INSTRUMENT OF DETERRENCE VIOLATES RATIONAL |
| AGENCY. |
+-----+
```

NOTE THE WORD "ONLY". Kant does not say punishment may have no useful effects; he says desert, not usefulness, licenses it.

RETRIBUTION IS NOT REVENGE -- FOUR AXES

| AXIS       | REVENGE                            | RETRIBUTION                       |
|------------|------------------------------------|-----------------------------------|
| WHO ACTS   | the injured party<br>or his allies | a PUBLIC, IMPARTIAL<br>authority  |
| MEASURE    | the intensity of<br>the grievance  | PROPORTIONATE DESERT              |
| LIMIT      | none intrinsic                     | a CEILING fixed by<br>culpability |
| GENERALITY | this case, this<br>enemy           | LIKE CASES ALIKE,<br>impersonally |

THE OBJECTION AND THE MOVE THAT ANSWERS IT

OBJECTION -> "suffering does not undo suffering, and DESERT ALONE cannot show why the STATE should ADD pain"

REPLY ---> MODERN RETRIBUTIVISM CAN BE \*LIMITING\* RATHER THAN \*MAXIMISING\*:

- (a) NO ONE may be punished WITHOUT desert
- (b) NO PENALTY may EXCEED desert
- i.e. desert operates as a NECESSARY CONDITION and a CEILING, not as a positive command to inflict

RESIDUE -> it still needs an account of HUMANE INSTITUTIONS, and the Q1 gap remains: WHY THE STATE, rather than no one?

-----  
THE 2020 STEM IN ONE LINE: IS RETRIBUTION AGAINST HUMAN RIGHTS?  
-----

AGAINST rights, IF maximising: desert as a command to inflict, with  
no ceiling -> licenses degradation and excess  
FOR rights, IF limiting: desert as necessary condition + ceiling ->  
it is the ONLY theory that structurally FORBIDS punishing the  
innocent and FORBIDS escalation for preventive gain  
VERDICT SHAPE: the answer turns on WHICH retributivism, and a script  
that does not distinguish them has answered neither question

*Caption: the four-step retributive argument, Kant's claim stated with the word "only" preserved, the four axes separating retribution from revenge, the objection with the limiting reply and its residue, and the one-line route through the owned 2020 stem.*

### In plain words

Retributivism is the most caricatured position in the paper. It is presented as "an eye for an eye", answered with the observation that two wrongs do not make a right, and dismissed. That exchange settles nothing, because it attacks a version of the theory no serious retributivist holds.

Start with what Kant actually claims: punishment must answer to the offender's culpable act, and cannot be imposed merely to produce social utility, because treating a person **only** as an instrument of deterrence violates rational agency. The word *only* is doing the work. Kant is not saying that punishment must have no beneficial effects; he is saying that the beneficial effects are not what licenses it.

Hegel adds the structural move. Punishment is the **negation of the crime's wrongful claim**: the offender's act asserted a principle incompatible with equal right, and the proportionate legal response publicly denies that principle and restores right - while treating the offender as a responsible agent rather than as a hazard to be managed.

ANALYSIS: Then comes the distinction that most answers omit and that the owned 2020 stem is built to test. Retribution is not revenge, and they differ on four axes: who acts, what measure is used, whether there is an intrinsic limit, and whether like cases are treated alike. Revenge is personal, unmeasured, unlimited and particular. Retribution is public, proportionate, ceilinged and general.

ANALYSIS: And then the decisive move. Modern retributivism can be **limiting** rather than **maximising**. A limiting retributivist claims two things only: that no one may be punished without desert, and that no penalty may exceed desert. On that reading desert is a **necessary condition** and a **ceiling**, not a positive command to inflict pain. This single distinction transforms the human-rights question, because a limiting retributivism is the only theory in the clause that structurally forbids punishing the innocent and structurally forbids escalating severity for preventive gain.

### The doctrine, exactly

FACT: **Kant**. Punishment must answer to the offender's culpable act and cannot be imposed merely to produce social utility. Treating a person only as an instrument of deterrence violates rational agency.

FACT: **Hegel**. Punishment is the negation of the crime's wrongful claim: it restores right while taking the offender seriously as a responsible agent.

FACT: **The argument in four steps**. Crime asserts a maxim incompatible with equal right; imputable agency makes the offender answerable; a proportionate legal response publicly denies the wrongful maxim; punishment therefore expresses respect for right, not private revenge.

FACT: **The objection**. Suffering does not undo suffering, and desert alone cannot show why the state should add pain.

FACT: **The reply**. Modern retributivism can be limiting rather than maximising: no one may be punished without desert, and no penalty may exceed it.

ANALYSIS: **The residue**. Limiting retributivism still needs an account of humane institutions, and it does not close the Q1 gap: it explains why punishment may not exceed desert far better than it explains why the state must impose deserved suffering at all.

ANALYSIS: **Retribution is not revenge - the four axes**. Agent: injured party against public impartial authority. Measure: intensity of grievance against proportionate desert. Limit: none intrinsic against a ceiling fixed by culpability. Generality: this case and this enemy against like cases alike.



**ANALYSIS: How the 2020 owned stem is won.** *Is the retributive theory of punishment against human rights?* The answer turns on which retributivism. A **maximising** retributivism, treating desert as a command to inflict with no independent ceiling, is in tension with rights, because it can license degradation and can be invoked to justify escalation without limit. A **limiting** retributivism is not merely compatible with rights but is their strongest penal ally, because it is the only family that structurally forbids both punishing the innocent and exceeding desert for preventive gain. **ANALYSIS:** A script that treats "retributivism" as one thing has answered neither version, and that is precisely the failure the stem is designed to detect.

### Named evidence you can cite

- **Kant, The Metaphysics of Morals\*** **FACT:** - punishment must be inflicted because a crime has been committed and never merely as a means to social benefit; it respects the offender as a responsible agent. **Limitation:** answers Q2 and Q3 well and Q1 poorly.
- **Hegel, Philosophy of Right\*** **FACT:** - crime annuls right and punishment annuls the annulment; punishment restores the violated order of right. **Limitation:** highly abstract, and it supplies no measure of severity.
- **The limiting/maximising distinction** **FACT:** - desert as necessary condition and ceiling rather than as a positive command; the single move that decides the 2020 human-rights stem.
- **The four-axis revenge contrast** **ANALYSIS:** - agent, measure, limit, generality; the reconstruction that pre-empts the "two wrongs" objection before an examiner can raise it.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Retributivism is against human rights only in its maximising form, where desert is read as a command to inflict; in its limiting form - no punishment without desert, and no penalty beyond it - it is the one penal theory that structurally forbids both punishing the innocent and escalating severity for preventive gain, and is therefore the strongest ally that rights have inside penal theory.

### MUST-WRITE KEYWORDS

culpable act, not social utility · treating a person only as an instrument · negation of the crime's wrongful claim · imputable agency · maxim incompatible with equal right · limiting against maximising retributivism · desert as necessary condition and ceiling · public impartial authority · like cases alike · the Q1 gap

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Whether retributivism conflicts with human rights depends entirely on whether desert is read as a command to inflict suffering or as a constraint on inflicting it, and only the second reading is defended by serious retributivists. **Named evidence.** Kant holds that punishment must answer to the offender's culpable act and may not be imposed merely to produce social utility, since treating a person only as an instrument of deterrence violates rational agency; Hegel holds that punishment negates the crime's wrongful claim and thereby restores right while addressing the offender as a responsible agent rather than as a hazard. **Analysis.** On the limiting reading these commitments generate two prohibitions and no positive command: no one may be punished without desert, and no penalty may exceed desert - which is why limiting retributivism forbids the very things rights-based objections most fear, namely the conviction of the innocent for preventive gain and the escalation of severity beyond culpability, and why the contrast with revenge holds on all four axes of agent, measure, limit and generality. **Qualification.** The limiting form purchases its compatibility with rights at a cost that must be conceded: it explains far better why punishment may not exceed desert than why the state must impose deserved suffering at all, so it leaves the general justifying aim to be supplied from elsewhere, and it still requires an independent account of humane institutions, since a penalty within the desert ceiling can nonetheless be administered degradingly.

### Objection -> reply -> residual limit

- **Objection.** **FACT:** Even limiting retributivism cannot escape the charge, because a ceiling has to be located somewhere, and the location of the ceiling is exactly what is disputed. If desert is what fixes the maximum, and if desert intuitions in a given society support very severe penalties for certain offences, then the "limit" imposed by desert may be no limit at all - and a theory whose ceiling floats with public sentiment offers rights no protection.
- **Reply.** **ANALYSIS:** The objection is serious and is answered by the ordinal/cardinal distinction developed in Session 10 rather than by the desert intuition itself. **Ordinal** proportionality - ranking offences relative to one

another - is what desert reliably supplies. **Cardinal** proportionality - fixing how severe the whole scale may be - is set by independent constraints on what may be done to a person at all, including the prohibition of degradation. Limiting retributivism therefore does not derive its ceiling from sentiment; it derives the **ranking** from desert and the **anchor** from the constraints of dignity and humane treatment.

- **Residual limit.** CAUTION: This reply concedes that retributivism alone is not self-sufficient even in its limiting form: it requires an external anchor that it does not itself supply. That is a genuine limitation and should be stated as one, because it is also the reason why the strongest position in this clause is a mixed theory rather than a pure one.

### Examiner traps on this session

1. Equating retribution with revenge, or defending it as "an eye for an eye". The four axes exist precisely to prevent this, and an answer that concedes the identification has lost the 2020 stem in its first paragraph.
2. Dropping the word *only* from Kant's claim. Kant does not deny that punishment has useful effects; he denies that usefulness licenses it. The misquotation makes his position absurd and easy to refute, which is why examiners notice it.
3. Treating "retributivism" as a single position on the human-rights question. The stem is built on the limiting/maximising distinction, and a script that never draws it has answered neither version.
4. Presenting Hegel's negation-of-the-negation as a measure of severity. It is a structural claim about what punishment does to the crime's wrongful claim; it supplies no scale, and saying it does is an overclaim.

### Mini recap

Kant: punishment answers to the culpable act, not to social utility; treating a person *only* as an instrument violates rational agency. Hegel: punishment negates the crime's wrongful claim and restores right while addressing the offender as responsible. Four steps: incompatible maxim, imputable agency, proportionate public denial, respect for right rather than revenge. Four axes against revenge: agent, measure, limit, generality. Objection: suffering does not undo suffering. Reply: limiting retributivism - no punishment without desert, none beyond it. Residue: the Q1 gap, and the need for an external cardinal anchor.

#### CLOSURE FLOW -- SESSION 7

```
"is retributivism against human rights?" -> WHICH retributivism?
-> MECHANISM: crime asserts an incompatible maxim -> imputable
    agency -> proportionate public denial -> respect for right
-> DISTINCTION: MAXIMISING (command to inflict) vs LIMITING
    (necessary condition + ceiling)
-> CONSEQUENCE: limiting retributivism FORBIDS punishing the
    innocent and FORBIDS preventive escalation -- rights' best ally
-> TRAP: revenge caricature | dropping Kant's "only" | one-position
    reading of the theory
-> ANSWER USE: concede the Q1 gap and the need for a cardinal
    anchor, then close on the two prohibitions
```



# SESSION 8 - DETERRENCE: THE UTILITARIAN JUSTIFICATION AND ITS TWO FAILURES

## The picture first

THE DETERRENT ARGUMENT AND WHERE IT BREAKS

JUSTIFICATION: punishment is justified by the EXPECTED REDUCTION OF FUTURE HARM

|  
+----> SPECIFIC DETERRENCE ... addresses THE OFFENDER  
+----> GENERAL DETERRENCE .... addresses OTHERS  
|  
v

FOUR PRESUPPOSITIONS -- EACH ONE IS A PLACE THE ARGUMENT CAN FAIL

|                         |                                                        |                                                                                     |
|-------------------------|--------------------------------------------------------|-------------------------------------------------------------------------------------|
| +---+-----+-----+-----+ |                                                        |                                                                                     |
| 1                       | persons respond to PERCEIVED COSTS                     | fails where the actor is impulsive, intoxicated, coerced or ideologically committed |
| +---+-----+-----+-----+ |                                                        |                                                                                     |
| 2                       | sanctions are KNOWN and sufficiently CERTAIN           | fails where enforcement is rare, slow or arbitrary                                  |
| +---+-----+-----+-----+ |                                                        |                                                                                     |
| 3                       | preventive BENEFITS EXCEED direct and collateral harms | fails where collateral damage to families, employment and trust is ignored          |
| +---+-----+-----+-----+ |                                                        |                                                                                     |
| 4                       | LESS HARMFUL ALTERNATIVES are INADEQUATE               | fails where regulation, civil liability or design would work as well                |
| +---+-----+-----+-----+ |                                                        |                                                                                     |

|  
v  
BECCARIA'S CALIBRATION POINT: CERTAINTY AND PROMPTNESS matter MORE than SEVERITY -- which is why escalation is usually the WRONG lever

|  
v  
=====

FAILURE ONE -- AT Q2 (WHOM MAY WE PUNISH?)

=====

OBJECTION -> deterrence may justify punishing an INNOCENT person if the social benefit is large enough

|  
v  
REPLY -----> RULE-UTILITARIAN CONSTRAINTS: reliable guilt, legality, due process -- because a practice of framing the innocent would destroy TRUST and thus LONG-RUN UTILITY

|  
v  
COUNTER-REPLY -> critics answer that RIGHTS SHOULD CONSTRAIN UTILITY INDEPENDENTLY: if the only reason not to frame an innocent is that we might be found out, the protection is CONTINGENT, and a SECRET injustice escapes the objection entirely

=====

FAILURE TWO -- AT Q3 (HOW MUCH?)

=====

PURE DETERRENCE PERMITS ESCALATION WITHOUT CEILING: if a harsher penalty deters more, the theory has no internal resource to say STOP

|  
v  
THIS IS WHY A DESERT SIDE-CONSTRAINT IS NEEDED -- see Sessions 7, 11

=====

|  
v

THE EMPIRICAL DISCIPLINE THIS SESSION IMPOSES

+-----+

|                                                                   |  |
|-------------------------------------------------------------------|--|
| DETERRENCE IS AN EMPIRICAL CLAIM. IT MAY BE TRUE, FALSE OR        |  |
| UNDETERMINED FOR A GIVEN PENALTY, AND A PHILOSOPHY ANSWER MUST    |  |
| SAY WHICH. NEVER WRITE THAT DETERRENCE IS "PROVED" OR "DISPROVED" |  |
| WITHOUT EVIDENCE; MARK IT AS A CONTROVERSY AND ARGUE ABOUT WHAT   |  |

*Caption: the deterrent justification with its two branches, the four presuppositions each shown with the case that defeats it, Beccaria's calibration point, the two structural failures located precisely at Q2 and Q3, and the empirical discipline the clause requires.*

### In plain words

Deterrence is the theory most people already hold without noticing. Punishment exists, on this view, to make offending less attractive: **specific deterrence** works on the offender who has been punished, **general deterrence** on everyone who observes it. The justification is entirely forward-looking - expected reduction of future harm.

ANALYSIS: The argument has four presuppositions, and the reason to learn them as presuppositions rather than as a description is that each one identifies a case where the justification simply fails. It presupposes that persons respond to perceived costs, which is doubtful for the impulsive, the intoxicated, the coerced and the ideologically committed. It presupposes that sanctions are known and sufficiently certain, which fails where enforcement is rare or arbitrary. It presupposes that preventive benefits exceed direct and collateral harms, which fails when the damage done to families, livelihoods and social trust is left out of the calculation. And it presupposes that less harmful alternatives are inadequate - which is a comparative claim, and one that is rarely tested.

**Beccaria** supplies the calibration point that follows from presupposition 2: **certainty and promptness matter more than severity**. That is why increasing penalties is usually the wrong lever, and it is a point worth deploying on any stem about severe penalties, including the capital-punishment ones.

ANALYSIS: Then come the two structural failures, and it is essential to locate them precisely rather than to state them vaguely. The famous punishing-the-innocent objection is a failure at **Q2** - whom we may punish - and not at Q1. Pure deterrence, if it is the whole theory, permits the punishment of an innocent person where the social benefit is large enough. The rule-utilitarian reply is that constraints of reliable guilt, legality and due process protect trust and therefore long-run utility. ANALYSIS: The counter-reply is that this makes the protection **contingent**: if the reason not to frame an innocent person is that discovery would erode trust, then a **secret** injustice escapes the objection, and rights that hold only when observed are not rights. The second failure is at **Q3** - how much - because a theory that measures punishment by deterrent yield has no internal resource for saying when severity should stop.

### The doctrine, exactly

FACT: **Deterrence justifies punishment by expected reduction of future harm. Specific deterrence** addresses the offender; **general deterrence** addresses others.

FACT: **The four presuppositions.** Persons respond to perceived costs; sanctions are known and sufficiently certain; preventive benefits exceed direct and collateral harms; less harmful alternatives are inadequate.

FACT: **The objection.** Deterrence may justify punishing an innocent person if social benefit is large enough.

FACT: **The reply.** Rule-utilitarian constraints - reliable guilt, legality and due process - protect trust and long-term utility.

ANALYSIS: **The counter-reply.** Critics answer that rights should constrain utility **independently**. The rule-utilitarian defence makes the prohibition on framing the innocent depend on the social costs of discovery, which is a contingent protection; a rights-based prohibition does not.

FACT: **Bentham and Beccaria.** All punishment is an evil, justified only by preventing greater evil; penalties should be calibrated to deter at least cost, with **certainty and promptness mattering more than severity**. Limitation: unconstrained at Q2 and Q3 - the position permits punishing the innocent and unlimited escalation unless a desert side-constraint is added.

ANALYSIS: **The empirical discipline.** Deterrent effect is an **empirical claim**. It may be true, false or undetermined for a given penalty, and a philosophy answer must say which. WRONG: Never write that deterrence is "proved" or "disproved" without evidence. ANALYSIS: The philosophically interesting question is what follows **under uncertainty**, and the answer is asymmetric: where a penalty is severe and irreversible, the burden of demonstrating the deterrent gain lies on the party proposing it, because the cost of being wrong is not recoverable.

ANALYSIS: **Where deterrence is strongest.** The theory is at its most persuasive for **calculated, planned offences by actors with something to lose** - which is exactly the profile of much corruption. This matters: it means the

deterrence argument transfers well to Session 17's corruption remedies, where certainty of detection is the operative lever, and transfers badly to crimes of passion and to ideologically motivated violence.

### Named evidence you can cite

- **Bentham, An Introduction to the Principles of Morals and Legislation\*** FACT: - all punishment is an evil, justified only by the prevention of a greater evil.
- **Beccaria, On Crimes and Punishments\*** FACT: - penalties calibrated to deter at least cost, with certainty and promptness mattering more than severity; the point that makes escalation the wrong lever.
- **The four presuppositions with their defeating cases** ANALYSIS: - the reconstruction that converts a general endorsement of deterrence into a case-by-case test.
- **The Q2/Q3 location of the two failures** ANALYSIS: - punishing the innocent is a liability failure, unlimited escalation a severity failure; locating them is what allows a mixed theory to repair deterrence rather than abandon it.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Deterrence is a plausible answer to the question why the institution of punishment should exist and an indefensible answer to the questions of whom we may punish and by how much - it permits the conviction of the innocent where the social yield is large enough and permits escalation without ceiling - which is why the deterrent case survives only when a desert side-constraint is added to it.

### MUST-WRITE KEYWORDS

expected reduction of future harm · specific and general deterrence · perceived costs · certainty and promptness over severity · collateral harms · less harmful alternatives · punishing the innocent as a Q2 failure · escalation without ceiling as a Q3 failure · rule-utilitarian constraints · contingent against independent protection · empirical controversy

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Deterrence answers well the question why an institution of punishment should exist and answers badly the questions of whom it may punish and by how much, and locating its failures precisely is what allows the theory to be repaired rather than discarded. **Named evidence.** Bentham holds that all punishment is an evil justified only by the prevention of a greater evil, and Beccaria adds the calibration that certainty and promptness of sanction matter more than its severity - a point that follows directly from the presupposition that sanctions must be known and sufficiently certain if perceived costs are to influence conduct at all. **Analysis.** The theory's first failure is at liability, since a purely preventive rationale permits punishing an innocent person where the social benefit is large enough, and the rule-utilitarian reply that legality and due process protect long-run trust makes the prohibition contingent on the costs of discovery rather than on the innocent person's standing; its second failure is at severity, since a theory that measures punishment by deterrent yield has no internal resource for saying where escalation should stop, and Beccaria's own calibration point is a prudential correction rather than a principled ceiling. **Qualification.** Both failures are repairable by an external desert side-constraint rather than fatal, and the deterrent claim itself must be handled as an empirical controversy rather than as a settled fact - with the asymmetry that where a penalty is severe and irreversible, the burden of demonstrating the preventive gain falls on the party proposing it, because a mistaken judgement there cannot be corrected afterwards.

### Objection -> reply -> residual limit

- **Objection.** FACT: The punishing-the-innocent objection is a thought experiment that no real system faces, and it is used to discredit a theory that in practice recommends exactly the safeguards its critics want - legality, proof, due process and moderate penalties. Rejecting deterrence on the strength of a hypothetical that its own recommendations exclude is uncharitable.
- **Reply.** ANALYSIS: The objection is not about frequency but about **grounding**. The rule-utilitarian defence delivers the right safeguards for the wrong reason, and the reason matters because it determines what happens when the calculation changes. If the safeguards are justified by their contribution to trust, then a case in which the injustice would remain undiscovered - or in which public opinion would welcome it - removes the justification while leaving the injustice intact. A rights-based prohibition does not have that structure.

- **Residual limit.** CAUTION: The counter-reply purchases its firmness at a price the answer should acknowledge: a rights-based constraint that admits no aggregation must say what happens in genuine catastrophe cases, where refusing to violate one person's rights produces enormous preventable harm. Serious deontologists divide on that question, and an answer that presents the rights constraint as costless has understated the difficulty rather than resolved it.

### Examiner traps on this session

1. Writing that severe penalties "obviously" deter. This is an empirical claim asserted without evidence, and Beccaria's calibration point cuts directly against it.
2. Stating the punishing-the-innocent objection without locating it at Q2. Unlocated, it looks like a general objection to consequentialism; located, it shows exactly which repair is needed and why the mixed theory works.
3. Accepting the rule-utilitarian reply as decisive. Its protection is contingent on discovery, and the counter-reply is the part of the exchange that earns the marks.
4. Forgetting that deterrence is strongest for calculated offences by actors with something to lose. That observation is what makes the deterrence material transferable to the corruption stems, which carry five of this clause's twelve owned parts.

### Mini recap

Justification: expected reduction of future harm; specific and general branches. Four presuppositions, each with a defeating case: responsiveness to costs, known and certain sanctions, benefits exceeding collateral harms, inadequacy of gentler alternatives. Beccaria: certainty and promptness over severity. Failure one at Q2: punishing the innocent; rule-utilitarian reply; contingency counter-reply. Failure two at Q3: escalation without ceiling. Empirical discipline: never "proved" or "disproved"; under uncertainty the burden falls on the proposer of an irreversible penalty. Strongest for calculated offences - hence the transfer to corruption.

#### CLOSURE FLOW -- SESSION 8

```
why punish? -> to REDUCE FUTURE HARM (specific | general)
-> MECHANISM: four presuppositions -- responsiveness, certainty,
    net benefit, no gentler alternative
-> BECCARIA: certainty and promptness > severity
-> FAILURE AT Q2: may punish the INNOCENT | rule-utilitarian reply
    is CONTINGENT on discovery
-> FAILURE AT Q3: escalation with NO CEILING
-> TRAP: "severe penalties obviously deter" | unlocated objection
-> ANSWER USE: repair with a DESERT SIDE-CONSTRAINT; under
    uncertainty the burden falls on whoever proposes the
    IRREVERSIBLE penalty
```

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# SESSION 9 - PREVENTION, INCAPACITATION AND THE REFORMATIVE THEORY OF PUNISHMENT

## The picture first

TWO FORWARD-LOOKING FAMILIES THAT ARE OFTEN CONFUSED

|                                                                |                                                                        |
|----------------------------------------------------------------|------------------------------------------------------------------------|
| PREVENTIVE /<br>INCAPACITATIVE                                 | REFORMATIVE /<br>REHABILITATIVE                                        |
| RESTRAIN a dangerous<br>offender to protect<br>others          | TRANSFORM capacities and conditions<br>for LAWFUL AGENCY               |
| TEST: necessity and RISK                                       | TEST: REINTEGRATION                                                    |
| TREATS THE OFFENDER AS:<br>a SOURCE OF RISK to be<br>contained | TREATS THE OFFENDER AS:<br>an AGENT whose capacities can be<br>REBUILT |
| DANGER: indefinite or<br>DISCRIMINATORY confinement            | DANGER: PATERNALISM; compulsory<br>"treatment"; NEGLECT OF VICTIMS     |
| LOSES the DESERT CEILING<br>if adopted alone                   | KEEPS responsibility, but can lose<br>PROPORTIONALITY if adopted alone |

THE REFORMATIVE DIGNITY ARGUMENT -- FOUR STEPS

- [1] PERSONS ARE MORE THAN THEIR WORST ACT
  - | the act is real and is not excused; it does not exhaust
  - | the person who did it
- v
- [2] RESPONSIBLE AGENCY CAN BE IMPAIRED \*AND REBUILT\*
  - | ignorance, addiction, trauma, exclusion, distorted
  - | incentives -- addressed WITHOUT DENYING RESPONSIBILITY
- v
- [3] A HUMANE STATE SHOULD REDUCE FUTURE WRONGDOING THROUGH  
CAPABILITY, NOT DEGRADATION
  - |
- v
- [4] THEREFORE PUNISHMENT SHOULD PRESERVE A ROUTE BACK TO MEMBERSHIP

IS REFORM "IN TUNE WITH HUMAN DIGNITY"? -- THE OWNED 2021 STEM

|                                                                                                                                         |                                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| YES, ON ONE READING<br>reform respects dignity by<br>refusing to FREEZE the person<br>in the past act and by keeping<br>membership open | NO, ON ANOTHER<br>compulsory "treatment" can<br>PATHOLOGISE dissent, become<br>INDEFINITE, and treat the person<br>as an OBJECT OF CORRECTION |
|                                                                                                                                         |                                                                                                                                               |
| v                                                                                                                                       | v                                                                                                                                             |

THE ANSWER IS NOT "YES" OR "NO" BUT A SET OF FOUR CONDITIONS:

|                                                               |
|---------------------------------------------------------------|
| REHABILITATION MUST REMAIN BOUNDED BY                         |
| [i] PROPORTIONALITY -- it may not exceed the desert ceiling   |
| [ii] CONSENT WHERE POSSIBLE                                   |
| [iii] REVIEW -- no open-ended intervention                    |
| [iv] RIGHTS -- the person remains a bearer of them throughout |
| UNDER THESE FOUR CONDITIONS, YES. WITHOUT THEM, NO.           |

|  
v

THE TWO MISREADINGS THIS SESSION BLOCKS

|                                 |                                |
|---------------------------------|--------------------------------|
| MISREADING 1: REFORM = LENIENCY | MISREADING 2: REFORM = THERAPY |
| reform is COMPATIBLE with       | reform ADDRESSES an agent;     |
| responsibility and with         | it does not TREAT a patient,   |
| PROPORTIONATE RESTRAINT         | and the difference is where    |
|                                 | dignity is won or lost         |

*Caption: the two forward-looking families contrasted on five axes, the four-step reformatory dignity argument, the four conditions that convert the owned 2021 stem from a yes/no into a graded verdict, and the two misreadings the session blocks.*

### In plain words

Two forward-looking families are habitually merged, and merging them wrecks the answer to the 2021 stem.

**Prevention or incapacitation** restrains a dangerous offender in order to protect others. Its test is necessity and risk, and it treats the offender as a source of danger to be contained. Its danger is indefinite or discriminatory confinement, because a rationale built on predicted risk has no natural endpoint: the offender is released when he ceases to be dangerous, and nobody can prove that he has.

**Reform or rehabilitation** transforms the capacities and conditions of lawful agency. Its test is reintegration, and it treats the offender as an agent whose capacities can be rebuilt. Its dangers are paternalism, compulsory "treatment" and the disappearance of the victim from the picture.

ANALYSIS: The reformatory view is often mistaken for softness. It is not. It views the offender as capable of moral development and social reintegration, and it seeks to address ignorance, addiction, trauma, exclusion or distorted incentives **without denying responsibility**. That last clause is the whole point: reform is not an alternative to holding someone answerable but a claim about what holding someone answerable should aim at.

The dignity argument runs in four steps: persons are more than their worst act; responsible agency can be impaired and rebuilt; a humane state should reduce future wrongdoing through capability rather than degradation; therefore punishment should preserve a route back to membership.

ANALYSIS: And then the honest difficulty. Compulsory treatment can pathologise dissent and become indefinite. Anyone who defends reform must answer this, and the answer is a set of conditions rather than a denial: rehabilitation must remain bounded by proportionality, consent where possible, review and rights. Under those four conditions reform is in tune with human dignity; without them it is a threat to it. ANALYSIS: **That conditional structure is what the 2021 stem is testing** - a script that answers "yes, reform respects dignity" and stops has answered half the question.

### The doctrine, exactly

FACT: **Preventive or incapacitative punishment** restrains a dangerous offender to protect others. Central test: necessity and risk. Main danger: indefinite or discriminatory confinement.

FACT: **Reformatory punishment views the offender as capable of moral development and social reintegration**. It seeks to address ignorance, addiction, trauma, exclusion or distorted incentives without denying responsibility.

FACT: **The dignity argument in four steps**. Persons are more than their worst act; responsible agency can be impaired and rebuilt; a humane state should reduce future wrongdoing through capability, not degradation; punishment should therefore preserve a route back to membership.

FACT: **The objection**. Compulsory "treatment" can pathologise dissent and become indefinite.

FACT: **The reply**. Rehabilitation must remain bounded by proportionality, consent where possible, review and rights.

ANALYSIS: **Why incapacitation cannot stand alone**. Secure imprisonment incapacitates; so does execution. A rationale of pure incapacitation therefore cannot distinguish between them on its own terms, and it loses the desert ceiling entirely, because the measure becomes predicted future danger rather than past culpability. ANALYSIS: This matters directly at Session 20: the incapacitation argument for capital punishment is defeated not by denying that execution incapacitates but by pointing out that a less final means achieves the same protective end, so necessity is not satisfied.

ANALYSIS: **Why reform cannot stand alone either**. A purely reformatory rationale measures intervention by what the offender needs rather than by what he did, which severs the link with proportionality and can license longer intervention for a minor offence by a person judged to need more rebuilding. It also has nothing to say to the victim, whose wrong is not the offender's rehabilitation.

ANALYSIS: **The distinction that saves both**. Both families are defensible as **components** of a mixed theory in which desert supplies the ceiling and liability condition. Incapacitation then operates only within the desert ceiling and only where necessity is demonstrated; reform operates only within the desert ceiling and only under the four

conditions. Neither is defensible as the whole theory.

### Named evidence you can cite

- **The five-axis contrast between prevention and reform ANALYSIS:** - aim, test, how the offender is treated, characteristic danger and what is lost if the family stands alone.
- **The four-step reformative dignity argument FACT:** - more than the worst act, impaired and rebuildable agency, capability rather than degradation, a preserved route back to membership.
- **The four bounding conditions FACT:** - proportionality, consent where possible, review, rights; the reply that makes the dignity claim defensible and converts the 2021 stem into a graded verdict.
- **The necessity defeat of pure incapacitation ANALYSIS:** - secure imprisonment achieves the protective end, so execution fails necessity; the bridge from this session into Session 20.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The reformative theory is in tune with human dignity precisely on the conditions that it refuses to be: it respects dignity by declining to freeze a person in his worst act and by keeping membership open, but only where rehabilitation remains bounded by proportionality, consent where possible, review and rights - for a therapeutic rationale released from those four bounds treats the offender as an object of correction rather than as an agent addressed.

### MUST-WRITE KEYWORDS

necessity and risk · containment against rebuilding · more than the worst act · impaired and rebuildable agency · capability rather than degradation · route back to membership · pathologising dissent · indefinite intervention · proportionality · consent · review · rights · reform is not leniency

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** The reformative theory is in tune with human dignity conditionally rather than unconditionally, and stating the conditions is what distinguishes an argued answer from an endorsement. **Named evidence.** The dignity case has four steps - persons are more than their worst act, responsible agency can be impaired and rebuilt, a humane state should reduce future wrongdoing through capability rather than degradation, and punishment should therefore preserve a route back to membership - and it addresses ignorance, addiction, trauma, exclusion and distorted incentives without denying responsibility, which is what separates it from leniency. **Analysis.** The standing objection is that compulsory treatment can pathologise dissent and become indefinite, and the objection is not answered by denying it but by bounding the practice: rehabilitation must remain within the desert ceiling, must seek consent where consent is possible, must be subject to review rather than open-ended, and must leave the offender a bearer of rights throughout - because without those bounds the theory measures intervention by what the offender is judged to need rather than by what he did, and thereby severs the link with proportionality that made it a theory of punishment at all. **Qualification.** Even bounded, reform is a component and not a complete theory: it says nothing to the victim, whose wrong is not the offender's rehabilitation, and it must be distinguished sharply from incapacitation, which contains rather than rebuilds and which loses the desert ceiling altogether if it is allowed to stand as an independent rationale.

### Objection -> reply -> residual limit

- **Objection.** FACT: The four bounding conditions are in tension with the reformative aim itself. Genuine rebuilding of capacities may take longer than the desert ceiling permits, and requiring consent from a person who does not accept that he needs to change guarantees that the intervention will not occur where it is most needed. The bounds therefore preserve dignity by disabling the theory.
- **Reply.** ANALYSIS: The tension is real and is the price of the theory's respectability, but it is smaller than it appears, for two reasons. First, the desert ceiling constrains **coercive** intervention only; voluntary provision of education, treatment and support may continue beyond it, and indeed is more likely to succeed when it is not coerced. Second, "consent where possible" is deliberately weaker than "consent always": it requires that consent be sought and respected where the person is competent to give or refuse it, not that every intervention wait upon agreement.



- **Residual limit.** CAUTION: The reply does not dissolve the hardest case, which is the competent offender who refuses all voluntary provision and whose desert ceiling expires while the risk remains. There the reformative theory has nothing further to offer, and the choice lies between accepting the residual risk and switching to an incapacitative rationale that abandons the ceiling. An answer that pretends this case does not exist has evaded the question the objection was really asking.

### Examiner traps on this session

1. Reducing reform to leniency. Reform remains compatible with responsibility and with proportionate restraint; the confusion makes the 2021 stem unanswerable.
2. Answering "is reform in tune with dignity?" with an unconditional yes. The four bounding conditions are the answer, and omitting them leaves the paternalism objection standing.
3. Merging incapacitation with reform. Containment and rebuilding treat the offender in opposite ways, and only the merger makes it look as though "he is dangerous" could justify indefinite detention on reformative grounds.
4. Forgetting the victim. The reformative family's second listed danger is neglect of victims, and an answer that never mentions it has stated only half of the theory's cost.

### Mini recap

Prevention: restrain the dangerous; test is necessity and risk; danger is indefinite or discriminatory confinement; loses the desert ceiling alone. Reform: rebuild the capacities of lawful agency; test is reintegration; dangers are paternalism and neglect of victims; loses proportionality alone. Dignity argument in four steps. Objection: pathologising dissent, indefinite treatment. Reply: proportionality, consent where possible, review, rights. Necessity defeats pure incapacitation because secure imprisonment achieves the protective end.

#### CLOSURE FLOW -- SESSION 9

```
two FORWARD-LOOKING families -> CONTAINMENT vs REBUILDING
-> MECHANISM: dignity argument in four steps -- more than the worst
    act -> impaired and rebuildable agency -> capability not
    degradation -> route back to membership
-> OBJECTION: compulsory treatment pathologises and never ends
-> REPLY (the answer to the 2021 stem): PROPORTIONALITY, CONSENT
    WHERE POSSIBLE, REVIEW, RIGHTS
-> TRAP: reform = leniency | unconditional yes | merging the two
    families | forgetting the victim
-> ANSWER USE: pure incapacitation fails NECESSITY once secure
    imprisonment is available -- carry this into capital punishment
```

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# SESSION 10 - PROPORTIONALITY: ORDINAL, CARDINAL, AND THE JUVENILE QUESTION

## The picture first

TWO PROPORTIONALITY QUESTIONS THAT ARE NOT THE SAME QUESTION

### ORDINAL PROPORTIONALITY

"RANKS penalties according to SERIOUSNESS"

|  
a RELATIVE question:  
is offence X worse than Y,  
and is its penalty higher?

|  
v  
RELIABLY supplied by DESERT  
INTUITIONS: most people agree  
on the RANKING even when they  
disagree about the AMOUNT

### CARDINAL PROPORTIONALITY

"asks HOW SEVERE THE ENTIRE  
PUNISHMENT SCALE MAY BE"

|  
an ABSOLUTE question:  
what is the MAXIMUM that may  
be done to ANY person at all?

|  
v  
NOT supplied by desert alone --  
it needs an ANCHOR from OUTSIDE:  
dignity, humane treatment, the  
prohibition of degradation

+-----+  
v  
THE CONSEQUENCE THAT WINS MARKS: a scale can be PERFECTLY ORDINALLY  
PROPORTIONATE AND STILL BE MONSTROUS -- if every penalty is doubled,  
the RANKING survives untouched. ORDINAL PROPORTIONALITY ALONE PLACES  
NO CEILING ON ANYTHING.

=====

THE JUVENILE QUESTION -- THE OWNED 2023 STEM

"Severity of punishment should be proportionate to the seriousness  
of the crime." Do you agree that while punishing a juvenile, the  
nature of the crime should be considered?

=====

THE TRAP IN THE STEM: it offers a PRINCIPLE everyone accepts and  
then asks whether it settles a case it does NOT settle.

### FIVE FACTORS THAT MORAL ASSESSMENT MUST DISTINGUISH

|   |                                                           |                            |
|---|-----------------------------------------------------------|----------------------------|
| 1 | SERIOUSNESS OF HARM                                       | OFFENCE-CENTRED            |
| 2 | INTENTION AND UNDERSTANDING                               | joins offence to offender  |
| 3 | DEVELOPMENTAL CAPACITY and<br>SUSCEPTIBILITY TO INFLUENCE | OFFENDER-CENTRED           |
| 4 | PROSPECTS OF REFORM                                       | OFFENDER-CENTRED / FORWARD |
| 5 | PROCEDURAL RELIABILITY                                    | INSTITUTIONAL              |

|  
v  
THE VERDICT SHAPE THE STEM DEMANDS

+-----+  
| THE NATURE OF THE CRIME IS \*RELEVANT BUT NOT CONCLUSIVE\*. |  
| A JUVENILE'S REDUCED AND DEVELOPING AGENCY CAN ALTER CULPABILITY |  
| EVEN WHERE HARM IS GRAVE, BECAUSE PROPORTIONALITY TRACKS |  
| \*WRONG + RESPONSIBILITY\*, NOT HARM ALONE. THE OFFENCE-CENTRED |  
| AND OFFENDER-CENTRED PERSPECTIVES MUST BE \*INTEGRATED\*, NOT |  
| TRADED OFF. |  
+-----+

|  
v  
WHY THIS IS NOT LENIENCY: culpability is one of the TWO inputs to  
proportionality (Session 4, condition 6: "proportionality between  
WRONG, RESPONSIBILITY and SANCTION"). Reducing the responsibility  
input is APPLYING the principle, not abandoning it.

*Caption: the two proportionality questions with what supplies each, the consequence that ordinal proportionality alone places no ceiling, the five factors that juvenile assessment must distinguish, and the integration verdict the owned 2023 stem demands.*

### In plain words

"The punishment should fit the crime" sounds like one principle. It is two, and they are answered by different things.

**Ordinal proportionality** ranks penalties according to seriousness: it asks whether a graver offence carries a higher penalty than a lesser one. **Cardinal proportionality** asks how severe the entire scale may be: what is the maximum that may be done to any person at all? ANALYSIS: The consequence is the point to write down: a scale can be **perfectly ordinally proportionate and still be monstrous**, because doubling every penalty leaves the ranking untouched. Desert intuitions supply the ranking reliably; they do not supply the anchor. The anchor comes from outside - from dignity, humane treatment and the prohibition of degradation.

ANALYSIS: Now the juvenile question, which is the owned 2023 twenty-marker. The stem is built as a trap. It opens with a principle nobody disputes - severity should be proportionate to seriousness - and then asks whether the nature of the crime should be considered when punishing a juvenile. A candidate who agrees with the quoted principle and concludes that grave crimes therefore warrant grave punishment for juveniles has walked into it, because the principle he endorsed does not say what he thinks it says.

Proportionality, as stated in the conditions of responsible punishment, holds between **wrong, responsibility and sanction** - three terms, not two. Seriousness of harm is one input. Responsibility is the other. A juvenile's reduced and developing agency alters the second input. Reducing it is therefore an **application** of the proportionality principle and not an exception to it, and saying so is what converts the answer from special pleading into argument.

Five factors must be distinguished: seriousness of harm; intention and understanding; developmental capacity and susceptibility to influence; prospects of reform; and procedural reliability. The first is offence-centred, the third and fourth offender-centred, the second joins them and the fifth is institutional. ANALYSIS: The verdict is that the nature of the crime is relevant but not conclusive, and that the two perspectives must be **integrated** rather than traded off.

### The doctrine, exactly

FACT: **Ordinal proportionality** ranks penalties according to seriousness. FACT: **Cardinal proportionality** asks how severe the entire punishment scale may be.

ANALYSIS: **Desert supplies the ranking, not the anchor.** Ordinal ranking is easier to defend than any particular cardinal anchor, which is why a purely desert-based theory cannot by itself prevent a uniformly brutal scale, and why the cardinal anchor must be supplied by constraints on what may be done to a person at all.

FACT: **For juveniles, moral assessment must distinguish:** seriousness of harm; intention and understanding; developmental capacity and susceptibility to influence; prospects of reform; procedural reliability.

ANALYSIS: **The nature of the crime is relevant but not conclusive.** A juvenile's reduced and developing agency can alter culpability even where harm is grave. The offence-centred and offender-centred perspectives must be integrated.

ANALYSIS: **Why the integration claim is stronger than a balancing claim.** "Balancing" suggests two independent considerations weighed against each other, with the graver harm sometimes outweighing the reduced capacity.

**Integration** says something different and more accurate: capacity is not a counterweight to seriousness but an input into the very determination of culpability, and culpability is one of the two terms that seriousness itself is measured by. On the integration reading the reduced-capacity point is not asking for mercy despite proportionality; it is asking for proportionality to be calculated correctly.

ANALYSIS: **What the juvenile analysis does not license.** WRONG: It does not license the claim that juveniles are never responsible. Developing agency is reduced agency, not absent agency, and the working penal standard of Session 5 still applies: understanding of relevant reasons and adequate control. WRONG: Nor does it license ignoring the victim or the gravity of harm, which remains factor 1 and which the integration explicitly retains.

ANALYSIS: **Procedural reliability as the fifth factor.** This is the factor most often dropped, and it is independent of the other four. Where the accused is young, the reliability of confession, identification and understanding of proceedings is systematically weaker, so the evidential foundation on which any proportionality judgement rests is itself less secure. A proportionality argument built on unreliable findings is proportionate to a fiction.

### Named evidence you can cite

- **The ordinal/cardinal distinction** FACT: - ranking against scale anchor, with the consequence that ordinal proportionality alone places no ceiling; the move that also repairs limiting retributivism in Session 7.

- **The five-factor juvenile grid FACT:** - harm, intention and understanding, developmental capacity and susceptibility, prospects of reform, procedural reliability; the structure the 2023 stem requires.
- **The three-term proportionality relation FACT:** - wrong, responsibility and sanction, drawn from the conditions of responsible punishment; the reason reduced capacity is an application of the principle rather than an exception to it.
- **Integration rather than balancing ANALYSIS:** - the reconstruction that prevents the juvenile answer from reading as a plea for leniency.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Proportionality holds between wrong, responsibility and sanction - three terms and not two - so when a juvenile's developing capacity reduces the responsibility term, adjusting the sentence is not an exception to the principle that severity should track seriousness but the correct application of it; the nature of the crime is therefore relevant and never conclusive.

### MUST-WRITE KEYWORDS

ordinal ranking · cardinal ceiling · the scale can be proportionate and monstrous · anchor from outside desert · wrong · responsibility · sanction · developmental capacity · susceptibility to influence · prospects of reform · procedural reliability · integration rather than balancing · relevant but not conclusive

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** I agree that severity should be proportionate to seriousness, and precisely for that reason the nature of the crime cannot be conclusive when the offender is a juvenile. **Named evidence.** Proportionality has two distinct dimensions - ordinal proportionality, which ranks offences against one another, and cardinal proportionality, which fixes how severe the scale as a whole may be - and it holds between three terms rather than two, namely the wrong done, the responsibility of the person who did it, and the sanction imposed. **Analysis.** Seriousness of harm is therefore only one input, and juvenile assessment must distinguish four others: intention and understanding, developmental capacity and susceptibility to influence, prospects of reform, and procedural reliability, which is systematically weaker where the accused is young. Because reduced and developing agency changes the responsibility term, adjusting the sanction is an application of the quoted principle rather than a departure from it, which is why the offence-centred and offender-centred perspectives must be integrated rather than traded off against each other. **Qualification.** The integration does not entail that juveniles are not responsible, since developing agency is reduced rather than absent and the ordinary standard of understanding and adequate control continues to apply, and it does not erase the gravity of harm, which remains the first factor; what it excludes is only the inference from the seriousness of the offence alone to the severity of the sentence, an inference that treats a three-term relation as though it had two terms.

### Objection -> reply -> residual limit

- **Objection.** FACT: The integration argument proves too much. If reduced capacity always lowers culpability, then the same reasoning extends to adults with impoverished upbringings, poor education or distorted social environments, since these too reduce the capacity for reasons-responsive control. Either the principle is confined arbitrarily to the young, or it dissolves criminal responsibility generally.
- **Reply.** ANALYSIS: The extension is not arbitrary, because the juvenile case is distinguished by a feature the adult cases lack: **developmental incompleteness is universal, temporary and predictable**, whereas adverse circumstance is particular, variable and contested. That difference supports a general rule for juveniles and case-by-case mitigation for adults rather than a general rule for both. It is also a difference in the reformatory input: factor 4, prospects of reform, is systematically stronger where the capacities in question are still forming.
- **Residual limit.** CAUTION: The reply does not draw a principled line at any particular age, and any line drawn will be to some degree conventional. Worse, the reply's own logic - that developmental incompleteness is predictable - cuts against sharp thresholds, since capacities do not complete on a birthday. The honest position is that the philosophical argument supports a graded rather than a threshold treatment, and that any legal system's threshold is a practical compromise that the philosophy does not itself generate.

### Examiner traps on this session

1. Agreeing with the quoted principle and inferring that grave juvenile crimes warrant grave juvenile punishment. The principle has three terms and the inference uses two.
2. Treating ordinal proportionality as the whole of proportionality. A uniformly doubled scale is still perfectly ranked, which is why the cardinal anchor must come from dignity and humane treatment.
3. Dropping procedural reliability. It is an independent factor, it is systematically weaker for young accused, and a proportionality judgement resting on unreliable findings is proportionate to a fiction.
4. Writing the juvenile answer as a plea for leniency. Integration, not balancing: the argument is that proportionality has been miscalculated, not that it should be waived.

### Mini recap

Two questions: ordinal ranks, cardinal anchors. Ordinal alone places no ceiling; the anchor comes from dignity and the prohibition of degradation. Proportionality relates wrong, responsibility and sanction - three terms. Five juvenile factors: harm; intention and understanding; developmental capacity and susceptibility; prospects of reform; procedural reliability. Verdict: relevant but not conclusive; integrate rather than balance. The argument does not deny juvenile responsibility and does not erase harm.

CLOSURE FLOW -- SESSION 10

"punishment should fit the crime" -> TWO questions, not one

-> MECHANISM: ORDINAL ranking (desert supplies) | CARDINAL ceiling (dignity supplies) -- a doubled scale is still ranked

-> THREE TERMS: wrong + RESPONSIBILITY + sanction

-> JUVENILE GRID: harm | intention and understanding | developmental capacity and susceptibility | prospects of reform | procedural reliability

-> VERDICT: relevant but NOT CONCLUSIVE; INTEGRATE, do not balance

-> TRAP: two-term inference | ordinal-only | dropped procedure | leniency framing

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# SESSION 11 - HART'S THREE QUESTIONS AND THE MIXED OR LIMITING THEORY

## The picture first

THE THREE QUESTIONS -- AND WHY MERGING THEM CREATES A FALSE DILEMMA

| QUESTION                                    | FORMULATION                                                  | FITS WELL                                                                                                                  | FITS BADLY                                                                                              |
|---------------------------------------------|--------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|
| Q1<br>GENERAL<br>JUSTIFY-<br>ING AIM        | Why should the INSTITUTION<br>of punishment exist AT<br>ALL? | FORWARD-<br>LOOKING:<br>crime<br>prevention,<br>protection,<br>restoration<br>of security                                  | PURE RETRIBU-<br>TION struggles<br>to explain why<br>the STATE must<br>inflict<br>deserved<br>suffering |
| Q2<br>DISTRIBU-<br>TION /<br>LIABIL-<br>ITY | WHOM may we punish, and<br>on what condition?                | BACKWARD-<br>LOOKING:<br>only the<br>GUILTY,<br>only for a<br>VOLUNTARY<br>act, only<br>to the<br>extent of<br>CULPABILITY | PURE DETER-<br>RENCE permits<br>punishing the<br>INNOCENT where<br>it would deter<br>effectively        |
| Q3<br>AMOUNT /<br>SEVERITY                  | HOW MUCH punishment is<br>permissible?                       | PROPORTION-<br>ALITY:<br>ordinal<br>ranking +<br>cardinal<br>ceiling set<br>by desert                                      | PURE DETER-<br>RENCE permits<br>ESCALATION<br>WITHOUT<br>CEILING                                        |

- ↓
- THE SIX-STEP RECONSTRUCTION
- [1] an institution can be justified by its GENERAL BENEFIT while its INDIVIDUAL APPLICATIONS are governed by an INDEPENDENT PRINCIPLE OF FAIRNESS
  - [2] this is ORDINARY in institutional reasoning -- the aims of a promise-keeping practice differ from the rules determining who is bound by a PARTICULAR promise
  - [3] CRIME PREVENTION supplies a plausible aim for the institution (Q1)
  - [4] DESERT and CULPABILITY supply an indispensable SIDE-CONSTRAINT on liability and severity (Q2, Q3)
  - [5] therefore the strongest position is a MIXED or TWO-LEVEL theory: CONSEQUENTIALIST IN AIM, RETRIBUTIVIST IN CONSTRAINT
  - [6] this DISSOLVES the classical dilemma without conceding that either pure theory is adequate

↓

THE PRESUPPOSITION THAT MUST BE STATED

THE AIM OF AN INSTITUTION AND THE PRINCIPLES GOVERNING ITS APPLICATION CAN COME APART WITHOUT INCOHERENCE. THIS MUST BE STATED, BECAUSE A PURE RETRIBUTIVIST DENIES IT.

↓

THE EXAMINER-FACING PAYOFF -- WHY THIS IS THE BEST OPENING AVAILABLE

"PUNISHING THE INNOCENT" is an objection to DETERRENCE AT Q2 -- NOT at Q1.

"WHY SHOULD THE STATE INFLICT SUFFERING" is an objection to RETRIBUTIVISM AT Q1 -- NOT at Q2 or Q3.

AN ANSWER THAT TREATS THE TWO THEORIES AS RIVAL ANSWERS TO ONE QUESTION CANNOT MAKE EITHER POINT.

*Caption: the three questions with what fits each well and badly, the six-step reconstruction of the mixed theory, the presupposition a pure retributivist denies, and the examiner-facing payoff that makes this the highest-yield opening in the clause.*

### In plain words

This is the most valuable single session in the topic, and the reason is structural rather than doctrinal.

A defensible theory of punishment must answer three logically distinct questions, and the classic mistake is to give one answer to all three. Following **Hart's** distinction between the general justifying aim of punishment and the principles governing its distribution and severity: **Q1** asks why the institution should exist at all; **Q2** asks whom we may punish and on what condition; **Q3** asks how much punishment is permissible.

Forward-looking answers fit Q1 well. Backward-looking desert answers fit Q2 and Q3 well. And each pure theory fails where the other succeeds: pure retribution struggles at Q1, because it explains why suffering is deserved without explaining why the **state** must administer it; pure deterrence fails at Q2, because it permits punishing an innocent person where that would deter effectively, and at Q3, because it permits escalation without ceiling.

ANALYSIS: The reconstruction that follows is worth memorising as a sequence. An institution can be justified by its general benefit while its individual applications are governed by an independent principle of fairness. This is ordinary in institutional reasoning: the aims of a promise-keeping practice differ from the rules determining who is bound by a particular promise. Crime prevention supplies a plausible aim for the institution. Desert and culpability supply an indispensable side-constraint on liability and severity. Therefore the strongest position is a mixed or two-level theory - consequentialist in aim, retributivist in constraint - and this dissolves the classical dilemma rather than splitting the difference between its horns.

ANALYSIS: One presupposition must be stated openly, because a pure retributivist denies it: that the aim of an institution and the principles governing its application can come apart without incoherence.

ANALYSIS: **The payoff is what makes this the best opening in the clause.** Once the three questions are separated, the standard objections can be **located**, and locating an objection is worth more than reciting it. The punishing-the-innocent objection is an objection to deterrence at Q2, not at Q1. The "why should the state inflict suffering" objection is an objection to retributivism at Q1, not at Q2 or Q3. **WRONG:** An answer that treats retribution and deterrence as rival answers to a single question cannot make either point, and it will spend its length oscillating between two theories that were never answering the same question.

### The doctrine, exactly

FACT: **Q1 - general justifying aim.** Why should the institution of punishment exist at all? Fits well: forward-looking crime prevention, protection, restoration of security. Fits badly: pure retribution struggles to explain why the **state** must inflict deserved suffering.

FACT: **Q2 - distribution and liability.** Whom may we punish, and on what condition? Fits well: backward-looking - only the guilty, only for a voluntary act, only to the extent of culpability. Fits badly: pure deterrence permits punishing the innocent where it would deter effectively.

FACT: **Q3 - amount and severity.** How much punishment is permissible? Fits well: proportionality - ordinal ranking and a cardinal ceiling set by desert. Fits badly: pure deterrence permits escalation without ceiling.

FACT: **The structure follows Hart's** distinction between the general justifying aim of punishment and the principles governing its distribution and severity. ANALYSIS: It does not imply that Hart endorses every mixed theory that has been built from that distinction; the distinction is his, the mixtures are various.

ANALYSIS: **The reconstruction in six steps** (as set out in the diagram): institutional justification and application principle can differ; this is ordinary institutional reasoning; prevention supplies the aim; desert supplies the side-constraint; the strongest position is therefore two-level; and the classical dilemma dissolves.

ANALYSIS: **The presupposition.** The aim of an institution and the principles governing its application can come apart without incoherence - a claim that must be stated, since a pure retributivist denies it.

ANALYSIS: **What the mixed theory forbids, and why that matters.** A structured mixed theory is not a compromise but a position with teeth. It forbids punishing a person known to be innocent however large the preventive gain, because Q2 is governed by desert. It forbids exceeding the desert ceiling however large the deterrent gain, because



Q3 is governed by proportionality. And it forbids abolishing the institution merely because desert cannot explain state administration, because Q1 is governed by prevention. Those three prohibitions are testable, and any system violating one is condemned by the theory.

### Named evidence you can cite

- **Hart's separation of the general justifying aim from distribution and severity** FACT: - the structural device that reorganises any justification stem; the single highest-yield opening in this clause.
- **The six-step reconstruction** ANALYSIS: - general benefit against application fairness, the promise-keeping analogy, prevention at Q1, desert as side-constraint at Q2 and Q3, the two-level conclusion, and the dissolution of the dilemma.
- **The location of the two standard objections** ANALYSIS: - punishing the innocent at Q2, state-inflicted suffering at Q1; the move that converts objection-recitation into objection-placement.
- **The three prohibitions the mixed theory generates** ANALYSIS: - the reconstruction that answers the charge that mixed theories are evasions.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

A defensible theory of punishment must answer three logically distinct questions - why the institution should exist, whom it may punish, and how much - and the apparent dilemma between retribution and deterrence dissolves once they are separated, because the institution can be justified by prevention while its application is constrained by desert, exactly as the aims of a promise-keeping practice differ from the rules determining who is bound by a particular promise.

### MUST-WRITE KEYWORDS

general justifying aim · distribution and liability · amount and severity · side-constraint · two-level theory · consequentialist in aim, retributivist in constraint · the promise-keeping analogy · objections must be located, not merely recited · dissolves rather than splits the dilemma

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** The familiar opposition between retributive and deterrent justifications of punishment is not a genuine dilemma but the result of merging three questions that must be kept apart. **Named evidence.** Following Hart's separation of the general justifying aim of punishment from the principles governing its distribution and severity, the first question asks why the institution should exist at all, the second asks whom we may punish and on what condition, and the third asks how much punishment is permissible; forward-looking prevention answers the first plausibly, while only backward-looking desert answers the second and third without disaster. **Analysis.** The separation is not an ad hoc device, because institutional reasoning ordinarily takes this form - the aims of a promise-keeping practice differ from the rules determining who is bound by a particular promise - and once it is made, each pure theory's characteristic failure can be located rather than merely asserted: the punishing-the-innocent objection attacks deterrence at the second question and not at the first, while the objection that desert cannot explain why the state must inflict suffering attacks retributivism at the first and not at the second or third, so the strongest available position is consequentialist in aim and retributivist in constraint. **Qualification.** The position rests on a presupposition that a pure retributivist explicitly denies - that the aim of an institution and the principles governing its application can come apart without incoherence - and it must therefore be defended rather than assumed, and defended by showing that the resulting theory generates determinate prohibitions rather than merely permitting whichever component is locally convenient.

### Objection -> reply -> residual limit

- **Objection.** FACT: The two-level theory is unstable at the point where the levels meet. If the institution exists for prevention, then in a case where punishing within the desert ceiling produces no preventive benefit at all - an offender who will certainly not reoffend and whose punishment will deter nobody - the aim gives no reason to punish, while the constraint permits it. The theory then either punishes for no reason or abandons the aim.
- **Reply.** ANALYSIS: The objection misreads the level at which the aim operates. The general justifying aim justifies the **institution and its rules**, not each individual application considered in isolation; the preventive benefit is produced by the existence and reliable operation of a rule-governed practice, not by the marginal deterrent yield of

each sentence. A practice that made an exception whenever a particular punishment promised no marginal gain would not be the practice whose general benefit was invoked, since its threats would be known to be conditional and would therefore not deter.

- **Residual limit.** CAUTION: The reply commits the theory to rule-level rather than act-level evaluation, and that commitment inherits the standing difficulty of all rule-based consequentialism: it must explain why an agent should follow a rule in the very case where breaking it would produce more good, without either collapsing into act-evaluation or worshipping the rule. That is a real cost, and an answer that presents the mixed theory as a costless synthesis has misdescribed it.

### Examiner traps on this session

1. Treating retribution and deterrence as rival answers to one question. This is the failure the whole session exists to prevent, and it makes both of the standard objections unstatable.
2. Reciting an objection without locating it at Q1, Q2 or Q3. Location is what earns the mark; recitation is what every script contains.
3. Attributing the entire mixed theory to Hart. The **distinction** between the general justifying aim and the principles of distribution is his; the various mixed theories built on it are not all his, and overclaiming invites correction.
4. Presenting the mixed theory as a compromise. It is a third position with its own presupposition, its own prohibitions and its own costs, and describing it as a middle way conceals all three.

### Mini recap

Q1 aim, Q2 liability, Q3 amount. Prevention fits Q1; desert fits Q2 and Q3. Pure retribution is weakest at Q1; pure deterrence fails at Q2 and Q3. Six-step reconstruction from institutional reasoning through the promise analogy to the two-level conclusion. Presupposition: aim and application principle can differ - denied by pure retributivists. Payoff: objections become locatable. Three prohibitions: no punishment of the known innocent, no excess beyond the desert ceiling, no abolition merely because desert cannot ground state administration.

CLOSURE FLOW -- SESSION 11

"retribution or deterrence?" -> A FALSE DILEMMA FROM MERGED QUESTIONS

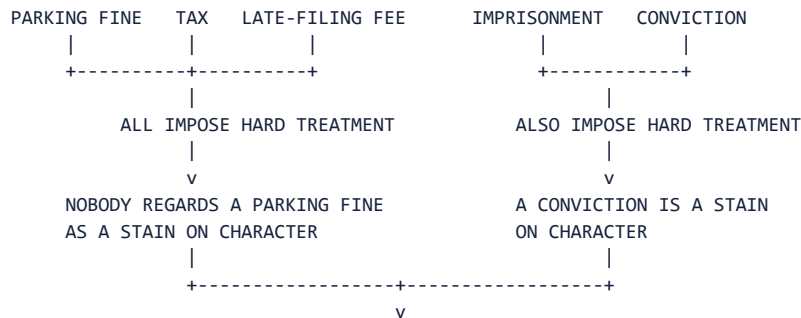
- > MECHANISM: Q1 aim | Q2 liability | Q3 amount, each with what fits WELL and what fits BADLY
  - > RECONSTRUCTION: institutional benefit vs application fairness -> promise analogy -> prevention at Q1 -> desert side-constraint at Q2/Q3 -> TWO-LEVEL THEORY -> dilemma DISSOLVED
  - > PRESUPPOSITION: aim and application principle can come apart -- a PURE RETRIBUTIVIST DENIES THIS, so state it
  - > PAYOFF: LOCATE objections; innocent-punishment is Q2, state-inflicted-suffering is Q1
  - > TRAP: rival-answers framing | unlocated objections | attributing every mixed theory to Hart | "compromise" framing
-

# SESSION 12 - FEINBERG: THE EXPRESSIVE FUNCTION - PUNISHMENT AGAINST PENALTY

## The picture first

WHAT MAKES A HARDSHIP A \*PUNISHMENT\* RATHER THAN A \*PENALTY\*?

=====



SO THE DIFFERENCE CANNOT BE SEVERITY -- SOME PENALTIES ARE HEAVIER  
THAN SOME PUNISHMENTS

|  
v  
THE DIFFERENCE IS SYMBOLIC: PUNISHMENT CARRIES THE COMMUNITY'S  
RESENTMENT, REPROBATION AND JUDGMENT OF \*CONDEMNATION\*

|  
v  
+-----+  
| CONDEMNATION IS PART OF THE \*CONCEPT\* OF PUNISHMENT, NOT AN |  
| INCIDENTAL SIDE EFFECT OF IT. |  
+-----+

-----  
FOUR THINGS ONLY THE EXPRESSIVE ACCOUNT EXPLAINS  
-----

- [1] WRONGFUL CONVICTION is a distinct and grave wrong EVEN IF the person is later COMPENSATED -- because THE CONDEMNATION CANNOT BE REFUNDED
- [2] THE \*FORM\* of punishment matters: DEGRADING punishments are objectionable INDEPENDENTLY OF THEIR SEVERITY
- [3] ACQUITTAL is not merely a RELEASE but a VINDICATION
- [4] VICTIMS often want the offence PUBLICLY NAMED rather than only COMPENSATED

-----  
THE OBJECTION THAT MUST BE FACED  
-----

OBJECTION -> if CONDEMNATION is the point, then SYMBOLIC DENUNCIATION  
WITHOUT HARD TREATMENT would suffice: the state could  
simply DECLARE the conduct wrong

|  
v  
REPLY -----> HARD TREATMENT is what makes the condemnation CREDIBLE  
and NON-CHEAP, and distinguishes a PUBLIC VERDICT from  
MERE DISAPPROVAL

|  
v  
RESIDUAL --> this makes HARD TREATMENT \*INSTRUMENTAL TO EXPRESSION\*,  
PROBLEM which sits uneasily with the claim that it is DESERVED  
FOR ITS OWN SAKE. State the residue; do not conceal it.

-----  
WHERE IT SITS ON THE THREE-QUESTION GRID  
-----

- Q1 AIM ..... authoritative CENSURE of the wrong and affirmation  
of the norm violated
- Q2 LIABILITY ... only the GUILTY may be condemned -- condemnation of  
the innocent is not a lesser wrong but a DIFFERENT  
and grave one
- Q3 AMOUNT ..... the expressive account constrains the FORM more  
sharply than the QUANTUM: it rules out DEGRADATION  
directly, and leaves severity to be fixed elsewhere

*Caption: the penalty/punishment contrast built from the cases, the conceptual conclusion, the four explananda only the expressive account reaches, the objection with its reply and the residual problem, and the account's position on the three-question grid.*

### In plain words

Here is a question that looks trivial and is not. A parking fine, a tax and a late-filing fee all impose hardship. So does a fine imposed on conviction for an offence. What makes the second a **punishment** and the first three mere **penalties**?

It cannot be severity: some penalties are heavier than some punishments, and a large tax bill hurts more than a small criminal fine. It cannot be the identity of the imposing body, since the same authority may impose both. **Feinberg's** answer is that the difference is **expressive**. Punishment conveys the community's resentment, reprobation and judgment of condemnation toward the offender for what was done. Nobody regards a parking fine as a stain on character; a conviction is precisely that.

The argument runs cleanly: penalties and punishments both impose hard treatment; we nevertheless distinguish them sharply; the difference cannot lie in severity; it lies in symbolic significance, since punishment carries authoritative disapproval and penalties do not; therefore condemnation is part of the **concept** of punishment rather than an incidental side effect.

ANALYSIS: Four things follow that no other theory in this clause explains as well. Wrongful conviction is a distinct and grave wrong even where the person is later compensated, because the condemnation cannot be refunded. The **form** of punishment matters and degrading punishments are objectionable independently of severity. Acquittal is not merely release but **vindication**. And victims often want the offence publicly named rather than only compensated - which is the point that later limits how far restorative justice can go.

ANALYSIS: Then the objection that must be faced rather than avoided: if condemnation is the point, why not condemn without hard treatment? Why not have the state simply declare the conduct wrong? The reply is that hard treatment is what makes the condemnation credible and non-cheap, and what distinguishes a public verdict from mere disapproval. ANALYSIS: But the reply leaves a residue, and stating it is what marks a good answer: it makes hard treatment **instrumental to expression**, which sits uneasily with the retributive claim that it is deserved for its own sake.

### The doctrine, exactly

FACT: **Feinberg's thesis**. What distinguishes punishment from a mere penalty - a parking fine, a tax, a fee for late filing - is not the hardship imposed but its **expressive function**: punishment conveys the community's resentment, reprobation and judgment of condemnation toward the offender for what was done.

FACT: **The argument in five steps**. Penalties and punishments both impose hard treatment; yet we distinguish them sharply, since nobody regards a parking fine as a stain on character; the difference cannot lie in severity, because some penalties are heavier than some punishments; it lies in symbolic significance, since punishment carries authoritative disapproval and penalties do not; therefore condemnation is part of the concept of punishment, not an incidental side effect.

FACT: **What this explains that other theories cannot**. Why wrongful conviction is a distinct and grave wrong even if the person is later compensated - the condemnation cannot be refunded. Why the form of punishment matters and degrading punishments are objectionable independently of their severity. Why acquittal is not merely a release but a **vindication** of the accused. Why victims often want the offence publicly named rather than only compensated.

ANALYSIS: **The objection**. If condemnation is the point, symbolic denunciation without hard treatment would suffice - the state could simply declare the conduct wrong.

ANALYSIS: **The reply**. Hard treatment is what makes the condemnation credible and non-cheap, and it distinguishes a public verdict from mere disapproval.

ANALYSIS: **The residual problem**. This makes hard treatment instrumental to expression, which sits uneasily with the claim that it is deserved for its own sake. WRONG: Do not conceal this residue; naming it is what shows the exchange has been understood rather than reported.

ANALYSIS: **Where the expressive account bites hardest in this clause**. On **capital punishment**, the "public affirmation" argument in Session 20 is an expressive argument, and it must be assessed as one: does execution express the equal value of victims, or does it express that the state may kill a person under its control? On **wrongful**

**conviction**, the expressive account supplies the strongest available reason for the irreversibility objection, since a fatal error inflicts a condemnation that cannot be withdrawn from someone who is no longer alive to be vindicated.

### Named evidence you can cite

- **Feinberg, "The Expressive Function of Punishment"** FACT: - the condemnation criterion that distinguishes punishment from a fee or a fine; cited by title only and paraphrased, never quoted.
- **The severity-cannot-be-the-difference argument** FACT: - some penalties are heavier than some punishments; the step that forces the conclusion to be conceptual rather than quantitative.
- **The four explananda** FACT: - unrefundable condemnation, the wrongness of degrading forms, acquittal as vindication, and the victim's demand for public naming.
- **The residual problem** ANALYSIS: - hard treatment made instrumental to expression; the concession that keeps the account honest and prevents it from being used as a complete justification.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

What distinguishes punishment from a penalty is not the weight of the hardship but the authoritative condemnation it carries - which is why a wrongful conviction is a grave wrong even when compensation is paid, since the condemnation cannot be refunded, and why an acquittal is a vindication rather than a mere release.

### MUST-WRITE KEYWORDS

expressive function · resentment, reprobation, condemnation · penalty against punishment · stain on character · severity cannot be the differentia · condemnation cannot be refunded · degrading form independent of quantum · acquittal as vindication · publicly naming the wrong · credible and non-cheap censure

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Punishment differs from a penalty not in the weight of the hardship it imposes but in the authoritative condemnation it carries, and this is a conceptual claim rather than an observation about side effects. **Named evidence.** Feinberg's argument proceeds from the observation that penalties and punishments alike impose hard treatment, that we nevertheless distinguish them sharply since nobody treats a parking fine as a stain on character, and that the difference cannot be severity because some penalties are heavier than some punishments - from which it follows that condemnation belongs to the concept of punishment. **Analysis.** The account earns its place by explaining four things no rival explains as well: wrongful conviction remains a grave wrong even where compensation is paid, because condemnation cannot be refunded; the form of punishment matters independently of its quantum, so degrading punishments are objectionable even when they are light; acquittal is a vindication and not merely a release; and victims frequently seek the public naming of the offence rather than compensation for it. **Qualification.** The account carries a residue that must be stated rather than concealed: if condemnation is the point, symbolic denunciation without hard treatment might suffice, and the reply that hard treatment makes the censure credible and non-cheap renders it instrumental to expression - which sits uneasily with the retributive claim that hard treatment is deserved for its own sake, and is why the expressive account functions best as a component of a mixed theory rather than as a complete justification.

### Objection -> reply -> residual limit

- **Objection.** FACT: The expressive account makes the justification of punishment depend on a community's actual attitudes of resentment and reprobation. But those attitudes can be misdirected, inflamed or manufactured, and a community may condemn conduct that is not wrong. An account that locates the essence of punishment in what a community happens to express therefore licenses whatever a community happens to feel.
- **Reply.** ANALYSIS: The objection conflates a **conceptual** claim with a **justificatory** one. Feinberg's thesis is that condemnation is what makes a hardship a punishment - an account of what punishment **is**. Whether a particular condemnation is warranted is a separate question, answered by the criminalisation filters of Session 2 and the liability conditions of Session 4. Indeed the expressive account strengthens rather than weakens the critique of misdirected condemnation, because it explains exactly what is wrong with it: an unwarranted conviction inflicts an unwarranted condemnation, which is a distinct injury and not merely an unwarranted hardship.

- **Residual limit.** CAUTION: The reply protects the conceptual thesis and leaves a practical difficulty untouched. If condemnation is part of what punishment is, then a system's punishments will express whatever that system's institutions actually communicate - including, where enforcement is selective, the message that some persons' wrongs are the community's business and others' are not. The expressive account thus makes selective enforcement a **symbolic** wrong and not merely an administrative failure, which is a significant result and one for which the account offers no remedy of its own.

### Examiner traps on this session

1. Saying that punishment "sends a message to society" and stopping. Without the penalty/punishment contrast there is no criterion, and without the criterion nothing follows.
2. Locating the difference between penalty and punishment in severity. Some penalties are heavier than some punishments, and the whole argument turns on that.
3. Using the expressive account as a complete justification of hard treatment. It is a listed trap: expressive meaning still requires rights and proportionality, and the residue makes hard treatment instrumental.
4. Missing the connection to wrongful conviction and to capital punishment. Those are where the account does its most valuable work in this clause, and an answer that treats it as an abstract definition has wasted it.

### Mini recap

The differentia of punishment is authoritative condemnation, not hardship or severity. Five-step argument ending in a conceptual conclusion. Four explananda: unrefundable condemnation, degrading form, acquittal as vindication, public naming for victims. Objection: why not condemn without hard treatment? Reply: credibility and non-cheapness. Residue: hard treatment becomes instrumental to expression. Grid position: Q1 censure, Q2 only the guilty may be condemned, Q3 constrains form more than quantum.

#### CLOSURE FLOW -- SESSION 12

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parking fine vs conviction -> BOTH are hard treatment, so WHAT DIFFERS?
-> MECHANISM: not severity (some penalties are heavier) -> SYMBOLIC
SIGNIFICANCE -> CONDEMNATION is CONCEPTUAL, not incidental
-> EXPLAINS: unrefundable condemnation | degrading FORM | acquittal
as VINDICATION | victims wanting the wrong NAMED
-> OBJECTION: then why hard treatment at all?
-> REPLY: credibility | RESIDUE: hard treatment becomes INSTRUMENTAL
-> TRAP: "sends a message" | severity as differentia | using it as a
complete justification
-> ANSWER USE: this is the strongest ground for the IRREVERSIBILITY
objection in the capital-punishment answer

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# SESSION 13 - DUFF: PUNISHMENT AS COMMUNICATION, SECULAR PENANCE AND THE STANDING TO PUNISH

## The picture first

FROM EXPRESSION \*ABOUT\* THE OFFENDER TO COMMUNICATION \*WITH\* HIM

|                        |                                                    |                                                                                                                |
|------------------------|----------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| AXIS                   | EXPRESSIVE<br>(Feinberg)                           | COMMUNICATIVE<br>(Duff)                                                                                        |
| DIRECTION              | ONE-WAY: society<br>EXPRESSES<br>condemnation      | TWO-WAY: an ADDRESS<br>that INVITES A<br>RESPONSE                                                              |
| OFFENDER TREATED<br>AS | the OBJECT of<br>judgment                          | a RATIONAL PARTICIPANT<br>capable of ANSWERING                                                                 |
| AIM                    | authoritative<br>DENUNCIATION                      | REPENTANCE, REFORM and<br>RECONCILIATION                                                                       |
| HARD TREATMENT IS      | the VEHICLE that<br>makes condemnation<br>CREDIBLE | a SECULAR PENANCE -- a<br>burden that FOCUSES<br>ATTENTION on the wrong<br>and gives repentance<br>PUBLIC FORM |

THE ARGUMENT IN FIVE STEPS

- [1] citizens of a political community OWE ONE ANOTHER AN ACCOUNT of their conduct  
v
- [2] a CRIMINAL TRIAL is a process of CALLING TO ACCOUNT, not merely of FACT-FINDING  
v
- [3] the offender REMAINS A MEMBER of the community, so the response must ADDRESS him rather than merely PROCESS him  
v
- [4] a BURDEN IMPOSED AND UNDERGONE can focus attention on the wrong and give repentance PUBLIC FORM  
v
- [5] therefore punishment is justified as COMMUNICATIVE PENANCE aimed at repentance, reform and reconciliation

THE PRESUPPOSITION -- AND THE ARGUMENT IT GENERATES

PRESUPPOSITION: the political community has the \*STANDING\* to call THIS offender to account -- which requires that it has not ITSELF DENIED HIM THE CONDITIONS OF CITIZENSHIP

|                                                                                                                                                                                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| THE STANDING ARGUMENT -- THE STRONGEST AVAILABLE BRIDGE FROM<br>PENAL PHILOSOPHY TO SOCIAL JUSTICE:<br>THE LEGITIMACY OF PUNISHMENT IS *CONDITIONAL ON THE JUSTICE OF<br>THE POLITICAL ORDER THAT IMPOSES IT*. |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

WHY THIS IS BETTER THAN "POVERTY CAUSES CRIME"

|                                                        |                                                                                                                                       |
|--------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|
| "POVERTY CAUSES CRIME"                                 | THE STANDING ARGUMENT                                                                                                                 |
| an EMPIRICAL claim about<br>CAUSATION                  | a NORMATIVE claim about AUTHORITY                                                                                                     |
| invites the reply: "many<br>poor people do not offend" | that reply is IRRELEVANT to it --<br>the question is whether the<br>ACCUSER MAY ACCUSE, not whether<br>deprivation determines conduct |
| if true, it MITIGATES                                  | if true, it CHALLENGES THE                                                                                                            |



| STANDING OF THE PUNISHER                        |                                                                                                                            |
|-------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| FAR HARDER TO ANSWER. USE THIS, NOT THE SLOGAN. |                                                                                                                            |
| -----                                           |                                                                                                                            |
| THE SECOND OBJECTION -- AND ITS RESIDUE         |                                                                                                                            |
| -----                                           |                                                                                                                            |
| OBJECTION ->                                    | aiming at REPENTANCE is ILLIBERAL: the state may regulate CONDUCT but not attempt MORAL CONVERSION                         |
| v                                               |                                                                                                                            |
| REPLY ----->                                    | the communication INVITES rather than COMPELS a response, and the offender's REFUSAL TO REPENT attracts NO FURTHER PENALTY |
| v                                               |                                                                                                                            |
| RESIDUE --->                                    | A BURDEN IMPOSED BY FORCE IS A STRANGE INVITATION. Say this. It is the honest limit of the theory.                         |

*Caption: the four-axis contrast between expression and communication, the five-step argument, the standing presupposition with the social-justice bridge it generates, the comparison that shows why standing beats the poverty slogan, and the illiberality objection with its residue.*

### In plain words

**Duff** takes Feinberg's expressive account and turns it around. For Feinberg, punishment is an expression **about** the offender, addressed to the public. For Duff it is a communication **addressed to** the offender himself, as a responsible member of the moral community, and it seeks a response: repentance, self-reform and reconciliation.

The shift changes four things at once. The direction becomes two-way rather than one-way. The offender becomes a rational participant capable of answering rather than the object of a judgment. The aim becomes repentance, reform and reconciliation rather than denunciation alone. And hard treatment acquires a different meaning: it is a **secular penance** - a burden that focuses the offender's attention on the wrong and gives repentance a public form - rather than merely the vehicle that makes condemnation credible.

The argument is short and worth reproducing exactly: citizens owe one another an account of their conduct; a criminal trial is therefore a process of **calling to account** and not merely of fact-finding; the offender remains a member of the community, so the response must address him rather than merely process him; a burden imposed and undergone can focus attention on the wrong and give repentance public form; therefore punishment is justified as communicative penance.

ANALYSIS: Now the part that carries the most marks in the entire clause. The argument presupposes that the political community has the **standing** to call this offender to account - and that presupposition can fail. A polity that has excluded, impoverished and discriminated against a person has weakened its standing to demand penance from him. Duff accepts this as a genuine limit, and it yields the strongest available link between penal philosophy and social justice: **the legitimacy of punishment is conditional on the justice of the political order that imposes it.**

ANALYSIS: Deploy this rather than the vague claim that "poverty causes crime". The two are not variants of one thought. "Poverty causes crime" is an empirical claim about causation, and it invites the immediate and damaging reply that most poor people do not offend. The standing argument is a normative claim about **authority**, and that reply is simply irrelevant to it: the question is not whether deprivation determines conduct but whether this accuser may accuse. It is far harder to answer, and it is the move that converts the 2019 social-justice stem from a sociology essay into philosophy.

### The doctrine, exactly

FACT: **Duff's thesis.** Punishment is not merely an expression about the offender directed at the public; it is a communication addressed to the offender as a responsible member of the moral community, seeking a response - repentance, self-reform and reconciliation.

FACT: **The four-axis contrast with Feinberg.** Direction: one-way against two-way. Offender treated as: object of judgment against rational participant. Aim: authoritative denunciation against repentance, reform and reconciliation. Hard treatment is: the vehicle of credible condemnation against a secular penance that focuses attention and gives repentance public form.

ANALYSIS: **The argument in five steps.** Citizens owe one another an account of their conduct; a criminal trial is a process of calling to account rather than of fact-finding; the offender remains a member, so the response must

address rather than merely process him; a burden imposed and undergone focuses attention and gives repentance public form; therefore punishment is justified as communicative penance.

ANALYSIS: **The presupposition.** The political community has the standing to call this offender to account - which requires that it has not itself denied him the conditions of citizenship.

FACT: **The standing objection and Duff's acceptance of it.** A state that has excluded, impoverished and discriminated against an offender lacks the moral standing to demand penance from him. Duff accepts this as a genuine limit, and it is the strongest available link between penal philosophy and social justice: **the legitimacy of punishment is conditional on the justice of the political order that imposes it.**

ANALYSIS: **The illiberality objection.** Aiming at repentance is illiberal, since the state may regulate conduct but may not attempt moral conversion.

ANALYSIS: **The reply, and its residue.** Duff replies that the communication **invites** rather than compels a response, and that the offender's refusal to repent attracts no further penalty. The residual problem is that a burden imposed by force is a strange invitation.

ANALYSIS: **What the standing argument does not establish.** WRONG: It does not establish that an unjust polity may punish nobody, which would be an implausible conclusion with implausible consequences for victims. What it establishes is that standing is **a condition on legitimate punishment**, that it can be weakened, and that the weakening is a reason for restraint in severity and for reform of the order rather than a general amnesty. Stating this limit is what prevents the argument from proving too much.

#### Named evidence you can cite

- **Duff, Punishment, Communication, and Community\*** FACT: - punishment as communicative secular penance addressed to the offender as a citizen, and the standing-to-punish condition; cited by title only and paraphrased, never quoted.
- **The four-axis expressive/communicative contrast** FACT: - direction, treatment of the offender, aim, and the meaning of hard treatment.
- **The standing argument** FACT: - the legitimacy of punishment is conditional on the justice of the order that imposes it; the strongest bridge from penal philosophy to social justice and the decisive move on the 2019 stem.
- **The standing/poverty comparison** ANALYSIS: - normative authority against empirical causation; the reconstruction that shows why the standing argument survives the reply that defeats the slogan.

#### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Punishment on this view is not a verdict pronounced over the offender but an address made to him as a citizen who is still owed an account and still owes one - which is why the legitimacy of punishment is conditional on the justice of the order that imposes it: a polity that has denied a person the conditions of citizenship has weakened its standing to call him to account.

#### MUST-WRITE KEYWORDS

communication addressed to the offender · calling to account · secular penance · invites rather than compels · standing to punish · conditions of citizenship · legitimacy conditional on the justice of the order · authority rather than causation · a burden imposed by force is a strange invitation

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Punishment is best understood not as an expression about the offender addressed to the public but as a communication addressed to the offender himself, and this reading generates the strongest available connection between penal philosophy and social justice. **Named evidence.** Duff's argument runs from the premise that citizens owe one another an account of their conduct, through the claim that a criminal trial is a process of calling to account rather than merely of fact-finding, to the conclusion that punishment is a secular penance - a burden imposed and undergone that focuses attention on the wrong and gives repentance public form - since the offender remains a member of the community and must therefore be addressed rather than merely processed. **Analysis.** The argument's presupposition is that the community has the standing to call this particular offender to account, and that presupposition can fail: a polity that has excluded, impoverished and discriminated against a person has weakened its authority to demand penance from him, so the legitimacy of punishment becomes conditional on the justice of the order imposing it - a normative claim about authority which, unlike the empirical claim that poverty causes crime, is untouched by the observation that most deprived persons do not offend. **Qualification.** The standing argument establishes a condition on legitimate punishment rather than a general amnesty, so its practical upshot is restraint in severity and reform of the order rather than immunity for offenders; and the theory's own aim of repentance faces the objection that a liberal state may regulate conduct but not attempt moral conversion, to which the reply that the communication invites rather than compels leaves the honest residue that a burden imposed by force is a strange invitation.

### Objection -> reply -> residual limit

- **Objection.** FACT: The standing argument is unusable in practice because it has no threshold. Every political order falls short of justice in some respect, so on Duff's reasoning every order's standing is to some degree compromised, and a condition that is always partially unmet cannot distinguish the legitimate case from the illegitimate one.
- **Reply.** ANALYSIS: Standing is not binary and was never claimed to be. It is a **graded** condition whose degradation has graded consequences: the more severely and the more specifically a polity has denied a person the conditions of citizenship, the weaker its claim to demand penance from him, and the stronger the case for restraint in severity, for attention to mitigation, and for institutional reform as part of the response. That is a usable scale, and it distinguishes cases in exactly the way the objection says it cannot - between a general shortfall affecting all citizens and a specific, sustained exclusion of the person now before the court.
- **Residual limit.** CAUTION: The graded reading buys usability at the cost of determinacy: it does not say how much degradation of standing warrants how much restraint, and it offers no procedure for making that judgement inside a trial. It is also silent on the victim's position, since the victim's claim to public condemnation of the wrong does not weaken merely because the state's standing has. Duff's account therefore identifies a genuine constraint without supplying an institutional form for it, and an answer should say so.

### Examiner traps on this session

1. Presenting Duff as a variant of Feinberg. The four axes differ; the direction of address is the whole point, and collapsing the two loses the standing argument entirely.
2. Replacing the standing argument with "poverty causes crime". The slogan is empirical and is answered by a single sentence; the standing argument is normative and is not.
3. Using the standing argument to conclude that an imperfect state may punish nobody. It is a graded condition generating restraint and reform, not an amnesty, and overstating it invites an easy refutation.
4. Omitting the residue. "A burden imposed by force is a strange invitation" is the honest limit of the communicative account, and an answer that presents the theory as unproblematic has not understood the objection it was answering.

## Mini recap

Feinberg expresses about; Duff communicates with. Four axes: direction, treatment of the offender, aim, meaning of hard treatment as secular penance. Five-step argument from mutual accountability through calling to account to communicative penance. Presupposition: standing. Standing argument: legitimacy of punishment is conditional on the justice of the imposing order - normative, not empirical, and therefore far harder to answer. Standing is graded, not binary; it warrants restraint and reform, not amnesty. Illiberality objection; invitation reply; residue that force is a strange invitation.

CLOSURE FLOW -- SESSION 13

expression ABOUT the offender -> COMMUNICATION WITH him

- > MECHANISM: citizens owe an account -> trial CALLS TO ACCOUNT -> offender remains a MEMBER -> burden as SECULAR PENANCE
  - > PRESUPPOSITION: STANDING to call this person to account
  - > BRIDGE: legitimacy of punishment is CONDITIONAL ON THE JUSTICE OF THE ORDER -- use this, NOT "poverty causes crime"
  - > OBJECTION: illiberal moral conversion | REPLY: invites, does not compel | RESIDUE: force is a strange invitation
  - > TRAP: Duff as a Feinberg variant | slogan substitution | amnesty overreach | omitting the residue
-

# SESSION 14 - FOUCAULT: DISCIPLINE, PANOPTICISM AND THE COMPULSORY CAVEAT

## The picture first

A GENEALOGY OF PENAL POWER -- \*NOT\* A THEORY OF JUSTIFICATION

```
=====
THE HISTORICAL SHIFT FOUCAULT DESCRIBES
PUNISHMENT AS PUBLIC SPECTACLE          PUNISHMENT AS DISCIPLINE
inflicted on the BODY of the condemned  -> ORDERING, OBSERVATION,
                                         TIMETABLING, TRAINING,
                                         NORMALISATION of subjects
      |                                  |
      |                                  |
USUALLY NARRATED AS: humanitarian progress |
      |                                  |
      v                                  v
BUT THE SHIFT ALSO CHANGED TWO THINGS:
THE TARGET ... from the BODY to the SOUL, CONDUCT and HABITS
THE TECHNIQUE . from OCCASIONAL TERROR to CONTINUOUS SUPERVISION
      |
      v
THE NEW TECHNIQUE REQUIRED *KNOWLEDGE* OF THE OFFENDER --
generating criminology, psychiatry and the case file
      |
      v
THEREFORE POWER AND KNOWLEDGE DEVELOP *TOGETHER* rather than
OPPOSING ONE ANOTHER
=====
```

-----  
PANOPTICISM -- THE MECHANISM  
-----

```
+-----+
| AN ARCHITECTURE OF PERMANENT, *ASYMMETRICAL* VISIBILITY IN WHICH |
| THE OBSERVED CANNOT VERIFY WHETHER THEY ARE BEING WATCHED AT ANY |
| GIVEN MOMENT -- SO SURVEILLANCE IS *INTERNALISED* AND THE SUBJECT |
| DISCIPLINES HERSELF. |
| |
| THE APPARATUS'S POWER LIES IN THE *POSSIBILITY* OF OBSERVATION, |
| NOT ITS ACTUALITY -- WHICH IS WHY IT *ECONOMISES ON FORCE*. |
+-----+
      |
      v
RESULT ON THIS ACCOUNT: modern punishment produces "DOCILE BODIES"
and MANUFACTURES *DELINQUENCY* as a manageable category, rather than
ELIMINATING CRIME
      |
      v
THE FUNCTIONAL CLAIM: the prison's persistent failure to reduce
reoffending is NOT AN ANOMALY to be corrected but is FUNCTIONAL,
since it sustains a bounded, identifiable delinquent population
-- [?] CONTESTED, and STRONGER than the historical evidence strictly
supports. PRESENT IT AS A THESIS, NOT A FINDING.
```

=====
THE COMPULSORY CAVEAT -- STATE IT EXPLICITLY OR LOSE MARKS
=====

```
+-----+
| FOUCAULT OFFERS A *GENEALOGY OF PENAL POWER*, NOT A THEORY OF |
| WHEN PUNISHMENT IS JUSTIFIED. USING HIM AS THOUGH HE SUPPLIED A |
| NORMATIVE ALTERNATIVE TO RETRIBUTION OR DETERRENCE IS A CATEGORY |
| ERROR AND WILL BE MARKED AS ONE. |
+-----+
```

- [1] DO NOT present him as saying punishment is UNJUSTIFIED; his argument is about HOW PENAL POWER OPERATES, not about desert or liability.
- [2] The FUNCTIONAL CLAIM is CONTESTED -- a thesis, not a finding.
- [3] DO NOT attach panopticism to ANY named contemporary technology, database, programme or government. The concept is an ANALYTICAL MODEL; NO empirical claim is made here about any surveillance practice anywhere.

-----  
WHERE HE BELONGS IN AN ANSWER  
-----

THE JUSTIFICATORY PARAGRAPH ... NO  
THE CRITICAL PARAGRAPH ..... YES -- and he is STRONGEST showing  
why \*REFORMATIVE RHETORIC\* can coexist with INTENSIFIED CONTROL,  
which is a direct and powerful qualification of Session 9

*Caption: the historical shift with the two things it changed, the power-knowledge consequence, panopticism as a mechanism, the contested functional claim, the three-part compulsory caveat, and the single paragraph of an answer where Foucault belongs.*

### In plain words

Foucault is the most misused name in this clause, and the misuse is always the same: he is presented as offering a fourth theory of punishment alongside retribution, deterrence and reform. He does not. He offers a **genealogy of penal power** - an account of how penal institutions came to operate as they do - and not a normative account of when punishment is justified. Treating a genealogy as a justification is a category error, and it is visible immediately.

What he actually argues is this. The shift from punishment as public spectacle inflicted on the body of the condemned to punishment as imprisonment is usually narrated as humanitarian progress. But the shift also changed the **target** - from the body to the soul, conduct and habits - and the **technique** - from occasional terror to continuous supervision. The new technique required knowledge of the offender, which generated criminology, psychiatry and the case file. Power and knowledge therefore develop together rather than opposing one another.

**Panopticism** names the mechanism: an architecture of permanent, asymmetrical visibility in which the observed cannot verify whether they are being watched at any given moment, so that surveillance is internalised and the subject disciplines herself. ANALYSIS: The crucial detail is that the apparatus's power lies in the **possibility** of observation and not in its actuality, which is why it economises on force: it does not need to watch, only to be able to.

On this account modern punishment produces "docile bodies" and manufactures **delinquency** as a manageable category, rather than eliminating crime. CAUTION: And here is the claim that must be handled carefully: the prison's persistent failure to reduce reoffending is presented not as an anomaly to be corrected but as **functional**, since it sustains a bounded, identifiable delinquent population. That claim is contested, and it is stronger than the historical evidence he assembles strictly supports. Present it as a thesis, not as a finding.

### The doctrine, exactly

FACT: **Foucault, Discipline and Punish\*** (1975 French; 1977 English translation) advances a **historical and analytical** thesis rather than a normative justification. He describes a transition from punishment as public spectacle inflicted on the body of the condemned to punishment as **discipline** - the ordering, observation, timetabling, training and normalisation of subjects.

FACT: **Panopticism**. An architecture of permanent, asymmetrical visibility in which the observed cannot verify whether they are being watched at any given moment, so that surveillance is internalised and the subject disciplines herself. The apparatus's power lies in the **possibility** of observation, not its actuality - which is why it economises on force.

FACT: **The result on this account**. Modern punishment produces "docile bodies" and manufactures **delinquency** as a manageable category, rather than eliminating crime.

ANALYSIS: **The argument in six steps**. The shift from spectacular corporal punishment to imprisonment is usually narrated as humanitarian progress; but it also changed the target and the technique; the new technique required knowledge of the offender, generating criminology, psychiatry and the case file; power and knowledge therefore develop together; the prison's persistent failure to reduce reoffending is presented as functional rather than anomalous; therefore penal reform cannot be assessed only by its stated humanitarian aims.

ANALYSIS: **WRONG: The compulsory caveat, in three parts**. First, do **not** present Foucault as saying punishment is unjustified; his argument concerns how penal power operates, not desert or liability. Second, the functional claim is **contested** and stronger than the historical evidence strictly supports; present it as a thesis. Third, do **not** attach panopticism to any named contemporary technology, database, programme or government - the concept is an analytical model, and no empirical claim is made here about any surveillance practice anywhere.

ANALYSIS: **The self-undermining objection and its reply**. If power constitutes subjects, then the resources for criticising penal power appear unavailable, and the critique undercuts its own normative standing. Foucauldians reply that resistance is co-extensive with power and that the point is to make contingent arrangements visible as contingent.

ANALYSIS: The residual problem - the absence of a stated normative criterion - is genuine, and an answer should say so rather than paper over it.

FACT: **Best use in an answer.** Foucault belongs in the **critical** paragraph of a punishment essay, not the justificatory one. He is at his strongest showing why **reformative** rhetoric can coexist with intensified control, which is a direct and powerful qualification of Session 9.

### Named evidence you can cite

- **Foucault, Discipline and Punish (1975 French; 1977 English)** FACT: - discipline, panopticism and the production of docile bodies; cited by title and year only, used as genealogy and never as a normative justification.
- **The target/technique analysis** FACT: - body to soul, occasional terror to continuous supervision; the pair that makes the "humanitarian progress" narrative questionable without denying that anything improved.
- **The possibility-not-actuality point about panopticism** FACT: - the detail that explains why the mechanism economises on force and that most scripts omit.
- **The three-part caveat ANALYSIS:** - the discipline that turns a dangerous name into a controlled one; stating it is itself a mark-bearing move.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Foucault supplies a genealogy of penal power rather than a justification of punishment, and his value in an answer is precisely that: he shows why reformative language is not self-validating, since a regime can intensify supervision while describing itself as rehabilitative - which is why the aims of a penal institution must be assessed through its techniques and not only through its stated purposes.

### MUST-WRITE KEYWORDS

genealogy, not justification · spectacle to discipline · target: body to soul, conduct, habits · technique: occasional terror to continuous supervision · power and knowledge develop together · panopticism · asymmetrical visibility · possibility rather than actuality of observation · internalised surveillance · docile bodies · manufactured delinquency · contested functional claim

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Foucault's contribution to this clause is critical rather than justificatory: he shows that a penal institution's stated humanitarian purposes cannot by themselves establish what the institution does. **Named evidence.** In *Discipline and Punish* he describes the transition from punishment as public spectacle inflicted on the body of the condemned to punishment as discipline - the ordering, observation, timetabling, training and normalisation of subjects - and names its mechanism panopticism, an architecture of permanent asymmetrical visibility in which the observed cannot verify whether they are being watched, so that surveillance is internalised and the subject disciplines herself. **Analysis.** The shift changed both the target of penal power, from the body to conduct and habits, and its technique, from occasional terror to continuous supervision; the new technique required knowledge of the offender and so generated criminology, psychiatry and the case file, which is why power and knowledge are here presented as developing together rather than as opposing one another - and the direct consequence for penal theory is that reformative rhetoric is not self-validating, since supervision can intensify under a therapeutic description. **Qualification.** This is a genealogy of penal power and not a theory of when punishment is justified, so it must be placed in the critical paragraph of an answer and never in the justificatory one; its strongest claim, that the prison's failure to reduce reoffending is functional rather than anomalous, is contested and should be presented as a thesis rather than a finding; and the analysis must not be attached to any named contemporary technology, programme or government, since the concept is an analytical model and no empirical claim about any actual surveillance practice is being made.

### Objection -> reply -> residual limit

- **Objection.** FACT: If power constitutes subjects, then the resources for criticising penal power are themselves products of that power, and the critique undercuts its own normative standing. A genealogy that unmask every criterion has no criterion left with which to unmask.



- **Reply.** ANALYSIS: Foucauldians reply that resistance is co-extensive with power rather than external to it, and that the aim of a genealogy is not to supply a criterion but to make contingent arrangements visible as contingent - that is, to show that what presents itself as necessary is the outcome of a history and could therefore have been otherwise. On that reading the analysis is deliberately not in the business of justification, and criticising it for failing to justify mistakes its genre.
- **Residual limit.** CAUTION: The reply is honest but incomplete, and the residual problem is genuine: showing that an arrangement is contingent does not show that it is bad, and without a normative criterion the analysis cannot distinguish an arrangement worth resisting from one worth keeping. An answer should state this rather than paper over it - and should then draw the practical conclusion, which is that Foucault must be paired with a normative theory rather than substituted for one.

### Examiner traps on this session

1. Presenting Foucault as a fourth theory of punishment. It is a category error, it is visible immediately, and it is listed as such.
2. Asserting that he shows punishment to be unjustified. He argues about how penal power operates, not about desert or liability, and the inference is not his.
3. Presenting the functional claim about delinquency as an established finding. It is contested and stronger than the evidence strictly supports.
4. Attaching panopticism to a named technology, database, programme or government. This package makes no such empirical claim anywhere, and the concept is an analytical model.
5. Putting Foucault in the justificatory paragraph. He belongs in the critical one, qualifying the reformatory claim of Session 9.

### Mini recap

Genealogy, not justification. Spectacle to discipline; target from body to conduct and habits; technique from occasional terror to continuous supervision. Knowledge generated by the technique: criminology, psychiatry, the case file; power and knowledge develop together. Panopticism: asymmetrical permanent visibility, internalised because the observed cannot verify; power lies in possibility, not actuality; economises on force. Docile bodies and manufactured delinquency. Functional claim: contested thesis. Three-part caveat. Placement: the critical paragraph, qualifying reform.

#### CLOSURE FLOW -- SESSION 14

"humanitarian progress" narrative -> QUESTIONED, not refuted

- > MECHANISM: TARGET shifts body -> conduct/habits; TECHNIQUE shifts terror -> continuous supervision; KNOWLEDGE follows
- > PANOPTICISM: asymmetrical visibility; power in the POSSIBILITY of observation; surveillance INTERNALISED; force ECONOMISED
- > THESIS [?]: prison's failure is FUNCTIONAL (contested)
- > CAVEAT: genealogy NOT justification | thesis NOT finding | NO named technology, programme or government
- > ANSWER USE: CRITICAL paragraph only -- reformatory rhetoric is NOT self-validating; judge aims by TECHNIQUES

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# SESSION 15 - RESTORATIVE JUSTICE AND BRAITHWAITE'S REINTEGRATIVE SHAMING

## The picture first

SIX AXES ON WHICH RESTORATIVE PROCESS DIFFERS FROM CONVENTIONAL

| AXIS             | RETRIBUTIVE / CONVENTIONAL                              | RESTORATIVE                                                        |
|------------------|---------------------------------------------------------|--------------------------------------------------------------------|
| CRIME IS         | a BREACH OF LAW, an offence against the STATE           | a HARM TO PERSONS AND RELATIONSHIPS                                |
| CENTRAL QUESTION | which law was broken, who did it, what do they DESERVE? | who was HURT, what do they NEED, whose OBLIGATION is it to REPAIR? |
| VICTIM'S ROLE    | a WITNESS for the prosecution                           | a CENTRAL PARTICIPANT with STANDING                                |
| OFFENDER'S ROLE  | OBJECT of proceedings; INCENTIVISED TO DENY             | ACTIVE PARTICIPANT, expected to ACKNOWLEDGE and REPAIR             |
| OUTCOME          | proportionate HARD TREATMENT                            | reparation, apology, restitution, changed conduct, REINTEGRATION   |
| COMMUNITY        | REPRESENTED by the state                                | DIRECTLY INVOLVED as a STAKEHOLDER                                 |

BRAITHWAITE'S MECHANISM -- WHY SHAMING CUTS BOTH WAYS

| STIGMATISING SHAMING                                                                | REINTEGRATIVE SHAMING                                          |
|-------------------------------------------------------------------------------------|----------------------------------------------------------------|
| condemns THE OFFENDER                                                               | condemns THE ACT                                               |
| LABELS the PERSON as bad                                                            | SUSTAINS RESPECT for the person                                |
| SEVERES bonds                                                                       | disapproval expressed WITHIN a CONTINUING RELATIONSHIP OF CARE |
| offers NO ROUTE BACK                                                                | TERMINATED by gestures of FORGIVENESS and REACCEPTANCE         |
| pushes the offender toward CRIMINAL SUBCULTURES where the label is worn as IDENTITY | returns the offender to the COMMUNITY OF LAW-ABIDING CITIZENS  |
| => CRIMINOGENIC                                                                     | => REGULATORY                                                  |

- ↓
- THE ARGUMENT IN SIX STEPS
- [1] INFORMAL social disapproval regulates conduct MORE POWERFULLY than FORMAL sanction
  - [2] so shaming CAN reduce offending -- but ONLY IF the offender is not PERMANENTLY CAST OUT
  - [3] stigmatising shaming SEVERES the bonds that make disapproval MATTER, and creates OUTCAST IDENTITIES
  - [4] reintegrative shaming PRESERVES those bonds and provides a ROUTE BACK
  - [5] therefore societies and processes that shame REINTEGRATIVELY should have LOWER REOFFENDING than those that STIGMATISE
  - [6] hence restorative processes are justified BOTH by their MORAL CHARACTER and by their REGULATORY EFFECT

↓

PRESUPPOSITION [!]: the offender VALUES INCLUSION in the relevant community, and the community is WILLING TO REACCEPT -- conditions that plainly FAIL for members of ALREADY-EXCLUDED GROUPS. THIS IS

THE THEORY'S MOST SERIOUS LIMITATION. STATE IT.

-----  
HOW RESTORATION ANSWERS THE THREE-QUESTION GRID  
-----

Q1 AIM ..... REPAIR of harm and RESTORATION of relationships  
Q2 LIABILITY ... still requires an ADMITTED OR PROVED VOLUNTARY  
WRONG -- restoration is NOT a licence to BYPASS GUILT  
Q3 AMOUNT ..... measured by WHAT REPAIR REQUIRES rather than by  
WHAT DESERT PERMITS -- and THIS is exactly where the  
PROPORTIONALITY OBJECTION BITES

*Caption: the six-axis contrast, Braithwaite's two kinds of shaming on five axes, the six-step argument, the presupposition that constitutes the theory's most serious limitation, and the account's position on the three-question grid with the precise point where the proportionality objection lands.*

### In plain words

**Restorative justice** reconceives crime as a **violation of persons and relationships** rather than primarily as an offence against the state, and defines the proper response as a process in which those affected - victim, offender and community - collectively address harms, needs and obligations. The contrast with conventional process is not one of mood but of structure, and it runs along six axes: what crime is, what the central question is, what role the victim plays, what role the offender plays, what counts as an outcome, and how the community participates.

Two of those axes deserve particular attention. The victim moves from being a **witness for the prosecution** to being a central participant with standing - which is a change in the person's status, not merely in their comfort. And the offender moves from being the object of proceedings, structurally **incentivised to deny**, to being an active participant expected to acknowledge and repair. That second point is the one most scripts miss: conventional process gives the offender a strong reason to contest everything, which is precisely what obstructs acknowledgement.

ANALYSIS: **Braithwaite** supplies the mechanism, and it is what turns a moral preference into a theory. His controlling distinction is between two kinds of shaming. **Stigmatising shaming** condemns the offender: it labels the person as bad, severs bonds, offers no route back, and pushes the offender toward criminal subcultures where the label is worn as an identity. It is **criminogenic** - it produces the offending it condemns. **Reintegrative shaming** condemns the act while sustaining respect for the person: disapproval is expressed within a continuing relationship of care, and it is terminated by gestures of forgiveness and reacceptance into the community of law-abiding citizens.

ANALYSIS: The presupposition must be stated, because it is where the theory is weakest: the offender must value inclusion in the relevant community, and the community must be willing to reaccept. Both conditions plainly fail for members of already-excluded groups - which is the theory's most serious limitation and the one an examiner will look for.

### The doctrine, exactly

FACT: **Restorative justice** reconceives crime as a violation of persons and relationships rather than primarily as an offence against the state, and defines the proper response as a process in which those affected - victim, offender and community - collectively address harms, needs and obligations.

FACT: **The six-axis contrast**. Crime is: a breach of law and offence against the state, against a harm to persons and relationships. Central question: which law was broken, who did it, what do they deserve, against who was hurt, what do they need, whose obligation is it to repair. Victim's role: witness for the prosecution against central participant with standing. Offender's role: object of proceedings incentivised to deny, against active participant expected to acknowledge and repair. Outcome: proportionate hard treatment, against reparation, apology, restitution, changed conduct and reintegration. Community: represented by the state, against directly involved as a stakeholder.

FACT: **Stigmatising shaming** condemns the offender - labels the person as bad, severs bonds, offers no route back, and pushes the offender toward criminal subcultures where the label is worn as identity. It is **criminogenic**.

FACT: **Reintegrative shaming** condemns the act while sustaining respect for the person - disapproval is expressed within a continuing relationship of care and is terminated by gestures of forgiveness and reacceptance into the community of law-abiding citizens.

ANALYSIS: **The argument in six steps**. Informal social disapproval is a more powerful regulator than formal sanction; shaming can therefore reduce offending, but only if the offender is not permanently cast out; stigmatising shaming severs the bonds that make disapproval matter and creates outcast identities; reintegrative shaming

preserves those bonds and provides a route back; therefore societies and processes that shame reintegratively should have lower reoffending than those that stigmatise; hence restorative processes are justified both by their moral character and by their regulatory effect.

**ANALYSIS: The presupposition.** The offender values inclusion in the relevant community, and the community is willing to reaccept - conditions that plainly fail for members of already-excluded groups. This is the theory's most serious limitation and should be stated, not omitted.

**ANALYSIS: How restorative justice answers the grid.** At **Q1** the aim is repair of harm and restoration of relationships. At **Q2** liability still requires an admitted or proved voluntary wrong, so restoration is not a licence to bypass guilt. At **Q3** the measure is what repair requires rather than what desert permits - which is precisely where the proportionality objection bites.

**ANALYSIS: Restitution is not restoration.** Restitution returns value or repairs loss; it is one possible **outcome**. Restorative justice is the **process** of acknowledgement, participation and reintegration inside which restitution may occur. Merging them is a listed trap.

### The three objections and their replies

**ANALYSIS: Objection 1 - proportionality.** Outcomes will vary with the victim's temperament: a forgiving victim yields a light outcome for a grave wrong, a vengeful one a heavy outcome for a minor wrong. Like cases are not treated alike. **Reply.** **ANALYSIS:** Defensible restorative schemes operate inside **upper and lower limits set by desert**, so restoration determines the outcome *within* a proportionate band rather than replacing proportionality. **ANALYSIS:** The residual problem is that this concedes that the retributive framework remains the outer constraint.

**ANALYSIS: Objection 2 - power imbalance.** Face-to-face process can re-traumatise victims and can be coercive where the parties are unequal - in domestic violence, in caste atrocity, or in offences by the powerful against the weak. **Reply.** **ANALYSIS:** This is the strongest objection and cannot be fully answered. The honest position is that restorative process is **conditionally appropriate**: it requires genuine voluntariness, prior safety, skilled facilitation, and the screening out of cases with entrenched domination. **WRONG:** Do not present restorative justice as universally applicable.

**ANALYSIS: Objection 3 - public wrong.** If crime is only a harm to persons, the public interest in denouncing the wrong disappears and serious crime becomes a private matter for settlement. **Reply.** **FACT:** Feinberg's expressive point and Duff's communicative one supply the answer - some wrongs must be publicly named and condemned, so restoration must **supplement rather than replace** authoritative condemnation for serious offences.

**ANALYSIS: The synthesis to state in a verdict.** The modern position is not "retribution versus reform" but a layered one: **desert fixes the limits, condemnation supplies the meaning, communication supplies the address to the offender, restoration supplies the repair of harm, and Foucault supplies the standing warning** that any of these can be captured by an apparatus of control.

### Named evidence you can cite

- **Restorative justice as a six-axis reconception of process** **FACT:** - the structure that lets an answer compare rather than merely prefer.
- **Braithwaite, Crime, Shame and Reintegration\*** **FACT:** - the stigmatising/reintegrative distinction and the claim that stigmatisation is criminogenic; cited by title only and paraphrased, never quoted.
- **The excluded-group presupposition** **ANALYSIS:** - the offender must value inclusion and the community must be willing to reaccept; the theory's most serious limitation.
- **The layered verdict** **ANALYSIS:** - desert fixes limits, condemnation supplies meaning, communication supplies address, restoration supplies repair, Foucault supplies the warning; the single best closing available in the whole clause.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The modern position is not retribution against reform but a layered one - desert fixes the limits, condemnation supplies the meaning, communication supplies the address to the offender, and restoration supplies the repair of harm - with the standing warning that any of these can be captured by an apparatus of control that describes itself in whichever of their languages is currently persuasive.

## MUST-WRITE KEYWORDS

violation of persons and relationships · who was hurt, what do they need, whose obligation is it to repair · victim as participant with standing · offender incentivised to deny · stigmatising against reintegrative shaming · criminogenic labelling · continuing relationship of care · terminated by reacceptance · conditionally appropriate · supplement rather than replace · desert-bounded band

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Restorative justice is a defensible and valuable response to crime, but for serious wrongs it supplements rather than replaces authoritative condemnation, and its applicability is conditional rather than general. **Named evidence.** It reconceives crime as a violation of persons and relationships and asks who was hurt, what they need and whose obligation it is to repair, making the victim a participant with standing and the offender an active participant expected to acknowledge rather than an object of proceedings structurally incentivised to deny; and Braithwaite supplies its mechanism through the distinction between stigmatising shaming, which condemns the person, severs bonds and is criminogenic, and reintegrative shaming, which condemns the act within a continuing relationship of care and is terminated by reacceptance. **Analysis.** Mapped onto the three justifying questions the account is coherent but bounded: its aim is repair, its liability condition still requires an admitted or proved voluntary wrong so that guilt is not bypassed, and its measure of outcome is what repair requires rather than what desert permits - which is exactly where the proportionality objection lands, since outcomes would otherwise vary with the victim's temperament, and the standard answer is that restorative outcomes operate inside upper and lower limits set by desert. **Qualification.** That answer concedes that the retributive framework remains the outer constraint; the power-imbalance objection cannot be fully met and confines the practice to cases with genuine voluntariness, prior safety, skilled facilitation and no entrenched domination; and the theory's own presupposition - that the offender values inclusion and that the community will reaccept him - fails precisely for members of already-excluded groups, which is where its promise is weakest and its rhetoric most attractive.

## Objection -> reply -> residual limit

- **Objection.** FACT: Braithwaite's mechanism is self-undermining in modern conditions. Reintegrative shaming works through dense informal bonds within a community that knows the offender, but the societies in which serious offending is most concentrated are precisely those with weakened informal bonds, high mobility and anonymity. The theory therefore prescribes a remedy that requires the very conditions whose absence produces the problem.
- **Reply.** ANALYSIS: The objection identifies a real scope condition and overstates it. What the mechanism requires is not a traditional community but **some** community whose regard the offender values and whose reacceptance is meaningful - which may be a family, a workplace, a neighbourhood, a faith congregation or a peer network. Restorative conferencing works by convening the relevant community of concern rather than assuming a pre-existing village, and identifying who counts as that community is part of the process rather than a precondition of it.
- **Residual limit.** CAUTION: The reply does not reach the case where no such community can be convened, which is precisely the case of the persistently excluded offender - and that is the same population for which the presupposition already failed. The honest conclusion is that restorative justice is strongest where social bonds are intact and weakest where they have been destroyed, which is an uncomfortable distribution: the theory is least available to those whose treatment by conventional process is worst.

## Examiner traps on this session

1. Merging restitution with restorative justice. Restitution is an outcome; restoration is a process. It is a listed trap and it costs marks on any victim-centred stem.
2. Presenting restorative justice as universally applicable. The power-imbalance objection cannot be fully answered, and the conditional-appropriateness verdict is the mark-bearing one.
3. Omitting the excluded-group presupposition. It is the theory's most serious limitation, and an answer that praises reintegration without it has not read the objection.
4. Treating restoration as an alternative to condemnation for grave public wrongs. Feinberg and Duff supply the reason it cannot be: some wrongs must be publicly named.

5. Forgetting that restoration still requires guilt at Q2. Restoration is not a route around liability, and saying so pre-empts an obvious objection.

### Mini recap

Six axes of contrast: what crime is, central question, victim's role, offender's role, outcome, community. Braithwaite: stigmatising shaming is criminogenic; reintegrative shaming condemns the act, sustains respect, is terminated by reacceptance. Six-step argument from informal regulation to double justification. Presupposition: valued inclusion and willing reacceptance - fails for excluded groups. Grid: repair at Q1, guilt still required at Q2, repair-measured outcome at Q3 where proportionality bites. Three objections: proportionality, power imbalance, public wrong. Layered verdict: limits, meaning, address, repair, warning.

CLOSURE FLOW -- SESSION 15

crime as a HARM TO PERSONS, not only a breach of law

- > MECHANISM: SHAME THE ACT, KEEP THE PERSON -- stigmatising shaming is CRIMINOGENIC; reintegrative shaming is REGULATORY
  - > GRID: repair (Q1) | guilt still required (Q2) | repair-measured outcome (Q3) -- where PROPORTIONALITY BITES
  - > OBJECTIONS: proportionality -> desert-bounded band | power imbalance -> CONDITIONAL APPROPRIATENESS | public wrong -> SUPPLEMENT, never replace
  - > PRESUPPOSITION [!]: valued inclusion + willing reacceptance -- FAILS for already-excluded groups
  - > ANSWER USE: close with the LAYERED VERDICT -- limits, meaning, address, repair, and the warning
-

# SESSION 16 - CORRUPTION I: ENTRUSTED POWER, THE FIVE WRONGS, AND THE PARTICULARISM-UNIVERSALISM TENSION

## The picture first

WHAT CORRUPTION \*IS\* -- AND WHY BRIBERY IS ONLY ONE SPECIES

```

=====
+-----+
| CORRUPTION = THE MISUSE OF *ENTRUSTED* PUBLIC OR INSTITUTIONAL |
| POWER THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED      |
| ADVANTAGE, SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS   |
| JUSTIFIED PURPOSE.                                             |
+-----+
|
|   +-- BRIBERY ..... improper exchange
|   +-- FAVOURITISM ..... partial allocation
|   +-- NEPOTISM ..... partiality by kinship
|   +-- EMBEZZLEMENT ..... conversion of entrusted resources
|   +-- REGULATORY CAPTURE ..... the regulated set the rules
|   +-- ABUSE OF DISCRETION .... lawful power for unjustified ends
|   NOTE: it is WIDER THAN BRIBERY. An answer that treats
|   corruption as bribery has already narrowed the question.

```

FIVE REASONS IT IS MORALLY WRONG -- FIVE DIFFERENT WRONGS

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-----
[1] BREACH OF TRUST ..... office creates FIDUCIARY OBLIGATIONS
[2] IMPARTIALITY ..... similarly placed persons receive UNEQUAL
    VIOLATION          TREATMENT
[3] RULE-OF-LAW INJURY ... public RULES are displaced by PRIVATE
    ACCESS
[4] AGENCY HARM ..... citizens become CLIENTS or SUPPLICANTS
    rather than EQUALS
[5] INSTITUTIONAL HARM ... repeated corruption CHANGES EXPECTATIONS,
    [analysis]          making HONEST ACTION COSTLY and collective
    trust FRAGILE

```

WHY FIVE AND NOT ONE: each survives the failure of the others. Even where NO ONE IS MEASURABLY WORSE OFF, [1] and [3] still hold -- which is how corruption passes the PUBLIC-WRONG filter of Session 2 without an identifiable injured party.

THE OWNED 2025 STEM: "CORRUPT PRACTICES REVEAL AN INHERENT TENSION BETWEEN PARTICULARISTIC AND UNIVERSALISTIC NORMATIVE STANDARDS."

| PARTICULARISTIC NORMS                                           | UNIVERSALISTIC NORMS                                                 |
|-----------------------------------------------------------------|----------------------------------------------------------------------|
| assign SPECIAL WEIGHT to FAMILY, CASTE, FRIENDSHIP or PATRONAGE | require OFFICE-HOLDERS to apply PUBLIC CRITERIA IMPARTIALLY          |
| generate GENUINE DUTIES -- they are NOT mere bias               | generate duties owed to ALL who stand in the same relation to office |

THE FOUR-STEP ARGUMENT

```

[1] personal relations generate GENUINE DUTIES
[2] public office is ENTRUSTED FOR A SPECIFIED COMMON PURPOSE
[3] using office to discharge PRIVATE LOYALTY imposes costs on
    UNREPRESENTED CITIZENS
[4] CORRUPTION OCCURS WHEN A *LEGITIMATE* PARTICULAR LOYALTY IS
    ACTED UPON IN A ROLE GOVERNED BY *UNIVERSAL PUBLIC STANDARDS*

```

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+-----+
| THE SOLUTION IS *NOT* TO ABOLISH PERSONAL LOYALTY BUT TO DEFINE |
| ROLE BOUNDARIES, CONFLICTS OF INTEREST AND RECUSAL.           |
+-----+

```



THE QUALIFICATION THAT EARNS THE VERDICT MARK: the tension is REAL but it is a tension between DOMAINS, not between two rival MORALITIES. Both norms are valid IN THEIR OWN DOMAIN; corruption is a CATEGORY ERROR OF ROLE, executed for advantage.

*Caption: the definition with its six species, the five distinct wrongs and why each survives the failure of the others, and the particularism-universalism tension set out as the four-step argument with the role-boundary solution and the domain qualification the owned 2025 stem rewards.*

### In plain words

Most answers on corruption begin by describing bribery, and the description narrows the question before it has been asked. **Corruption is the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage, subverting the norm that office should serve its justified purpose.** It is wider than bribery: favouritism, nepotism, embezzlement, regulatory capture and abuse of discretion all fall inside it, and several of them involve no exchange at all.

The word doing the work is **entrusted**. Corruption is not simply dishonesty; it is dishonesty in a role that was conferred for a purpose. That is why the wrong survives even where no measurable loss can be shown.

ANALYSIS: There are five reasons it is wrong, and they are five different wrongs rather than five ways of saying one thing. **Breach of trust**, because office creates fiduciary obligations. **Impartiality violation**, because similarly placed persons receive unequal treatment. **Rule-of-law injury**, because public rules are displaced by private access.

**Agency harm**, because citizens become clients or supplicants rather than equals. And **institutional harm**, because repeated corruption changes expectations, making honest action costly and collective trust fragile.

ANALYSIS: Learning them as five is worth marks for a precise reason: each survives the failure of the others. Where no one is measurably worse off - where the bribe merely accelerated a decision that would have been made anyway - the harm-based objection is weak, and the breach-of-trust and rule-of-law objections still hold. That is exactly how corruption passes the public-wrong filter of Session 2 without an identifiable injured party.

ANALYSIS: Now the tension that the owned 2025 stem quotes. **Particularistic norms** assign special weight to family, caste, friendship or patronage. **Universalistic norms** require office-holders to apply public criteria impartially. The tension is real - and the answer that earns the verdict mark says something more precise than "the two conflict".

Personal relations generate **genuine duties**; they are not mere bias to be suppressed. Public office is entrusted for a specified common purpose. Using office to discharge private loyalty imposes costs on unrepresented citizens.

**Corruption therefore occurs when a legitimate particular loyalty is acted upon in a role governed by universal public standards.** The solution is not to abolish personal loyalty but to define role boundaries, conflicts of interest and recusal.

### The doctrine, exactly

FACT: **Corruption** is the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage, subverting the norm that office should serve its justified purpose. It is wider than bribery and may include favouritism, nepotism, embezzlement, regulatory capture and abuse of discretion.

FACT: **Why corruption is morally wrong - five wrongs.** (1) **Breach of trust**: office creates fiduciary obligations. (2) **Impartiality violation**: similarly placed persons receive unequal treatment. (3) **Rule-of-law injury**: public rules are displaced by private access. (4) **Agency harm**: citizens become clients or supplicants rather than equals. (5)

ANALYSIS: **Institutional harm**: repeated corruption changes expectations, making honest action costly and collective trust fragile.

FACT: **Particularistic norms** assign special weight to family, caste, friendship or patronage. FACT: **Universalistic norms** require office-holders to apply public criteria impartially.

ANALYSIS: **The tension in four steps.** Personal relations generate genuine duties; public office is entrusted for a specified common purpose; using office to discharge private loyalty imposes costs on unrepresented citizens; corruption occurs when a legitimate particular loyalty is acted upon in a role governed by universal public standards.

ANALYSIS: **The solution.** Not to abolish personal loyalty but to define role boundaries, conflicts of interest and recusal.

ANALYSIS: **The domain qualification.** The tension is a tension between **domains** rather than between two rival moralities. Both sets of norms are valid in their own domain: partiality towards one's family is not merely permitted but

required in the family, and impartiality is required in entrusted office. Corruption is therefore best characterised as a **category error of role executed for advantage** - the importation of a valid norm into a domain that excludes it. ANALYSIS: This is what allows an answer to "agree" with the quoted statement while adding something the statement does not itself contain, which is exactly what a *do you agree* stem rewards.

ANALYSIS: **Aristotle's insight, correctly bounded.** FACT: The observation that friendship and particular bonds matter cannot justify using public office as private property. The ethical task is **role-differentiation**: personal partiality is legitimate in some domains and corrupt in entrusted public decision. ANALYSIS: Deploy this as a single controlled point; WRONG: do not import a general theory of friendship, which belongs to another paper.

#### Named evidence you can cite

- **The entrusted-power definition with its six species** FACT: - bribery, favouritism, nepotism, embezzlement, regulatory capture, abuse of discretion; the move that stops an answer from shrinking corruption to bribery.
- **The five distinct wrongs** FACT: - trust, impartiality, rule of law, agency, institutional; with the point that each survives the failure of the others.
- **The four-step particularism/universalism argument** ANALYSIS: - genuine duties, entrusted purpose, cost to the unrepresented, and the definition of corruption as loyalty acted upon in the wrong role.
- **The role-boundary solution and the domain qualification** ANALYSIS: - boundaries, conflicts of interest and recusal rather than the suppression of loyalty; the category-error characterisation that lifts a 2025 answer above agreement.
- **Aristotle on particular bonds, bounded** FACT: - friendship matters and cannot convert office into property; used as one controlled point.

#### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Corruption is not the triumph of vice over virtue but the importation of a valid norm into a domain that excludes it: personal loyalty generates genuine duties, entrusted office is conferred for a specified common purpose, and corruption occurs at the moment a legitimate particular loyalty is acted upon in a role governed by universal public standards - which is why the remedy is role boundaries, conflicts-of-interest rules and recusal rather than the suppression of loyalty itself.

#### MUST-WRITE KEYWORDS

entrusted power · office should serve its justified purpose · wider than bribery · fiduciary obligation · impartiality violation · public rules displaced by private access · citizens as clients rather than equals · honest action made costly · particularistic against universalistic standards · role boundaries, conflict of interest, recusal · category error of role

#### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** I agree that corrupt practices reveal a tension between particularistic and universalistic normative standards, but the tension is not a clash between two moralities: it is the importation of a valid norm into a domain that excludes it. **Named evidence.** Corruption is the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage, and it is wider than bribery, embracing favouritism, nepotism, embezzlement, regulatory capture and abuse of discretion; particularistic norms assign special weight to family, caste, friendship and patronage, while universalistic norms require office-holders to apply public criteria impartially. **Analysis.** The argument therefore has four steps rather than two: personal relations generate genuine duties and are not mere bias; public office is entrusted for a specified common purpose; using office to discharge private loyalty imposes costs on citizens who are not represented in the transaction; and corruption occurs precisely when a legitimate particular loyalty is acted upon inside a role governed by universal public standards - which is why the wrong is fivefold, comprising breach of fiduciary trust, violation of impartiality, displacement of public rules by private access, the reduction of citizens to supplicants, and the institutional harm by which honest action becomes costly.

**Qualification.** Because both sets of norms are valid in their own domains, the remedy cannot be the suppression of personal loyalty, which would be neither possible nor desirable, but the definition of role boundaries, conflicts of interest and recusal; and the tension is therefore ineliminable rather than resolvable, since every office-holder remains a member of families and communities whose claims on him do not cease at the office door.

### Objection -> reply -> residual limit

- **Objection.** FACT: Treating particularistic obligation as genuine concedes too much. If duties to kin and community are real duties rather than temptations, then the office-holder who favours a relative is not simply wrong but is caught between two obligations, and corruption becomes a tragic conflict rather than a wrong. That conclusion is unacceptable, and it follows from the premise.
- **Reply.** ANALYSIS: The conclusion does not follow, because acknowledging that a duty is genuine does not settle its **scope**. Duties to kin are duties to act on their behalf **with one's own resources and within one's own sphere**; they are not duties to deploy resources held in trust for others. On that reading there is no conflict of obligations at all, since the particularistic duty never extended to the entrusted power in the first place - which is exactly why the remedy is a boundary rather than a trade-off, and why recusal resolves the situation rather than compromising it.
- **Residual limit.** CAUTION: The scope reply works cleanly for discrete decisions and less cleanly for the pervasive cases: informal influence, the shaping of agendas, appointments made through networks of acquaintance, and the transmission of advantage across generations. In those cases no identifiable decision is diverted, no recusal is available and the boundary has nothing to attach to - which is why the systemic analysis of Session 17 is necessary and why a purely ethical account of corruption is incomplete.

### Examiner traps on this session

1. Defining corruption as bribery. It is wider, and the narrowing costs the whole answer, since several owned stems turn on capture, discretion and patronage rather than on exchange.
2. Treating particularistic norms as mere bias or vice. They generate genuine duties, and the four-step argument depends on saying so; a script that denies it cannot explain why the tension is "inherent".
3. Giving one reason corruption is wrong. Five distinct wrongs exist, and their independence is what allows corruption to be a public wrong even where no one is measurably worse off.
4. Concluding that personal loyalty should be abolished or suppressed. The solution is role boundaries, conflicts-of-interest rules and recusal, and the difference is the verdict.
5. Answering the *do you agree* stem with agreement alone. The domain qualification and the category-error characterisation are what convert agreement into an argued position.

### Mini recap

Definition: misuse of entrusted power through partial, concealed or improperly exchanged advantage, subverting the norm that office serves its justified purpose. Six species, wider than bribery. Five independent wrongs: trust, impartiality, rule of law, agency, institutional. Particularistic norms generate genuine duties; universalistic norms govern entrusted office. Four-step argument ending in the definition of corruption as legitimate loyalty acted on in the wrong role. Remedy: role boundaries, conflicts of interest, recusal. Qualification: a tension between domains, a category error of role, ineliminable rather than resolvable.

#### CLOSURE FLOW -- SESSION 16

```
corruption = misuse of ENTRUSTED power, WIDER than bribery
-> MECHANISM: five independent wrongs -- trust | impartiality |
    rule of law | agency | institutional expectations
-> WHY FIVE: each SURVIVES the failure of the others, so the
    PUBLIC-WRONG filter is passed WITHOUT an identifiable victim
-> TENSION: particularistic duties are GENUINE; office is
    ENTRUSTED FOR A COMMON PURPOSE -> corruption = legitimate
    loyalty acted on in the WRONG ROLE
-> REMEDY: role boundaries | conflict of interest | recusal --
    NOT the suppression of loyalty
-> TRAP: corruption = bribery | loyalty = bias | one wrong only |
    agreement without the domain qualification
```

# SESSION 17 - CORRUPTION II: SYSTEMIC OR ETHICAL, REGIMES, THE MASS-VIOLENCE ANALOGY, AND REMEDIES

## The picture first

THE OWNED 2022 STEM: SYSTEMIC ISSUE OR ETHICAL ISSUE?

| =====                                                            |                                                                     |
|------------------------------------------------------------------|---------------------------------------------------------------------|
| ETHICAL DIAGNOSIS                                                | SYSTEMIC DIAGNOSIS                                                  |
| CAUSE: greed, dishonesty, weak integrity                         | CAUSE: OPACITY, MONOPOLY, EXCESSIVE DISCRETION, IMPUNITY            |
| FOCUS: CHARACTER and CHOICE                                      | FOCUS: INCENTIVES and INSTITUTIONAL EQUILIBRIUM                     |
| REMEDY: MORAL EDUCATION, PROFESSIONAL ETHOS                      | REMEDY: TRANSPARENCY, AUDIT, COMPETITION, ACCOUNTABILITY            |
| FAILS BY: heroic virtue cannot substitute for sound institutions | FAILS BY: EXCUSING individual choice; treating agents as mechanisms |
| v                                                                |                                                                     |

BEST POSITION: CORRUPTION IS AN \*ETHICAL ACT WITHIN A SYSTEMIC ECOLOGY\*. STRUCTURE INFLUENCES OPPORTUNITY AND COST BUT DOES NOT ERASE AGENCY; CHARACTER MATTERS, BUT HEROIC VIRTUE CANNOT SUBSTITUTE FOR SOUND INSTITUTIONS.

NOTE THE STEM SAYS "OR". THE MARK IS FOR REFUSING THE DISJUNCTION \*AND SAYING WHY\* -- not for asserting "both".

THE OWNED 2020 STEM: HOW FAR DO REGIMES CONDITION CORRUPT PRACTICE?

NO FORM OF GOVERNMENT IS AUTOMATICALLY IMMUNE

|  
 +-- AUTOCRACY ... may CONCEAL corruption through WEAK SCRUTINY  
 |  
 +-- DEMOCRACY ... may EXPOSE it, yet ALSO GENERATE PATRONAGE, CAMPAIGN-FINANCE and CAPTURE risks  
 |  
 v  
 REGIME TYPE AFFECTS ..... INFORMATION, ACCOUNTABILITY, COMPETITION  
 OUTCOMES ALSO DEPEND ON ..... INSTITUTIONAL DESIGN, SOCIAL INEQUALITY, NORMS OF OFFICE  
 |  
 v

THE PRECISE ANSWER TO "HOW FAR": regimes condition the \*VISIBILITY\*, the \*COST\* and the \*FORM\* of corruption far more than its \*EXISTENCE\*. A regime that exposes more corruption is not thereby more corrupt -- confusing DISCLOSURE with INCIDENCE is the commonest error on this stem.

THE OWNED 2019 STEM: IS CORRUPTION \*NOT\* A FORM OF MASS VIOLENCE?

STEP 1 -- STATE THE NECESSARY CONDITIONS FOR \*VIOLENCE\* FIRST

(do NOT assert the analogy: TEST it)

STEP 2 -- TEST CORRUPTION AGAINST EACH

| CONDITION OF VIOLENCE       | CORRUPTION MEETS? | NOTE                                 |
|-----------------------------|-------------------|--------------------------------------|
| large-scale harm to persons | OFTEN YES         | via DIVERSION of essential resources |
| DIRECT PHYSICAL FORCE       | NO                | THE CORE DISANALOGY                  |
| INTENT TO HARM THE VICTIMS  | USUALLY NO        | intent is to GAIN, not to INJURE     |

|                                                                                                                          |               |                               |
|--------------------------------------------------------------------------------------------------------------------------|---------------|-------------------------------|
| IDENTIFIABLE VICTIMS                                                                                                     | NO -- DIFFUSE | invisibility of causal chains |
| ABUSE OF INSTITUTIONAL POWER                                                                                             | YES           | the shared feature            |
| STEP 3 -- VERDICT                                                                                                        |               |                               |
| CALL CORRUPTION "MASS VIOLENCE" ONLY *ANALOGICALLY* AND WITH A DEMONSTRATED HARM-CHAIN; OTHERWISE USE *STRUCTURAL HARM*. |               |                               |
| FOR: diffuse victims, cumulative harm, invisibility of causal chains, abuse of institutional power                       |               |                               |
| AGAINST: conceptual inflation ERASES the distinctive AGENCY and INTENT involved in PHYSICAL mass violence                |               |                               |

=====

THE OWNED 2018 STEM: MEASURES TO ERADICATE CORRUPTION

=====

THE TRAP: the stem invites a LIST. A PHILOSOPHY answer must give the PRINCIPLE THAT GENERATES the list.

PRINCIPLE -> ATTACK THE THREE VARIABLES THAT MAKE OFFICE MISUSABLE

[A] MONOPOLY .... reduce by COMPETITION, plural providers, appeal

[B] DISCRETION .. bound by RULES, PUBLISHED CRITERIA, RECUSAL, CONFLICT-OF-INTEREST DEFINITION

[C] IMPUNITY .... defeat by TRANSPARENCY, AUDIT, INDEPENDENT INVESTIGATION, CERTAINTY OF DETECTION

PLUS THE ETHICAL LIMB, which the systemic limb cannot supply:

[D] PROFESSIONAL ETHOS and MORAL EDUCATION -- because rules are APPLIED BY PERSONS and every rule leaves a residue of judgment

AND THE DETERRENCE POINT FROM SESSION 8:

CERTAINTY AND PROMPTNESS MATTER MORE THAN SEVERITY -- corruption is the paradigm CALCULATED offence by an actor WITH SOMETHING TO LOSE, so detection probability is the operative lever

INDIAN INSTITUTIONAL ILLUSTRATIONS, CLASSIFIED BEFORE USE:

PREVENTION OF CORRUPTION ACT, 1988 (amended 2018) = ENACTED CRIMINAL-LAW FRAMEWORK

LOKPAL AND LOKAYUKTAS ACT, 2013 = INSTITUTIONAL ACCOUNTABILITY FRAMEWORK

[!] NEITHER ENACTMENT PROVES THAT CORRUPTION IS ETHICALLY SOLVED; IMPLEMENTATION, INDEPENDENCE, ENFORCEMENT AND PUBLIC NORMS REMAIN SEPARATE QUESTIONS.

*Caption: the ethical/systemic grid with the position that refuses the disjunction, the regime analysis with the precise answer to "how far", the three-step test that converts the mass-violence analogy into an argument, and the principle-first structure for the eradication stem with the two Indian statutes classified before use.*

### In plain words

Four of the twelve owned parts in this clause are answered from this session, so it repays close work.

**ANALYSIS: Systemic or ethical?** The **ethical diagnosis** traces corruption to greed, dishonesty and weak integrity; it focuses on character and choice, and its remedy is moral education and professional ethos. The **systemic diagnosis** traces it to opacity, monopoly, excessive discretion and impunity; it focuses on incentives and institutional equilibrium, and its remedy is transparency, audit, competition and accountability. The best position refuses the disjunction: **corruption is an ethical act within a systemic ecology**. Structure influences opportunity and cost but does not erase agency; character matters, but heroic virtue cannot substitute for sound institutions. **ANALYSIS:** The mark is not for saying "both" - every script says both - but for saying **why** the disjunction is false: an ethical account alone cannot explain why the same population behaves differently under different institutional designs, and a systemic account alone cannot explain why individuals in identical positions behave differently.

**ANALYSIS: How far do regimes condition corrupt practice?** No form of government is automatically immune. Autocracy may conceal corruption through weak scrutiny; democracy may expose it yet also generate patronage, campaign-finance and capture risks. Regime type affects information, accountability and competition, but outcomes also depend on institutional design, social inequality and norms of office. **ANALYSIS:** The precise answer to *how far* is that regimes condition the **visibility**, the **cost** and the **form** of corruption far more than its **existence** - and the commonest error on this stem is to confuse **disclosure** with **incidence**, concluding that a regime which exposes more corruption has more of it.

**ANALYSIS: Is corruption not a form of mass violence?** This stem must be answered by a **test**, not by an assertion. State the necessary conditions for violence first; test corruption against each; then give a verdict that includes the partial fit. Corruption is not normally direct physical violence, but large-scale corruption can become **structurally violent** where diversion of essential resources foreseeably exposes many persons to avoidable deprivation, danger or exclusion. For the claim: diffuse victims, cumulative harm, invisibility of causal chains, abuse of institutional power. Against it: conceptual inflation may erase the distinctive agency and intent involved in physical mass violence. Verdict: call corruption "mass violence" only **analogically** and with a demonstrated harm-chain; otherwise use **structural harm**.

**ANALYSIS: Measures to eradicate corruption.** The stem invites a list, and a philosophy answer must supply the **principle that generates** the list. The principle is to attack the three variables that make office misusable - monopoly, discretion and impunity - and to add the ethical limb that the systemic limb cannot supply, because rules are applied by persons and every rule leaves a residue of judgment. The deterrence point from Session 8 transfers exactly here: corruption is the paradigm calculated offence by an actor with something to lose, so **certainty of detection is the operative lever, not severity of penalty**.

### The doctrine, exactly

**FACT: The ethical diagnosis.** Cause: greed, dishonesty, weak integrity. Focus: character and choice. Remedy: moral education, professional ethos.

**FACT: The systemic diagnosis.** Cause: opacity, monopoly, excessive discretion, impunity. Focus: incentives and institutional equilibrium. Remedy: transparency, audit, competition, accountability.

**ANALYSIS: Best position.** Corruption is an ethical act within a systemic ecology. Structure influences opportunity and cost, but does not erase agency; character matters, but heroic virtue cannot substitute for sound institutions.

**FACT: Regimes.** No form of government is automatically immune. Autocracy may conceal corruption through weak scrutiny; democracy may expose it yet also generate patronage, campaign-finance and capture risks. Regime type affects information, accountability and competition, but outcomes also depend on institutional design, social inequality and norms of office.

**ANALYSIS: Corruption and mass violence.** Corruption is not normally direct physical violence, but large-scale corruption can become structurally violent where diversion of essential resources foreseeably exposes many persons to avoidable deprivation, danger or exclusion. **For the claim:** diffuse victims, cumulative harm, invisibility of causal chains, abuse of institutional power. **Against the claim:** conceptual inflation may erase the distinctive agency and intent involved in physical mass violence. **Verdict:** call corruption "mass violence" only analogically and with a demonstrated harm-chain; otherwise use **structural harm**.

**FACT: Indian institutional illustrations, classified.** The **Prevention of Corruption Act, 1988**, as amended in **2018**, is an **enacted criminal-law framework**. The **Lokpal and Lokayuktas Act, 2013**, created an **institutional accountability framework**. **ANALYSIS:** Neither enactment proves that corruption is ethically solved; implementation, independence, enforcement and public norms remain separate questions.

**ANALYSIS: The remedy principle.** Reduce **monopoly** through competition, plural providers and appeal; bound **discretion** through rules, published criteria, recusal and defined conflicts of interest; defeat **impunity** through transparency, audit, independent investigation and certainty of detection. Add the **ethical limb** - professional ethos and moral education - because rules are applied by persons and every rule leaves a residue of judgment that no design can eliminate.

**ANALYSIS: Why the ethical limb is not decoration.** A purely systemic remedy programme faces a regress: the auditors, investigators and rule-designers are themselves office-holders subject to the same incentives. Institutional design can distribute and check discretion, but it cannot eliminate the final layer at which judgment is exercised, and at that layer only ethos operates. Stating this regress is what makes the "both" answer an argument rather than a hedge.

### Named evidence you can cite

- **The ethical/systemic grid on four axes** **FACT:** - cause, focus, remedy and characteristic failure; the structure for the 2022 stem.
- **The ethical-act-within-a-systemic-ecology position** **ANALYSIS:** - with the two explanatory failures that make the disjunction false: cross-institutional variation defeats pure ethics, cross-individual variation defeats pure



structure.

- **The visibility/incidence distinction ANALYSIS:** - the precise answer to "how far do regimes condition corrupt practice", and the correction of the commonest error on that stem.
- **The three-step analogy test ANALYSIS:** - conditions of violence stated, corruption tested against each, verdict including the partial fit; the structure any "is X a form of Y?" stem requires.
- **Prevention of Corruption Act, 1988 (amended 2018) and Lokpal and Lokayuktas Act, 2013 FACT:** - a criminal-law statute and an institutional-accountability statute respectively, offered as classified legal facts and never as philosophical proof.
- **The monopoly-discretion-impunity remedy principle plus the ethical limb ANALYSIS:** - the generator of the eradication list, with the regress argument that shows why design alone is insufficient.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Corruption is an ethical act within a systemic ecology: structure fixes the opportunity and the price of the wrong without erasing the agency of whoever commits it, which is why a remedy programme must attack monopoly, discretion and impunity simultaneously and must still leave room for professional ethos - because rules are applied by persons, and every rule leaves a residue of judgment that no institutional design can eliminate.

### MUST-WRITE KEYWORDS

opacity · monopoly · discretion · impunity · incentives and institutional equilibrium · ethical act within a systemic ecology · heroic virtue cannot substitute for sound institutions · visibility, cost and form rather than existence · disclosure is not incidence · structural harm · demonstrated harm-chain · conceptual inflation · certainty of detection over severity · residue of judgment

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Corruption is neither a purely ethical failing nor a purely systemic outcome but an ethical act performed within a systemic ecology, and the disjunction offered by the question is false for a statable reason rather than by concession. **Named evidence.** The ethical diagnosis locates the cause in greed, dishonesty and weak integrity, focuses on character and choice, and prescribes moral education and professional ethos; the systemic diagnosis locates it in opacity, monopoly, excessive discretion and impunity, focuses on incentives and institutional equilibrium, and prescribes transparency, audit, competition and accountability. **Analysis.** Each account fails where the other succeeds: a purely ethical explanation cannot say why populations of comparable character behave differently under different institutional designs, and a purely systemic explanation cannot say why individuals occupying identical positions under identical incentives behave differently - so the defensible position is that structure fixes the opportunity and the price of the wrong while agency remains with the person who commits it, and a remedy programme must accordingly attack monopoly, discretion and impunity together, with certainty of detection rather than severity of penalty as the operative lever, since corruption is the paradigm calculated offence by an actor with something to lose. **Qualification.** The systemic limb cannot be completed by design alone, because the auditors, investigators and rule-designers are themselves office-holders subject to the same incentives, so institutional architecture can distribute and check discretion but cannot remove the final layer at which judgment is exercised - which is exactly the residue that professional ethos must occupy, and is why enacted frameworks, however well drafted, settle nothing about implementation, independence or the norms of office.

### Objection -> reply -> residual limit

- **Objection.** FACT: Refusing the ethical/systemic disjunction is a way of avoiding the question. Policy requires a judgement about **priority**: if resources are finite, one must decide whether to invest in integrity training or in audit architecture, and "both matter" gives no guidance whatever. The synthesis is therefore analytically satisfying and practically empty.
- **Reply.** ANALYSIS: The synthesis does generate a priority, and it is not symmetrical. Because structural variables - monopoly, discretion, impunity - determine the **opportunity set** within which character operates, and because ethos is exercised by persons whose incentives those variables shape, structural reform is **prior in the order of intervention** while ethical formation is **indispensable in the residue**. That yields a determinate recommendation: reduce opportunity and raise the probability of detection first, then invest in the ethos required at the irreducible



layer of judgment. The synthesis is not "both equally" but "structure first, ethos where structure cannot reach".

- **Residual limit.** CAUTION: The priority ordering assumes that structural reform is available to the reformer, and in the hardest cases it is not: where corruption is concentrated at the level that designs and enforces the rules, there is no external architect, and the systemic remedy has no purchase. In that case the argument returns to ethos and to political mobilisation - which is an honest admission that the philosophical analysis reaches its limit at the point where the corrupt and the reformer are the same office.

### Examiner traps on this session

1. Answering "systemic or ethical?" with "both are important" and no explanation. The mark is for the reason the disjunction fails, and the reason is the pair of explanatory failures.
2. Concluding that a regime which exposes more corruption is more corrupt. Disclosure is not incidence, and this confusion is the commonest error on the 2020 stem.
3. Asserting the mass-violence analogy because both are harmful and widespread. The conditions for violence must be stated first and corruption tested against each; the disanalogies in directness and intent must be conceded before the verdict.
4. Listing anti-corruption measures without the generating principle. Monopoly, discretion and impunity are the variables; the list is their consequence, and a list without a principle answers an administration question rather than a philosophy one.
5. Using the 1988 or 2013 statutes as evidence that corruption has been addressed. They are classified legal facts; implementation, independence, enforcement and public norms are separate questions.

### Mini recap

Ethical diagnosis: greed and character; remedy moral education. Systemic diagnosis: opacity, monopoly, discretion, impunity; remedy transparency, audit, competition, accountability. Best position: an ethical act within a systemic ecology, defended by the two explanatory failures. Regimes: none immune; autocracy conceals, democracy exposes but generates patronage and capture; regimes condition visibility, cost and form more than existence; disclosure is not incidence. Mass-violence analogy: state the conditions, test, concede directness and intent, verdict of analogical use with a demonstrated harm-chain, otherwise structural harm. Remedies: attack monopoly, discretion, impunity; certainty over severity; ethical limb for the residue of judgment. Two statutes, classified, proving nothing about ethics.

CLOSURE FLOW -- SESSION 17

four owned stems, one session

- > SYSTEMIC OR ETHICAL: refuse the disjunction AND SAY WHY --  
cross-institution variation defeats pure ethics; cross-individual  
variation defeats pure structure
- > REGIMES: condition VISIBILITY, COST and FORM more than  
EXISTENCE; DISCLOSURE IS NOT INCIDENCE
- > MASS VIOLENCE: state conditions -> TEST -> concede directness  
and intent -> ANALOGICAL use only, else STRUCTURAL HARM
- > ERADICATION: monopoly | discretion | impunity + ETHOS for the  
residue; CERTAINTY OF DETECTION over SEVERITY
- > INDIA: PCA 1988/2018 = criminal-law statute; Lokpal 2013 =  
accountability statute; NEITHER settles the ethics

# SESSION 18 - MASS VIOLENCE: MECHANISMS, ARENDT, AND THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY

## The picture first

SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE

- [1] DEHUMANISATION ..... victims are represented as  
CONTAMINANTS, THREATS or NON-PERSONS
- [2] MORAL EXCLUSION ..... ordinary restraints are WITHDRAWN from  
an OUT-GROUP
- [3] DIFFUSION OF ..... each participant treats agency as  
RESPONSIBILITY FRAGMENTED
- [4] OBEDIENCE AND ..... harmful acts are ROUTINISED as  
BUREAUCRACY ROLE-PERFORMANCE
- [5] POLARISATION AND ..... AMBIGUITY and DISSENT are SUPPRESSED  
PROPAGANDA
- [6] SECURITY DILEMMA [!] ... groups interpret PRE-EMPTION as  
NECESSARY SELF-DEFENCE

|  
v

NOTE WHAT THE LIST IMPLIES: mass violence does NOT require exceptional persons. It requires REPRESENTATION, PERMISSION, FRAGMENTATION, ROUTINE, SILENCE and FEAR.

-----  
ARENDT: THE BANALITY OF EVIL -- STATED PRECISELY  
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+-----+  
| IN \*EICHMANN IN JERUSALEM\*, THE "BANALITY OF EVIL" HIGHLIGHTS HOW |  
| EXTRAORDINARY WRONGDOING CAN BE PERFORMED THROUGH CLICHES, |  
| CAREERISM AND FAILURE OF JUDGMENT RATHER THAN DEMONIC DEPTH. |  
+-----+

PRESUPPOSITION: moral responsibility requires REFLECTIVE JUDGMENT,  
not merely CONFORMITY TO ROLE  
OBJECTION ...: "banality" may UNDERSTATE ideology, hatred, initiative  
REPLY ..... Arendt does NOT DENY THE ENORMITY of the evil; she  
warns that ORDINARY INSTITUTIONAL OBEDIENCE can  
become its VEHICLE

[!] CRITICAL CONTROL: banality concerns the \*PSYCHOLOGY OF  
PERPETRATION\*, NOT THE \*DEGREE OF GUILT\*. SAY SO, OR THE POINT WILL  
BE READ AS AN EXCUSE.

=====

THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY -- THE DECISIVE GRID

=====

| KIND                                      | CLAIM                                                                                                        | DEFENS-<br>IBLE?                                                            | ATTACHES<br>TO                                |
|-------------------------------------------|--------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------|-----------------------------------------------|
| CRIMINAL GUILT                            | this person PLANNED,<br>ORDERED, INCITED or<br>COMMITTED the act                                             | YES --<br>the<br>paradigm                                                   | INDIVID-<br>UALS ONLY                         |
| ORGANISATIONAL<br>LIABILITY               | a body with DECISION<br>PROCEDURES and a CHAIN<br>OF COMMAND bears<br>responsibility for what<br>it DECIDED  | YES,<br>where it<br>has<br>GENUINE<br>AGENCY                                | INSTITU-<br>TIONS,<br>COMMANDS,<br>PARTIES    |
| POLITICAL<br>RESPONSIBILITY               | members of a polity<br>bear responsibility for<br>what is done IN THEIR<br>NAME and by THEIR<br>INSTITUTIONS | PARTLY --<br>grounds<br>REPARA-<br>TION,<br>MEMORY,<br>REFORM;<br>NOT GUILT | CITIZENS<br>COLLECT-<br>IVELY                 |
| MORAL RESPONSIB-<br>ILITY FOR<br>OMISSION | BYSTANDERS who could<br>have acted at<br>ACCEPTABLE COST and<br>did not bear SOME<br>responsibility          | YES, but<br>GRADED<br>by<br>knowledge<br>capacity<br>risk                   | INDIVID-<br>UALS, by<br>role and<br>situation |

|                 |                        |           |          |
|-----------------|------------------------|-----------|----------|
| METAPHYSICAL /  | members of a group are | NO --     | REJECTED |
| INHERITED GUILT | guilty because of      | THIS IS   |          |
|                 | ANCESTRY or MEMBERSHIP | THE VERY  |          |
|                 |                        | LOGIC     |          |
|                 |                        | THAT      |          |
|                 |                        | GENERATES |          |
|                 |                        | ATROCITY  |          |

THE CONTROLLING RULE: GUILT IS INDIVIDUAL; \*RESPONSIBILITY\* ADMITS OF COLLECTIVE FORMS. POLITICAL RESPONSIBILITY GROUNDS OBLIGATIONS TO REPAIR, REMEMBER AND REFORM; IT NEVER CONVERTS INTO CRIMINAL GUILT BY MEMBERSHIP. AN ANSWER THAT ASSIGNS GUILT TO A COMMUNITY \*AS SUCH\* HAS REPRODUCED THE PERPETRATOR'S OWN REASONING.

#### RELIGIOUSLY FRAMED VIOLENCE -- THREE DISTINCTIONS

- [1] DOCTRINE vs MOBILISATION -- a tradition's TEXTS and a movement's POLITICAL USE of them are NOT THE SAME OBJECT. Explanation requires ORGANISATION, INCENTIVE, LEADERSHIP, IMPUNITY, PRIOR GRIEVANCE -- not only theology.  
[X] Do NOT derive violence from a religion; do NOT exonerate a movement by pointing to a peaceful text.
- [2] COMMUNAL VIOLENCE vs POGROM vs GENOCIDE -- these differ in STRUCTURE, not merely in SCALE: RECIPROCAL communal conflict | ONE-SIDED attack with OFFICIAL ACQUIESCENCE | destruction of a group AS SUCH with SPECIFIC INTENT. Three categories, three evidentiary requirements.
- [3] IDENTITY AS TARGET vs IDENTITY AS MOTIVE -- victims may be SELECTED by religious identity for INSTRUMENTAL POLITICAL reasons (land, votes, markets, labour). That the MARKER is religious does NOT establish that the MOTIVE is. The REMEDY differs: theological engagement addresses one; ACCOUNTABILITY FOR ORGANISATION AND IMPUNITY addresses the other.
- [X] ANSWER DISCIPLINE: this package names NO community, country, party, government, movement or historical episode as an instance of any of these categories. Answer at the level of CRITERIA.

#### PREVENTION -- INSTITUTIONS THAT PRESERVE PERSONHOOD

INDEPENDENT INFORMATION | PROTECTION OF DISSENT | UNIVERSAL CIVIC STATUS | ACCOUNTABILITY FOR COMMAND | REFUSAL OF DEHUMANISING CATEGORIES  
[!] Education and memory matter, but MORAL EXHORTATION WITHOUT INSTITUTIONAL CHECKS IS INADEQUATE.

*Caption: the six mechanisms and what their existence implies, Arendt's thesis with its presupposition, objection, reply and the critical control that prevents it from reading as an excuse, the five-kind responsibility grid with the controlling rule, the three distinctions required for religiously framed violence with the answer discipline, and the five institutional conditions of prevention.*

### In plain words

Mass violence is large-scale violence against populations produced through organised coercion, collective mobilisation or cascading participation. It includes, but is wider than, genocide.

ANALYSIS: The six mechanisms are worth learning together, because their combined implication is the philosophically interesting one: **mass violence does not require exceptional persons**. It requires that victims be represented as contaminants, threats or non-persons; that ordinary restraints be withdrawn from an out-group; that each participant be able to treat his own agency as a fragment; that harmful acts be routinised as role-performance; that ambiguity and dissent be suppressed; and, on a contested reading, that groups come to interpret pre-emption as necessary self-defence.

**Arendt's** "banality of evil" makes exactly this point about the perpetrator's psychology: extraordinary wrongdoing can be performed through clichés, careerism and failure of judgment rather than demonic depth. Her presupposition is that moral responsibility requires **reflective judgment** and not merely conformity to role. ANALYSIS: The objection is that "banality" may understate ideology, hatred and initiative; the reply is that Arendt does not deny the enormity of the evil

but warns that ordinary institutional obedience can become its vehicle. ANALYSIS: **The critical control must be stated: banality concerns the psychology of perpetration, not the degree of guilt.** Say so, or the point will be read as an excuse - and it will be marked as one.

ANALYSIS: Then the grid that decides every collective-responsibility stem. "Collective responsibility" names at least five different claims, and conflating them produces both bad philosophy and dangerous politics. **Criminal guilt** attaches to individuals only. **Organisational liability** attaches to bodies with decision procedures and a chain of command. **Political responsibility** attaches to citizens collectively and grounds duties of reparation, memory and reform - not guilt. **Moral responsibility for omission** attaches to individuals by role and situation, graded by knowledge, capacity and risk. **Metaphysical or inherited guilt** - guilt by ancestry or membership - is rejected outright, because it is the very logic that generates atrocity.

ANALYSIS: The controlling rule is one sentence: **guilt is individual; responsibility admits of collective forms.** An answer that assigns guilt to a community as such has reproduced the perpetrator's own reasoning, and saying that explicitly is worth a mark on its own.

### The doctrine, exactly

FACT: **Mass violence** is large-scale violence against populations produced through organised coercion, collective mobilisation or cascading participation. It includes, but is wider than, genocide.

FACT: **The mechanisms.** Dehumanisation: victims are represented as contaminants, threats or non-persons. Moral exclusion: ordinary restraints are withdrawn from an out-group. Diffusion of responsibility: each participant treats agency as fragmented. Obedience and bureaucracy: harmful acts are routinised as role-performance. Polarisation and propaganda: ambiguity and dissent are suppressed. ANALYSIS: Security dilemma: groups interpret pre-emption as necessary self-defence.

FACT: **Arendt.** In *Eichmann in Jerusalem*, the "banality of evil" highlights how extraordinary wrongdoing can be performed through clichés, careerism and failure of judgment rather than demonic depth. **Presupposition:** moral responsibility requires reflective judgment, not merely conformity to role. **Objection:** "banality" may understate ideology, hatred and initiative. **Reply:** FACT: Arendt does not deny the enormity of the evil; she warns that ordinary institutional obedience can become its vehicle. ANALYSIS: **Control:** banality concerns the psychology of perpetration, not the degree of guilt.

FACT: **Three positions on responsibility.** Only individuals are responsible - preserves personal culpability, ignores institutions and command structures. Groups are collectively responsible - captures organised agency and inherited benefit, punishes persons merely by membership. **Differentiated responsibility** - assigns liability by role, knowledge, capacity and contribution; factually demanding. ANALYSIS: The strongest view is differentiated: leaders, planners, direct perpetrators, enablers, bystanders and resisters do not bear identical responsibility.

FACT: **The five kinds of collective responsibility.** Criminal guilt (individuals only; defensible; the paradigm). Organisational liability (institutions, commands, parties; defensible where the body has genuine agency). Political responsibility (citizens collectively; partly defensible - grounds reparation, memory and reform, not guilt). Moral responsibility for omission (individuals by role and situation; defensible but graded by knowledge, capacity and risk). WRONG: Metaphysical or inherited guilt (rejected - this is the very logic that generates atrocity).

ANALYSIS: **The controlling rule.** Guilt is individual; responsibility admits of collective forms. Political responsibility grounds obligations to repair, remember and reform; it never converts into criminal guilt by membership.

ANALYSIS: **Religiously framed violence - three distinctions.** (1) **Doctrine against mobilisation:** a tradition's texts and a movement's political use of them are not the same object; explaining violence requires organisation, incentive, leadership, impunity and prior grievance, not only theology. WRONG: Do not derive violence from a religion, and do not exonerate a movement by pointing to a peaceful text. (2) **Communal violence, pogrom and genocide** differ in structure, not merely in scale - reciprocal communal conflict, one-sided attack with official acquiescence, and destruction of a group *as such* with specific intent are three distinct categories with different evidentiary requirements. (3) **Identity as target against identity as motive:** victims may be selected by religious identity for entirely instrumental political reasons - control of land, votes, markets or labour - and that the marker is religious does not establish that the motive is; the appropriate remedy differs, since theological engagement addresses one and accountability for organisation and impunity addresses the other.

ANALYSIS: WRONG: **Answer discipline.** This package names **no** community, country, party, government, movement or historical episode as an instance of any of these categories. Where a stem invites contemporary comment, answer at the level of **criteria** - what would have to be shown, and by what evidence - rather than by identifying actors.

FACT: **Prevention.** Philosophical prevention requires institutions that preserve personhood: independent information, protection of dissent, universal civic status, accountability for command, and refusal of dehumanising categories.

ANALYSIS: Education and memory matter, but moral exhortation without institutional checks is inadequate.

### Named evidence you can cite

- **Arendt, Eichmann in Jerusalem\*** FACT: - catastrophic wrongdoing produced by ordinary functionaries acting without independent thought, within bureaucratic routines and euphemism; with the control that banality concerns psychology and not degree of guilt.
- **Arendt, The Origins of Totalitarianism\*** FACT: - cited by title as part of the same source trail for the analysis of organised domination.
- **The six mechanisms** FACT: - dehumanisation, moral exclusion, diffusion of responsibility, obedience and bureaucracy, polarisation and propaganda, and the contested security dilemma.
- **The five-kind collective-responsibility grid** FACT: - with the controlling rule that guilt is individual while responsibility admits collective forms; the single most valuable move on any mass-violence stem.
- **The three distinctions for religiously framed violence** ANALYSIS: - doctrine against mobilisation, the three structural categories, and target against motive; with the criteria-level answer discipline.
- **The five prevention conditions** FACT: - independent information, protection of dissent, universal civic status, accountability for command, refusal of dehumanising categories.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Guilt is individual; responsibility admits of collective forms - organisational liability where a body has genuine decision procedures, political responsibility grounding duties of reparation, memory and reform, and graded responsibility for omission - and an answer that converts any of these into guilt by membership has reproduced the perpetrator's own reasoning, which is precisely the reasoning that made the atrocity possible.

### MUST-WRITE KEYWORDS

dehumanisation · moral exclusion · diffusion of responsibility · routinised role-performance · suppression of dissent · banality concerns psychology, not degree of guilt · reflective judgment against conformity to role · differentiated responsibility · criminal guilt · organisational liability · political responsibility · omission · inherited guilt rejected · doctrine against mobilisation · identity as target against identity as motive

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Responsibility for mass violence must be differentiated by role, knowledge, capacity and contribution, because the alternatives - locating it exclusively in individuals or attributing it to groups as such - fail in opposite directions. **Named evidence.** The mechanisms of participation show why: dehumanisation and moral exclusion prepare the withdrawal of ordinary restraint, diffusion of responsibility lets each participant treat his agency as a fragment, bureaucratic obedience routinises harmful acts as role-performance, and propaganda suppresses the ambiguity that would otherwise permit dissent - which is the setting in which Arendt's account of wrongdoing performed through cliché, careerism and failure of judgment applies, on the presupposition that responsibility requires reflective judgment rather than conformity to role. **Analysis.** Differentiation is made precise by distinguishing five claims that the phrase "collective responsibility" conceals: criminal guilt, which attaches to individuals who planned, ordered, incited or committed; organisational liability, which attaches to bodies possessing genuine decision procedures and a chain of command; political responsibility, which attaches to citizens and grounds duties of reparation, memory and institutional reform without becoming guilt; graded responsibility for omission, which attaches to those who could have acted at acceptable cost; and metaphysical or inherited guilt, which must be rejected because it is the very logic that generates atrocity. **Qualification.** Arendt's thesis concerns the psychology of perpetration and not the degree of guilt, so it mitigates nothing; the differentiated view is factually demanding and may be unavailable where evidence has been destroyed; and where violence is framed in religious terms three further distinctions are required - between a tradition's texts and a movement's use of them, between reciprocal communal conflict, one-sided attack with official acquiescence and destruction of a group as such, and between identity as the marker by which victims are selected and identity as the motive for which they are attacked.

### Objection -> reply -> residual limit

- **Objection.** FACT: Political responsibility is incoherent. Either it entails something a citizen must do, in which case it is a duty and duties presuppose some fault or benefit that grounds them, or it entails nothing, in which case calling it responsibility is rhetoric. Citizens who opposed a policy, who were children when it was executed, or who had no effective voice cannot owe reparation for it merely by holding a passport.
- **Reply.** ANALYSIS: The category is grounded not in fault but in **membership in an ongoing institutional order** whose acts were performed in the members' name and whose benefits and liabilities they continue to inherit. This is a familiar structure elsewhere: a corporation's obligations survive changes of personnel, and successor governments honour predecessor debts, without anyone claiming that current members did the original act. What follows is a duty to repair, to preserve accurate memory and to reform the institutions that made the wrong possible - not to accept blame, and not to be punished.
- **Residual limit.** CAUTION: The reply is weakest exactly where the objection is strongest: for citizens who had **no effective voice** in the order that acted in their name. If political responsibility tracks membership in a polity whose institutions one could not influence, then it attaches to precisely those who were least able to prevent the wrong, and it may fall most heavily on the already-marginal. An answer should concede this, and confine the claim to duties that can be discharged collectively through institutions rather than extracted individually.

### Examiner traps on this session

1. Inferring collective guilt from group membership. This is the rejected fifth category, and it is the perpetrator's own reasoning.
2. Using Arendt's banality thesis as mitigation. It concerns the psychology of perpetration, not the degree of guilt, and an answer that omits the control will be read as excusing.
3. Calling every episode of mass violence a pogrom or a genocide. The three categories differ in structure and carry different evidentiary requirements.
4. Deriving violence from a religion, or exonerating a movement by citing a peaceful text. Doctrine and mobilisation are different objects.
5. Naming a community, country, party, government, movement or episode. This package names none, and answers at the level of criteria.
6. Offering education and memory as sufficient prevention. Moral exhortation without institutional checks is inadequate; the five institutional conditions are the answer.

## Mini recap

Definition: large-scale violence through organised coercion, collective mobilisation or cascading participation; wider than genocide. Six mechanisms implying that no exceptional persons are required. Arendt: cliché, careerism and failure of judgment; presupposition of reflective judgment; objection about ideology; reply about obedience as vehicle; control that psychology is not degree of guilt. Three positions; differentiated responsibility strongest. Five kinds: criminal guilt, organisational liability, political responsibility, omission, inherited guilt rejected. Controlling rule: guilt individual, responsibility collective in form. Three religious-framing distinctions and criteria-level discipline. Five prevention conditions; exhortation without checks is inadequate.

CLOSURE FLOW -- SESSION 18

how do ORDINARY people participate in ATROCITY?

- > MECHANISMS: dehumanisation | moral exclusion | diffusion |  
bureaucratic routine | propaganda | security dilemma [?]
  - > ARENDT: cliché, careerism, failure of JUDGMENT -- psychology,  
NOT degree of guilt
  - > GRID: criminal guilt (individuals) | organisational liability  
(bodies with decision procedures) | political responsibility  
(reparation, memory, reform -- NOT guilt) | omission (graded) |  
INHERITED GUILT -- REJECTED
  - > RULE: GUILT IS INDIVIDUAL; RESPONSIBILITY ADMITS COLLECTIVE  
FORMS
  - > RELIGIOUS FRAMING: doctrine != mobilisation | communal !=  
pogrom != genocide | target != motive
  - > PREVENTION: information | dissent | universal civic status |  
command accountability | refusal of dehumanising categories
-



# SESSION 19 - GENOCIDE: LEMKIN, THE 1948 CONVENTION, AND THE DESTRUCTION OF A GROUP AS SUCH

## The picture first

HOW THE CONCEPT WAS CONSTRUCTED -- AND WHAT WAS LOST IN ADOPTION

```
=====
1944  LEMKIN, *AXIS RULE IN OCCUPIED EUROPE* [SCHOLARLY WORK]
      coins GENOCIDE from Greek *genos* (race, tribe) + Latin
      *-cide* (killing)
      |
      | LEMKIN'S CONCEPTION: a COORDINATED PLAN OF DIFFERENT
      | ACTIONS aiming at the DESTRUCTION OF THE ESSENTIAL
      | FOUNDATIONS OF THE LIFE OF A GROUP, with the aim of
      | ANNIHILATING THE GROUP ITSELF
      | TARGETS INCLUDE: political and social institutions,
      | culture, language, national feeling, religion, economic
      | existence, personal security, liberty, health, dignity
      | -- KILLING BEING ONE METHOD AMONG SEVERAL
      v
1948  GENOCIDE CONVENTION [INTERNATIONAL INSTRUMENT]
      SPECIFIED ACTS + INTENT TO DESTROY, IN WHOLE OR IN PART, A
      NATIONAL, ETHNICAL, RACIAL or RELIGIOUS GROUP, *AS SUCH*
      |
      v
1951  ENTERS INTO FORCE [dated legal fact -- adoption and entry
      into force are DIFFERENT EVENTS]
```

```
+=====+
| THE PRECISION THE EXAMINER REWARDS |
| THE CONVENTION IS *NARROWER* THAN LEMKIN'S CONCEPTION. |
| [X] Do NOT assert that the Convention adopts Lemkin's |
| conception IN FULL. |
| [X] POLITICAL GROUPS ARE *NOT* AMONG THE PROTECTED CATEGORIES. |
| [X] Do NOT extend the protected categories beyond the FOUR |
| NAMED. |
+=====+
```

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LEMKIN'S ARGUMENT IN SIX STEPS -- WHY A NEW CATEGORY WAS NEEDED

-----

- [1] existing legal categories addressed wrongs done to INDIVIDUALS
- [2] but some wrongs are directed at a person \*BECAUSE OF\* MEMBERSHIP, and aim at the GROUP'S CONTINUED EXISTENCE AS SUCH
- [3] a group's existence is sustained not only by the LIVES of its members but by its INSTITUTIONS, LANGUAGE, TRANSMISSION and SHARED LIFE
- [4] destroying those FOUNDATIONS destroys the GROUP even where MANY INDIVIDUALS SURVIVE
- [5] therefore a DISTINCT CATEGORY is required, whose defining element is the \*INTENT TO DESTROY THE GROUP AS SUCH\*
- [6] the wrong is accordingly IRREDUCIBLE to the AGGREGATE of the individual murders that may compose it

|

v

PRESUPPOSITION [!]: groups have a MORALLY SIGNIFICANT EXISTENCE that is NOT EXHAUSTED by the aggregate of their members' interests -- a claim that must be ARGUED, since INDIVIDUALIST moral theories DENY it and would locate the entire wrong in the murders.

-----

FOUR NEIGHBOURING CONCEPTS -- DISTINGUISHED BY FEATURE, NOT SCALE

-----

| CONCEPT                 | DISTINCTIVE FEATURE                                                                       |
|-------------------------|-------------------------------------------------------------------------------------------|
| MASS VIOLENCE           | SCALE and COLLECTIVE PATTERN; NO single fixed legal INTENT requirement                    |
| GENOCIDE                | SPECIAL INTENT to DESTROY A PROTECTED GROUP, wholly or partly                             |
| CRIMES AGAINST HUMANITY | specified acts as part of a WIDESPREAD or SYSTEMATIC ATTACK against a CIVILIAN POPULATION |

|           |                                                  |
|-----------|--------------------------------------------------|
| WAR CRIME | serious violation CONNECTED TO ARMED<br>CONFLICT |
|-----------|--------------------------------------------------|

UPSC TEST: \*NOT EVERY MASSACRE IS LEGALLY GENOCIDE.\* THE SPECIFIC DESTRUCTIVE INTENT MATTERS.

WHY GENOCIDE IS A DISTINCTIVE MORAL WRONG -- FOUR REASONS

- [1] victims are attacked NOT ONLY AS INDIVIDUALS but AS MEMBERS of a group MARKED FOR DESTRUCTION
- [2] CULTURAL and GENERATIONAL CONTINUITY is targeted
- [3] the perpetrator CLAIMS POWER TO DECIDE WHICH HUMAN PLURALITY MAY EXIST
- [4] INDIVIDUAL KILLING and COLLECTIVE ANNIHILATORY PURPOSE ARE JOINED

*Caption: the construction of the concept across three dates with the narrowing at adoption, Lemkin's six-step argument with the presupposition individualist theories deny, the four neighbouring concepts distinguished by feature rather than scale, and the four reasons the wrong is distinctive.*

### In plain words

Genocide is the one printed term in this clause with no directly owned question in the 2018-2025 cycle, and it is also the one where a factual error is most likely and most costly. The way to prepare it is by construction rather than by illustration.

ANALYSIS: The term was coined by the jurist **Raphael Lemkin** in *Axis Rule in Occupied Europe* (1944), from the Greek *genos* - race or tribe - and the Latin *-cide*, killing. Lemkin's campaigning was central to the adoption of the **1948 Convention**, which entered into force in **1951**.

ANALYSIS: Here is the conceptual claim, and it is where most answers go wrong: **Lemkin did not define genocide as mass killing**. He conceived it as a **coordinated plan of different actions aiming at the destruction of the essential foundations of the life of a group**, with the aim of annihilating the group itself. On his account the targets include political and social institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health and dignity - killing being one method among several.

The argument is worth having in six steps. Existing legal categories addressed wrongs done to individuals. But some wrongs are directed at a person **because of** membership, and aim at the group's continued existence as such. A group's existence is sustained not only by the lives of its members but by its institutions, language, transmission and shared life. Destroying those foundations destroys the group even where many individuals survive. Therefore a distinct category is required, whose defining element is the intent to destroy the group as such. And the wrong is accordingly irreducible to the aggregate of the individual murders that may compose it.

ANALYSIS: **Then the precision the examiner rewards**. The Convention's definition requires the specific intent to destroy a national, ethnical, racial or religious group, in whole or in part. Lemkin's broader conception of destruction of a group's cultural and institutional foundations is **narrower in the adopted text** than in his own writing, and **political groups are not among the protected categories**. WRONG: Do not assert that the Convention adopts Lemkin's conception in full, and do not extend the protected categories beyond the four named. These are the two errors that will cost most on a first genocide question.

### The doctrine, exactly

FACT: **The Convention definition**. Under the **Convention on the Prevention and Punishment of the Crime of Genocide (1948)**, genocide consists of specified acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such.

FACT: **Lemkin's coinage**. The term **genocide** was coined by the jurist **Raphael Lemkin**, in *Axis Rule in Occupied Europe* (1944), from the Greek *genos* (race, tribe) and the Latin *-cide* (killing). His campaigning was central to the adoption of the **1948 Convention**, which entered into force in **1951**.

FACT: **Lemkin's conceptual claim**. He did not define genocide as mass killing. He conceived it as a coordinated plan of different actions aiming at the destruction of the essential foundations of the life of a group, with the aim of annihilating the group itself. The targets include political and social institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health and dignity - killing being one method among several.

ANALYSIS: **What the Convention did and did not adopt.** FACT: The Convention requires specific intent to destroy a national, ethnical, racial or religious group, in whole or in part. ANALYSIS: Lemkin's broader conception is **narrower in the adopted text** than in his own writing, and **political groups are not among the protected categories**.  
WRONG: Do not assert that the Convention adopts Lemkin's conception in full; do not extend the protected categories beyond the four named.

ANALYSIS: **The presupposition.** Groups have a morally significant existence that is not exhausted by the aggregate of their members' interests - a claim that must be argued rather than assumed, since individualist moral theories deny it and would locate the entire wrong in the murders.

FACT: **The four neighbouring concepts.** **Mass violence:** scale and collective pattern; no single fixed legal intent requirement. **Genocide:** special intent to destroy a protected group, wholly or partly. **Crimes against humanity:** specified acts as part of a widespread or systematic attack against a civilian population. **War crime:** serious violation connected to armed conflict. ANALYSIS: **The test:** not every massacre is legally genocide; the specific destructive intent matters.

FACT: **Why genocide is a distinctive moral wrong.** Victims are attacked not only as individuals but as members of a group marked for destruction; cultural and generational continuity is targeted; the perpetrator claims power to decide which human plurality may exist; individual killing and collective annihilatory purpose are joined.

FACT: **Responsibility, obedience and denial.** "Following orders" does not erase agency where an order is manifestly criminal. Command responsibility, bureaucratic contribution and propaganda raise different evidentiary and moral questions, but role never automatically cancels judgment. ANALYSIS: Denial continues the wrong by attacking memory, testimony and the standing of survivors. ANALYSIS: Yet legal guilt must remain individualised rather than inherited by later members of a population.

### The two objections and their replies

ANALYSIS: **Objection 1 - the redundancy objection.** If all the individual killings are already the gravest of crimes, "genocide" adds a label rather than a distinct wrong. **Reply.** FACT: The additional wrong is the destruction of a **form of shared life** - a language, a tradition of transmission, a community of memory - which is a loss to the survivors, to those never born into it, and arguably to humanity, and which is not captured by counting murders. This is precisely what the extra category exists to name.

ANALYSIS: **Objection 2 - the proof objection.** The specific-intent requirement makes genocide nearly impossible to prove, so the concept protects perpetrators. **Reply.** ANALYSIS: This is a real evidentiary problem, and it has been met by inferring intent from a pattern of conduct. ANALYSIS: It is nonetheless a limit to be stated honestly rather than dissolved, and it explains why "crimes against humanity" often does the practical work.

ANALYSIS: **Objection 3 - the protected-group limitation.** The Convention does not list political and many social groups. **Reply.** FACT: That is a limitation of the **legal definition**; broader moral condemnation can be expressed through crimes against humanity without casually rewriting the treaty term.

ANALYSIS: WRONG: **Answer discipline.** Name no country, community, government or episode. Cite the 1948 Convention as a dated international instrument, Lemkin's 1944 work as a dated scholarly source, and argue the philosophy separately.

### Named evidence you can cite

- **Lemkin, Axis Rule in Occupied Europe (1944)** FACT: - the coinage and the original conception of genocide as a coordinated plan against the essential foundations of a group's life.
- **The Convention on the Prevention and Punishment of the Crime of Genocide (1948), in force 1951** FACT: - specified acts plus specific intent against four protected categories; narrower than Lemkin's conception and omitting political groups.
- **The six-step Lemkin argument with its presupposition** ANALYSIS: - from the individualism of existing categories to the irreducibility of the wrong, and the group-existence claim that individualist theories deny.
- **The four-concept boundary grid** FACT: - mass violence, genocide, crimes against humanity, war crime, distinguished by feature rather than by scale.
- **The four reasons genocide is a distinctive moral wrong** FACT: - membership-targeting, continuity, the claim to decide which plurality may exist, and the joining of killing to annihilatory purpose.

## ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

What distinguishes genocide is not the number of the dead but the intent to destroy a group as such, and the wrong is therefore irreducible to the aggregate of the murders that compose it: what is destroyed is a form of shared life - a language, a tradition of transmission, a community of memory - whose loss falls on survivors, on those never born into it, and arguably on humanity.

## MUST-WRITE KEYWORDS

coordinated plan against the essential foundations of a group's life · killing as one method among several · specific intent · as such · four protected categories · political groups omitted · narrower in the adopted text · irreducible to the aggregate · form of shared life · not every massacre is genocide · intent inferred from a pattern of conduct · denial attacks memory and testimony

## HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** Genocide names a distinct moral and legal wrong that cannot be reduced to the aggregate of the killings that may compose it, because its defining element is the intent to destroy a group as such. **Named evidence.** The term was coined by Lemkin in *Axis Rule in Occupied Europe* in 1944, from the Greek *genos* and the Latin *-cide*, and he conceived it not as mass killing but as a coordinated plan of different actions aiming at the destruction of the essential foundations of a group's life - its institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health and dignity - with killing as one method among several; the 1948 Convention, in force from 1951, then defined it as specified acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such. **Analysis.** The argument for a separate category is that existing legal concepts addressed wrongs done to individuals, whereas some wrongs are directed at persons because of membership and aim at the group's continued existence, and since a group's existence is sustained by its institutions, language and transmission as well as by its members' lives, destroying those foundations destroys the group even where many individuals survive - which is why genocide is distinguished from mass violence by its intent requirement, from crimes against humanity by the object of destruction rather than by scale, and from war crimes by its independence of armed conflict. **Qualification.** The adopted text is narrower than Lemkin's conception and omits political groups from the protected categories, so the treaty term must not be casually extended; the specific-intent requirement creates a genuine evidentiary difficulty that has been met by inferring intent from a pattern of conduct without being dissolved by it; and the whole argument presupposes that groups have a morally significant existence not exhausted by their members' interests, a claim individualist moral theories deny and which must therefore be argued rather than assumed.

## Objection -> reply -> residual limit

- **Objection.** FACT: The group-existence presupposition is metaphysically extravagant and politically dangerous. Treating a group as an entity whose destruction is a wrong over and above the deaths of its members reifies collectives, and reification is exactly the move that perpetrators make when they attack persons as instances of a category rather than as individuals. The concept therefore borrows the perpetrator's ontology.
- **Reply.** ANALYSIS: The presupposition does not require the group to be a substance with interests of its own. It requires only that certain goods - a language with living speakers, a practice with successors, a community of memory - are **irreducibly shared**, so that their destruction is a loss that cannot be redescribed as a sum of individual losses without remainder. That is a claim about the structure of certain goods rather than about the existence of collective persons, and it does not license treating any individual as a mere instance of a category; on the contrary, the wrong consists precisely in the perpetrator's doing so.
- **Residual limit.** CAUTION: The shared-goods reply weakens the objection without closing it, because it leaves open how a shared good is individuated and who may speak for it. Where a group's boundaries and membership are themselves contested - as they frequently are - the concept's application depends on a prior determination that the concept itself does not supply, and that determination is often made by the very actors whose conduct is in question.

### Examiner traps on this session

1. Calling every massacre genocide. The specific destructive intent is decisive, and the boundary against crimes against humanity depends on it.
2. Asserting that the Convention adopted Lemkin's conception in full. It is narrower, and saying otherwise is the single commonest factual error in genocide answers.
3. Extending the protected categories. There are four named - national, ethnical, racial and religious - and political groups are not among them.
4. Merging adoption with entry into force. The Convention was adopted in 1948 and entered into force in 1951; conflating them collapses the chronology.
5. Naming a country, community, government or episode. The Convention and Lemkin's work are cited as dated sources; the philosophy is argued separately.
6. Treating "following orders" as an answer. Role never automatically cancels judgment where an order is manifestly criminal, and command responsibility raises separate evidentiary questions.

### Mini recap

1944 Lemkin coins the term; 1948 Convention adopts a narrower definition; 1951 entry into force. Lemkin: a coordinated plan against the essential foundations of a group's life, killing being one method among several. Convention: specified acts plus specific intent against four protected categories, as such; political groups omitted. Six-step argument to irreducibility; presupposition of morally significant group existence, denied by individualists. Four neighbouring concepts distinguished by feature. Four reasons the wrong is distinctive. Three objections: redundancy, proof, protected-group limitation - each with its reply and residue. No actor is named anywhere.

#### CLOSURE FLOW -- SESSION 19

1944 coinage -> 1948 Convention -> 1951 entry into force  
-> LEMKIN: NOT mass killing but a COORDINATED PLAN against the  
    ESSENTIAL FOUNDATIONS of a group's life  
-> CONVENTION: specified acts + SPECIFIC INTENT + four protected  
    categories + "AS SUCH" -- NARROWER; POLITICAL GROUPS OMITTED  
-> ARGUMENT: individual-focused categories -> membership-directed  
    wrongs -> foundations sustain existence -> destruction without  
    universal killing -> new category -> IRREDUCIBLE wrong  
-> BOUNDARIES: mass violence (no fixed intent) | crimes against  
    humanity (widespread/systematic attack) | war crime (armed  
    conflict)  
-> TRAP: every massacre = genocide | "Convention adopted Lemkin in  
    full" | extending the categories | conflating 1948 and 1951

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# SESSION 20 - CAPITAL PUNISHMENT, THE INTER-SCHOOL DEBATES AND THE INTEGRATED ANSWER SPINE

## The picture first

THE ARGUMENT TREE -- FOUR FOR, SIX AGAINST, AND WHERE EACH LANDS

=====

CAPITAL PUNISHMENT = the state's INTENTIONAL EXECUTION of a CONVICTED offender

WHY IT IS THE HARDEST CASE: punishment becomes IRREVERSIBLE and ELIMINATES THE SUBJECT whose RESPONSIBILITY, REFORM and RIGHTS GROUND PENAL THEORY

| ARGUMENTS FOR                                                                                                                                              | ARGUMENTS AGAINST                                                                                                                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| [1] RETRIBUTION [OK]<br>exceptionally grave culpable killing may DESERVE the gravest proportionate response                                                | [1] FALLIBILITY AND IRREVERSIBILITY [OK]<br>wrongful execution CANNOT BE REPAIRED                                                 |
| [2] DETERRENCE [?]<br>execution MAY deter beyond life imprisonment -- an EMPIRICAL claim that CANNOT BE ASSUMED                                            | [2] HUMAN DIGNITY [OK]<br>the state CONTRADICTS its own condemnation of killing by deliberately extinguishing a RESTRAINED person |
| [3] INCAPACITATION [OK]<br>permanently prevents reoffending -- THOUGH SECURE IMPRISONMENT CAN ALSO INCAPACITATE                                            | [3] DETERRENCE UNCERTAINTY [?] comparative claims are EMPIRICALLY CONTESTED; the argument MUST STATE the uncertainty              |
| [4] PUBLIC AFFIRMATION [!]<br>the penalty MAY EXPRESS the equal value of victims and condemnation of atrocity (an EXPRESSIVE argument -- assess it AS ONE) | [4] UNEQUAL ADMINISTRATION [OK] unequal defence, bias and discretion UNDERMINE PROPORTIONALITY                                    |
|                                                                                                                                                            | [5] FORECLOSURE OF REFORM [OK] execution DENIES the possibility of MORAL TRANSFORMATION                                           |
|                                                                                                                                                            | [6] CRUELTY AND DEATH-ROW PROCESS [!] PROLONGED UNCERTAINTY can ADD SUFFERING BEYOND the formal sentence                          |

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THE 2025 STEM: CAN THE RIGHT TO LIFE BE ABSOLUTE?

THE MARK-BEARING SEQUENCE -- FOUR MOVES, IN THIS ORDER

=====

[1] THE RIGHT TO LIFE IS NOT TREATED AS ABSOLUTE \*EVEN BY ITS DEFENDERS\*: self-defence and necessity are accepted limits. A right can be FUNDAMENTAL WITHOUT BEING EXCEPTIONLESS.

v

[2] SO THE QUESTION IS WHETHER \*CUSTODIAL\* KILLING MEETS THE SAME CONDITIONS. THE CUSTODY DISTINCTION:

| IMMEDIATE DEFENCE                   | EXECUTION                                        |
|-------------------------------------|--------------------------------------------------|
| responds to a PRESENT UNJUST THREAT | FOLLOWS CUSTODY and ADJUDICATION                 |
| no ALTERNATIVE is available in time | LESS FINAL MEANS of INCAPACITATION ARE AVAILABLE |
| NECESSITY is satisfied              | NECESSITY IS NOT SATISFIED                       |

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+-----+
=> LIMITS ON THE RIGHT TO LIFE IN DEFENCE DO *NOT*
    AUTOMATICALLY JUSTIFY CAPITAL PUNISHMENT
    v
[3] THEN THE DESERT AND DETERRENCE ARGUMENTS, EACH ON ITS OWN
    QUESTION (Q1/Q2/Q3), NOT AS A HEAP
    v
[4] THEN FALLIBILITY, UNEQUAL ADMINISTRATION AND THE FORECLOSURE
    OF REFORM -- AND THE CONDITION-SPECIFYING VERDICT
+-----+
| THE STRONGEST ABOLITIONIST CONCLUSION IS *NOT* "ALL RIGHTS ARE |
| ABSOLUTE" BUT: DELIBERATE IRREVERSIBLE KILLING *AFTER CONTROL IS |
| ESTABLISHED* FAILS NECESSITY UNDER CONDITIONS OF FALLIBILITY AND |
| ALTERNATIVE PROTECTION. |
+-----+

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THE KANTIAN TENSION -- WHY BOTH SIDES CLAIM KANT
-----
KANTIAN RETRIBUTIVISM supports punishment ACCORDING TO DESERT and
famously treats MURDER as demanding DEATH
    BUT
the wider KANTIAN COMMITMENT to PERSONS AS ENDS also INTENSIFIES
concern about PROCEDURAL CERTAINTY and INSTRUMENTAL DETERRENCE
    |
    v
[!] A KANTIAN ABOLITIONIST CANNOT SIMPLY CITE DIGNITY. THE ARGUMENT
MUST SHOW *WHY EQUAL RESPECT FORBIDS EXECUTION EVEN WHERE GUILT AND
DESERT ARE ESTABLISHED* -- and the available route is the
IRREVERSIBILITY + FALLIBILITY + UNEQUAL ADMINISTRATION chain, which
attacks the CONDITIONS OF DESERT-TRACKING rather than desert itself.

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THE 2019 STEM: DOES IT WEAKEN SOCIAL JUSTICE? -- THREE VARIABLES
-----
PROPORTIONALITY .. seriousness is NECESSARY but NOT SUFFICIENT;
                    culpability, mitigation, consistency and
                    ALTERNATIVES matter
SOCIAL JUSTICE ... a penalty administered THROUGH UNEQUAL SOCIAL
                    CONDITIONS can MAGNIFY INJUSTICE even if its
                    ABSTRACT RULE IS NEUTRAL
DETERRENCE ..... SEPARATE empirical effectiveness from moral
                    permissibility: an EFFECTIVE deterrent may still
                    VIOLATE RIGHTS, and an INEFFECTIVE one LOSES its
                    utilitarian basis
+ DUFF'S STANDING ARGUMENT (Session 13) is the sharpest available
  link: legitimacy is conditional on the JUSTICE OF THE ORDER

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INDIAN LEGAL ILLUSTRATIONS -- CLASSIFY BEFORE USE
-----
*BACHAN SINGH v. STATE OF PUNJAB* (1980) = SUPREME COURT JUDGMENT
retained capital punishment while formulating the "RAREST OF
RARE" limitation. [X] NOT LEGISLATION.
LAW COMMISSION OF INDIA, REPORT NO. 262, *THE DEATH PENALTY*
(2015) = OFFICIAL ADVISORY REPORT; recommended ABOLITION FOR
ORDINARY CRIMES while EXCLUDING specified TERRORISM-RELATED and
WAR contexts from that recommendation. [X] IT RECOMMENDS; IT
DOES NOT ENACT.
[!] THESE ILLUSTRATE INDIA'S LEGAL COMPROMISE. THEY DO NOT SETTLE
THE MORAL DEBATE OR ESTABLISH DETERRENT EFFECT.

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*Caption: the full argument tree with each claim's evidential status, the four-move mark-bearing sequence for the right-to-life stem built on the custody distinction, the Kantian tension with the only route open to a Kantian abolitionist, the three variables of the social-justice stem, and the two Indian legal facts classified before use.*

### In plain words

Capital punishment is the hardest case in the clause, and the reason is structural rather than emotional. It is the state's intentional execution of a convicted offender, and it is hard because punishment here becomes **irreversible** and because it **eliminates the subject** whose responsibility, capacity for reform and rights grounded penal theory in the first place. Every constraint developed in the preceding nineteen sessions is tested at once.



ANALYSIS: **The arguments for, with their evidential status.** **Retribution:** exceptionally grave culpable killing may deserve the gravest proportionate response. **Deterrence:** execution may deter potential offenders beyond life imprisonment - this is an **empirical claim and cannot be assumed**. **Incapacitation:** execution permanently prevents reoffending, though secure imprisonment can also incapacitate. **Public affirmation:** the penalty may express the equal value of victims and condemnation of atrocity - note that this is an **expressive** argument in Feinberg's sense and must be assessed as one.

ANALYSIS: **The arguments against.** **Fallibility and irreversibility:** wrongful execution cannot be repaired. **Human dignity:** the state contradicts its own condemnation of killing by deliberately extinguishing a restrained person. **Deterrence uncertainty:** comparative claims are empirically contested, and philosophical argument must state that uncertainty. **Unequal administration:** unequal defence, bias and discretion undermine proportionality. **Foreclosure of reform:** execution denies the possibility of moral transformation. **Cruelty and death-row process:** prolonged uncertainty can add suffering beyond the formal sentence.

ANALYSIS: **The right-to-life stem, and the sequence that wins it.** A right can be fundamental without being exceptionless. Self-defence, necessity and the use of proportionate force against an ongoing threat are accepted limits, and even a determined defender of the right to life accepts them. So the question is not whether the right admits limits but whether **custodial killing** meets the same conditions - and it does not. Immediate defence responds to a present unjust threat; execution follows custody and adjudication; less final means of incapacitation are available. Necessity is therefore satisfied in the first case and not in the second, and limits on the right to life in defence do not automatically justify capital punishment.

ANALYSIS: **The conclusion to state, and its precise form.** The strongest abolitionist conclusion is **not** "all rights are absolute" - which is a weak claim, easily refuted, and one no serious rights theorist makes. It is that **deliberate irreversible killing after control is established fails necessity under conditions of fallibility and alternative protection**. That formulation concedes everything that can safely be conceded and still reaches the conclusion.

### **The doctrine, exactly**

FACT: **The philosophical issue.** Capital punishment is the state's intentional execution of a convicted offender. It is the hardest case because punishment becomes irreversible and eliminates the subject whose responsibility, reform and rights ground penal theory.

FACT: **Arguments for.** (1) **Retribution:** exceptionally grave culpable killing may deserve the gravest proportionate response. (2) CAUTION: **Deterrence:** execution may deter potential offenders beyond life imprisonment; this is an empirical claim and cannot be assumed. (3) **Incapacitation:** execution permanently prevents reoffending, though secure imprisonment can also incapacitate. (4) ANALYSIS: **Public affirmation:** the penalty may express the equal value of victims and condemnation of atrocity.

FACT: **Arguments against.** (1) **Fallibility and irreversibility:** wrongful execution cannot be repaired. (2) **Human dignity:** the state contradicts its own condemnation of killing by deliberately extinguishing a restrained person. (3) CAUTION: **Deterrence uncertainty:** comparative claims are empirically contested; philosophical argument must state that uncertainty. (4) **Unequal administration:** unequal defence, bias and discretion undermine proportionality. (5) **Foreclosure of reform:** execution denies the possibility of moral transformation. (6) ANALYSIS: **Cruelty and death-row process:** prolonged uncertainty can add suffering beyond the formal sentence.

FACT: **The Kantian tension.** Kantian retributivism supports punishment according to desert and famously treats murder as demanding death. Yet the wider Kantian commitment to persons as ends also intensifies concern about procedural certainty and instrumental deterrence. ANALYSIS: A Kantian abolitionist cannot simply cite dignity; the argument must show why equal respect forbids execution even where guilt and desert are established.

FACT: **Is the right to life absolute?** A right can be fundamental without being exceptionless. Self-defence, necessity and use of proportionate force against an ongoing threat are structurally different from executing a secured prisoner. **The argument against equivalence:** immediate defence responds to a present unjust threat; execution follows custody and adjudication; less final means of incapacitation are available; therefore limits on the right to life in defence do not automatically justify capital punishment. ANALYSIS: The strongest abolitionist conclusion is not "all rights are absolute" but that **deliberate irreversible killing after control is established fails necessity under conditions of fallibility and alternative protection**.

**FACT: Indian legal illustrations. Bachan Singh v. State of Punjab (1980)** is a Supreme Court judgment that retained capital punishment while formulating the "rarest of rare" limitation. **Law Commission of India, Report No. 262, The Death Penalty (2015)**, is an official advisory report, not legislation or a judgment; it recommended abolition for ordinary crimes while excluding specified terrorism-related and war contexts from that recommendation. **ANALYSIS:** These illustrate India's legal compromise. They do not settle the moral debate or establish deterrent effect.

**FACT: Proportionality, social justice and deterrence. Proportionality:** the seriousness of the offence is necessary but not sufficient; culpability, mitigation, consistency and alternatives matter. **Social justice:** a penalty administered through unequal social conditions can magnify injustice even if its abstract rule is neutral. **Deterrence:** acceptance or rejection must separate empirical effectiveness from moral permissibility; even an effective deterrent may violate rights, and an ineffective one loses its utilitarian basis.

### The inter-school debates, compressed

**FACT: Kant against Bentham.** Why punish: desert for culpable wrong, against prevent future harm. Temporal direction: backward, against forward. Limit: proportional guilt, against utility and least-cost prevention. Main danger: sanctified suffering, against instrumentalising persons.

**ANALYSIS: Retribution against reform.** Retribution protects agency by refusing to treat the offender as a patient only; reform protects dignity by refusing to freeze the person in the past act. A mixed theory can set desert as an upper limit and pursue humane reform within it.

**FACT: Arendt against "monster" theories of evil.** Monster theories place atrocity outside ordinary humanity. Arendt warns that bureaucracy and thoughtlessness make ordinary participation possible. **ANALYSIS:** The two need not be exclusive: ideological hatred and routinised obedience can reinforce each other.

**FACT: Particular loyalty against public impartiality.** Aristotle's insight that friendship and particular bonds matter cannot justify using public office as private property. The ethical task is role-differentiation: personal partiality is legitimate in some domains and corrupt in entrusted public decision.

### The criticisms-and-replies table, for the closing paragraph of any long answer

| Claim                            | Objection                                     | Reply                                                              |
|----------------------------------|-----------------------------------------------|--------------------------------------------------------------------|
| punishment communicates censure  | state-inflicted suffering remains coercive    | censure must be proportionate and rights-bounded                   |
| corruption is ethical            | ignores systemic equilibrium                  | agency and structure are jointly explanatory                       |
| corruption is systemic           | excuses individual choice                     | incentives influence but do not erase responsibility               |
| mass violence is collective      | collective guilt is indiscriminate            | differentiate roles and contribution                               |
| death is proportionate to murder | equivalence repeats the wrong and risks error | retributivists distinguish public justice from private imitation   |
| abolition respects dignity       | may understate victim justice and security    | life punishment must still be proportionate, reviewable and humane |

### Named evidence you can cite

- **Bachan Singh v. State of Punjab (1980)** **FACT:** - a Supreme Court judgment retaining capital punishment with the "rarest of rare" limitation; a classified legal fact, never a philosophical proof.
- **Law Commission of India, Report No. 262, The Death Penalty (2015)** **FACT:** - an official advisory report recommending abolition for ordinary crimes while excluding specified terrorism-related and war contexts; it recommends and does not enact.
- **The custody distinction** **FACT:** - present unjust threat and unavailable alternatives, against post-adjudication control with less final means available; the move on which the whole 2025 stem turns.
- **The necessity-failure formulation** **ANALYSIS:** - deliberate irreversible killing after control is established fails necessity under fallibility and alternative protection; the conclusion that concedes what can be conceded and still holds.

- **The four inter-school debates** FACT: - Kant against Bentham, retribution against reform, Arendt against monster theories, particular loyalty against public impartiality.

### ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The right to life is not treated as exceptionless even by its defenders, since self-defence and necessity are accepted limits; the real question is therefore whether killing a person already in custody satisfies the same conditions - and it does not, because necessity fails where control has been established and less final means of incapacitation remain available.

### MUST-WRITE KEYWORDS

irreversibility · eliminates the subject the theory presupposed · fundamental without being exceptionless · custody distinction · present unjust threat against post-adjudication control · less final means · necessity fails · unequal administration · foreclosure of reform · death-row process · rarest of rare · judgment against advisory report · effectiveness against permissibility

### HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

**Claim.** The right to life cannot be shown to be exceptionless, and it does not need to be: the case against capital punishment succeeds on necessity rather than on absoluteness. **Named evidence.** Even determined defenders of the right accept that proportionate force in self-defence and in necessity may take life, so a right may be fundamental without being exceptionless; and the arguments for execution are four - desert for exceptionally grave culpable killing, a contested deterrent claim, permanent incapacitation, and the expressive affirmation of victims' equal value - while the arguments against are fallibility and irreversibility, dignity, deterrence uncertainty, unequal administration, foreclosure of reform, and the added suffering of prolonged death-row process. **Analysis.** The decisive move is structural rather than rhetorical: immediate defence responds to a present unjust threat with no alternative available in the time available, whereas execution follows custody and adjudication and is applied to a person already controlled, for whom less final means of incapacitation exist - so the necessity that licenses the accepted limits on the right to life is precisely what is absent in the custodial case, and the desert argument, however strong in the abstract, must then be administered through a fallible and unequally resourced process whose errors cannot be corrected. **Qualification.** The conclusion is therefore conditional and not categorical: what fails is deliberate irreversible killing after control has been established, under conditions of fallibility and available alternative protection, so a retentionist who could demonstrate infallible adjudication, equal administration and the unavailability of secure alternatives would face a different argument - and the Indian legal materials, a 1980 Supreme Court judgment articulating the rarest-of-rare limitation and a 2015 advisory Law Commission report recommending abolition for ordinary crimes with specified exclusions, illustrate a legal compromise without settling the moral question or establishing any deterrent effect.

### Objection -> reply -> residual limit

- **Objection.** FACT: The necessity argument proves too little. Necessity is the wrong test for punishment generally: no punishment is "necessary" in the sense that immediate defence is, since the offender is always already in custody when sentence is passed. If necessity in that sense were required, imprisonment would fail it too, and the argument would abolish punishment rather than the death penalty.
- **Reply.** ANALYSIS: The argument does not require necessity as a general condition of punishment; it applies necessity only where the justification offered is **protective**. Where the state defends execution by appeal to incapacitation or public safety, it has invoked a protective rationale, and protective rationales are governed by necessity - which secure imprisonment satisfies at lower cost. Where the state instead defends execution by desert alone, necessity is indeed the wrong test, and the argument shifts to the second chain: fallibility, irreversibility and unequal administration, which attack the **conditions under which desert can be reliably tracked** rather than desert itself.
- **Residual limit.** CAUTION: The two-chain structure leaves a retentionist position standing in principle: a pure desert retentionist who accepts that execution is not protectively necessary, and who claims that the process is sufficiently reliable, has not been refuted but only contradicted on a question of institutional fact. The debate at that point becomes one about the achievable accuracy and equality of criminal process, which philosophy frames but does not settle - and an answer that claims a knock-down argument has overstated what the analysis delivers.

### Examiner traps on this session

1. Arguing that because the right to life has some limits, capital punishment follows. Necessity and the custody distinction block the inference, and this is a listed trap.
2. Treating the 2015 Law Commission report as enacted law. It is advisory, it recommends abolition **for ordinary crimes**, and it expressly excludes specified terrorism-related and war contexts from that recommendation.
3. Treating *Bachan Singh* as legislation. It is a 1980 judgment, and the "rarest of rare" formulation is judicial rather than statutory.
4. Asserting or denying deterrent effect without evidence. It is an empirical controversy, and the philosophical work lies in what follows under uncertainty.
5. Citing dignity as though it settled the Kantian question. Kantian retributivism famously treats murder as demanding death; a Kantian abolitionist must show why equal respect forbids execution even where guilt and desert are established.
6. Presenting abolition as costless. The listed reply concedes that abolition may understate victim justice and security, and that life punishment must still be proportionate, reviewable and humane.

### Mini recap

Definition and why it is hardest: irreversible, and it eliminates the subject the theory presupposed. Four arguments for with evidential status; six against. Right to life: fundamental without being exceptionless; custody distinction; necessity fails after control; the conclusion is a necessity-failure claim, not an absoluteness claim. Kantian tension: desert supports, dignity constrains; the abolitionist route is the reliability chain. Social justice: proportionality is necessary and insufficient; unequal conditions magnify injustice; separate effectiveness from permissibility; Duff's standing argument sharpens it. Indian facts: 1980 judgment, 2015 advisory report - classified, illustrative, not probative. Four inter-school debates and the six-row criticisms table for closing paragraphs.

#### CLOSURE FLOW -- SESSION 20

the IRREVERSIBLE penalty -> every constraint tested at once  
-> FOR: desert [OK] | deterrence [?] | incapacitation [OK, but  
secure imprisonment also incapacitates] | public affirmation [!]  
-> AGAINST: fallibility | dignity | deterrence uncertainty |  
unequal administration | foreclosure of reform | death-row process  
-> RIGHT TO LIFE: fundamental WITHOUT being exceptionless ->  
CUSTODY DISTINCTION -> NECESSITY FAILS after control  
-> CONCLUSION FORM: not "rights are absolute" but IRREVERSIBLE  
KILLING AFTER CONTROL FAILS NECESSITY UNDER FALLIBILITY AND  
ALTERNATIVE PROTECTION  
-> INDIA: Bachan Singh 1980 = JUDGMENT | Law Commission 262 (2015)  
= ADVISORY REPORT -- classify, illustrate, never prove  
-> TRAP: limits-therefore-permitted | report as law | judgment as  
legislation | undeclared empirical claims | dignity as a  
shortcut | costless abolition

## BASIC MCQS / REMEDIATION

### 32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

**Answer placement:** each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

**Coverage:** the twenty-four core questions run across the whole printed clause - *Crime and Punishment* : *Corruption, Mass Violence, Genocide, Capital Punishment* - together with the three justifying questions and the mixed or limiting theory, the two-directional non-identity of legal crime and moral wrong, the five criminalisation filters, the four-element attribution ladder and the justification/excuse contrast, the seven conditions of responsible punishment and the responsibility/causation hinge, the three positions on freedom and the compatibilist working standard, the six theory families and the three justificatory logics, limiting against maximising retributivism and the four-axis contrast with revenge, the four deterrent presuppositions with Beccaria's calibration point and the Q2/Q3 failures, incapacitation and the four bounding conditions on reform, ordinal against cardinal proportionality and the five-factor juvenile grid, Feinberg's expressive differentia, Duff's communicative account and the standing argument, Foucault's genealogy

with its compulsory caveat, restorative justice with Braithwaite's two kinds of shaming, corruption as the misuse of entrusted power with its five independent wrongs, and the particularism-universalism tension with its role-boundary remedy. The eight remedial drills attack the errors that cost marks every year on this clause: answering the systemic-or-ethical stem with an unexplained "both", confusing disclosure with incidence on the regime stem, asserting the mass-violence analogy instead of testing it, conflating the five kinds of collective responsibility, using Arendt's banality thesis as mitigation, asserting that the 1948 Convention adopted Lemkin's conception in full, misclassifying the Indian statutes, judgment and advisory report, and claiming parts that belong to another owner.

### MCQ 1. Locating an objection rather than reciting it

A script argues that deterrence must be rejected because it would permit the conviction of a person known to be innocent whenever the social benefit was large enough. On the account developed in this package, what has the script got right, and what has it left out?

- A. The objection is sound but misdirected, because deterrence is a theory about the general aim of the institution and objections to particular sentences cannot touch a claim pitched at that level of generality.
- B. The objection is correctly stated but unlocated: it defeats deterrence at the question of liability while leaving untouched its plausible answer to the question of why the institution should exist.
- C. The objection is unsound because rule-utilitarian constraints of legality and proof remove the possibility entirely, so no version of the deterrent theory is exposed to it at any point.
- D. The objection is sound and complete, because a theory that fails at any one of the three justifying questions has been refuted and no further location of the failure is required.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: deterrence is offered as an answer to all three questions unless a side-constraint is added, so it is exposed at liability precisely because it does not confine itself to the general aim.
- **B:** Correct: the objection lands at Q2, and saying so preserves the theory's plausible Q1 answer and shows exactly which repair - a desert side-constraint - the mixed theory supplies.
- **C:** Incorrect: the rule-utilitarian reply makes the protection contingent on the social costs of discovery rather than removing the exposure, which is why the counter-reply about secret injustice retains its force.
- **D:** Incorrect: failure at one question is a reason to constrain a theory at that question, not to discard its answer to the others, and the two-level theory is built on exactly that observation.

**Examiner trap 1:** Reciting the punishing-the-innocent objection without locating it at the liability question makes it look like a general complaint about consequentialism, and an unlocated objection cannot show which repair the mixed theory is offering.

### MCQ 2. The non-identity of legal crime and moral wrong

A candidate writes that crime and moral wrong come apart because unjust laws sometimes criminalise innocent conduct. What has been omitted, and why does the omission matter for this clause in particular?

- A. The observation that legal validity is established by enactment rather than by merit, which is the positivist thesis the candidate has inadvertently attacked instead of using.
- B. The observation that sociological accounts explain deviance through power relations, which is needed because the criminal law's categories are socially produced rather than discovered.
- C. The observation that criminalisation must satisfy a proportionality filter, which is needed because criminal sanction is the heaviest instrument a state possesses short of war.
- D. The observation that grave moral wrongs may escape legal definition, which is needed because much of the harm involved in corruption and structural deprivation lies precisely there.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: the candidate's statement is consistent with the positivist thesis rather than an attack on it, and adding that observation would not supply the missing second direction.
- **B:** Incorrect: the sociological account is a third perspective on what "crime" means and does not by itself state the direction in which grave wrongs escape legal definition.
- **C:** Incorrect: proportionality constrains the criminalisation decision but says nothing about wrongs that were never criminalised, which is the omitted direction.
- **D:** Correct: the non-identity runs both ways, and the undefined-wrong direction is the one that the corruption and structural-harm material in this clause actually requires.

**Examiner trap 2:** Stating only the unjust-law direction of the non-identity looks complete and is not, and it removes in advance the resource an answer needs to explain why diffuse institutional harm can be a grave wrong without being a defined offence.

### MCQ 3. Which criminalisation filter corruption strains

On the account taught here, which filter does corruption pass with most difficulty on a purely harm-based reading, and what supplies the answer?

- A. The public-wrong filter, and the answer is that corruption repudiates a norm constitutive of entrusted office, so the community's standing to condemn does not depend on a measurable loss.
- B. The culpability filter, and the answer is that officials act with knowledge and intention, so the fault element is satisfied even where the resulting damage is impossible to quantify.
- C. The legality filter, and the answer is that anti-corruption offences are defined in advance by statute, so fair notice is satisfied and the conduct is knowable as prohibited.
- D. The rights filter, and the answer is that citizens hold a right to impartial administration, so the conduct violates a right even where no individual can show a set-back to interests.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the harm filter is weakest for corruption because victims are diffuse, and the public-wrong filter carries the case by grounding the offence in the betrayal of entrusted office rather than in quantified damage.
- **B:** Incorrect: culpability is generally easy to establish for corrupt acts and is therefore not the filter under strain; the difficulty is about the nature of the wrong rather than the fault element.
- **C:** Incorrect: legality is satisfied wherever offences are defined in advance, so it is not the point of difficulty, and satisfying it would not show that the conduct is the community's business.
- **D:** Incorrect: this restates the conclusion in the language of rights without explaining why the community may condemn, and the rights filter also asks whether prohibiting the conduct would violate a right.



**Examiner trap 3:** Defending the criminalisation of corruption by pointing to enacted statutes answers the legality filter and not the public-wrong filter, which leaves the philosophically interesting question - why this is the community's business at all - entirely unaddressed.

#### MCQ 4. Justification and excuse deny different things

Why does the difference between a justification and an excuse matter for persons other than the defendant?

- A. Because a justification is decided by the court while an excuse is assessed by the sentencing authority, so the two answers are evaluated at different stages of the same proceedings.
- B. Because a justification removes the fault element while an excuse removes the external act, so the two answers defeat different elements of the four-step attribution ladder.
- C. Because those who assist a justified act may share its justification, whereas an excused wrong remains a wrong, so resistance to it remains permissible for those affected by it.
- D. Because a justification requires proportionate force while an excuse requires impaired capacity, so the two answers rest on evidence of quite different kinds and reliability.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: this describes a procedural allocation rather than the conceptual difference, and it does not explain any consequence for third parties.
- **B:** Incorrect: an excuse does not remove the external act; it concedes the wrongful act and denies or reduces the actor's answerability for it.
- **C:** Correct: the third-party consequence is the sharpest illustration that the two answers deny different things - wrongfulness in one case, answerability in the other.
- **D:** Incorrect: this is broadly true of the standard examples but concerns evidence rather than the structure of the two defences, and again yields no third-party consequence.

**Examiner trap 4:** Treating self-defence and duress as two versions of the same answer merges justification with excuse, and the merger silently removes the third-party consequence that shows why the distinction was worth drawing.

#### MCQ 5. The hinge between responsibility and causation

What does the claim that responsibility is not identical with causal contribution establish, and in which direction does it do its most distinctive work in this clause?

- A. It establishes that attribution runs in two directions, and its most distinctive work is done where an office-holder is answerable for a culpable omission that caused nothing directly.
- B. It establishes that causation is irrelevant to liability, and its most distinctive work is done where a participant's contribution to a harm cannot be traced through the chain of events.
- C. It establishes that intention is the only fault element, and its most distinctive work is done where a participant acted deliberately but contributed only a fragment of the eventual harm.
- D. It establishes that liability requires proof of a duty, and its most distinctive work is done where a bystander watched a harm occur without any prior relationship to the victim.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the hinge runs both ways - contribution without control, and culpable omission by a duty-bearer - and the omission direction is what reaches enablers, supervisors and office-holders.
- **B:** Incorrect: causation remains one of the four attribution elements; the claim is that it is insufficient, not that it is irrelevant.
- **C:** Incorrect: the fault ladder runs from intention through knowledge and recklessness to negligence, and the hinge concerns the relation between causing and being answerable rather than the selection of a fault element.



- **D:** Incorrect: the duty requirement is what makes an omission chargeable at all, so a bystander with no relevant duty is precisely the case the requirement excludes.

**Examiner trap 5:** Using the hinge only in the exculpatory direction - contribution without control - halves its value, because the culpable-omission direction is what makes differentiated responsibility reach beyond those who struck the blow.

**MCQ 6. Which condition of responsible punishment carries the unequal-administration objection**

Among the seven conditions of responsible punishment, which one does the objection from unequal defence, bias and unreviewed discretion attack, and why is that condition not merely procedural?

- A. Fair procedure and reliable proof, because an unreliable evidential process cannot establish the culpability that the sanction is supposed to track in any particular case.
- B. Equal application without status bias, because a penalty whose abstract rule is neutral can still be applied so that severity tracks status, wealth or group rather than conduct.
- C. A competent and impartial authority, because an authority that lacks independence cannot separate the public administration of justice from the pursuit of private vengeance.
- D. Proportionality between wrong, responsibility and sanction, because a scale that is unequally applied ceases to rank offences consistently against one another across cases.

**Answer: B.**

**Option explanations:**

- **A:** Incorrect: reliability of proof is a distinct condition attacked by a different objection, namely fallibility, and the unequal-administration objection can hold even where each individual finding is reliable.
- **B:** Correct: the objection is precisely that neutral rules can be administered unequally, which is what condition 7 forbids, and it is the foundation of the social-justice argument against capital punishment.
- **C:** Incorrect: impartiality of the authority is condition 5 and carries the standing argument; unequal defence and resourcing operate even before an impartial tribunal.
- **D:** Incorrect: proportionality is the relation the objection ultimately disturbs, but the condition directly attacked is the requirement of equal application.

**Examiner trap 6:** Reading conditions 5 and 7 as administrative boxes rather than as normative requirements throws away the two strongest later moves in the clause - Duff's standing argument and the unequal-administration objection to the death penalty.

### MCQ 7. The working penal standard under determinism

What does the compatibilist working standard require a court to establish, and what does it deliberately not require?

- A. It requires proof that the accused could have acted otherwise in exactly the same circumstances, and it does not require any account of the causal history that produced his conduct.
- B. It requires proof that no causal explanation of the accused's conduct is available, and it does not require that the accused be shown to have understood the relevant prohibition.
- C. It requires proof that the accused was free from social disadvantage, and it does not require any inquiry into whether he was subject to coercion at the time of the act.
- D. It requires that the accused could understand the relevant reasons and control his conduct adequately without responsibility-defeating coercion, and it does not require metaphysical free will.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: alternative possibilities are the libertarian requirement, and the compatibilist standard was formulated precisely to avoid depending on them.
- **B:** Incorrect: the standard is compatible with a full causal explanation of the conduct, which is what distinguishes it from libertarianism.
- **C:** Incorrect: social disadvantage bears on mitigation and on standing rather than on the threshold of responsible agency, and coercion is expressly part of the standard.
- **D:** Correct: understanding of relevant reasons, adequate control and the absence of responsibility-defeating coercion or incapacity are the three components, and metaphysical freedom is expressly not required.

**Examiner trap 7:** Announcing that determinism destroys responsibility and then continuing to argue about proportionate desert is a self-contradiction the examiner will see immediately, and the working standard exists to make the concession without the contradiction.

### MCQ 8. What the six-family grid adds that a three-theory list cannot

Which pair of penal families is habitually omitted from a three-theory presentation, and which two arguments in this clause become unavailable once they are omitted?

- A. Prevention and expression, and the arguments lost are the incapacitation case for execution and the reason wrongful conviction is a grave wrong even after compensation.
- B. Restitution and denunciation, and the arguments lost are the victim's claim to repair and the community's interest in the public naming of serious offences.
- C. Deterrence and rehabilitation, and the arguments lost are Beccaria's calibration point and the four bounding conditions that make reform compatible with dignity.
- D. Retribution and restoration, and the arguments lost are the desert ceiling on severity and the mechanism by which reintegrative shaming reduces reoffending.

**Answer: A.**

#### Option explanations:

- **A:** Correct: prevention and expression are the two omitted families, and their omission removes the incapacitation argument at issue in the capital-punishment debate and Feinberg's unrefundable-condemnation point.
- **B:** Incorrect: restitution is treated within the restorative family and denunciation is the expressive family, so this pair names one omitted family and one that is not separately omitted.
- **C:** Incorrect: deterrence and rehabilitation are precisely two of the three families that a three-theory list normally does include.
- **D:** Incorrect: retribution is the third family always included, and restoration is usually mentioned even where it is treated superficially.

**Examiner trap 8:** Presenting punishment theory as retribution, deterrence and reform makes an answer oscillate between two positions that were never answering the same question, and it removes the family that explains why a wrongful conviction cannot be cured by money.

**MCQ 9. Restitution against restorative justice**

Why does the distinction between restitution and restorative justice matter on a victim-centred stem?

- A. Because restitution is available only in property offences while restoration extends to offences against the person, so the two apply to non-overlapping categories of wrongdoing.
- B. Because restitution is imposed by a court while restoration is agreed between the parties, so the two differ in the authority from which the eventual outcome derives.
- C. Because restitution is one possible outcome while restoration is a participatory process, so an answer that merges them cannot explain what the victim gains beyond compensation.
- D. Because restitution is backward-looking while restoration is forward-looking, so the two occupy opposite positions on the direction axis of the six-family classification.

**Answer: C.**

**Option explanations:**

- **A:** Incorrect: restitution is not confined to property offences, and the distinction being drawn is between an outcome and a process rather than between categories of offence.
- **B:** Incorrect: restitution may be agreed and restorative outcomes may be judicially supervised, so the source of authority does not track the distinction.
- **C:** Correct: restitution returns value or repairs loss as one outcome, while restorative justice is the process of acknowledgement, participation and reintegration inside which such an outcome may occur.
- **D:** Incorrect: both are classified as relational in the six-family grid, and restitution is not placed on the backward-looking side of it.

**Examiner trap 9:** Writing that restorative justice "means the offender compensates the victim" reduces a process to one of its possible outcomes and loses the participation, acknowledgement and reintegration that the theory was constructed to deliver.

**MCQ 10. Which retributivism the human-rights stem is testing**

A stem asks whether the retributive theory of punishment is against human rights. What must the answer distinguish before it can be answered at all?

- A. Kantian retributivism, which grounds punishment in the offender's rational agency, from Hegelian retributivism, which grounds it in the restoration of an objectively violated order of right.
- B. Ordinal retributivism, which ranks offences by seriousness, from cardinal retributivism, which fixes the severity of the entire scale and therefore determines how harsh punishment may become.
- C. Backward-looking retributivism, which answers the question of liability, from forward-looking retributivism, which answers the question of why the institution of punishment exists at all.
- D. Maximising retributivism, which reads desert as a command to inflict suffering, from limiting retributivism, which reads it as a necessary condition and a ceiling on what may be inflicted.

**Answer: D.**

**Option explanations:**

- **A:** Incorrect: the Kant-Hegel difference is real but does not decide the rights question, since both can be read in a maximising or a limiting way.
- **B:** Incorrect: the ordinal/cardinal distinction concerns proportionality and supplies the ceiling's anchor, but it is not the distinction between two readings of desert.
- **C:** Incorrect: there is no forward-looking version of retributivism; the label describes a backward-looking family, so the contrast is misdescribed.

- **D:** Correct: on the maximising reading desert commands infliction and can license excess, while on the limiting reading it forbids punishing the innocent and forbids exceeding culpability.

**Examiner trap 10:** Treating "retributivism" as a single position on the human-rights question guarantees that the answer addresses neither version, which is precisely the failure the stem is constructed to detect.

### MCQ 11. Retribution and revenge

On which axis does the contrast between retribution and revenge do the most work in answering the "two wrongs do not make a right" objection?

- A. The temporal axis, since revenge responds immediately to the injury while retribution follows adjudication and therefore allows the passions of the moment to subside before sanction.
- B. The limit axis, since revenge has no intrinsic limit while retribution carries a ceiling fixed by culpability, so retribution constrains the response that revenge leaves unconstrained.
- C. The severity axis, since revenge is characteristically more severe than retribution and therefore produces outcomes that a proportionate public system would never impose on an offender.
- D. The publicity axis, since revenge is carried out privately while retribution is carried out openly and can therefore be observed, recorded and criticised by the wider community.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: delay is a feature of institutional process rather than of the retributive principle, and revenge may also be deferred without becoming retribution.
- **B:** Correct: the objection assumes that retribution simply adds a second harm, and the ceiling fixed by culpability is what shows the response to be constrained rather than merely reciprocal.
- **C:** Incorrect: severity is a contingent comparison and revenge may be mild, so this does not distinguish the two as kinds.
- **D:** Incorrect: publicity is a feature of the agent axis rather than a separate one, and a public act of vengeance would remain vengeance.

**Examiner trap 11:** Defending retribution as "an eye for an eye" concedes the identification with revenge in the first line, after which the ceiling, the impartial agent and the generality requirement can no longer be used.

### MCQ 12. Beccaria's calibration point

What follows for penal policy from the claim that certainty and promptness matter more than severity, and which presupposition of the deterrent argument does it develop?

- A. It follows that penalties should be raised until offending declines, developing the presupposition that persons respond to the perceived costs attached to prohibited conduct.
- B. It follows that punishment should be abolished where prevention fails, developing the presupposition that preventive benefits must exceed direct and collateral harms.
- C. It follows that escalation is usually the wrong lever, developing the presupposition that sanctions must be known and sufficiently certain if they are to influence conduct.
- D. It follows that only calculated offences may be punished, developing the presupposition that less harmful alternatives to criminal sanction have been shown to be inadequate.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: this reverses the point, since the calibration claim is precisely that raising severity is a less effective instrument than raising the probability of detection.
- **B:** Incorrect: the calibration point concerns which lever to use rather than whether to punish, and it does not depend on the net-benefit presupposition.

- **C:** Correct: certainty and promptness bear directly on whether sanctions are known and reliably applied, which is the presupposition that fails where enforcement is rare or arbitrary.
- **D:** Incorrect: the point does not restrict the class of punishable offences, though it does explain why deterrence is strongest for calculated ones.

**Examiner trap 12:** Asserting that severe penalties obviously deter states an empirical claim without evidence and simultaneously contradicts the calibration point, which is the deterrent tradition's own correction of that assumption.

### MCQ 13. The two structural failures of pure deterrence

At which of the three justifying questions does pure deterrence permit escalation without ceiling, and what repairs it?

- A. At the general justifying aim, and it is repaired by adding a communicative account under which punishment addresses the offender as a citizen rather than as an object of management.
- B. At the question of liability, and it is repaired by requiring reliable proof of guilt so that no person may be punished except for a voluntary act attributable to him under a known law.
- C. At the general justifying aim, and it is repaired by conceding that the deterrent effect of any given penalty is an empirical controversy on which no philosophical claim should rest.
- D. At the question of amount, and it is repaired by a desert side-constraint that fixes an ordinal ranking under a cardinal ceiling, so severity cannot rise with every marginal preventive gain.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: the general justifying aim is where deterrence performs well, and the communicative account addresses the manner of punishment rather than its quantum.
- **B:** Incorrect: liability is deterrence's other failure, but the failure described in the stem - escalation without ceiling - is a failure of severity.
- **C:** Incorrect: empirical uncertainty is a separate discipline the clause imposes, and acknowledging it does not supply a ceiling on severity.
- **D:** Correct: escalation without ceiling is a Q3 failure, and the desert side-constraint supplies the missing ceiling through ordinal ranking and a cardinal anchor.

**Examiner trap 13:** Locating both of deterrence's failures at liability collapses two distinct defects into one and conceals the fact that the ceiling on severity has to come from a different source than the prohibition on punishing the innocent.

#### MCQ 14. Why the rule-utilitarian reply is not decisive

What is the precise weakness of the reply that legality and due process protect long-run utility and therefore forbid punishing the innocent?

- A. It makes the prohibition contingent on the social costs of discovery, so an injustice that remained secret, or that public opinion welcomed, would escape the objection while remaining an injustice.
- B. It makes the prohibition depend on the existence of written constitutional guarantees, so a legal system without entrenched rights would have no reason to observe the protection at all.
- C. It makes the prohibition rest on the offender's consent to the penal system, so a person who rejects the authority of the state could not coherently be protected by the same argument.
- D. It makes the prohibition follow from the definition of punishment, so the reply is circular and cannot be used against an opponent who defines punishment differently at the outset.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the protection is grounded in the erosion of trust, which is an effect of exposure, so an undiscovered or popular injustice removes the justification while leaving the wrong intact.
- **B:** Incorrect: rule-utilitarian reasoning does not depend on entrenched guarantees and could recommend such guarantees on its own grounds.
- **C:** Incorrect: consent plays no role in the rule-utilitarian defence, which appeals to aggregate consequences rather than to agreement.
- **D:** Incorrect: the reply is an appeal to consequences rather than a definitional move, so the charge of circularity does not apply to it.

**Examiner trap 14:** Accepting the rule-utilitarian reply as decisive skips the counter-reply, and the counter-reply is where the marks are, because it shows that rights which hold only when the violation might be discovered are not functioning as rights.

#### MCQ 15. What makes the reformatory theory compatible with dignity

A stem asks whether the reformatory theory of punishment is in tune with human dignity. What converts the answer from an endorsement into an argued position?

- A. The observation that reform addresses ignorance, addiction, trauma, exclusion and distorted incentives, which shows that it engages the causes of offending rather than merely its symptoms.
- B. The observation that reform is forward-looking while retribution is backward-looking, which shows that the two families answer different questions and need not be treated as rivals at all.
- C. The four bounding conditions - proportionality, consent where possible, review and rights - which answer the objection that compulsory treatment can pathologise dissent and become indefinite.
- D. The observation that persons are more than their worst act, which shows that a punishment foreclosing all future membership treats a human being as exhausted by a single episode of conduct.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: this is part of the theory's content rather than its answer to the paternalism objection, and stating it leaves the objection standing.
- **B:** Incorrect: the direction contrast classifies the families and does not address whether reformatory intervention respects the person it acts upon.
- **C:** Correct: the objection is that therapeutic rationales can become indefinite and coercive, and the four bounding conditions are the reply that makes the dignity claim defensible.
- **D:** Incorrect: this is the first step of the dignity argument itself, so citing it restates the claim under challenge rather than defending it.

**Examiner trap 15:** Answering the dignity stem with an unconditional yes leaves the paternalism objection unanswered, and the marks in that question are carried entirely by the conditions under which the yes holds.

**MCQ 16. Why incapacitation cannot justify execution on its own terms**

The incapacitation argument for capital punishment is defeated without denying that execution incapacitates. How?

- A. By showing that incapacitation is a forward-looking rationale and that forward-looking rationales are inadmissible at the question of liability, where only desert may operate as a criterion.
- B. By showing that secure imprisonment achieves the same protective end, so the necessity that a protective rationale must satisfy is not met by the more final of the two available means.
- C. By showing that the offender's future dangerousness cannot be predicted reliably, so the factual premise on which any incapacitative sentence rests is unavailable in the individual case.
- D. By showing that incapacitation removes the desert ceiling, so a system built upon it may detain a person for longer than the seriousness of the original wrong could ever have warranted.

**Answer: B.**

**Option explanations:**

- **A:** Incorrect: forward-looking rationales are admissible at the general justifying aim, and the objection here concerns the choice of means rather than the admissibility of the rationale.
- **B:** Correct: a protective rationale is governed by necessity, and necessity fails once a less final means achieves the same protective end.
- **C:** Incorrect: predictive unreliability is a genuine difficulty for incapacitative sentencing generally, but it is not the argument that defeats execution specifically.
- **D:** Incorrect: this is the reason incapacitation cannot stand alone as a general theory, not the reason it fails to justify execution when imprisonment is available.

**Examiner trap 16:** Answering the incapacitation argument by denying that execution prevents reoffending concedes an obviously false claim, whereas the necessity route concedes the effect and denies that the means was required.

**MCQ 17. The two proportionality questions**

Why does the observation that a uniformly doubled penalty scale remains perfectly ranked matter for the theory of punishment?

- A. Because it shows that ordinal proportionality places no ceiling on severity, so the anchor for the scale as a whole must come from constraints on what may be done to a person at all.
- B. Because it shows that cardinal proportionality is impossible to establish, so proportionality claims should be confined to the relative ranking of offences against one another.
- C. Because it shows that desert intuitions are unreliable, so the entire proportionality requirement should be replaced by a forward-looking assessment of preventive necessity.
- D. Because it shows that severity is irrelevant to justice, so a system may set its penalty levels wherever administrative convenience and available resources happen to dictate.

**Answer: A.**

**Option explanations:**

- **A:** Correct: doubling preserves the ranking, which demonstrates that ordinal proportionality is silent about the level of the scale and that the cardinal anchor must be supplied externally.
- **B:** Incorrect: the difficulty of anchoring the scale is a reason to seek the anchor in dignity and humane treatment rather than to abandon the cardinal question.
- **C:** Incorrect: ordinal intuitions are the more reliable part of desert reasoning, so the observation does not impugn desert generally.
- **D:** Incorrect: the observation shows that ranking alone is insufficient, not that severity is morally indifferent, which would abandon proportionality altogether.



**Examiner trap 17:** Treating ordinal ranking as the whole of proportionality leaves an answer unable to say why a uniformly brutal scale is objectionable, and it is exactly the gap that limiting retributivism has to fill from outside desert.

**MCQ 18. The juvenile stem and the three-term relation**

Why is adjusting a juvenile's sentence for developmental capacity an application of the proportionality principle rather than an exception to it?

- A. Because proportionality is a legal rather than a moral requirement, and legal systems universally provide separate procedures and sentencing frameworks for young offenders.
- B. Because prospects of reform are stronger in the young, and proportionality must take account of the future conduct that a sentence is expected to influence in the individual case.
- C. Because procedural reliability is weaker where the accused is young, and a sentence resting on unreliable findings cannot be proportionate to anything that has actually been established.
- D. Because proportionality holds between wrong, responsibility and sanction, so reducing the responsibility term alters the proportionate sanction without weakening the principle at all.

**Answer: D.**

**Option explanations:**

- **A:** Incorrect: this appeals to institutional practice rather than to the structure of the principle, and it cannot show that the adjustment is required rather than merely customary.
- **B:** Incorrect: prospects of reform are a distinct fourth factor and belong to a forward-looking rationale rather than to the proportionality relation itself.
- **C:** Incorrect: procedural reliability is the fifth factor and is genuinely independent, but it concerns the evidential basis rather than the calculation of proportion.
- **D:** Correct: the relation has three terms, so a change in the responsibility term changes the proportionate sanction as a matter of applying the principle correctly.

**Examiner trap 18:** Accepting the quoted principle that severity should track seriousness and then inferring a severe sentence for a grave juvenile offence treats a three-term relation as though it had two terms, which is the inference the stem is built to catch.

**MCQ 19. Feinberg's differentia**

What does Feinberg identify as the difference between a punishment and a mere penalty, and what step in the argument forces that conclusion?

- A. The identity of the imposing authority, forced by the observation that criminal courts and administrative bodies exercise different kinds of jurisdiction over those who appear before them.
- B. The authoritative condemnation punishment carries, forced by the observation that severity cannot be the differentia because some penalties are heavier than some punishments.
- C. The involuntary character of punishment, forced by the observation that penalties may be discharged by payment whereas a criminal sentence must be undergone by the offender himself.
- D. The public record punishment creates, forced by the observation that convictions are registered and disclosed whereas administrative penalties leave no comparable lasting trace.

**Answer: B.**

**Option explanations:**

- **A:** Incorrect: the same authority may impose both kinds of hardship, so the identity of the imposing body cannot carry the distinction.
- **B:** Correct: the argument turns on the point that severity cannot be the differentia, which forces the conclusion that the difference is symbolic and therefore conceptual.
- **C:** Incorrect: fines are punishments and are discharged by payment, so this does not track the distinction being drawn.

- **D:** Incorrect: the record is a consequence of condemnation rather than its ground, and administrative penalties may also be recorded.

**Examiner trap 19:** Saying that punishment "sends a message to society" gestures at the expressive account without supplying its criterion, and without the criterion none of the four things the account uniquely explains can be derived.

#### MCQ 20. Standing rather than causation

Why is Duff's standing argument stronger, on a social-justice stem, than the claim that poverty causes crime?

- A. Because it is supported by a wider range of evidence, whereas the causal claim depends on contested findings that vary considerably between societies and across periods.
- B. Because it applies to every offender rather than only to the deprived, whereas the causal claim is confined to a subset of offenders and cannot generalise beyond them.
- C. Because it is a claim about the authority of the accuser rather than about the determination of conduct, so the reply that many deprived persons do not offend is simply irrelevant to it.
- D. Because it concedes the offender's responsibility rather than denying it, so it cannot be accused of excusing wrongdoing and therefore avoids the strongest objection to mitigation arguments.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: the standing argument does not rest on empirical evidence at all, so describing it as better supported misstates its type.
- **B:** Incorrect: the standing argument applies precisely where the polity has denied a particular person the conditions of citizenship, so it is not general in that way.
- **C:** Correct: the argument is normative and concerns whether this accuser may accuse, which is untouched by the observation that deprivation does not determine conduct.
- **D:** Incorrect: the standing argument does leave responsibility intact, but the decisive advantage is its immunity to the empirical reply rather than its rhetorical safety.

**Examiner trap 20:** Substituting the poverty slogan for the standing argument converts an unanswerable normative point into an empirical claim that can be dismissed in a single sentence.

#### MCQ 21. The caveat that must accompany Foucault

What is the correct placement of Foucault in a punishment answer, and what is the precise reason for it?

- A. The critical paragraph, because he offers a genealogy of penal power rather than a justification, and his strongest result is that reformatory rhetoric can accompany intensified control.
- B. The introductory paragraph, because his historical account establishes the context within which every modern theory of punishment must be situated before it can be evaluated.
- C. The justificatory paragraph, because his analysis of discipline supplies a fourth rationale for punishment alongside retribution, deterrence and rehabilitation in contemporary conditions.
- D. The concluding paragraph, because his account of panopticism demonstrates that all penal institutions ultimately fail, which entails that no justification of punishment can succeed.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the account is genealogical rather than normative, and its most valuable use is to qualify the reformatory claim by showing that stated aims must be judged through techniques.
- **B:** Incorrect: placing him first suggests that his history frames the normative debate, whereas his analysis presupposes rather than supplies normative criteria.
- **C:** Incorrect: treating the analysis as a fourth theory of justification is the category error the caveat exists to prevent.

- **D:** Incorrect: this attributes a normative conclusion he does not draw and turns a contested functional thesis into a demonstration.

**Examiner trap 21:** Attaching panopticism to a named contemporary technology, database or programme converts an analytical model into an unsupported empirical assertion about an actual practice, which this package makes nowhere.

### MCQ 22. Braithwaite's mechanism

Why does Braithwaite hold that stigmatising shaming is criminogenic while reintegrative shaming is regulatory?

- A. Because stigmatising shaming is administered publicly while reintegrative shaming occurs privately, so the two differ in the audience before which disapproval is expressed to the offender.
- B. Because stigmatising shaming is imposed by the state while reintegrative shaming is expressed by families and communities, so the two differ in the source from which disapproval issues.
- C. Because stigmatising shaming is disproportionate while reintegrative shaming is proportionate, so the two differ in the severity of the burden that disapproval imposes on the offender.
- D. Because stigmatising shaming severs the bonds that make disapproval matter and creates outcast identities, while reintegrative shaming preserves those bonds and offers a route back.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: both kinds may be expressed publicly or privately, and the audience is not what makes the difference in the mechanism.
- **B:** Incorrect: state processes may shame reintegratively and communities may stigmatise, so the source of the disapproval does not track the distinction.
- **C:** Incorrect: severity is not the criterion, since the distinction turns on what is condemned and whether reacceptance is available.
- **D:** Correct: the mechanism is that informal disapproval regulates only where bonds survive it, so severing bonds destroys the regulatory effect and produces outcast identities instead.

**Examiner trap 22:** Praising reintegrative shaming without stating its presupposition - that the offender values inclusion and that the community will reaccept him - omits precisely the condition that fails for already-excluded groups.

### MCQ 23. Why corruption is wrong in five ways rather than one

What does the independence of the five wrongs of corruption allow an answer to establish?

- A. That corruption is best analysed as a species of theft, since the diversion of entrusted resources is present in every one of the five wrongs identified in the account.
- B. That corruption requires a criminal sanction rather than a civil remedy, since each of the five wrongs independently satisfies the harm filter on criminalisation.
- C. That corruption is a public wrong even in cases where no identifiable person can be shown to be measurably worse off as a result of the transaction complained of.
- D. That corruption is more serious than most offences against the person, since a single corrupt act violates five distinct moral requirements at the same moment.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: several species of corruption, such as favouritism and regulatory capture, involve no diversion of resources at all.
- **B:** Incorrect: the account does not settle the choice of sanction, and the harm filter is precisely the one that corruption strains.

- **C:** Correct: where the harm-based objection is weak because the transaction produced no measurable loss, breach of trust and the displacement of public rules still hold independently.
- **D:** Incorrect: counting violated requirements does not establish comparative gravity, and the account makes no such ranking claim.

**Examiner trap 23:** Giving a single reason why corruption is wrong leaves an answer defenceless against the case where the bribe merely accelerated a decision that would have been taken anyway, which is where the trust and rule-of-law wrongs do all the work.

#### MCQ 24. The particularism-universalism tension, characterised precisely

What is the most accurate characterisation of the tension that corrupt practices reveal between particularistic and universalistic normative standards?

- A. A conflict between two rival moralities, one grounded in kinship and community and the other in impartial reason, of which only the second is genuinely defensible in public life.
- B. A category error of role executed for advantage, in which a norm valid within one domain is imported into an office that is governed by criteria excluding it.
- C. A failure of moral education, in which office-holders have not internalised the impartial standards that their positions require them to apply to those who come before them.
- D. A conflict between tradition and modernity, in which inherited obligations of kinship survive into institutional settings designed on the assumption that they had disappeared.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: particularistic obligations are genuine within their own domain, so treating them as a defeated rival morality misdescribes both sides of the tension.
- **B:** Correct: both norms are valid in their proper domains, and corruption consists in acting on a legitimate particular loyalty inside a role governed by universal public standards.
- **C:** Incorrect: this reduces a structural tension to an individual deficiency and cannot explain why the tension is described as inherent.
- **D:** Incorrect: the tension does not depend on any historical narrative, and it arises wherever office-holders remain members of families and communities.

**Examiner trap 24:** Agreeing with the quoted statement without adding the domain qualification produces assent rather than argument, and a *do you agree* stem is scored on the grading of the position rather than on its direction.

#### Remedial drills - eight errors that cost marks every year

### MCQ 25. Remedial - refusing a disjunction with a reason

A script answers "is corruption a systemic issue or an ethical issue?" by writing that both matter. What must be added for the refusal of the disjunction to count as an argument?

- A. A statement that structure and agency are jointly explanatory in every area of social life, which establishes that the disjunction is false as a general methodological principle.
- B. A statement that transparency, audit, competition and accountability are more effective remedies than moral education, which establishes a practical priority between the two limbs.
- C. A statement that the Prevention of Corruption Act and the Lokpal and Lokayuktas Act address the systemic limb, which establishes that institutional remedies are already available.
- D. A statement of the two explanatory failures: pure ethics cannot explain variation across institutions, and pure structure cannot explain variation across individuals in identical positions.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: a general methodological slogan asserts the conclusion instead of arguing for it in this case, which is exactly what the examiner is looking for.
- **B:** Incorrect: this settles an ordering of remedies without showing why the diagnostic disjunction itself fails.
- **C:** Incorrect: enacted frameworks are legal facts and do not establish anything about the correct diagnosis of the wrong.
- **D:** Correct: the disjunction fails because each account leaves a specific explanatory residue that only the other can supply, and naming the two residues is the argument.

**Examiner trap 25:** Writing "both are important" is the sentence that signals no position has been taken, and it is indistinguishable from the answers of candidates who have not understood either diagnosis.

### MCQ 26. Remedial - disclosure is not incidence

Why is it an error to conclude that a regime which exposes more corruption is thereby more corrupt?

- A. Because regime type conditions the visibility, cost and form of corruption more than its existence, so a higher rate of disclosure may reflect stronger scrutiny rather than more wrongdoing.
- B. Because autocratic regimes suppress information entirely, so no comparison between regime types can ever be made on the basis of the disclosures each of them happens to produce.
- C. Because democratic regimes generate patronage and campaign-finance risks, so their higher disclosure rates are offset by structural vulnerabilities that autocracies do not share at all.
- D. Because corruption is defined by the misuse of entrusted power, so its incidence can only be measured by the number of offices held rather than by the number of cases reported.

**Answer: A.**

#### Option explanations:

- **A:** Correct: exposure is a function of scrutiny, and confusing the disclosure rate with the incidence rate is the standard error on the regime stem.
- **B:** Incorrect: this overstates the position into a claim that no comparison is ever possible, which the account does not assert.
- **C:** Incorrect: democratic vulnerabilities are real and separately noted, but they do not explain why disclosure must not be read as incidence.
- **D:** Incorrect: this proposes an unusable measure and does not address the inferential error the question identifies.

**Examiner trap 26:** Ranking regimes by the volume of reported scandal converts a measure of institutional openness into a measure of institutional corruption, and it will read as a failure to notice how the evidence was produced.

### MCQ 27. Remedial - testing an analogy rather than asserting it

What is the correct structure for answering whether corruption is a form of mass violence?

- A. Assert the analogy on the ground that both produce widespread harm, then support it with the observation that the victims of large-scale corruption are numerous though unidentified.
- B. State the necessary conditions for violence, test corruption against each, concede the disanalogies in directness and intent, and reach a verdict permitting only analogical use with a demonstrated harm-chain.
- C. Deny the analogy on the ground that corruption involves no physical force, then conclude that the language of violence should never be extended to institutional or economic wrongdoing.
- D. Reframe the question as one about structural harm, then argue that the concept of violence is too contested for any determinate answer to be given about a case of this kind.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: asserting the analogy from shared harmfulness is precisely the move the question is designed to catch, since it supplies no test.
- **B:** Correct: the conditions must be stated first so that corruption can be tested against each, and the verdict must include the partial fit rather than a flat answer either way.
- **C:** Incorrect: flat denial ignores the genuine structural-violence case where diversion of essential resources foreseeably exposes many persons to deprivation.
- **D:** Incorrect: retreating to indeterminacy declines the question, and the account supplies a determinate verdict with a stated condition.

**Examiner trap 27:** An "is X a form of Y?" stem is scored on whether the necessary conditions for Y were stated before X was tested, and an answer that reaches a verdict without stating them has asserted rather than argued.

### MCQ 28. Remedial - five claims hidden in one phrase

Which characterisation of political responsibility is correct, and what must never be inferred from it?

- A. It attaches to institutions with decision procedures and grounds their liability for what they decided; it must never be inferred that individual officers within them are personally guilty.
- B. It attaches to bystanders who could have acted at acceptable cost; it must never be inferred that responsibility is equal regardless of knowledge, capacity and the risk that action involved.
- C. It attaches to citizens collectively and grounds duties of reparation, memory and reform; it must never be inferred that criminal guilt has thereby been established by membership.
- D. It attaches to those who planned, ordered, incited or committed the acts; it must never be inferred that others in the same organisation share the same degree of criminal culpability.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: this describes organisational liability, which is a different one of the five kinds.
- **B:** Incorrect: this describes moral responsibility for omission, which attaches to individuals by role and situation.
- **C:** Correct: political responsibility attaches to citizens collectively, is partly defensible, and grounds reparation, memory and reform without ever converting into guilt by membership.
- **D:** Incorrect: this describes criminal guilt, which is the paradigm case and attaches to individuals only.

**Examiner trap 28:** Conflating political responsibility with criminal guilt reproduces the perpetrator's own reasoning, since guilt by membership is the very logic that makes atrocity thinkable in the first place.

### MCQ 29. Remedial - what the banality thesis does and does not claim

How must Arendt's banality thesis be qualified when it is used in a mass-violence answer?

- A. By noting that it applies only to bureaucratic perpetrators, so that participants who acted from ideological conviction fall outside its scope and require an entirely separate explanation.
- B. By noting that it concerns the psychology of perpetration and not the degree of guilt, so that it explains how ordinary participation is possible without reducing anyone's responsibility.
- C. By noting that it was advanced in a single work about a single trial, so that its generalisation to other cases of organised violence remains speculative and should be presented as such.
- D. By noting that it presupposes reflective judgment as a condition of responsibility, so that participants incapable of such judgment cannot be held responsible for what they did.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: the thesis is not confined to bureaucrats, and the objection about ideology is answered rather than accommodated by restricting the scope.
- **B:** Correct: without this control the thesis reads as mitigation, and the account expressly states that banality concerns psychology rather than degree of guilt.
- **C:** Incorrect: the source is correctly identified, but provenance is not the qualification the thesis requires when it is deployed.
- **D:** Incorrect: this inverts the presupposition, since the requirement of reflective judgment is what makes failure to exercise it culpable rather than excusing.

**Examiner trap 29:** Using the banality thesis without its control converts an account of how atrocity becomes possible into an excuse for those who carried it out, and it will be marked as an excuse.

### MCQ 30. Remedial - the Convention against Lemkin's conception

Which statement about the relation between Lemkin's conception of genocide and the 1948 Convention is accurate?

- A. The Convention is narrower than Lemkin's conception, which extended to the destruction of a group's institutions, language, culture and economic existence, and it omits political groups from its protected categories.
- B. The Convention is wider than Lemkin's conception, which was confined to the physical killing of members of a group, and it extends protection to political and social groups alongside the four named.
- C. The Convention adopts Lemkin's conception in full, since both require a coordinated plan aimed at the destruction of the essential foundations of the life of a group as its defining element.
- D. The Convention abandons Lemkin's conception entirely, since it substitutes a requirement of widespread or systematic attack on a civilian population for any reference to the destruction of a group.

**Answer: A.**

#### Option explanations:

- **A:** Correct: Lemkin's conception encompassed institutional and cultural foundations with killing as one method among several, and the adopted text is narrower and lists four protected categories excluding political groups.
- **B:** Incorrect: this reverses the relation and misdescribes Lemkin, who did not define genocide as mass killing.
- **C:** Incorrect: asserting full adoption is the single commonest factual error on this material.
- **D:** Incorrect: the widespread-or-systematic-attack formula belongs to crimes against humanity, which is a neighbouring and distinct category.

**Examiner trap 30:** Extending the protected categories beyond the four named, or claiming that the Convention enacted Lemkin's conception whole, converts a precise and checkable point into a demonstrable error.



### MCQ 31. Remedial - classifying the Indian legal facts

Which classification of the four Indian legal facts used in this package is correct throughout?

- A. *Bachan Singh* is a statute; the Law Commission's Report No. 262 is a judgment; the Prevention of Corruption Act is an advisory report; the Lokpal and Lokayuktas Act is a constitutional amendment.
- B. *Bachan Singh* is an advisory report; the Law Commission's Report No. 262 is a statute; the Prevention of Corruption Act is a judgment; the Lokpal and Lokayuktas Act is an executive instruction.
- C. *Bachan Singh* is a constitutional amendment; the Law Commission's Report No. 262 is an enacted statute; the Prevention of Corruption Act is a judgment; the Lokpal and Lokayuktas Act is a report.
- D. *Bachan Singh* is a judgment; the Law Commission's Report No. 262 is an advisory report; the Prevention of Corruption Act is a statute; the Lokpal and Lokayuktas Act is a statute.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: every classification in this option is wrong, and the description of the Lokpal legislation as a constitutional amendment compounds the error.
- **B:** Incorrect: the judgment and the report have been exchanged, and the Prevention of Corruption Act is misdescribed as a judicial decision.
- **C:** Incorrect: a judgment is described as a constitutional amendment and an advisory report as enacted law, which is the misclassification the traps expressly warn against.
- **D:** Correct: a 1980 Supreme Court judgment, a 2015 official advisory report, and two enacted statutes of 1988 as amended in 2018 and of 2013 respectively.

**Examiner trap 31:** Treating the 2015 Law Commission report as though it had abolished the death penalty for ordinary crimes confuses a recommendation with an enactment, and the report itself expressly excluded specified terrorism-related and war contexts from what it recommended.

### MCQ 32. Remedial - what this owner does not own

Which of the following demands falls outside this clause and must be routed rather than developed?

- A. Whether the retributive theory of punishment can be reconciled with human rights, which requires the distinction between limiting and maximising readings of desert.
- B. Whether corrupt practices reveal a tension between particularistic and universalistic normative standards, which requires the account of entrusted office and role boundaries.
- C. Whether rights are best analysed as claims correlative to duties and how accountability is owed by the state to the citizen, which belongs with rights, duties and accountability.
- D. Whether the severity of punishment should be proportionate to the seriousness of the crime when the offender is a juvenile, which requires the three-term proportionality relation.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: this is a directly owned demand and is answered by the limiting/maximising distinction inside this clause.
- **B:** Incorrect: this is a directly owned demand and is answered by the entrusted-office analysis and the role-boundary remedy.
- **C:** Correct: the general analysis of rights, duties and accountability belongs to Individual and State, and enters here only as a named bridge through the standing condition.
- **D:** Incorrect: this is a directly owned demand and is answered by the three-term relation and the five-factor juvenile grid.

**Examiner trap 32:** Answering a punishment stem by expounding a general theory of rights and duties imports another owner's material, spends the word count on it, and leaves the penal question - who may punish, for what, and how much - unanswered.

## PYQS AND ANSWER PRACTICE

### Practice status and source discipline - read once, applies to every solution below

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the 2019 paper's double negative in **"Is corruption not a form of mass violence?"**, the 2023 paper's quotation marks around **"Severity of punishment should be proportionate to the seriousness of the crime."**, and the 2025 paper's capitalisation of **"Capital Punishment"** in the right-to-life part - all preserved verbatim inside the question lines. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Works are cited by author and title only: **Kant, The Metaphysics of Morals**; **Hegel, Philosophy of Right**; **Bentham, An Introduction to the Principles of Morals and Legislation**; **Beccaria, On Crimes and Punishments**; **Hart's** separation of the general justifying aim from distribution and severity; **Feinberg, "The Expressive Function of Punishment"**; **Duff, Punishment, Communication, and Community**; **Foucault, Discipline and Punish (1975 French; 1977 English translation)**; **Braithwaite, Crime, Shame and Reintegration**; **Arendt, Eichmann in Jerusalem**; and **Lemkin, Axis Rule in Occupied Europe\* (1944)**. No page, chapter, edition or verbatim wording is asserted for any of them, and no author is quoted anywhere in this workbook. Six dated facts appear, each classified before it is used - the **Genocide Convention (1948)**, in force **1951**; **Lemkin's Axis Rule in Occupied Europe (1944)**; the **Prevention of Corruption Act, 1988**, amended **2018**; the **Lokpal and Lokayuktas Act, 2013**; **Bachan Singh v. State of Punjab (1980)**; and the **Law Commission of India, Report No. 262, The Death Penalty (2015)**. ANALYSIS: Interpretive disputes - whether desert can justify state-inflicted suffering as well as it limits it, whether deterrent effect differs measurably between capital and non-capital penalties, whether groups have a morally significant existence not exhausted by their members' interests, and whether restorative process can be made proportionate - are flagged as contested rather than settled. WRONG: **No country, community, party, government, movement, leader, technology, programme or historical episode is named anywhere as an instance of mass violence, genocide, communal violence, pogrom, panopticism or surveillance**, and no statute, judgment or report is used as evidence for or against a philosophical thesis.

**Answer-length convention used throughout this package.** UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words**, **15 marks - about 250 to 330 words**, and **20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading, the "why this earns marks" notes and the "how to improve this answer" notes are teaching apparatus that sit **outside** the timed word count.

**Coverage.** ANALYSIS: **Corpus signal:** this clause owns **12 of 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 1, 2019: 2, 2020: 2, 2021: 1, 2022: 2, 2023: 1, 2024: 1, 2025: 2**. All twelve are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the examination: **corruption** carries five parts (2018 Q1(e), 2019 Q1(d), 2020 Q4(c), 2022 Q1(c), 2025 Q1(a)); **capital punishment** carries four (2019 Q4(c), 2022 Q1(e), 2024 Q3(b), 2025 Q3(a)); **punishment theory** carries two (2020 Q3(c), 2021 Q2(b)); and **proportionality** carries one (2023 Q4(a)). ANALYSIS: **Genocide carries none in the held cycle and remains a full syllabus obligation** - it is printed in the clause, and the absence of a past question is not evidence about the next one. ANALYSIS: Ownership discipline: general rights, duties and accountability belong to **Individual and State**; justice, equality and liberty as ideals to **Social and Political Ideals**; regime forms and legitimacy to **Forms of Government**; gender doctrine to **Gender Discrimination**; caste doctrine and the Gandhi-Ambedkar comparison to **Caste Discrimination**. None of those is counted here. WRONG: Do not route every occurrence of the words "justice", "violence" or "rights" to this owner: ownership turns on the printed pairing of crime with punishment and on the four named applications.

### Solved PYQ 1 · 2018 · Q1(e) · 10 marks

**Question:** What measures do you suggest to eradicate corruption in Indian democracy?

#### Demand decoding

| Element         | Requirement                                                                                                             |
|-----------------|-------------------------------------------------------------------------------------------------------------------------|
| Directive       | "What measures do you suggest" - a first-person prescriptive demand; recommendations must be given, not merely surveyed |
| Core issue      | Which variables make entrusted office misusable, and what follows for institutional design                              |
| Scope boundary  | Ten marks: the generating principle, the three structural levers, the ethical residue, one limit                        |
| Key distinction | Certainty of detection against severity of penalty; structural reform against moral exhortation                         |
| Non-negotiables | A principle before the list; the two Indian statutes classified; no characterisation of any government or party         |

#### Independent model answer

**The principle before the list.** ANALYSIS: A list of measures is worth little unless a diagnosis generates it. Corruption is the misuse of **entrusted** power, so measures must attack the three variables that make office misusable: **monopoly, discretion and impunity.**

**Reducing monopoly.** FACT: Where a single office controls a decision that citizens cannot obtain elsewhere, the office-holder captures a rent. Plural providers, competitive allocation and effective appeal remove the rent at its source.

**Bounding discretion.** FACT: Discretion cannot be abolished, since rules cannot anticipate every case, but it can be bounded by published criteria, recorded reasons, defined conflicts of interest and mandatory recusal.

**Defeating impunity.** FACT: Transparency, independent audit and independent investigation raise the probability of detection. ANALYSIS: **Beccaria's** point is decisive: certainty and promptness matter more than severity, and corruption is the paradigm calculated offence, so detection is the operative lever.

**The ethical limb.** ANALYSIS: Design cannot complete the task, because auditors and investigators are themselves office-holders and every rule leaves a residue of judgment. Professional ethos must occupy that residue.

**Classification note.** FACT: The **Prevention of Corruption Act, 1988** (amended **2018**) is an enacted criminal-law framework; the **Lokpal and Lokayuktas Act, 2013** an accountability framework. ANALYSIS: Neither proves the ethics settled.

**Verdict.** ANALYSIS: Reduce opportunity and raise detection first; invest in ethos where design cannot reach. "Eradicate" overstates what any design can achieve.

#### Why this earns marks

**Answer-writing focus:** a "what measures do you suggest" stem is scored on whether the recommendations are **generated** rather than recalled. Scripts that list transparency, accountability, e-governance and moral education have produced an administration answer. Naming monopoly, discretion and impunity as the variables converts the same list into philosophy, because each measure is then derived.

**Exam-length execution - 10 marks, about 150 to 220 words:** principle two lines; three levers one line each with their mechanism; the certainty-over-severity point one line; the ethical residue two lines; classification one line; verdict one line. Compression plan if short of time: drop the classification note and keep the certainty-over-severity point, which is the sentence that shows a theory is being applied.

- **Structure:** diagnosis -> three structural levers -> the detection point -> the ethical residue -> classified illustration -> qualified verdict.
- **Doctrine:** corruption as misuse of entrusted power; the systemic ecology within which an ethical act occurs.
- **Evidence:** Beccaria on certainty and promptness; the two Indian statutes, classified.
- **Distinction:** certainty of detection against severity of penalty.
- **Criticism:** the regress that design cannot close, and the overstatement in "eradicate".

### How to improve this answer

Add one sentence naming the **regress** explicitly - that the designers and auditors occupy offices with the same incentive structure - because that is what makes the ethical limb necessary rather than decorative. If two more lines are available, note that the priority is asymmetric: structural reform first because it fixes the opportunity set within which character operates. Do **not** add examples of Indian corruption cases: the stem asks for measures, and characterising any government, party or episode breaches the package's evidence discipline.

### Solved PYQ 2 · 2019 · Q1(d) · 10 marks

**Question:** Is corruption not a form of mass violence? Discuss.

#### Demand decoding

| Element         | Requirement                                                                                                        |
|-----------------|--------------------------------------------------------------------------------------------------------------------|
| Directive       | "Is X not a form of Y? Discuss" - a conceptual test, complicated by a double negative that invites careless assent |
| Core issue      | Whether the necessary conditions for violence are satisfied by institutional wrongdoing with diffuse victims       |
| Scope boundary  | Ten marks: conditions stated, corruption tested, disanalogies conceded, verdict with the safer term                |
| Key distinction | Analogical extension with a demonstrated harm-chain against conceptual inflation                                   |
| Non-negotiables | Conditions before application; concession of directness and intent; the term "structural harm"                     |

#### Independent model answer

**Position, stated first.** ANALYSIS: Only analogically, and only where a harm-chain is demonstrated; otherwise the accurate term is **structural harm**.

**State the test before applying it.** FACT: Violence in the paradigm sense involves large-scale harm to persons, direct physical force, intent to harm the victims, identifiable victims, and abuse of power where it is organised.

**Corruption tested against each.** FACT: Large-scale harm: often satisfied, since diversion of essential resources can foreseeably expose many persons to avoidable deprivation, danger or exclusion. FACT: Abuse of institutional power: satisfied, and it is the shared feature. WRONG: Direct physical force: not satisfied - the core disanalogy. WRONG: Intent to harm: usually absent, since the intent is to gain rather than to injure. WRONG: Identifiable victims: absent; the victims are diffuse and the causal chains invisible.

**What the "for" case establishes.** ANALYSIS: Diffuse victims, cumulative harm, invisibility of causal chains and abuse of institutional power together justify treating grave corruption as a serious public wrong of comparable gravity.

**What the "against" case protects.** ANALYSIS: Conceptual inflation erases the distinctive agency and intent involved in physical mass violence, and a concept that covers everything discriminates nothing.

**Verdict.** ANALYSIS: Call corruption mass violence only analogically and with the harm-chain shown; otherwise say structural harm, which asserts less and proves more.

#### Why this earns marks

**Answer-writing focus:** the double negative in the stem is a trap that invites reflexive agreement. The scoring move is to convert the question into a **test**: state the necessary conditions for violence, apply them one by one, and let the verdict record a partial fit. A script that agrees because both corruption and violence are harmful has supplied no test and cannot be distinguished from a script that guessed.

**Exam-length execution - 10 marks, about 150 to 220 words:** position one line; conditions two lines; the point-by-point test four lines; the "for" and "against" cases one line each; verdict one line. Compression plan: drop the "for" case, which the test already establishes, and keep the three concessions, which are what show the test being applied honestly.

- **Structure:** qualified position -> conditions of violence -> item-by-item test -> what each side establishes -> verdict with the safer term.
- **Doctrine:** structural harm; the requirement of a demonstrated harm-chain.

- **Evidence:** the five-condition test; the three failed conditions.
- **Distinction:** analogical extension against conceptual inflation.
- **Criticism:** the cost of inflation - a concept covering everything discriminates nothing.

### How to improve this answer

Add the word "**foreseeably**" when stating the harm-chain, since foreseeability is what converts a chain of consequences into a moral attribution. If a further line is available, note that the analogy is strongest for diversion of **life-sustaining** resources and weakest for corruption in procurement of discretionary goods, which shows the test discriminating between cases rather than delivering a single verdict for all corruption.

### Solved PYQ 3 · 2019 · Q4(c) · 15 marks

**Question:** Does capital punishment weaken the doctrine of social justice? Discuss.

### Demand decoding

| Element         | Requirement                                                                                               |
|-----------------|-----------------------------------------------------------------------------------------------------------|
| Directive       | "Does X weaken Y? Discuss" - the relation must be specified before it is assessed, and a position taken   |
| Core issue      | Whether a penalty neutral in its abstract rule can be unjust in its distribution                          |
| Scope boundary  | Fifteen marks: the mechanism of weakening, one objection with reply, one classified illustration, verdict |
| Key distinction | The abstract rule against its administration; equality of application as an independent condition         |
| Non-negotiables | Condition 7 of responsible punishment; Duff's standing argument; deterrence handled as contested          |

### Independent model answer

**Position.** ANALYSIS: It does, on one specific mechanism: not because its rule is unequal but because its **administration** is, and equal application is an independent condition of just punishment rather than an administrative detail.

**The mechanism.** FACT: Among the conditions a defensible punishment presupposes is equal application without status bias. A penalty administered through unequal defence, unequal investigation and unreviewed discretion tracks resources and status rather than culpability, and it does so while its abstract rule remains perfectly neutral.

ANALYSIS: Because the penalty is irreversible, the unequal outcome cannot be corrected later, so the defect is not merely present but permanent.

**The proportionality point.** FACT: Seriousness of offence is necessary but not sufficient for a proportionate sentence: culpability, mitigation, consistency and available alternatives all enter. Where unequal representation suppresses mitigation, the sentence is proportionate to what was proved rather than to what was true.

**The standing argument.** ANALYSIS: **Duff's** condition sharpens the claim: the legitimacy of punishment is conditional on the justice of the order that imposes it, so a polity that has denied a person the conditions of citizenship has weakened its authority to impose its gravest penalty upon him. ANALYSIS: This is a claim about authority, not about causation, and is therefore untouched by the reply that most deprived persons do not offend.

**Objection.** FACT: Unequal administration is an argument for reforming procedure, not for abolishing a penalty. **Reply.** ANALYSIS: For reversible penalties that is right; for an irreversible one the argument is stronger, since reform cannot retrieve the person already executed.

**Classified illustration.** FACT: **Bachan Singh\* (1980)**, a Supreme Court judgment, retained the penalty with a "rarest of rare" limitation; the **Law Commission's Report No. 262 (2015)**, an advisory report, recommended abolition for ordinary crimes with specified exclusions. ANALYSIS: Legal facts, not proofs.

**Verdict.** ANALYSIS: It weakens social justice where administration is unequal and error irreversible - which is a condition, not a slogan.

### Why this earns marks

**Answer-writing focus:** the stem contains a relation - "weakens" - and the marks lie in specifying the **mechanism** of weakening rather than in asserting that the penalty is unjust. Naming equal application as an independent condition, and then showing that irreversibility converts a remediable defect into a permanent one, gives the answer a spine that survives the obvious objection.

**Exam-length execution - 15 marks, about 250 to 330 words:** position two lines; mechanism four lines; proportionality two lines; standing three lines; objection and reply three lines; illustration two lines; verdict one line. Compression plan: drop the classified illustration and keep the standing argument, which is the harder point to answer.

- **Structure:** position -> mechanism -> proportionality -> standing -> objection and reply -> classified illustration -> conditional verdict.
- **Doctrine:** equal application as a condition of responsible punishment; proportionality between wrong, responsibility and sanction.
- **Evidence:** Duff on standing; the 1980 judgment and the 2015 advisory report, classified.
- **Distinction:** the abstract rule against its administration; reversible against irreversible defects.
- **Criticism:** the reform objection, conceded for reversible penalties and answered for irreversible ones.

### How to improve this answer

State in one line that the argument does **not** claim that any particular system administers the penalty unequally, since the claim is conditional and the package characterises no jurisdiction. If more space is available, add that the standing argument and the equal-administration argument are independent: one attacks the authority of the punisher, the other the reliability of the distribution, and an answer that runs them together loses the ability to concede one while retaining the other.

### Solved PYQ 4 · 2020 · Q3(c) · 15 marks

**Question:** Do you think that retributive theory of punishment is against human rights? Discuss.

### Demand decoding

| Element         | Requirement                                                                                                     |
|-----------------|-----------------------------------------------------------------------------------------------------------------|
| Directive       | "Do you think... Discuss" - commitment is compulsory and must be qualified rather than balanced                 |
| Core issue      | Whether desert commands infliction or constrains it                                                             |
| Scope boundary  | Fifteen marks: the distinction, both readings assessed, the revenge contrast, one residue, verdict              |
| Key distinction | Maximising against limiting retributivism; desert as a positive command against desert as a ceiling             |
| Non-negotiables | Kant's "only"; the two prohibitions; the concession that retributivism is weakest at the general justifying aim |

### Independent model answer

**Position.** ANALYSIS: It depends entirely on which retributivism is meant, and the distinction is not a hedge: **maximising** retributivism is in tension with rights, while **limiting** retributivism is the strongest ally rights possess inside penal theory.

**The doctrine.** FACT: **Kant** holds that punishment must answer to the offender's culpable act and cannot be imposed merely to produce social utility, since treating a person **only** as an instrument of deterrence violates rational agency. FACT: **Hegel** holds that punishment negates the crime's wrongful claim and restores right while addressing the offender as a responsible agent rather than as a hazard.

**The maximising reading, and why it is exposed.** ANALYSIS: If desert is read as a positive command to inflict suffering, the theory can license degradation, can be invoked to justify escalation and has no internal resource for limiting the **form** of punishment. On that reading the objection lands.



**The limiting reading, and what it forbids.** FACT: Limiting retributivism claims two things only: no one may be punished without desert, and no penalty may exceed desert. Those are **prohibitions**, not commands, and they forbid precisely what rights-based objections most fear - conviction of the innocent for preventive gain, and escalation of severity beyond culpability.

**Retribution is not revenge.** FACT: Four axes separate them: the agent is a public impartial authority rather than the injured party; the measure is proportionate desert rather than the intensity of grievance; there is a ceiling fixed by culpability rather than none; and like cases are treated alike rather than personally.

**Residue.** ANALYSIS: Limiting retributivism does not close the general-justifying-aim gap: it explains why punishment may not exceed desert better than why the state must impose deserved suffering at all, and its cardinal ceiling must be anchored in dignity from outside desert.

**Verdict.** ANALYSIS: Not against human rights in its limiting form; in tension with them in its maximising form. A script that treats retributivism as one thing has answered neither.

### Why this earns marks

**Answer-writing focus:** the stem is a trap for candidates who hold a single picture of retributivism. Drawing the limiting/maximising distinction in the first two lines reorganises the entire answer and converts a yes/no question into an adjudication. The two prohibitions are the mark-bearing sentences, because they show that the theory does positive work for rights rather than merely surviving the charge.

**Exam-length execution - 15 marks, about 250 to 330 words:** position two lines; Kant and Hegel three lines; maximising reading two lines; limiting reading three lines; revenge contrast three lines; residue two lines; verdict one line. Compression plan: shorten the revenge contrast to two axes - agent and ceiling - and keep the residue, which is what distinguishes a defence from an endorsement.

- **Structure:** position -> doctrine -> the exposed reading -> the defensible reading -> the revenge contrast -> residue -> verdict.
- **Doctrine:** desert as necessary condition and ceiling; punishment as the negation of the crime's wrongful claim.
- **Evidence:** Kant on treating a person only as an instrument; Hegel on the restoration of right.
- **Distinction:** maximising against limiting; retribution against revenge on four axes.
- **Criticism:** the general-justifying-aim gap, and the external anchor the cardinal ceiling requires.

### How to improve this answer

Add the phrase "**prohibitions, not commands**" when introducing the limiting reading, since that formulation is what makes the rights point precise rather than assertive. If two more lines are available, note that the maximising reading is rarely defended in the literature, so the answer is not evading the question by preferring the limiting one - it is identifying which version is actually at issue.



### Solved PYQ 5 · 2020 · Q4(c) · 15 marks

**Question:** How far do the social and political regimes condition corrupt practices in a nation-state? Discuss.

#### Demand decoding

| Element         | Requirement                                                                                           |
|-----------------|-------------------------------------------------------------------------------------------------------|
| Directive       | "How far... Discuss" - a degree question; the answer must specify what is conditioned and what is not |
| Core issue      | Whether regime type determines the existence of corruption or only its visibility, cost and form      |
| Scope boundary  | Fifteen marks: both regime types, the three conditioned variables, the inference error, verdict       |
| Key distinction | Disclosure against incidence; regime type against institutional design                                |
| Non-negotiables | No regime and no country characterised; the residual variables named                                  |

#### Independent model answer

**Position. ANALYSIS:** Regimes condition the **visibility, the cost and the form** of corrupt practice far more than its **existence**, and the distinction is what a "how far" stem is asking for.

**No regime is automatically immune. FACT:** Autocracy may conceal corruption through weak scrutiny, so a low rate of disclosure is compatible with a high rate of incidence. **FACT:** Democracy may expose corruption through free information, competitive politics and periodic accountability, yet also generates its own risks - patronage networks, campaign finance and regulatory capture.

**What regime type actually does. FACT:** It affects three things: **information**, since scrutiny depends on what may be published and asked; **accountability**, since sanction depends on whether power can be removed or reviewed; and **competition**, since monopoly over decisions is what creates the rent in the first place.

**The inference error to avoid. ANALYSIS:** A regime that exposes more corruption is not thereby more corrupt. Confusing **disclosure** with **incidence** is the standard failure on this question, and it converts a measure of institutional openness into a measure of institutional decay.

**The residual variables. FACT:** Outcomes also depend on institutional design, social inequality and the norms of office. Two polities with the same regime type and different audit architectures, different levels of inequality and different professional ethos will not have the same experience of corruption. **ANALYSIS:** This is why "how far" is answered by *substantially but not decisively*.

**The deeper reason. ANALYSIS:** Corruption is an ethical act within a systemic ecology, and regime type is only one layer of that ecology. Structure fixes opportunity and price; it does not erase the agency of the person who acts.

**Verdict. ANALYSIS:** Regimes condition strongly but do not determine; the operative variables are monopoly, discretion and impunity, which cut across regime types.

#### Why this earns marks

**Answer-writing focus:** the phrase "how far" requires a **calibrated** answer, and calibration means naming what is conditioned and what is not. The disclosure/incidence correction is the single highest-value sentence available on this stem, because most scripts either praise democracy or condemn it without noticing that the evidence they are using is produced by the very institutions under assessment.

**Exam-length execution - 15 marks, about 250 to 330 words:** position two lines; the two regime types three lines; the three conditioned variables three lines; the inference error two lines; residual variables three lines; the ecology point two lines; verdict one line. Compression plan: drop the ecology paragraph and keep the disclosure/incidence correction, which is the sentence the stem rewards.

- **Structure:** calibrated position -> both regime types -> what regime type affects -> the inference error -> residual variables -> verdict.
- **Doctrine:** corruption as an ethical act within a systemic ecology; monopoly, discretion and impunity as the operative variables.
- **Evidence:** information, accountability and competition as the three channels of regime influence.
- **Distinction:** disclosure against incidence; regime type against institutional design.

- **Criticism:** the limits of regime-level explanation, and the persistence of agency within any structure.

### How to improve this answer

Add one sentence stating that the answer characterises **no actual regime**, since the analysis is at the level of regime types and the package names no government. If a further line is available, note that the three channels are not independent - competition affects what information is generated, and information affects what accountability can reach - which explains why reforms in one channel often fail unless matched in the others.

### Solved PYQ 6 · 2021 · Q2(b) · 15 marks

**Question:** Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity.

### Demand decoding

| Element         | Requirement                                                                                                  |
|-----------------|--------------------------------------------------------------------------------------------------------------|
| Directive       | Two directives in one stem: "Explain" the theory, then "discuss" a compatibility claim; both must be served  |
| Core issue      | Whether a therapeutic rationale respects or overrides the person it acts upon                                |
| Scope boundary  | Fifteen marks: doctrine, the four-step dignity argument, the paternalism objection, the four bounds, verdict |
| Key distinction | Reform against leniency; reform against incapacitation; addressing an agent against treating a patient       |
| Non-negotiables | The four bounding conditions; the neglect-of-victims cost; the conditional verdict                           |

### Independent model answer

**The theory, explained.** FACT: Reformatory punishment views the offender as capable of moral development and social reintegration, and seeks to address ignorance, addiction, trauma, exclusion or distorted incentives **without denying responsibility**. Its central test is reintegration, and it is forward-looking.

**What it is not.** ANALYSIS: It is not leniency: it remains compatible with responsibility and with proportionate restraint. Nor is it incapacitation, which contains a source of risk rather than rebuilding an agent - the two treat the offender in opposite ways.

**The dignity argument in four steps.** FACT: Persons are more than their worst act; responsible agency can be impaired and rebuilt; a humane state should reduce future wrongdoing through capability rather than degradation; therefore punishment should preserve a route back to membership.

**The objection.** FACT: Compulsory "treatment" can pathologise dissent and become indefinite. A rationale measured by what the offender is judged to **need** rather than by what he **did** severs the link with proportionality, and an intervention that ends only when the person is judged corrected may never end at all.

**The reply - and it is the answer to the stem.** FACT: Rehabilitation must remain bounded by **proportionality**, by **consent where possible**, by **review** rather than open-ended intervention, and by **rights** retained throughout. Under those four conditions reform respects dignity by refusing to freeze a person in his worst act; without them it threatens dignity by treating him as an object of correction.

**A further cost.** ANALYSIS: Reform has nothing to say to the victim, whose wrong is not the offender's rehabilitation, which is why it functions best as a component of a mixed theory in which desert supplies the ceiling and condemnation supplies the public meaning.

**Verdict.** ANALYSIS: In tune with dignity conditionally, not unconditionally: the conditions are the answer, and an unqualified yes leaves the paternalism objection standing.

### Why this earns marks

**Answer-writing focus:** the stem has two verbs and most scripts serve only the first. The explanation must be short and exact so that the discussion has room, and the discussion is scored on whether the paternalism objection is **answered** rather than acknowledged. The four bounding conditions are the answer, and they should be numbered so the examiner can see them.

**Exam-length execution - 15 marks, about 250 to 330 words:** explanation three lines; what it is not two lines; dignity argument three lines; objection three lines; the four bounds three lines; the victim cost two lines; verdict one line. Compression plan: drop the "what it is not" paragraph and keep the four bounds, which no other paragraph can replace.

- **Structure:** doctrine -> boundary against leniency and incapacitation -> dignity argument -> objection -> the four bounds -> residual cost -> conditional verdict.
- **Doctrine:** transformation of the capacities and conditions of lawful agency; reintegration as the central test.
- **Evidence:** the four-step dignity argument; the four bounding conditions.
- **Distinction:** reform against leniency and against incapacitation; addressing an agent against treating a patient.
- **Criticism:** paternalism, indefiniteness, and the neglect of victims.

### How to improve this answer

Add a single line noting that **Foucault's** analysis supplies the sharpest reason to insist on the four bounds - a regime can intensify supervision while describing itself as rehabilitative - and place it in the critical rather than the justificatory part of the answer. If two more lines are available, state the hard case explicitly: the competent offender who refuses voluntary provision and whose desert ceiling expires while risk remains, which is where the bounded theory reaches its limit.

### Solved PYQ 7 · 2022 · Q1(c) · 10 marks

**Question:** Is corruption a systemic issue or an ethical issue? Give your critical comments.

### Demand decoding

| Element         | Requirement                                                                                                      |
|-----------------|------------------------------------------------------------------------------------------------------------------|
| Directive       | "Is X or Y? Give your critical comments" - a disjunction offered for rejection, but the rejection must be argued |
| Core issue      | Whether structure or agency explains corrupt conduct, and what each fails to explain                             |
| Scope boundary  | Ten marks: both diagnoses, the two explanatory failures, the synthesis with its priority, one limit              |
| Key distinction | Opportunity structure against agency; diagnosis against remedy                                                   |
| Non-negotiables | The reason the disjunction fails; a stated priority; no unexplained "both"                                       |

### Independent model answer

**Position.** ANALYSIS: Neither: corruption is an **ethical act within a systemic ecology**, and the disjunction fails for a statable reason.

**The two diagnoses.** FACT: The **ethical** diagnosis traces corruption to greed and weak integrity, focuses on character and choice, and prescribes moral education and professional ethos. FACT: The **systemic** diagnosis traces it to opacity, monopoly, excessive discretion and impunity, focuses on incentives, and prescribes transparency, audit, competition and accountability.

**Why the disjunction fails - the two explanatory residues.** ANALYSIS: A purely ethical account cannot explain why populations of comparable character behave differently under different institutional designs. A purely structural account cannot explain why individuals occupying identical positions under identical incentives behave differently. Each account leaves precisely what the other explains.

**The synthesis, with a priority.** ANALYSIS: Structure fixes the **opportunity** and the **price** of the wrong; agency remains with whoever commits it. Because structure determines the opportunity set within which character operates, structural reform is prior **in the order of intervention**, while ethos is indispensable **in the residue** of judgment no rule eliminates.

**Critical comment.** ANALYSIS: The systemic limb faces a regress: auditors and rule-designers are themselves office-holders under the same incentives, so design checks discretion without removing the final layer of judgment.

**Verdict.** ANALYSIS: Structure first, ethos where structure cannot reach. "Both matter" is not a position; the two residues and the priority are.

### Why this earns marks

**Answer-writing focus:** every script says "both". The mark is for the **reason** the disjunction is false, and the reason is the pair of explanatory residues - cross-institutional variation defeating pure ethics, cross-individual variation defeating pure structure. The priority ordering then converts an analytic synthesis into a usable recommendation, which is what "critical comments" asks for.

**Exam-length execution - 10 marks, about 150 to 220 words:** position one line; two diagnoses three lines; two residues three lines; synthesis with priority three lines; the regress two lines; verdict one line. Compression plan: drop the regress and keep the two residues, which are irreplaceable.

- **Structure:** position -> both diagnoses -> the two explanatory residues -> synthesis with priority -> the regress -> verdict.
- **Doctrine:** an ethical act within a systemic ecology; opportunity and price against agency.
- **Evidence:** the two variation arguments; the regress of designers and auditors.
- **Distinction:** diagnosis against remedy; order of intervention against indispensability.
- **Criticism:** design cannot close the residue of judgment, so the ethical limb is structural rather than decorative.

### How to improve this answer

Add the phrase "**structure first, ethos where structure cannot reach**" as the closing formula, since it states the priority in six words and prevents the synthesis from reading as a hedge. If a further line is available, name the hardest case: where corruption is concentrated at the level that designs and enforces the rules, there is no external architect and the systemic remedy has no purchase.

### Solved PYQ 8 · 2022 · Q1(e) · 10 marks

**Question:** What are the moral justifications of capital punishment? Discuss.

### Demand decoding

| Element         | Requirement                                                                                                        |
|-----------------|--------------------------------------------------------------------------------------------------------------------|
| Directive       | "What are the moral justifications... Discuss" - the justifications must be <b>expounded</b> before being assessed |
| Core issue      | Which arguments are genuinely moral justifications and what evidential status each carries                         |
| Scope boundary  | Ten marks: the four justifications with their status, the strongest counter to each, a graded verdict              |
| Key distinction | Moral justification against empirical claim; incapacitation against necessity                                      |
| Non-negotiables | Deterrence marked as empirical; public affirmation identified as expressive; no unstated evidence claim            |

### Independent model answer

**Framing.** ANALYSIS: The stem asks what the justifications **are**, so each must be stated at its strongest before being weighed - and each carries a different evidential status.

**Retribution.** FACT: Exceptionally grave culpable killing may deserve the gravest proportionate response. This is a genuine moral justification and, on a limiting reading, self-limiting: it licenses the penalty only at the extreme of culpability. ANALYSIS: Its difficulty is that desert explains a ceiling better than an obligation to impose.

**Deterrence.** CAUTION: Execution may deter potential offenders beyond life imprisonment. This is an **empirical** claim and cannot be assumed; comparative claims are contested, and a philosophical argument must state the uncertainty rather than resolve it by assertion.

**Incapacitation.** FACT: Execution permanently prevents reoffending. ANALYSIS: But secure imprisonment also incapacitates, so a protective rationale governed by **necessity** is not satisfied by the more final of two adequate means.

**Public affirmation.** ANALYSIS: The penalty may express the equal value of victims and condemnation of atrocity. This is an **expressive** argument in Feinberg's sense and must be assessed as one: does execution express victims' equal worth, or that the state may kill a person under its control?

**Verdict.** ANALYSIS: Only retribution and public affirmation are moral justifications proper; deterrence is an empirical claim awaiting evidence, and incapacitation fails necessity once secure confinement exists. The case is narrower than it appears.

### Why this earns marks

**Answer-writing focus:** an "explain the justifications" stem is scored on **exposition plus adjudication**, in that order. Sorting the four arguments by evidential status - genuine moral justification, contested empirical claim, protective rationale governed by necessity, expressive claim - is the move that separates a strong script from a list, and it does so without smuggling in the abolitionist case.

**Exam-length execution - 10 marks, about 150 to 220 words:** framing one line; four justifications two lines each with status; verdict one line. Compression plan: shorten public affirmation to one line and keep the necessity point on incapacitation, which is the sharpest single move available.

- **Structure:** framing -> four justifications with evidential status -> graded verdict.
- **Doctrine:** desert at the extreme of culpability; necessity as the test of protective rationales.
- **Evidence:** Feinberg's expressive function applied to the affirmation argument.
- **Distinction:** moral justification against empirical claim; permanent prevention against required means.
- **Criticism:** the general-justifying-aim gap in retribution; the availability of secure alternatives.

### How to improve this answer

Add one clause noting that the **question asked for justifications, not for a verdict on abolition**, and that the graded assessment is therefore internal to the exposition rather than an answer to a different question. If two more lines are available, note that the affirmation argument can be turned against the penalty, since an expressive account also explains why a wrongful execution inflicts a condemnation that can never be withdrawn.

### Solved PYQ 9 · 2023 · Q4(a) · 20 marks

**Question:** "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

### Demand decoding

| Element         | Requirement                                                                                                                               |
|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| Directive       | A quoted principle plus "Do you agree... Justify" - commitment compulsory, and the quoted principle must be analysed, not merely endorsed |
| Core issue      | Whether the nature of the crime is conclusive, relevant or irrelevant when the offender is a juvenile                                     |
| Scope boundary  | Twenty marks: the two proportionality dimensions, the three-term relation, the five factors, objection and reply, verdict                 |
| Key distinction | Ordinal against cardinal proportionality; integration against balancing; relevant against conclusive                                      |
| Non-negotiables | The three-term relation; procedural reliability as an independent factor; no denial of juvenile responsibility                            |

### Independent model answer

**Position.** ANALYSIS: I agree that the nature of the crime should be **considered** and deny that it can be **conclusive** - reaching that position by accepting the quoted principle rather than qualifying it.

**Why the quoted principle does not settle the case.** FACT: Proportionality holds between **wrong, responsibility and sanction** - three terms, not two. Seriousness of harm is one input; the responsibility of the person who caused it is the other. An inference from gravity of offence straight to severity of sentence treats a three-term relation as though it had two terms.

**The two dimensions.** FACT: **Ordinal** proportionality ranks offences against one another; **cardinal** proportionality fixes how severe the scale may be. Desert supplies the ranking, not the anchor: a doubled scale stays perfectly ranked, so the ceiling must come from constraints on what may be done to a person at all.

**The five factors in juvenile assessment.** FACT: Seriousness of harm; intention and understanding; developmental capacity and susceptibility to influence; prospects of reform; and procedural reliability. The first is offence-centred, the third and fourth offender-centred, the second joins them, the fifth is institutional: where the accused is young, the reliability of confession, identification and comprehension is systematically weaker, and a sentence resting on unreliable findings is proportionate to a fiction.

**Integration, not balancing.** ANALYSIS: Reduced capacity is not a counterweight placed against seriousness; it is an input into the determination of culpability, which is itself one of the terms by which proportionality is measured.

Adjusting the sentence is therefore an **application** of the quoted principle, not an exception to it.

**Objection.** FACT: If reduced capacity lowers culpability, the reasoning extends to adults shaped by deprivation, and criminal responsibility dissolves. **Reply.** ANALYSIS: Developmental incompleteness is **universal, temporary and predictable**, whereas adverse circumstance is particular, variable and contested; that supports a general rule for juveniles and case-by-case mitigation for adults. **Residue.** CAUTION: The reply supports graded rather than threshold treatment, so any age line is a practical compromise the philosophy does not itself generate.

**What the argument does not license.** WRONG: It does not deny juvenile responsibility, since developing agency is reduced and not absent, and the ordinary standard of understanding and adequate control still applies. WRONG: Nor does it erase harm, which remains factor one.

**Verdict.** ANALYSIS: The nature of the crime is relevant and never conclusive: consider it as the first of five factors, integrate the offence-centred and offender-centred perspectives, and let severity track wrong **and** responsibility together.

### Why this earns marks

**Answer-writing focus:** the stem is constructed so that agreeing with the quotation appears to commit the candidate to severity. The scoring move is to accept the quotation and show that it does not license the inference, which requires the three-term relation to be stated early. Procedural reliability is the factor most scripts drop, and including it demonstrates that five distinct considerations have been distinguished rather than two.

**Exam-length execution - 20 marks, about 330 to 400 words:** position two lines; the three-term relation three lines; the two dimensions three lines; the five factors five lines; integration three lines; objection, reply and residue four lines; the two disclaimers two lines; verdict two lines. Compression plan: shorten the ordinal/cardinal paragraph and keep the five factors and the integration point, which carry the answer.

- **Structure:** position -> why the quoted principle does not settle it -> two dimensions -> five factors -> integration -> objection, reply, residue -> disclaimers -> verdict.
- **Doctrine:** proportionality between wrong, responsibility and sanction; ordinal ranking under a cardinal ceiling.
- **Evidence:** the five-factor grid; the systematic weakness of procedural reliability for young accused.
- **Distinction:** integration against balancing; relevant against conclusive.
- **Criticism:** the extension objection, answered by universality, temporariness and predictability, with a residue about thresholds.

### How to improve this answer

Name the inference being blocked in a single phrase - "**the two-term inference**" - because giving the error a name makes the whole argument portable to any proportionality stem. If more space is available, add that the cardinal anchor's external source explains why even a correct ranking cannot justify a severe juvenile sentence: the ranking says only that this offence is graver than that one, and never how grave the scale itself may be.



### Solved PYQ 10 · 2024 · Q3(b) · 15 marks

**Question:** On what grounds would you accept or reject the idea of capital punishment as an effective deterrent? Discuss.

#### Demand decoding

| Element         | Requirement                                                                                                                                  |
|-----------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| Directive       | "On what grounds would you accept or reject... Discuss" - the <b>grounds</b> must be named before the position is taken                      |
| Core issue      | What kind of claim deterrent effectiveness is, and what follows under uncertainty                                                            |
| Scope boundary  | Fifteen marks: the four presuppositions, the evidential status, the asymmetry of burden, the effectiveness/permisibility separation, verdict |
| Key distinction | Empirical effectiveness against moral permissibility; certainty against severity                                                             |
| Non-negotiables | Deterrence marked as contested; no assertion that it is proved or disproved; the burden argument                                             |

#### Independent model answer

**Framing the grounds.** ANALYSIS: The claim that capital punishment deters more than life imprisonment is an **empirical** proposition, and it may be accepted or rejected only on grounds appropriate to that kind of claim. Naming the kind of claim is the first ground.

**The four presuppositions of any deterrent argument.** FACT: That persons respond to perceived costs; that sanctions are known and sufficiently certain; that preventive benefits exceed collateral harms; and that gentler alternatives are inadequate. ANALYSIS: Acceptance would require all four to hold **for the marginal step from life imprisonment to execution**, the only step at issue.

**Grounds for scepticism about presupposition 1.** ANALYSIS: The offences for which the penalty is characteristically reserved include those committed under extreme passion, intoxication, coercion or ideological commitment - precisely the categories in which responsiveness to perceived cost is weakest.

**Grounds for scepticism about presupposition 2.** FACT: **Beccaria's** calibration point is decisive: certainty and promptness matter more than severity. Where detection and conviction are uncertain, raising the maximum penalty operates on the variable that matters least.

**Grounds for scepticism about presupposition 4.** ANALYSIS: Secure imprisonment is a less harmful alternative that achieves incapacitation, so the marginal deterrent gain must be demonstrated rather than assumed.

**The asymmetry of burden under uncertainty.** ANALYSIS: Where a penalty is severe and irreversible, the burden of demonstrating the preventive gain lies on the party proposing it, because a mistaken judgement cannot be corrected afterwards. This is a ground for rejection that does not require the empirical question to be settled.

**The separation that must be stated.** FACT: Effectiveness and permissibility are independent: an effective deterrent may still violate rights, and an ineffective one loses its utilitarian basis. CAUTION: Comparative claims are empirically contested and this answer asserts neither result.

**Verdict.** ANALYSIS: I reject the deterrent case - not because deterrence has been disproved, which would overstate the evidence, but because three of its four presuppositions are doubtful at the margin at issue and the burden of proof lies with the party proposing an irreversible penalty.

#### Why this earns marks

**Answer-writing focus:** the stem asks for **grounds**, so the answer must be organised by grounds rather than by conclusion. Working through the presuppositions one by one, and confining the question to the **marginal step** from life imprisonment to execution, prevents the common error of arguing about whether punishment deters at all - which is not what the stem asks.

**Exam-length execution - 15 marks, about 250 to 330 words:** framing two lines; four presuppositions three lines; three sceptical grounds five lines; the burden asymmetry three lines; the separation two lines; verdict two lines. Compression plan: merge the scepticism about presuppositions 1 and 4 and keep the burden asymmetry, which is the ground that survives empirical uncertainty.



- **Structure:** name the kind of claim -> the four presuppositions -> grounds for scepticism about three of them -> the burden asymmetry -> effectiveness against permissibility -> verdict.
- **Doctrine:** deterrence as expected reduction of future harm; the marginal-step framing.
- **Evidence:** Beccaria on certainty and promptness; the categories of offender least responsive to perceived cost.
- **Distinction:** empirical effectiveness against moral permissibility; the whole penalty against the marginal step.
- **Criticism:** the honest refusal to claim that deterrence has been disproved.

### How to improve this answer

Insert the phrase "**the marginal step**" early, because the entire question is about whether execution adds deterrent value over secure life imprisonment, and scripts that argue about punishment in general have answered a different stem. If two more lines are available, note that accepting the deterrent case would still leave the rights objection standing, which is what the effectiveness/permissibility separation is for.

### Solved PYQ 11 · 2025 · Q1(a) · 10 marks

**Question:** "Corrupt practices reveal an inherent tension between particularistic and universalistic normative standards." Do you agree with this statement? Give reasons and justification for your answer.

### Demand decoding

| Element         | Requirement                                                                                                                        |
|-----------------|------------------------------------------------------------------------------------------------------------------------------------|
| Directive       | "Do you agree... Give reasons and justification" - commitment compulsory, and the agreement must be <b>graded</b> rather than flat |
| Core issue      | What kind of tension corrupt practice reveals, and whether it is a clash of moralities or of domains                               |
| Scope boundary  | Ten marks: both standards, the four-step argument, the characterisation, the remedy, one limit                                     |
| Key distinction | Particular duties as genuine against particular duties as bias; domains against rival moralities                                   |
| Non-negotiables | The characterisation as a category error of role; role boundaries and recusal; the word "inherent" addressed                       |

### Independent model answer

**Position.** ANALYSIS: I agree, and the weight falls on "**inherent**": the tension is ineliminable because it lies between **domains**, not between rival moralities.

**The two standards.** FACT: **Particularistic** norms weight family, caste, friendship or patronage; **universalistic** norms require impartial application of public criteria.

**Why particular duties are genuine.** ANALYSIS: This step makes the tension inherent. Personal relations generate **real duties**, not bias to be suppressed; were they mere temptation there would be no tension, only weakness of will.

**The four-step argument.** FACT: Personal relations generate genuine duties; office is entrusted for a specified common purpose; discharging private loyalty through office costs unrepresented citizens; **corruption occurs when a legitimate loyalty is acted upon in a role governed by universal standards.**

**The characterisation.** ANALYSIS: Corruption is therefore a **category error of role executed for advantage** - a valid norm imported into a domain that excludes it.

**The remedy that follows.** FACT: Not the abolition of personal loyalty but the definition of role boundaries, conflicts of interest and recusal - role-differentiation rather than the suppression of duty.

**Limit.** CAUTION: Boundaries work cleanly for discrete decisions and poorly for pervasive influence, informal networks and agenda-shaping, where recusal has nothing to attach to.

**Verdict. ANALYSIS:** I agree: the tension is inherent because both standards are valid in their own domains, and is managed by boundaries, not dissolved by exhortation.

### Why this earns marks

**Answer-writing focus:** a *do you agree* stem is scored on the **grading** of the position rather than its direction.

Agreeing is easy; explaining why the tension is **inherent** - because particular duties are genuine and both standards are domain-valid - is what converts assent into argument. The category-error characterisation is a single phrase that carries the whole analysis.

**Exam-length execution - 10 marks, about 150 to 220 words:** position one line; two standards one line; genuineness of particular duties two lines; four-step argument three lines; characterisation one line; remedy two lines; limit one line; verdict one line. Compression plan: drop Aristotle and keep the genuineness step, without which "inherent" cannot be justified.

- **Structure:** graded agreement -> the two standards -> why particular duties are genuine -> four-step argument -> characterisation -> remedy -> limit -> verdict.
- **Doctrine:** entrusted office and its specified common purpose; role-differentiation.
- **Evidence:** the four-step argument; Aristotle on particular bonds, bounded to one point.
- **Distinction:** domains against rival moralities; boundary against suppression.
- **Criticism:** the pervasive-influence cases where recusal has no purchase.

### How to improve this answer

Make the word "**inherent**" explicit early, since the statement quoted uses it and the grading of the agreement turns on it. If a further line is available, add that the genuineness of particular duties also explains why anti-corruption reform framed as an attack on family and community obligation tends to fail: it asks people to deny duties they correctly believe they have, instead of locating those duties outside the office.

### Solved PYQ 12 · 2025 · Q3(a) · 20 marks

**Question:** Can one's right to life be absolute? Answer with reference to the idea of Capital Punishment.

### Demand decoding

| Element         | Requirement                                                                                                      |
|-----------------|------------------------------------------------------------------------------------------------------------------|
| Directive       | A conceptual question with a mandatory application - the right must be analysed <b>and</b> the penalty addressed |
| Core issue      | Whether accepted limits on the right to life extend to killing a person already in custody                       |
| Scope boundary  | Twenty marks: the absoluteness question, the custody distinction, desert and deterrence, fallibility, verdict    |
| Key distinction | Fundamental against exceptionless; present unjust threat against post-adjudication control                       |
| Non-negotiables | The necessity-failure formulation; classified Indian illustrations; no unstated empirical claim                  |

### Independent model answer

**Position. ANALYSIS:** The right to life is **fundamental without being exceptionless**, and the case against capital punishment does not need it to be exceptionless: the penalty fails on **necessity**, not on absoluteness.

**Why absoluteness is the wrong ground. FACT:** Even determined defenders of the right accept limits: proportionate force in self-defence and necessity may take life. A right can be fundamental - requiring the strongest justification for any limit - without being exceptionless. **ANALYSIS:** Asserting absoluteness chooses the weakest premise and is refuted by one counter-example.

**The real question, and the custody distinction. FACT:** The question is whether **custodial killing** satisfies the same conditions. It does not. Immediate defence answers a **present unjust threat** with no alternative available in time; execution **follows custody and adjudication**, and less final means of incapacitation exist. Necessity is satisfied in the first case and absent in the second, so defensive limits on the right to life do **not** justify capital punishment.

**The desert argument, taken seriously.** FACT: Exceptionally grave culpable killing may deserve the gravest proportionate response - the strongest retentionist ground. ANALYSIS: But desert operates at liability and severity, not at the general justifying aim, and must be **administered** through a fallible, unequally resourced process whose errors here cannot be corrected.

**The deterrence argument.** CAUTION: Comparative deterrent effect is contested and cannot be assumed; under uncertainty the burden lies on whoever proposes the irreversible penalty.

**The fallibility chain.** FACT: Wrongful execution cannot be repaired; unequal defence, bias and discretion undermine proportionality; execution forecloses moral transformation. ANALYSIS: Feinberg sharpens the first: the condemnation carried by a wrongful conviction cannot be refunded, and cannot be withdrawn from someone no longer alive to be vindicated.

**Classified illustrations.** FACT: **Bachan Singh\* (1980)** is a Supreme Court **judgment** retaining the penalty under a "rarest of rare" limitation; **Law Commission Report No. 262 (2015)** is an **advisory report** recommending abolition for ordinary crimes with terrorism-related and war exclusions. ANALYSIS: A legal compromise, not a moral settlement.

**Objection.** FACT: If necessity were required for punishment generally, imprisonment would fail it too. **Reply.** ANALYSIS: Necessity governs only **protective** rationales; where the justification is desert, the argument shifts to the reliability chain, which attacks the conditions under which desert can be tracked rather than desert itself.

**Verdict.** ANALYSIS: Not absolute - and it does not need to be. **Deliberate irreversible killing after control is established fails necessity under conditions of fallibility and alternative protection.**

### Why this earns marks

**Answer-writing focus:** the stem invites the weakest possible answer, which is to assert that rights are absolute. Conceding non-absoluteness in the first line and relocating the argument to necessity is what makes the answer strong, and the custody distinction is the sentence that does the work. The two-chain structure - necessity against protective rationales, reliability against desert rationales - pre-empts the obvious objection before it is made.

**Exam-length execution - 20 marks, about 330 to 400 words:** position two lines; why absoluteness is the wrong ground three lines; custody distinction four lines; desert three lines; deterrence two lines; fallibility chain four lines; illustrations two lines; objection and reply three lines; verdict two lines. Compression plan: drop the classified illustrations and keep the custody distinction and the necessity-failure formulation.

- **Structure:** position -> absoluteness rejected as a ground -> custody distinction -> desert -> deterrence -> fallibility chain -> classified illustrations -> objection and reply -> verdict.
- **Doctrine:** fundamental without exceptionless; necessity as the test of protective rationales.
- **Evidence:** the custody distinction; Feinberg on unrefundable condemnation; the 1980 judgment and the 2015 advisory report, classified.
- **Distinction:** present unjust threat against post-adjudication control; protective rationale against desert rationale.
- **Criticism:** the imprisonment objection, answered by confining necessity to protective justifications.

### How to improve this answer

State the verdict formula **verbatim** in the closing line, because its precision is what distinguishes it from the slogan it replaces. If more space is available, concede explicitly that a pure desert retentionist who accepts non-necessity and claims sufficient process reliability has not been refuted but contradicted on a question of institutional fact - a concession that strengthens the answer by showing exactly what philosophy delivers and what it does not.

Six original questions in the paper's own idiom - two at 10 marks, two at 15 and two at 20 - each solved to the same standard as the previous-year parts above. None reproduces an owned stem; each targets a route the corpus has tested indirectly or is likely to test again. **Genocide is deliberately represented here**, since it is printed in the clause and carries no owned part in the 2018-2025 cycle.

## ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

### Original 1 · 10 marks

**Question:** Distinguish between a justification and an excuse. Why does the distinction matter?

### Independent model answer

**The distinction.** FACT: A **justification** claims the act was **permissible in the circumstances** - necessary proportionate defence against an unjust threat. An **excuse** concedes the act was **wrong** and denies or reduces blame because control, knowledge or competent agency was impaired - duress, or serious incapacity.

**What each denies.** ANALYSIS: A justification denies **wrongfulness**; an excuse denies **answerability**. They attack different links in the chain that runs from prohibited conduct to attributed blame.

**Why it matters - three consequences.** FACT: For third parties: those who assist a justified act may share its justification, whereas an excused wrong remains a wrong, so resistance stays permissible. FACT: For the norm: an excuse leaves the prohibition intact, while a justification marks a case the prohibition never covered. ANALYSIS: For sentencing: an excuse admits of degree and supports mitigation; a justification, if upheld, is complete.

**The connection to this clause.** ANALYSIS: The distinction does substantive work later. "Following orders" is an excuse and fails where the order is manifestly criminal; deterministic explanation is partial excuse and never justification; Duff's standing argument is neither, attacking the punisher's authority rather than the defendant's conduct.

**Verdict.** ANALYSIS: The distinction matters because it identifies **what is being contested** - the wrongfulness of an act, or the answerability of an agent - and answers that merge the two cannot say which.

### Why this earns marks

**Answer-writing focus:** a "distinguish and say why it matters" stem needs consequences, not two definitions. The third-party consequence is the sharpest, because it shows the distinction doing work outside the defendant's own case.

**Exam-length execution - 10 marks, about 150 to 220 words:** distinction three lines; what each denies one line; three consequences four lines; connection two lines; verdict one line.

- **Structure:** definitions -> what each denies -> three consequences -> application inside the clause -> verdict.
- **Doctrine:** the four-element attribution ladder and the two defences that answer it.
- **Evidence:** proportionate defence as justification; duress and incapacity as excuse.
- **Distinction:** wrongfulness against answerability.
- **Criticism:** the standing argument fits neither category, which shows the taxonomy is not exhaustive.

### How to improve this answer

Add that the distinction also explains why **degrees** behave differently: excuses come in degrees while justifications do not, which is why partial excuse is intelligible and partial justification is not. If a further line is available, note that mistaken belief in justifying circumstances is treated as an excuse rather than a justification, which shows the boundary being applied rather than merely stated.

### Original 2 · 10 marks

**Question:** "Genocide is simply mass murder on a large scale." Comment.

### Independent model answer

**Position.** ANALYSIS: False - and its falsity is why the concept exists.

**What the concept adds.** FACT: Under the **Genocide Convention (1948)**, genocide is specified acts committed with **intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such**. The defining element is intent against the **group**, not the toll.

**Lemkin's conception.** FACT: **Lemkin**, who coined the term in **Axis Rule in Occupied Europe\* (1944)**, did not define genocide as mass killing. He conceived it as a **coordinated plan of different actions** destroying the essential foundations of a group's life - institutions, culture, language, religion, economy, security, liberty, health, dignity - killing being **one method among several**.

**Why the wrong is irreducible.** FACT: A group's existence is sustained by its institutions, language and transmission as well as by its members' lives, so those foundations can be destroyed even where many members survive. Losing a **form of shared life** is not captured by counting murders.

**Two qualifications.** ANALYSIS: The Convention is **narrower** than Lemkin and **omits political groups**. ANALYSIS: Its presupposition - that groups have a morally significant existence not exhausted by members' interests - needs argument, since individualists deny it.

**Verdict.** ANALYSIS: Not scale but **specific intent against a group as such** - the distinction neighbouring categories exist to preserve.

### Why this earns marks

**Answer-writing focus:** a "comment" stem on a false slogan is scored on the **replacement** offered. Naming the specific-intent requirement and the irreducibility argument replaces the slogan with a criterion, and the two qualifications show that the criterion is being used carefully rather than enthusiastically.

**Exam-length execution - 10 marks, about 150 to 220 words:** position one line; the Convention definition two lines; Lemkin three lines; irreducibility three lines; two qualifications two lines; verdict one line.

- **Structure:** rejection -> the legal definition -> Lemkin's broader conception -> why the wrong is irreducible -> qualifications -> verdict.
- **Doctrine:** specific intent to destroy a group as such; destruction of the foundations of a group's life.
- **Evidence:** the 1948 Convention; Lemkin's 1944 work.
- **Distinction:** scale against intent; the Convention's text against Lemkin's conception.
- **Criticism:** the contested presupposition about group existence.

### How to improve this answer

Add the phrase "**killing is one method among several**" when stating Lemkin's conception, since it is the clause that most directly refutes the quoted slogan. If two more lines are available, name the neighbouring categories - crimes against humanity, distinguished by a widespread or systematic attack on a civilian population - to show that rejecting the slogan does not leave large-scale atrocity unnamed.

### Original 3 · 15 marks

**Question:** Examine whether restorative justice can replace retributive punishment for serious crimes.

### Independent model answer

**Position.** ANALYSIS: It cannot replace it for serious crimes; it can **supplement** it, and its applicability is conditional rather than general.

**What restorative justice claims.** FACT: It reconceives crime as a violation of persons and relationships rather than an offence against the state, and asks who was hurt, what they need and whose obligation it is to repair. The victim becomes a participant with standing rather than a prosecution witness, and the offender an active participant expected to acknowledge and repair rather than an object incentivised to deny.

**The mechanism.** FACT: **Braithwaite** supplies it: **stigmatising** shaming condemns the person, severs bonds, offers no route back and is criminogenic; **reintegrative** shaming condemns the act within a continuing relationship of care and is terminated by reacceptance.

**Where it sits on the three questions.** ANALYSIS: Its aim is repair; its liability condition still requires an admitted or proved voluntary wrong, so it does not bypass guilt; and its measure of outcome is what repair requires rather than what desert permits - which is exactly where the proportionality objection lands.

**Three objections and their replies.** FACT: **Proportionality:** outcomes would vary with the victim's temperament, so like cases are not treated alike; defensible schemes therefore operate inside limits set by desert - conceding that the retributive framework remains the outer constraint. ANALYSIS: **Power imbalance:** face-to-face process can re-traumatise or coerce where parties are unequal; this cannot be fully answered, so the practice is **conditionally appropriate**, requiring voluntariness, prior safety, skilled facilitation and the screening out of entrenched domination. FACT: **Public wrong:** if crime is only private harm, denunciation disappears; Feinberg and Duff answer this, since some wrongs must be publicly named.

**The presupposition that limits it.** ANALYSIS: The offender must value inclusion and the community must be willing to reaccept - conditions that fail precisely for already-excluded groups.

**Verdict.** ANALYSIS: Restoration within desert-set limits, supplementing rather than replacing authoritative condemnation; the layered position is that desert fixes the limits, condemnation supplies the meaning, communication supplies the address and restoration supplies the repair.

### Why this earns marks

**Answer-writing focus:** "examine whether X can replace Y" is scored on whether the **conditions of replacement** are specified. Mapping restoration onto the three justifying questions locates the failure precisely at severity, and the three objections then follow in order rather than as a list.

**Exam-length execution - 15 marks, about 250 to 330 words:** position one line; the claim four lines; mechanism two lines; grid two lines; three objections and replies six lines; presupposition two lines; verdict two lines.

- **Structure:** position -> doctrine -> mechanism -> the three-question mapping -> objections and replies -> presupposition -> layered verdict.
- **Doctrine:** crime as harm to persons and relationships; reintegrative against stigmatising shaming.
- **Evidence:** Braithwaite's mechanism; Feinberg and Duff on the public wrong.
- **Distinction:** supplement against replacement; desert-bounded band against unbounded restoration.
- **Criticism:** the power-imbalance objection, conceded rather than answered.

### How to improve this answer

State the **desert-bounded band** in one clause - restoration determines the outcome *within* the proportionate range - because it is what converts "supplement" from a compromise into a structure. If two more lines are available, add the uncomfortable distributional point: restorative justice is strongest where social bonds are intact and weakest where they have been destroyed, so it is least available to those whom conventional process treats worst.

### Original 4 · 15 marks

**Question:** "Guilt is individual; responsibility admits of collective forms." Critically examine this claim in the context of mass violence.

### Independent model answer

**Position.** ANALYSIS: The claim is correct and is the most important control in this area, because "collective responsibility" conceals at least five different claims.

**The five kinds, distinguished.** FACT: **Criminal guilt** - this person planned, ordered, incited or committed; defensible, and attaches to individuals only. FACT: **Organisational liability** - a body with decision procedures and a chain of command answers for what it decided; defensible where the body has genuine agency. ANALYSIS: **Political responsibility** - members of a polity bear responsibility for what is done in their name and by their institutions; partly defensible, grounding reparation, memory and reform, never guilt. ANALYSIS: **Moral responsibility for omission** - bystanders who could have acted at acceptable cost bear some responsibility; defensible but graded by knowledge, capacity and risk. WRONG: **Metaphysical or inherited guilt** - guilt by ancestry or membership; rejected, because it is the very logic that generates atrocity.

**Why differentiation is required.** FACT: Mass violence fragments agency through dehumanisation, moral exclusion, diffusion of responsibility, bureaucratic routine and suppressed dissent. FACT: Arendt's account of wrongdoing performed through cliché, careerism and failure of judgment describes that setting exactly - but concerns the **psychology of perpetration**, not the **degree of guilt**, and must be stated so, or it reads as an excuse.

**Critical examination.** FACT: **Objection:** political responsibility is incoherent, since citizens who opposed the policy, who were children, or who had no effective voice cannot owe reparation merely by membership. ANALYSIS: **Reply:** the category is grounded in membership of an **ongoing institutional order** whose acts were done in the members' name and whose liabilities they inherit - a structure familiar from corporate and successor-state obligation - and it yields duties to repair, remember and reform rather than blame. CAUTION: **Residue:** the reply is weakest for those who had no effective voice, on whom the duty may fall most heavily despite their being least able to prevent the wrong.



**Verdict.** ANALYSIS: Guilt individual, responsibility collective in form and graded in degree; assigning guilt to a community as such reproduces the perpetrator's own reasoning.

### Why this earns marks

**Answer-writing focus:** "critically examine" means the objection-reply layer **is** the answer. Setting out the five kinds first makes the objection precise, because it can then be aimed at one kind rather than at the phrase.

**Exam-length execution - 15 marks, about 250 to 330 words:** position one line; five kinds six lines; why differentiation is required three lines; objection, reply and residue five lines; verdict two lines.

- **Structure:** position -> the five kinds -> the mechanisms that require differentiation -> objection, reply, residue -> verdict.
- **Doctrine:** differentiated responsibility by role, knowledge, capacity and contribution.
- **Evidence:** Arendt on routinised participation, with the psychology/guilt control.
- **Distinction:** guilt against responsibility; political responsibility against inherited guilt.
- **Criticism:** the no-effective-voice residue, conceded rather than concealed.

### How to improve this answer

Name the rejected fifth category **explicitly as the perpetrator's own logic**, since that sentence is what makes the rejection an argument rather than a preference. If two more lines are available, add that the differentiated view is **factually demanding** and may be unavailable where evidence has been destroyed, which is an honest limit rather than a concession.

### Original 5 · 20 marks

**Question:** Critically evaluate the claim that a theory of punishment must be either backward-looking or forward-looking.

### Independent model answer

**Position.** ANALYSIS: The claim is false, and its falsity is established not by compromise but by showing that the two orientations answer **different questions**.

**Why the dilemma seems compelling.** FACT: Backward-looking theories justify punishment by what was done: desert for culpable wrongdoing, with proportionality as the measure. Forward-looking theories justify it by what will follow: prevention, protection, restoration of security. Since an act is either past or future in its reference, the orientations look exhaustive and exclusive.

**The move that dissolves it.** FACT: Following **Hart's** separation, three questions must be distinguished: **Q1**, why the institution of punishment should exist at all; **Q2**, whom we may punish and on what condition; **Q3**, how much punishment is permissible. Forward-looking prevention answers Q1 plausibly; backward-looking desert answers Q2 and Q3 without disaster. The dilemma arises only when one answer is demanded for all three.

**Why the separation is not ad hoc.** ANALYSIS: It is ordinary institutional reasoning: the aims of a promise-keeping practice differ from the rules determining who is bound by a particular promise. An institution may be justified by its general benefit while its individual applications are governed by an independent principle of fairness.

**What each pure theory then loses.** FACT: Pure retribution struggles at Q1, since desert explains why suffering is merited without explaining why the **state** must administer it. FACT: Pure deterrence fails at Q2, permitting the punishment of an innocent person where the preventive yield is large, and at Q3, permitting escalation without ceiling.

**The resulting position, and its teeth.** ANALYSIS: A two-level theory - consequentialist in aim, retributivist in constraint - generates three testable prohibitions: no punishment of the known innocent whatever the preventive gain; no penalty beyond the desert ceiling whatever the deterrent gain; and no abolition of the institution merely because desert cannot ground state administration.

**Critical evaluation.** FACT: **Objection:** the levels are unstable, since where punishment within the ceiling yields no preventive benefit the aim gives no reason to punish while the constraint permits it. ANALYSIS: **Reply:** the aim justifies the **rule-governed practice** rather than each application, and a practice making exceptions whenever marginal gain was absent would not be the practice whose benefit was invoked. CAUTION: **Residue:** this commits the theory to rule-level evaluation and its standing difficulty.



**Verdict.** ANALYSIS: Neither exclusively: the orientations are answers to different questions, and a structured mixed theory is a third position with its own presupposition, its own prohibitions and its own costs.

### Why this earns marks

**Answer-writing focus:** "critically evaluate" a dilemma is scored on whether the dilemma is **dissolved** rather than split. The three-question separation does that, and the three prohibitions answer the standing charge that mixed theories are evasions.

**Exam-length execution - 20 marks, about 330 to 400 words:** position two lines; why the dilemma seems compelling three lines; the dissolving move four lines; why it is not ad hoc two lines; what each pure theory loses three lines; the prohibitions three lines; objection, reply, residue four lines; verdict two lines.

- **Structure:** position -> the apparent dilemma -> the three-question separation -> the institutional analogy -> the losses of each pure theory -> the prohibitions -> objection, reply, residue -> verdict.
- **Doctrine:** general justifying aim, distribution and severity; side-constraints.
- **Evidence:** Hart's separation; the promise-keeping analogy.
- **Distinction:** justification of a practice against justification of an application.
- **Criticism:** rule-level evaluation and its inherited difficulty.

### How to improve this answer

Name the presupposition a **pure retributivist denies** - that institutional aim and application principle can come apart without incoherence - because stating it shows the mixed theory to be a substantive commitment rather than a neutral middle. If more space is available, note that the same separation reorganises every applied question in the clause, from juvenile sentencing to the death penalty.

### Original 6 · 20 marks

**Question:** "Punishment is a constrained practice, not a free exercise of state power." Discuss with reference to corruption, mass violence and capital punishment.

### Independent model answer

**Thesis.** ANALYSIS: Punishment is legitimate only as a **constrained** practice: its aim may be forward-looking, but its application is bound by legality, culpability, proportionality, dignity, procedure, equality and a preserved route back to membership. The three applications test those constraints differently.

**The constraints, stated.** FACT: A defensible punishment presupposes a public law known in advance; a voluntary act or relevant omission; proportionate culpability; fair procedure and reliable proof; a competent and impartial authority; proportionality between wrong, responsibility and sanction; and equal application without status bias. ANALYSIS: Each blocks a specific abuse, and naming the abuse converts the list into an argument.

**Corruption - pressure on the concept of a public wrong.** ANALYSIS: Victims are diffuse and no assault occurs, so the harm-based case for criminalisation is weak. The constraint holds because the wrong is the betrayal of **entrusted office** and the displacement of public rules by private access - wrongs surviving where no measurable loss is shown. ANALYSIS: Remedy follows diagnosis: attack monopoly, discretion and impunity, with certainty of detection as the operative lever.

**Mass violence - pressure on attribution.** FACT: Division of labour, bureaucratic routine and diffused responsibility fragment agency, tempting an answer either to acquit everyone below the leadership or to convict a community. The constraints forbid both: **guilt is individual**, while responsibility admits collective forms - organisational liability, political responsibility grounding reparation, memory and reform, and graded responsibility for omission - inherited guilt being rejected outright. ANALYSIS: Arendt's thesis is psychology, not a reduction of guilt.

**Capital punishment - pressure on every constraint at once.** FACT: The penalty is irreversible and eliminates the agent whose responsibility, capacity for reform and rights grounded the constraints. Desert may be granted and still cannot be reliably **administered** through a fallible, unequally resourced process; incapacitation fails necessity once secure imprisonment exists; deterrence is contested, and the burden under uncertainty lies with whoever proposes the irreversible penalty. ANALYSIS: *Bachan Singh* (1980) is a **judgment**, Law Commission Report No. 262 (2015) an **advisory report**.

**Objection and reply.** FACT: **Objection:** so many constraints leave the state unable to punish effectively. ANALYSIS: **Reply:** they do not reduce the capacity to punish the guilty; they reduce the capacity to punish **conveniently** - which is their whole point.

**Verdict.** ANALYSIS: Punishment is constrained or it is power: corruption tests whether a public wrong needs a visible victim, mass violence whether responsibility survives fragmentation, and capital punishment whether any constraint holds where error is uncorrectable.

### Why this earns marks

**Answer-writing focus:** a three-application stem is scored on whether one thesis is **tested** three times rather than three summaries being offered. Naming the specific pressure each application exerts - on the concept of a public wrong, on attribution, on every constraint at once - supplies the organising principle.

**Exam-length execution - 20 marks, about 330 to 400 words:** thesis two lines; constraints three lines; corruption four lines; mass violence four lines; capital punishment five lines; objection and reply three lines; verdict two lines.

- **Structure:** thesis -> the constraints -> three applications, each with its distinctive pressure -> objection and reply -> verdict.
- **Doctrine:** the seven conditions of responsible punishment; guilt individual, responsibility collective in form.
- **Evidence:** Arendt with its control; the classified 1980 judgment and 2015 report.
- **Distinction:** punishing the guilty against punishing conveniently.
- **Criticism:** the effectiveness objection, answered by specifying what capacity is actually lost.

### How to improve this answer

Make each application's **pressure point** explicit in its opening clause, since that is what prevents the answer from becoming three mini-essays joined by a thesis sentence. If more space is available, add that the three pressures are cumulative rather than parallel: corruption questions what counts as a public wrong, mass violence questions who may be held to answer for one, and capital punishment questions what may be done to whoever is held to answer - which is the same sequence as the three justifying questions.

## OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

This block is enrichment. Everything needed to answer any of the twelve owned parts is already in the Basic block, and the Basic block is answer-complete without a single line from here. Use one item at most in a 15- or 20-marker, and only where the stem has created room for it. WRONG: Nothing here repairs missing core content, and importing it into a short answer will cost more time than it earns marks.

### A1. Communicative censure and coercive delivery - the optional residue

ANALYSIS: Duff's communicative account is **Core** in this owner, not enrichment. What remains optional is the residual question it leaves: whether censure-communication can be **coercively delivered** without collapsing into hard treatment justified on other grounds. If the burden's justification is that it makes censure credible, the burden is doing expressive work; if it is that the offender deserves it, the communication is decoration on a retributive sentence.

CAUTION: A defender must show that the two justifications are not competitors but stages of one practice - a demanding claim, and one the Basic answer does not need.

### A2. Restorative practice at scale, and victim inequality

ANALYSIS: Restorative justice is **Core** here too. The optional residue is whether restorative practice **scales** to grave and mass crimes, and how it interacts with **victim inequality**. Two problems arise together at scale: the community of concern that Braithwaite's mechanism requires may not exist for a mass wrong, and outcomes that vary with the individual victim's disposition become visibly arbitrary when many victims of the same wrong receive different repair.

CAUTION: There is no settled answer; the honest position is that the desert-bounded band constrains the variation without eliminating it.

### A3. Collective and command responsibility in transitional settings

ANALYSIS: Beyond the five-kind grid, a further debate asks how **command responsibility** and **organisational liability** should operate where an entire administrative apparatus participated. The optional question is whether liability should track the **position** occupied or the **contribution** made, and whether a threshold of seniority can substitute for proof of individual contribution where records were destroyed. ANALYSIS: The Core answer already forbids inherited guilt and requires differentiation; this refinement asks what to do when differentiation is evidentially impossible. WRONG: Do not import it into a Basic answer, and do not name any historical setting.

### A4. Abolition against tightly constrained retention

ANALYSIS: The Core block supplies the moral justifications of capital punishment and the rights-based objections. The optional debate is the narrower one between **categorical abolition** and **tightly constrained retention under extreme culpability**. A constrained retentionist accepts fallibility and unequal administration as reasons for extreme narrowing rather than for abolition, and argues that the residual class is small enough for near-certainty. CAUTION: The abolitionist reply is that narrowing does not remove irreversibility and that the narrowed class is still selected by the same fallible process. ANALYSIS: Both positions are internally coherent; the disagreement is about achievable institutional accuracy, which philosophy frames and does not settle.

### A5. The strongest additional objection and reply

ANALYSIS: **Objection**. Restorative and communicative models can **underplay the moral seriousness** of grave wrongs and fail victims who need public denunciation. Where the wrong is atrocious, a process oriented to dialogue and repair may read as a refusal to condemn. ANALYSIS: **Reply**. The best restorative view is **not anti-censure**: it preserves condemnation while refusing vengeance as the sole mode of justice, and it is strongest exactly where **reintegration** and **differentiated responsibility** matter - that is, where many participants bore unequal responsibility and where the community must continue to contain them all. CAUTION: The residue is that this defence works better for the periphery of a mass wrong than for its authors.

### A6. Safe Indian deployment in a 15- or 20-marker

ANALYSIS: Corruption in public office, collective violence, custodial wrongs, juvenile culpability and the death-penalty debate may be used **only as illustrations** of how punishment balances dignity, desert, deterrence and fallibility. ANALYSIS: If a legal doctrine is invoked, mark it as **time-sensitive** and use it only if independently remembered accurately. WRONG: Do not collect crime statistics, prison data or convention lists; do not turn genocide into a historical catalogue; and do not characterise any community, government, party or episode. Theory first, illustration second, and always classified.

### A7. Promotion status and source trail

ANALYSIS: **Restorative and communicative punishment were promoted from optional enrichment to Core in this owner**, and they are taught in the Basic block accordingly. What remains optional is only the residue recorded at A1 and A2. **Still to promote if a future paper asks it directly**: transitional justice, and collective or command responsibility as an independent demand. FACT: **Source trail for this block**: Kant, *The Metaphysics of Morals*; Hegel, *Philosophy of Right*; Bentham, *An Introduction to the Principles of Morals and Legislation*; Hart on the separation of the general justifying aim from liability and severity; Feinberg, "The Expressive Function of Punishment"; Duff, *Punishment, Communication, and Community*; Arendt, *Eichmann in Jerusalem*.

## CONSOLIDATED REGISTER NOTES

Compressed recall for the whole topic, ordered for revision rather than for first learning. Every subtopic taught in the Basic block appears here, and the optional Advanced material is kept separate and marked. Part Q reproduces the complete ASCII master flow diagram.

## A. Say it exactly - the definition bank

| Term                            | Say it like this                                                                                                                                                                       |
|---------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Legal crime</b>              | conduct prohibited and punishable by a valid criminal law                                                                                                                              |
| <b>Moral wrong</b>              | conduct violating a justified ethical norm; overlaps legal crime without coinciding, in both directions                                                                                |
| <b>Actus reus*</b>              | the external act or legally relevant omission that links liability to conduct rather than thought; an omission needs a relevant duty                                                   |
| <b>Mens rea*</b>                | the fault element grading answerability: intention, knowledge, recklessness, negligence, then accident outside fault                                                                   |
| <b>Justification</b>            | the claim that the act was permissible in the circumstances                                                                                                                            |
| <b>Excuse</b>                   | the concession that the act was wrong, with blame denied or reduced for impaired control, knowledge or competence                                                                      |
| <b>Compatibilism</b>            | responsibility as reasons-responsive control, without metaphysical exemption from causation                                                                                            |
| <b>Retribution</b>              | punishment because culpable wrongdoing deserves a proportionate response; backward-looking; tested by desert                                                                           |
| <b>Deterrence</b>               | punishment justified by expected reduction of future harm; specific to the offender, general to others                                                                                 |
| <b>Incapacitation</b>           | restraint of a dangerous offender to protect others; tested by necessity and risk                                                                                                      |
| <b>Reform</b>                   | transformation of the capacities and conditions of lawful agency; tested by reintegration                                                                                              |
| <b>Restitution</b>              | the return of value or repair of loss - an outcome                                                                                                                                     |
| <b>Restorative justice</b>      | the participatory process in which victim, offender and community address harms, needs and obligations                                                                                 |
| <b>Expressive function</b>      | the authoritative condemnation that distinguishes punishment from a penalty                                                                                                            |
| <b>Communicative punishment</b> | an address to the offender as a responsible member of the community, inviting a response; hard treatment as secular penance                                                            |
| <b>Standing to punish</b>       | the polity's authority to call this offender to account, weakened where it has denied him the conditions of citizenship                                                                |
| <b>Ordinal proportionality</b>  | the ranking of penalties by seriousness                                                                                                                                                |
| <b>Cardinal proportionality</b> | how severe the entire penalty scale may be                                                                                                                                             |
| <b>General justifying aim</b>   | why the institution of punishment should exist at all                                                                                                                                  |
| <b>Distribution / liability</b> | whom we may punish and on what condition                                                                                                                                               |
| <b>Amount / severity</b>        | how much punishment is permissible                                                                                                                                                     |
| <b>Corruption</b>               | the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage, subverting the norm that office should serve its justified purpose |
| <b>Particularistic norms</b>    | norms assigning special weight to family, caste, friendship or patronage                                                                                                               |
| <b>Universalistic norms</b>     | norms requiring office-holders to apply public criteria impartially                                                                                                                    |
| <b>Structural harm</b>          | avoidable deprivation, danger or exclusion produced by institutional arrangements rather than by an identifiable assault                                                               |
| <b>Mass violence</b>            | large-scale violence against populations through organised coercion, collective mobilisation or cascading participation                                                                |

| Term                            | Say it like this                                                                                                                      |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>Banality of evil</b>         | extraordinary wrongdoing performed through cliché, careerism and failure of judgment rather than demonic depth                        |
| <b>Genocide</b>                 | specified acts with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such                  |
| <b>Discipline / panopticism</b> | the ordering, observation and normalisation of subjects; permanent asymmetrical visibility internalised because it cannot be verified |
| <b>Capital punishment</b>       | the state's intentional execution of a convicted offender                                                                             |

## B. The architecture - open almost every answer here

- **The one question.** When, if ever, may a state deliberately impose harm on a person because of what that person has done, and how much?
- **The master distinction.** Punishment is not justified merely because conduct is abhorrent. A theory must say **who** may punish, **for what purpose**, **within what limits**, and **under what conditions** of responsibility and fair procedure.
- **The three questions (Hart).** Q1 general justifying aim; Q2 distribution and liability; Q3 amount and severity. Prevention fits Q1; desert fits Q2 and Q3. Pure retribution is weakest at Q1; pure deterrence fails at Q2 and Q3.
- **The two-level conclusion.** Consequentialist in aim, retributivist in constraint, relational in manner - with three testable prohibitions: no punishment of the known innocent, no penalty beyond the desert ceiling, no substitution of repair for condemnation where the wrong is grave and public.
- **The four applications as stress tests.** Corruption tests whether a public wrong needs an identifiable victim; mass violence tests whether responsibility survives division of labour; genocide tests whether a wrong can be done to a group as such; capital punishment tests every constraint at once because it is irreversible.
- **The verdict shape.** Always condition-specifying: what the position secures, the condition on which it holds, and what it cannot do even when it holds.
- **Corpus.** 12 of 112 parts. 2018:1, 2019:2, 2020:2, 2021:1, 2022:2, 2023:1, 2024:1, 2025:2. Corruption 5, capital punishment 4, theory 2, proportionality 1, genocide 0 - and genocide remains compulsory.

## C. Crime, criminalisation, elements and defences

- **Two circles, three regions, two directions.** Legal but not morally wrong (an unjust law); legal and morally wrong (the paradigm); morally wrong but not legal (undefined, unenforced or unprovable) - the last is where much corruption and structural deprivation harm lies.
- **Three accounts, three questions.** Positivist: what is prohibited? Limit - validity is not justice. Moral: what wrong occurred? Limit - disagreement and vagueness. Sociological: which power relations define deviance? Limit - risk to legal certainty and fair notice.
- **Five criminalisation filters.** Harm; rights; public wrong; culpability; proportionality as least severe adequate response. Corruption strains the public-wrong filter and is carried by breach of entrusted office; capital punishment is a Q3 severity question, not a criminalisation question.
- **Four attribution elements.** External act or duty-grounded omission; graded fault; causation to the charged wrong; legality and fair notice.
- **Two defences that deny different things.** Justification denies wrongfulness; excuse denies answerability. Third-party consequence: assistants may share a justification, whereas an excused wrong remains resistible. Excuses admit of degree; justifications do not.
- **WRONG:** No clinical diagnosis or legal test for incapacity is asserted anywhere; incapacity enters only through competence, control and excuse.

## D. Responsibility: conditions, the hinge, freedom and determinism

- **Seven conditions, seven abuses.** Public law known in advance (retrospectivity); voluntary act or relevant omission (punishing thought or status); proportionate culpability (flattening fault); fair procedure and reliable proof (conviction on rumour); competent and impartial authority (vengeance in official dress); proportionality of wrong, responsibility and sanction (escalation); equal application without status bias (status-tracking penalties).
- **Conditions 5 and 7 are normative.** Condition 5 opens onto Duff's standing argument; condition 7 grounds the unequal-administration objection to the death penalty.
- **The hinge.** Responsibility is not causal contribution, in both directions: contribution without adequate knowledge or control, and culpable omission by a duty-bearer. Consequence: **differentiated responsibility** by role, knowledge, capacity and contribution.
- **Three positions on freedom.** Libertarian (alternative possibilities; hard to reconcile with causal explanation); hard determinist (basic desert undermined, protection and rehabilitation replace blame; persons as dangerous objects); compatibilist (reasons-responsive control; must mark the boundary with ordinary causation).
- **Working penal standard.** Understanding of relevant reasons, adequate control, and absence of responsibility-defeating coercion or incapacity - no metaphysical free will required.
- **What causal explanation does.** Mitigates and redirects; does not erase the intentional/reckless/negligent/accidental distinctions, which turn on knowledge and control. Cost to state: a dangerousness rationale loses the desert ceiling.

## E. The six families and the three logics

| Family                      | Direction           | Central test                           | Danger                                           |
|-----------------------------|---------------------|----------------------------------------|--------------------------------------------------|
| Retributive                 | backward            | desert                                 | vengeance, excess                                |
| Deterrent                   | forward             | expected prevention                    | using the offender as a means                    |
| Preventive / incapacitative | forward             | necessity and risk                     | indefinite or discriminatory confinement         |
| Reformative                 | forward             | reintegration                          | paternalism; neglect of victims                  |
| Restitution / restorative   | relational          | acknowledgement, repair, reintegration | unequal bargaining; unsuitable for some crimes   |
| Denunciatory / expressive   | backward and public | authoritative censure                  | hard treatment still needs its own justification |

- **The two families scripts omit.** Preventive and expressive. Their omission removes the incapacitation argument on capital punishment and the wrongful-conviction argument.
- **Three logics with non-negotiable objections.** Deontological - deserved suffering still needs a public institutional purpose. Consequentialist - utility alone can target innocents or permit excess. Relational - coercion, standing and unequal bargaining remain.
- **Restitution ≠ restoration.** Outcome against process.

## F. Retributivism: Kant, Hegel and the limiting reply

- **Kant.** Punishment answers to the culpable act, never merely to social utility; treating a person **only** as an instrument of deterrence violates rational agency. Keep the word *only*.
- **Hegel.** Punishment negates the crime's wrongful claim and restores right while addressing the offender as responsible.
- **Four steps.** Incompatible maxim -> imputable agency -> proportionate public denial -> respect for right rather than revenge.
- **Retribution is not revenge - four axes.** Agent: public impartial authority against the injured party. Measure: proportionate desert against intensity of grievance. Limit: a culpability ceiling against none. Generality: like cases alike against this case, this enemy.
- **Objection.** Suffering does not undo suffering; desert alone cannot show why the state should add pain.



- **Reply.** Limiting rather than maximising: no punishment without desert, none beyond it - **prohibitions, not commands.**
- **Residue.** The Q1 gap survives; the cardinal anchor must come from outside desert; a penalty inside the ceiling may still be administered degradingly.
- **2020 route.** Against rights if maximising; rights' strongest penal ally if limiting.

## G. Deterrence, incapacitation and reform

- **Deterrence.** Expected reduction of future harm; specific and general. Four presuppositions: responsiveness to perceived costs; known and sufficiently certain sanctions; benefits exceeding collateral harms; inadequacy of gentler alternatives.
- **Bentham and Beccaria.** All punishment is an evil justified only by preventing a greater evil; certainty and promptness matter more than severity - so escalation is the wrong lever.
- **Two located failures.** Q2: punishing the innocent; rule-utilitarian reply; **contingency** counter-reply - rights that hold only when observed are not rights. Q3: escalation without ceiling; repaired by a desert side-constraint.
- **Empirical discipline.** Never "proved" or "disproved". Under uncertainty the burden falls on whoever proposes an irreversible penalty.
- **Incapacitation.** Restrain the dangerous; test is necessity and risk; alone it loses the desert ceiling; fails necessity for execution once secure imprisonment is available.
- **Reform.** Rebuild the capacities of lawful agency without denying responsibility. Dignity argument in four steps: more than the worst act; impaired and rebuildable agency; capability not degradation; a preserved route back.
- **The four bounds (the 2021 answer).** Proportionality, consent where possible, review, rights. With them, reform is in tune with dignity; without them, it is not.
- **Costs.** Reform neglects the victim; a hard case remains where the desert ceiling expires while risk continues.

## H. Proportionality and juveniles

- **Two questions.** Ordinal ranks; cardinal anchors. A uniformly doubled scale remains perfectly ranked - so ordinal proportionality places **no ceiling**, and the anchor comes from dignity, humane treatment and the prohibition of degradation.
- **Three terms.** Proportionality holds between wrong, responsibility and sanction. Any inference from gravity of offence straight to severity of sentence is a **two-term inference** and is invalid.
- **Five juvenile factors.** Seriousness of harm (offence-centred); intention and understanding (joins); developmental capacity and susceptibility (offender-centred); prospects of reform (offender-centred, forward); procedural reliability (institutional, systematically weaker for the young).
- **Verdict.** The nature of the crime is **relevant but not conclusive**; integrate rather than balance, because capacity is an input into culpability and not a counterweight to seriousness.
- **Objection and reply.** The reasoning would extend to deprived adults; reply - developmental incompleteness is universal, temporary and predictable, so a general rule for juveniles and case-by-case mitigation for adults. Residue: graded rather than threshold treatment; any age line is a practical compromise.
- **WRONG:** Not licensed: that juveniles are never responsible; that harm is erased.

## I. The three questions and the mixed theory

- **Q1 aim:** prevention, protection, security fit; pure retribution struggles. **Q2 liability:** only the guilty, only for a voluntary act, only to the extent of culpability; pure deterrence permits punishing the innocent. **Q3 amount:** ordinal ranking under a cardinal ceiling; pure deterrence permits escalation without limit.
- **Six-step reconstruction.** Institutional benefit against application fairness -> the promise-keeping analogy -> prevention at Q1 -> desert side-constraint at Q2 and Q3 -> a two-level theory -> the dilemma dissolves.
- **Presupposition.** Aim and application principle can come apart without incoherence - denied by pure retributivists, so it must be stated.
- **Payoff.** Objections become **locatable**: punishing the innocent attacks deterrence at Q2; state-inflicted suffering attacks retributivism at Q1.



- **Objection and reply.** The levels look unstable where a sentence yields no marginal preventive gain; the aim justifies the **rule-governed practice**, not each application. Residue: rule-level evaluation and its standing difficulty.

## J. Expressive, communicative, restorative - and Foucault's caveat

- **Feinberg.** The differentia of punishment is authoritative condemnation, not hardship; severity cannot be the differentia because some penalties are heavier than some punishments. Explains: unrefundable condemnation after wrongful conviction; the wrongness of degrading forms independent of quantum; acquittal as vindication; victims' demand for public naming. Objection: why hard treatment at all? Reply: credibility. Residue: hard treatment becomes instrumental to expression.
- **Duff.** Communication addressed to the offender as a citizen; the trial as calling to account; hard treatment as **secular penance**. Presupposition: **standing**. Standing argument: the legitimacy of punishment is conditional on the justice of the order that imposes it - normative, not empirical, and therefore untouched by "many deprived persons do not offend". Standing is graded, not binary; it warrants restraint and reform, never amnesty. Illiberality objection; invitation reply; residue that a burden imposed by force is a strange invitation.
- **Foucault.** *Discipline and Punish* (1975 French; 1977 English). Spectacle -> discipline; target from body to conduct and habits; technique from occasional terror to continuous supervision; knowledge generated by the technique. Panopticism: asymmetrical permanent visibility, internalised because unverifiable; power lies in the **possibility** of observation; it economises on force. Docile bodies; manufactured delinquency. CAUTION: The functional claim is contested - a thesis, not a finding. WRONG: Three-part caveat: not a justification; the functional claim is contested; attach it to no named technology, programme or government. Placement: the **critical** paragraph only.
- **Restorative justice.** Six axes of contrast; Braithwaite's stigmatising (criminogenic) against reintegrative (regulatory) shaming. Grid: repair at Q1, guilt still required at Q2, repair-measured outcome at Q3 where proportionality bites. Three objections: proportionality (desert-bounded band); power imbalance (conditional appropriateness; cannot be fully answered); public wrong (supplement, never replace). Presupposition: valued inclusion and willing reacceptance - fails for already-excluded groups.
- **The layered verdict.** Desert fixes the limits, condemnation supplies the meaning, communication supplies the address, restoration supplies the repair - and Foucault supplies the warning that any of these can be captured by an apparatus of control.

## K. Corruption

- **Definition.** Misuse of **entrusted** public or institutional power through partial, concealed or improperly exchanged advantage, subverting the norm that office should serve its justified purpose. Wider than bribery: favouritism, nepotism, embezzlement, regulatory capture, abuse of discretion.
- **Five independent wrongs.** Breach of fiduciary trust; impartiality violation; rule-of-law injury as public rules are displaced by private access; agency harm as citizens become clients; institutional harm as honest action becomes costly. Each survives the failure of the others - which is how corruption passes the public-wrong filter without an identifiable victim.
- **Particularism against universalism.** Particular duties are **genuine**, which is why the tension is inherent. Four steps: genuine duties -> entrusted common purpose -> costs to unrepresented citizens -> corruption is legitimate loyalty acted on in a role governed by universal standards.
- **Remedy.** Role boundaries, conflicts of interest, recusal - not the suppression of loyalty. Characterisation: a **category error of role, executed for advantage**. Aristotle bounded to one point: friendship matters and cannot convert office into property.
- **Systemic or ethical.** An **ethical act within a systemic ecology**, defended by two explanatory residues - cross-institutional variation defeats pure ethics; cross-individual variation defeats pure structure. Priority: structure first, ethos where structure cannot reach. Regress: designers and auditors are themselves office-holders.
- **Regimes.** None immune; autocracy conceals through weak scrutiny, democracy exposes but generates patronage, campaign finance and capture. Regime type affects information, accountability and competition; outcomes also depend on institutional design, social inequality and norms of office. Regimes condition **visibility, cost and form** more than **existence**. WRONG: Disclosure is not incidence.

- **Mass-violence analogy.** State the conditions of violence; test; concede directness and intent and identifiable victims; verdict - analogical use only with a demonstrated foreseeable harm-chain, otherwise **structural harm**. Against: conceptual inflation erases the distinctive agency and intent of physical mass violence.
- **Remedies.** Attack monopoly, discretion and impunity; add ethos for the residue of judgment. **Certainty of detection over severity of penalty**, since corruption is the paradigm calculated offence by an actor with something to lose.
- **India, classified.** Prevention of Corruption Act, 1988 (amended 2018) - enacted criminal-law framework. Lokpal and Lokayuktas Act, 2013 - institutional accountability framework. ANALYSIS: Neither proves the ethics settled.
- **Limit.** Where the corrupt and the reformer are the same office, the systemic remedy has no purchase.

## L. Mass violence and collective responsibility

- **Definition.** Large-scale violence against populations through organised coercion, collective mobilisation or cascading participation; includes but is wider than genocide.
- **Six mechanisms.** Dehumanisation; moral exclusion; diffusion of responsibility; obedience and bureaucracy; polarisation and propaganda; ANALYSIS: security dilemma. Implication: **no exceptional persons are required**.
- **Arendt.** Cliche, careerism and failure of judgment rather than demonic depth. Presupposition: responsibility requires reflective judgment, not conformity to role. Objection: understates ideology; reply: ordinary obedience as the vehicle. ANALYSIS: Control: banality concerns the **psychology of perpetration**, not the **degree of guilt**.
- **Three positions.** Only individuals (ignores command structures); groups collectively (punishes by membership); **differentiated** - by role, knowledge, capacity and contribution; factually demanding, and strongest.
- **Five kinds.** Criminal guilt - individuals only, defensible. Organisational liability - bodies with genuine decision procedures, defensible. Political responsibility - citizens collectively; grounds reparation, memory, reform; **never guilt**. Responsibility for omission - individuals, graded by knowledge, capacity and risk. WRONG: Metaphysical or inherited guilt - rejected; it is the very logic that generates atrocity.
- **Controlling rule.** Guilt is individual; responsibility admits collective forms. CAUTION: Residue: political responsibility is weakest for those who had no effective voice.
- **Religiously framed violence - three distinctions.** Doctrine against mobilisation; communal violence against pogrom against genocide (structure, not scale); identity as target against identity as motive, with different remedies.
- **Prevention.** Independent information; protection of dissent; universal civic status; accountability for command; refusal of dehumanising categories. ANALYSIS: Moral exhortation without institutional checks is inadequate.
- WRONG: No community, country, party, government, movement or episode is named anywhere; answer at the level of criteria.

## M. Genocide

- **Chronology.** 1944 Lemkin coins the term in *Axis Rule in Occupied Europe*; 1948 Convention adopted; 1951 entry into force. Adoption and entry into force are different events.
- **Lemkin's conception.** Not mass killing but a **coordinated plan of different actions** aimed at destroying the essential foundations of a group's life - institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health, dignity - **killing being one method among several**.
- **The Convention.** Specified acts with **intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such**. WRONG: Narrower than Lemkin; **political groups are not protected**; do not extend the four categories; do not claim full adoption.
- **Six-step argument.** Individual-focused categories -> membership-directed wrongs -> foundations sustain group existence -> destruction without universal killing -> a distinct category defined by intent -> the wrong is **irreducible** to the aggregate of murders.
- **Presupposition.** Groups have a morally significant existence not exhausted by their members' interests - denied by individualist theories, so it must be argued.
- **Four neighbouring concepts.** Mass violence (scale and pattern; no fixed intent requirement); genocide (special intent against a protected group); crimes against humanity (widespread or systematic attack on a civilian

population); war crime (connected to armed conflict). ANALYSIS: Not every massacre is genocide.

- **Four reasons the wrong is distinctive.** Attack through membership; targeting of cultural and generational continuity; the claim to decide which human plurality may exist; the joining of individual killing to collective annihilatory purpose.
- **Three objections.** Redundancy - answered by the destruction of a **form of shared life**. Proof - specific intent is hard to establish; met by inference from a pattern of conduct, and this is why crimes against humanity often does the practical work. Protected-group limitation - a limit of the legal definition, addressed through crimes against humanity rather than by rewriting the treaty term.
- **Obedience and denial.** Following orders does not erase agency where an order is manifestly criminal; denial continues the wrong by attacking memory, testimony and survivors' standing; legal guilt remains individualised.

## N. Capital punishment

- **Why hardest.** Irreversible, and it eliminates the subject whose responsibility, reform and rights grounded penal theory.
- **Four arguments for, with status.** Retribution FACT::; deterrence CAUTION: empirical; incapacitation FACT: but secure imprisonment also incapacitates; public affirmation ANALYSIS: expressive - assess as such.
- **Six arguments against.** Fallibility and irreversibility; human dignity; deterrence uncertainty; unequal administration; foreclosure of reform; cruelty and death-row process.
- **Right to life.** Fundamental without being exceptionless. **Custody distinction:** immediate defence answers a present unjust threat with no alternative in time; execution follows custody and adjudication with less final means available - so necessity fails.
- **The conclusion to write.** Not "all rights are absolute" but **deliberate irreversible killing after control is established fails necessity under conditions of fallibility and alternative protection.**
- **Kantian tension.** Desert supports; persons-as-ends intensifies concern about procedural certainty. A Kantian abolitionist must show why equal respect forbids execution even where guilt and desert are established - via the reliability chain.
- **Social justice (2019).** Proportionality is necessary and insufficient; unequal social conditions magnify injustice under a neutral rule; separate effectiveness from permissibility; Duff's standing argument sharpens the point.
- **India, classified.** *Bachan Singh v. State of Punjab* (1980) - Supreme Court **judgment**, "rarest of rare". Law Commission Report No. 262 (2015) - official **advisory report** recommending abolition for ordinary crimes with specified terrorism-related and war exclusions. ANALYSIS: Legal compromise, not moral settlement, and no evidence of deterrent effect.
- **Two-chain structure.** Necessity governs **protective** rationales; the reliability chain answers **desert** rationales. CAUTION: Residue: a pure desert retentionist claiming sufficient process reliability is contradicted on institutional fact, not refuted.

## O. Inter-school debates and the criticisms table

| Debate                     | Axis                                 | Position to state                                                                                                                                                                                                                    |
|----------------------------|--------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Kant against Bentham       | why punish; direction; limit; danger | desert against prevention; backward against forward; proportional guilt against utility; sanctified suffering against instrumentalisation                                                                                            |
| Retribution against reform | what each protects                   | retribution protects agency by refusing to treat the offender as a patient only; reform protects dignity by refusing to freeze him in the past act; a mixed theory sets desert as an upper limit and pursues humane reform within it |

| Debate                                                | Axis                                          | Position to state                                                                                                                                                                      |
|-------------------------------------------------------|-----------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Arendt against monster theories</b>                | where evil is located                         | monster theories place atrocity outside ordinary humanity; Arendt warns that bureaucracy and thoughtlessness make ordinary participation possible; ANALYSIS: the two are not exclusive |
| <b>Particular loyalty against public impartiality</b> | the ethical task                              | friendship and particular bonds matter and cannot convert office into private property; the task is role-differentiation                                                               |
| Claim                                                 | Objection                                     | Reply                                                                                                                                                                                  |
| punishment communicates censure                       | state-inflicted suffering remains coercive    | censure must be proportionate and rights-bounded                                                                                                                                       |
| corruption is ethical                                 | ignores systemic equilibrium                  | agency and structure are jointly explanatory                                                                                                                                           |
| corruption is systemic                                | excuses individual choice                     | incentives influence but do not erase responsibility                                                                                                                                   |
| mass violence is collective                           | collective guilt is indiscriminate            | differentiate roles and contribution                                                                                                                                                   |
| death is proportionate to murder                      | equivalence repeats the wrong and risks error | retributivists distinguish public justice from private imitation                                                                                                                       |
| abolition respects dignity                            | may understate victim justice and security    | life punishment must still be proportionate, reviewable and humane                                                                                                                     |

## P. Directive decoder, answer methods, verdict formulas, the seventeen traps and the PYQ ledger

**Directive decoder.** *Explain* - statement, premises, key distinction, example; failure is moralising. *Discuss* - theory, rival, objection, reply, verdict; failure is an unadjudicated catalogue. *Critically examine* - two objections each with reply and residual problem; failure is emotive denunciation. *Is X justified?* - separate Q1, Q2, Q3 first; failure is one answer to three questions. *Should X be abolished or retained?* - name the test, apply it, then decide; failure is asserting a position and then listing both sides. *Is X a form of Y?* - state Y's necessary conditions, test X, give a verdict including partial fit; failure is analogy without a test. *Do you agree that...* - commitment is compulsory and must be qualified; failure is a survey with no position.

**Three methods. 10 marks** (~150 words, 4 moves, ~12 min): precise concept in technical vocabulary; argument as numbered premises plus the one distinction the stem turns on; one evidence unit with its limitation; graded verdict stating the controlling principle. **15 marks** (~220 words, 6 moves, ~18 min): identify the penal purpose or institutional wrong; the relevant theory with its presupposition; the strongest rival on the same question; one table; one fully worked objection -> reply -> residual problem; a verdict separating philosophical validity from implementation and from empirical effect. **20 marks** (~300 words, 8 moves, ~25 min): what makes the case difficult; separate Q1/Q2/Q3; competing theories in their strongest form; rights, dignity, culpability and proportionality applied; two objection-reply chains; the critical qualification placed in the critical paragraph; one precisely classified Indian legal illustration; a graded verdict naming the conditions.

**Verdict formulas.** Layered; question-separating; fallibility; standing; conditional-appropriateness; differentiated-responsibility; critical-qualification. Adapt them; never reproduce them mechanically.

**The seventeen traps.** (1) Not every moral wrong is a legal crime. (2) Retribution is not revenge. (3) Never say deterrence is proved or disproved without evidence. (4) Reform is not leniency. (5) Not every massacre is genocide. (6) No collective guilt from group membership. (7) Corruption is not only bad character nor only bad structure. (8) The 2015 Law Commission report is advisory, not enacted law. (9) *Bachan Singh* is a 1980 judgment, not legislation. (10) Limits on the right to life do not entail capital punishment. (11) Do not punish thought alone. (12) Do not merge justification and excuse. (13) Do not infer responsibility from causal contribution alone. (14) Determinism is not automatic acquittal, and metaphysical freedom is not a courtroom fact. (15) Restitution is not restorative justice. (16) Denunciation alone does not justify hard treatment. (17) Do not import Gandhi or Rawls without a stem-specific reason.

**PYQ ledger 2018-2025 - 12 of 112 owned parts.** 2018 Q1(e) 10, eradicating corruption. 2019 Q1(d) 10, corruption as mass violence. 2019 Q4(c) 15, capital punishment and social justice. 2020 Q3(c) 15, retributivism and human rights. 2020 Q4(c) 15, regimes and corrupt practice. 2021 Q2(b) 15, reformatory theory and dignity. 2022 Q1(c) 10, systemic or ethical. 2022 Q1(e) 10, moral justifications of capital punishment. 2023 Q4(a) 20, proportionality and juveniles. 2024 Q3(b) 15, capital punishment as deterrent. 2025 Q1(a) 10, particularistic against universalistic standards. 2025 Q3(a) 20, right to life and capital punishment.

## Q. COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

The twenty-two authored panels below are byte-identical to the standalone ASCII master flowchart shipped with this package, and they agree factually with the graphical at-a-glance rail. Read them top to bottom as one continuous flow.

ASCII MASTER FLOW - PANEL 1/22: The printed clause, central question and ownership fence

SYLLABUS (verbatim) -> "Crime and Punishment : Corruption, Mass Violence, Genocide, Capital Punishment."

ONE PAIRED CONCEPT + FOUR NAMED APPLICATIONS

v

THE CENTRAL QUESTION -> WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM ON A PERSON BECAUSE OF WHAT THAT PERSON HAS DONE -- AND HOW MUCH?

|

v

THE PREREQUISITE (not padding) -> what makes conduct a PUBLIC WRONG | who is ANSWERABLE for it | on what TERMS may coercion follow

|

v

THE FOUR PRINTED NOUNS ARE STRESS TESTS, NOT FOUR TOPICS

| APPLICATION        | JOINT IT ATTACKS                                                   | WHAT SURVIVAL SHOWS                                       |
|--------------------|--------------------------------------------------------------------|-----------------------------------------------------------|
| CORRUPTION         | must a public wrong have an IDENTIFIABLE VICTIM?                   | public wrong needs no assaulted victim                    |
| MASS VIOLENCE      | does RESPONSIBILITY survive DIVISION OF LABOUR and OBEDIENCE?      | division of labour REDISTRIBUTES but does not DISSOLVE it |
| GENOCIDE           | can a wrong be done to a GROUP AS SUCH?                            | a group's SHARED LIFE is a distinct object                |
| CAPITAL PUNISHMENT | every constraint at once -- IRREVERSIBLE, and it REMOVES the agent | the theory must hold where error CANNOT BE CORRECTED      |

|

v

MASTER DISTINCTION -> punishment is NOT justified merely because conduct is ABHORRENT. A theory must say WHO may punish, FOR WHAT PURPOSE, WITHIN WHAT LIMITS, and UNDER WHAT CONDITIONS of responsibility and fair procedure.

|

v

OWNERSHIP FENCE rights, duties, accountability, legitimacy of coercion -> Individual and State | justice, equality, liberty, dignity as ideals -> Social and Political Ideals | regime design and propaganda -> Forms of Government | gender doctrine -> Gender Discrimination | caste doctrine -> Caste Discrimination | moral evil and theodicy -> Philosophy of Religion | procedure, prisons, statistics, case-law survey -> OUTSIDE THIS PAPER  
BOUNDED BRIDGES DIGNITY and EQUAL MORAL STATUS -- name, use as a constraint, never re-expound | LEGITIMACY OF COERCION -- enters only through DUFF'S STANDING CONDITION

NOT ROUTED GANDHI and RAWLS are not independently demanded by the 2018-2025 corpus and are not imported as decoration.

CORPUS SHARE -> 12 of 112 parts (2018:1 2019:2 2020:2 2021:1 2022:2 2023:1 2024:1 2025:2). Corruption 5 | Capital punishment 4 | Theory 2 | Proportionality 1 | GENOCIDE 0 -- and still a full syllabus obligation.

ASCII MASTER FLOW - PANEL 2/22: Crime, moral wrong, and the five criminalisation filters

TWO CIRCLES THAT DO NOT COINCIDE -- AND THE NON-IDENTITY RUNS BOTH WAYS

LEGAL CRIME = conduct prohibited and punishable by a VALID CRIMINAL LAW

MORAL WRONG = conduct violating a JUSTIFIED ETHICAL NORM

| A: LEGAL BUT NOT MORALLY WRONG          | B: LEGAL *AND* MORALLY WRONG | C: MORALLY WRONG BUT NOT LEGAL                            |
|-----------------------------------------|------------------------------|-----------------------------------------------------------|
| an UNJUST LAW criminalises the innocent | the paradigm case            | wrongs that ESCAPE legal definition, enforcement or proof |

DIRECTION A -> VALIDITY DOES NOT PROVE JUSTICE (the POSITIVIST'S OWN point)

DIRECTION C -> where much CORRUPTION and STRUCTURAL DEPRIVATION harm lies

|

v

THREE ACCOUNTS, THREE DIFFERENT QUESTIONS -- NOT THREE RIVALS

| ACCOUNT          | ITS QUESTION                 | ITS LIMITATION                        |
|------------------|------------------------------|---------------------------------------|
| LEGAL POSITIVIST | what has the law PROHIBITED? | validity does not prove moral justice |

|              |                                                  |                                            |
|--------------|--------------------------------------------------|--------------------------------------------|
| MORAL        | what wrongful HARM or VIOLATION occurred?        | disagreement and vagueness                 |
| SOCIOLOGICAL | which NORMS and POWER RELATIONS define deviance? | may weaken LEGAL CERTAINTY and fair notice |

|  
v

CRIMINALISATION IS ITSELF AN EXERCISE OF POWER -> FIVE FILTERS

- [1] HARM ..... are interests SET BACK?
- [2] RIGHTS ..... does the conduct violate a right -- or would BANNING it?
- [3] PUBLIC WRONG . is this the COMMUNITY'S BUSINESS, or a private failing?
- [4] CULPABILITY .. can a FAULT ELEMENT be FAIRLY ATTRIBUTED?
- [5] PROPORTION-

ALITY ..... is criminal sanction the LEAST SEVERE ADEQUATE response, and is the penalty RANGE defensible?

FAIL ANY FILTER -> better handled by regulation, civil liability, taxation or education

|  
v

WHERE THE APPLICATIONS SIT CORRUPTION strains [3] because victims are DIFFUSE -- carried by BREACH OF ENTRUSTED OFFICE, not by measurable damage | MASS VIOLENCE and GENOCIDE pass all five and fail at ATTRIBUTION | CAPITAL PUNISHMENT is a SEVERITY question (Q3), NOT a criminalisation question

ASCII MASTER FLOW - PANEL 3/22: The attribution ladder and the two defences  
FOUR STEPS FROM PROHIBITED CONDUCT TO ATTRIBUTED BLAME

- [1] EXTERNAL ACT OR OMISSION (actus reus)  
FUNCTION: links liability to CONDUCT, not to THOUGHT  
CONTROL: an OMISSION requires a RELEVANT DUTY -- otherwise every bystander becomes a principal  
v
- [2] FAULT ELEMENT (mens rea)  
FUNCTION: GRADES answerability  
LADDER: INTENTION -> KNOWLEDGE -> RECKLESSNESS -> NEGLIGENCE ->  
| ACCIDENT (no fault)  
CONTROL: offences differ in required fault, but punishment must track  
| ATTRIBUTABLE CULPABILITY  
v
- [3] CAUSATION AND HARM  
FUNCTION: connects AGENCY to the PUBLIC WRONG CHARGED  
CONTROL: causal contribution ALONE is NOT sufficient responsibility  
v
- [4] LEGALITY AND FAIR NOTICE  
FUNCTION: prevents RETROSPECTIVE or INDETERMINATE condemnation  
CONTROL: legal validity STILL does not prove moral justice  
|  
v

EVEN THEN, TWO ANSWERS REMAIN -- AND THEY DENY DIFFERENT THINGS

|                                                               |                                                                           |
|---------------------------------------------------------------|---------------------------------------------------------------------------|
| JUSTIFICATION                                                 | EXCUSE                                                                    |
| the act was PERMISSIBLE in the circumstances                  | the act was WRONG, but blame is DENIED or REDUCED                         |
| e.g. necessary PROPORTIONATE defence against an UNJUST threat | e.g. DURESS; serious INCAPACITY                                           |
| DENIES: WRONGFULNESS                                          | DENIES: ANSWERABILITY                                                     |
| IF UPHELD: no wrong was done                                  | IF UPHELD: a wrong was done, by a not-fully-answerable agent              |
| THIRD PARTIES: ASSISTANTS may SHARE the justification         | THIRD PARTIES: the wrong REMAINS a wrong, so RESISTANCE stays permissible |

DEGREES: excuses come in DEGREES; justifications do NOT -- which is why PARTIAL EXCUSE is intelligible and PARTIAL JUSTIFICATION is not

|  
v

BOUNDARY MARKER this is NOT a criminal-law syllabus inside Philosophy. The four elements and two defences identify WHY COERCIVE BLAME MAY OR MAY NOT BE



ATTRIBUTED. Mental incapacity enters ONLY through COMPETENCE, CONTROL and EXCUSE. NO clinical diagnosis and NO legal test is asserted anywhere.

ASCII MASTER FLOW - PANEL 4/22: Seven conditions, seven abuses and the causation hinge  
SEVEN CONDITIONS A DEFENSIBLE PUNISHMENT PRESUPPOSES -- LEARN THE ABUSE, NOT THE LIST

| # | CONDITION                                                  | ABUSE IT BLOCKS                                              |
|---|------------------------------------------------------------|--------------------------------------------------------------|
| 1 | a PUBLIC LAW known in advance                              | retrospective condemnation                                   |
| 2 | a VOLUNTARY ACT or legally relevant OMISSION               | punishment of thought, status or identity                    |
| 3 | CULPABILITY proportionate to the fault ladder              | treating the reckless and the deliberate alike               |
| 4 | FAIR PROCEDURE and RELIABLE PROOF                          | conviction on suspicion, rumour or pressured confession      |
| 5 | a COMPETENT and IMPARTIAL AUTHORITY                        | private vengeance in official dress                          |
| 6 | PROPORTIONALITY between WRONG, RESPONSIBILITY and SANCTION | escalation without ceiling                                   |
| 7 | EQUAL APPLICATION without status bias                      | penalty tracking status, wealth or group rather than conduct |

CONDITIONS 5 and 7 ARE NORMATIVE, NOT PROCEDURAL:

5 -> the doorway to DUFF'S STANDING ARGUMENT (Panel 14)

7 -> the foundation of the UNEQUAL-ADMINISTRATION objection (Panel 21)

|  
v

THE HINGE -- RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION  
CAUSED IT? RESPONSIBLE?

| CASE A                 | CASE B                                               | CASE C                                 | CASE D         |
|------------------------|------------------------------------------------------|----------------------------------------|----------------|
| caused AND responsible | CAUSED but NOT responsible                           | RESPONSIBLE but did NOT directly cause | neither        |
| the paradigm           | contribution WITHOUT sufficient KNOWLEDGE or CONTROL | CULPABLE OMISSION by a DUTY-BEARER     | no attribution |

CASE B -> "HE CAUSED IT" DOES NOT SETTLE BLAME

CASE C -> "HE DID NOTHING" DOES NOT SETTLE INNOCENCE

|  
v

CONSEQUENCE FOR THE WHOLE CLAUSE -> DIFFERENTIATED RESPONSIBILITY by ROLE, KNOWLEDGE, CAPACITY and CONTRIBUTION. Case B protects the low-level participant in MASS VIOLENCE from automatic principal liability; Case C reaches the ENABLER, the SUPERVISOR and the OFFICE-HOLDER.

ASCII MASTER FLOW - PANEL 5/22: Freedom, determinism and the working penal standard  
THREE POSITIONS -- EACH WITH ITS PENAL IMPLICATION AND ITS DIFFICULTY

| POSITION            | PENAL IMPLICATION                                                                          | DIFFICULTY                                                  |
|---------------------|--------------------------------------------------------------------------------------------|-------------------------------------------------------------|
| LIBERTARIAN FREEDOM | DESERT requires genuine ALTERNATIVE POSSIBILITIES                                          | hard to reconcile with CAUSAL EXPLANATION                   |
| HARD DETERMINISM    | BASIC DESERT undermined; PROTECTION and REHABILITATION replace blame                       | risks treating persons ONLY as DANGEROUS OBJECTS            |
| COMPATIBILISM       | responsibility = REASONS-RESPONSIVE CONTROL, WITHOUT metaphysical exemption from causation | must DISTINGUISH CONSTRAINED AGENCY from ORDINARY CAUSATION |

|  
v

THE WORKING PENAL STANDARD -- WHAT A COURT ACTUALLY NEEDS

CRIMINAL RESPONSIBILITY NEED NOT PROVE METAPHYSICAL FREE WILL. IT REQUIRES:

- [i] the accused could UNDERSTAND the RELEVANT REASONS;
- [ii] could CONTROL conduct to an ADEQUATE degree;
- [iii] acted WITHOUT responsibility-defeating COERCION or INCAPACITY.

|

v  
 WHAT DETERMINISTIC EXPLANATION CAN AND CANNOT DO  
 CAN -> MITIGATE (reduce the severity desert permits)  
 CAN -> REDIRECT (punitive -> protective/rehabilitative, within limits)  
 CANNOT -> ERASE the INTENTIONAL / RECKLESS / NEGLIGENT / ACCIDENTAL distinction, which turns on KNOWLEDGE and CONTROL -- and deterministic explanation does not equalise those across cases

|  
 v  
 TWO SYMMETRICAL ERRORS BLOCKED  
 ERROR 1 -> DETERMINISM AS BLANKET ACQUITTAL: abolishes the FAULT LADDER, yet the same script goes on to discuss PROPORTIONATE DESERT  
 ERROR 2 -> METAPHYSICAL FREEDOM AS A COURTROOM FACT: makes DURESS, INCAPACITY and MITIGATION unintelligible

|  
 v  
 THE COST TO STATE HONESTLY where a PROTECTIVE rationale replaces a DESERT rationale, the DESERT CEILING disappears with it -- so a purely dangerousness-based system may detain LONGER than the wrong ever warranted

ASCII MASTER FLOW - PANEL 6/22: The six theory families on four axes

| FAMILY                       | DOCTRINE                                                                                                                     | DIRECTION         | CENTRAL TEST                          | DANGER                                           |
|------------------------------|------------------------------------------------------------------------------------------------------------------------------|-------------------|---------------------------------------|--------------------------------------------------|
| RETRIBUTIVE                  | punish because CULPABLE WRONGDOING deserves a PROPORTIONATE response                                                         | BACKWARD          | DESERT                                | vengeance / excess                               |
| DETERRENT                    | threaten or impose penalty to REDUCE FUTURE OFFENDING                                                                        | FORWARD           | EXPECTED PREVENTION                   | using the offender as a MEANS                    |
| PREVENTIVE / INCAPACITATIVE  | RESTRAIN a DANGEROUS offender to PROTECT OTHERS                                                                              | FORWARD           | NECESSITY and RISK                    | indefinite or discriminatory confinement         |
| REFORMATIVE / REHABILITATIVE | TRANSFORM CAPACITIES and CONDITIONS for LAWFUL AGENCY                                                                        | FORWARD           | REINTEGRATION                         | paternalism; neglect of victims                  |
| RESTITUTION / RESTORATIVE    | RESTITUTION returns value or repairs loss; RESTORATIVE JUSTICE adds ACCOUNTABLE PARTICIPATION of victim, offender, community | RELATIONAL        | ACKNOWLEDGEMENT, REPAIR REINTEGRATION | unequal bargaining; unsuitable for some crimes   |
| DENUNCIATORY / EXPRESSIVE    | PUBLICLY CONDEMN the wrong and AFFIRM the NORM VIOLATED                                                                      | BACKWARD / PUBLIC | AUTHORITATIVE CENSURE                 | hard treatment STILL needs its own justification |

THE TWO SCRIPTS ALWAYS OMIT -> PREVENTIVE and EXPRESSIVE. Omitting them is why answers oscillate between only RETRIBUTION and DETERRENCE, and it removes the INCAPACITATION argument (Panel 21) and the WRONGFUL-CONVICTION argument (Panel 13)

RESTITUTION != RESTORATION -> restitution is an OUTCOME; restoration is a PARTICIPATORY PROCESS inside which restitution may be one outcome

ASCII MASTER FLOW - PANEL 7/22: The three justificatory logics and the structured mixed theory

| LOGIC | CENTRAL QUESTION | THEORIES | NON-NEGOTIABLE OBJECTION |
|-------|------------------|----------|--------------------------|
|       |                  |          |                          |

|                               |                                                                                          |                                                    |                                                                          |
|-------------------------------|------------------------------------------------------------------------------------------|----------------------------------------------------|--------------------------------------------------------------------------|
| DEONTOLOGICAL                 | what is OWED<br>because of<br>CULPABLE WRONG<br>and EQUAL AGENCY?                        | retribution,<br>desert, rights,<br>proportionality | DESERVED SUFFERING<br>STILL NEEDS A<br>PUBLIC INSTITU-<br>TIONAL PURPOSE |
| CONSEQUEN-<br>TIALIST         | which response<br>PREVENTS FUTURE<br>HARM at LEAST<br>JUSTIFIED COST?                    | deterrence,<br>prevention,<br>rehabilitation       | UTILITY ALONE can<br>TARGET INNOCENTS<br>or PERMIT<br>EXCESSIVE SEVERITY |
| RELATIONAL /<br>COMMUNICATIVE | what response<br>CONDEMNS,<br>ADDRESSES and<br>REPAIRS while<br>RETAINING<br>MEMBERSHIP? | expressive,<br>communicative,<br>restorative       | COERCION, STANDING<br>and UNEQUAL<br>BARGAINING remain                   |

↓  
v

THE MIXED THEORY THE TWO GRIDS MAKE AVAILABLE  
CONSEQUENTIALIST about the INSTITUTION'S GENERAL AIM  
DEONTOLOGICAL in the CONSTRAINTS on LIABILITY and AMOUNT  
RELATIONAL in the MANNER of ADDRESS and REPAIR

↓  
v

OBJECTION -> "a mixed theory is an EVASION: it uses whichever component  
supports the conclusion it wants"

REPLY ----> that defeats an UNSTRUCTURED mixture. A STRUCTURED one assigns  
each logic a DETERMINATE ROLE and thereby generates THREE TESTABLE  
PROHIBITIONS:

- [1] NO punishment of the KNOWN INNOCENT, whatever the preventive gain
- [2] NO penalty BEYOND the DESERT CEILING, whatever the deterrent gain
- [3] NO substitution of REPAIR for CONDEMNATION where the wrong is GRAVE and PUBLIC

RESIDUE --> the PRIORITY ORDERING itself must be defended: why is desert a  
CEILING rather than a FLOOR? The mixed theory is a THIRD POSITION  
with its own burden, NOT a neutral compromise

ASCII MASTER FLOW - PANEL 8/22: Retributivism -- Kant, Hegel and the limiting reply  
THE ARGUMENT IN FOUR STEPS

[1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT

↓

[2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE -- addressed as a  
RATIONAL AGENT, not managed as a HAZARD

↓

[3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL MAXIM  
HEGEL: punishment NEGATES the crime's wrongful claim; it RESTORES RIGHT

↓

[4] PUNISHMENT THEREFORE EXPRESSES RESPECT FOR RIGHT, NOT PRIVATE REVENGE

↓  
v

KANT, STATED WITHOUT CARICATURE

punishment must answer to the offender's CULPABLE ACT and CANNOT be imposed  
MERELY to produce SOCIAL UTILITY; treating a person \*ONLY\* as an INSTRUMENT  
of deterrence violates RATIONAL AGENCY

[!] KEEP THE WORD "ONLY". Kant does not deny that punishment has useful  
effects; he denies that USEFULNESS LICENSES IT.

↓  
v

RETRIBUTION IS NOT REVENGE -- FOUR AXES

| AXIS       | REVENGE                | RETRIBUTION                    |
|------------|------------------------|--------------------------------|
| WHO ACTS   | the injured party      | a PUBLIC, IMPARTIAL AUTHORITY  |
| MEASURE    | intensity of grievance | PROPORTIONATE DESERT           |
| LIMIT      | none intrinsic         | a CEILING fixed by CULPABILITY |
| GENERALITY | this case, this enemy  | LIKE CASES ALIKE, impersonally |

↓  
v

OBJECTION -> "SUFFERING DOES NOT UNDO SUFFERING, and DESERT ALONE cannot show  
why the STATE should ADD pain"

REPLY ----> MODERN RETRIBUTIVISM CAN BE \*LIMITING\* RATHER THAN \*MAXIMISING\*:

(a) NO ONE may be punished WITHOUT desert  
(b) NO PENALTY may EXCEED desert  
-- desert as a NECESSARY CONDITION and a CEILING, NOT a positive command to inflict. These are PROHIBITIONS, not COMMANDS.

RESIDUE --> [i] the Q1 GAP survives: why the STATE, rather than no one?  
[ii] the CARDINAL ANCHOR must come from OUTSIDE desert (Panel 11)  
[iii] a penalty INSIDE the ceiling may still be administered  
DEGRADINGLY -- humane institutions need a separate account

|  
v

THE OWNED 2020 STEM IN ONE LINE "Is retributivism against human rights?" ->  
AGAINST them if MAXIMISING | THEIR STRONGEST PENAL ALLY if LIMITING, since  
it is the ONLY family that STRUCTURALLY FORBIDS punishing the innocent AND  
forbids escalation for preventive gain. A script treating retributivism as  
ONE THING has answered NEITHER version.

ASCII MASTER FLOW - PANEL 9/22: Deterrence -- presuppositions and two located failures  
JUSTIFICATION -> punishment is justified by the EXPECTED REDUCTION OF FUTURE  
HARM. SPECIFIC DETERRENCE addresses THE OFFENDER | GENERAL DETERRENCE  
addresses OTHERS

|  
v

FOUR PRESUPPOSITIONS -- EACH IS A PLACE THE ARGUMENT CAN FAIL

|   |                                                        |                                                                        |
|---|--------------------------------------------------------|------------------------------------------------------------------------|
| 1 | persons respond to PERCEIVED COSTS                     | FAILS for the impulsive, intoxicated, coerced, ideologically committed |
| 2 | sanctions are KNOWN and sufficiently CERTAIN           | FAILS where enforcement is rare, slow or arbitrary                     |
| 3 | preventive BENEFITS EXCEED direct and collateral harms | FAILS where damage to families, employment and trust is ignored        |
| 4 | LESS HARMFUL ALTERNATIVES are INADEQUATE               | FAILS where regulation, civil liability or design would serve          |

|  
v

BENTHAM -> all punishment is an EVIL, justified only by PREVENTING A GREATER EVIL  
BECCARIA -> CERTAINTY and PROMPTNESS matter MORE than SEVERITY, so ESCALATION is usually the WRONG LEVER

|  
v

FAILURE ONE -- LOCATED AT Q2 (WHOM MAY WE PUNISH?)  
OBJECTION -> deterrence may justify punishing an INNOCENT person if the social benefit is large enough  
REPLY -----> RULE-UTILITARIAN CONSTRAINTS: reliable guilt, legality, due process -- a practice of framing the innocent would destroy TRUST and thus LONG-RUN UTILITY  
COUNTER ---> the protection is therefore CONTINGENT ON DISCOVERY. A SECRET injustice, or a POPULAR one, escapes the objection while remaining an injustice. RIGHTS THAT HOLD ONLY WHEN OBSERVED ARE NOT RIGHTS.  
RESIDUE ---> a rights constraint that admits NO AGGREGATION must still say what happens in genuine CATASTROPHE cases

|  
v

FAILURE TWO -- LOCATED AT Q3 (HOW MUCH?)  
PURE DETERRENCE PERMITS ESCALATION WITHOUT CEILING: if harsher deters more, the theory has NO INTERNAL RESOURCE to say STOP. Beccaria's calibration is a PRUDENTIAL correction, not a PRINCIPLED ceiling.  
REPAIR ----> a DESERT SIDE-CONSTRAINT (Panels 8, 11, 12)

|  
v

EMPIRICAL DISCIPLINE deterrence is an EMPIRICAL claim: TRUE, FALSE or UNDETERMINED for a given penalty, and an answer must say which. NEVER write "proved" or "disproved" without evidence. UNDER UNCERTAINTY THE BURDEN LIES ON WHOEVER PROPOSES AN IRREVERSIBLE PENALTY.  
TRANSFER deterrence is STRONGEST for CALCULATED offences by actors WITH SOMETHING TO LOSE -> which is why it transfers to CORRUPTION (Panel 18) and transfers BADLY to crimes of passion and ideological violence

ASCII MASTER FLOW - PANEL 10/22: Prevention against reform, and the four bounds  
TWO FORWARD-LOOKING FAMILIES THAT ARE ROUTINELY MERGED

|                            |                                          |         |
|----------------------------|------------------------------------------|---------|
| PREVENTIVE /               | REFORMATIVE / REHABILITATIVE             |         |
| INCAPACITATIVE             |                                          |         |
| +-----+                    | +-----+                                  | +-----+ |
| RESTRAIN a dangerous       | TRANSFORM capacities and conditions for  |         |
| offender to protect others | LAWFUL AGENCY                            |         |
| TEST: necessity and RISK   | TEST: REINTEGRATION                      |         |
| OFFENDER = a SOURCE OF     | OFFENDER = an AGENT whose capacities can |         |
| RISK to be CONTAINED       | be REBUILT                               |         |
| DANGER: indefinite or      | DANGER: PATERNALISM; compulsory          |         |
| DISCRIMINATORY confinement | "treatment"; NEGLECT OF VICTIMS          |         |
| ALONE: loses the DESERT    | ALONE: loses PROPORTIONALITY, since      |         |
| CEILING                    | intervention tracks NEED, not DEED       |         |
| +-----+                    | +-----+                                  | +-----+ |

|  
v

THE REFORMATIVE DIGNITY ARGUMENT -- FOUR STEPS

- [1] PERSONS ARE MORE THAN THEIR WORST ACT (the act is not excused; it does not EXHAUST the person)
- [2] RESPONSIBLE AGENCY CAN BE IMPAIRED \*AND REBUILT\* -- ignorance, addiction, trauma, exclusion, distorted incentives, addressed WITHOUT DENYING RESPONSIBILITY
- [3] A HUMANE STATE SHOULD REDUCE FUTURE WRONGDOING THROUGH CAPABILITY, NOT DEGRADATION
- [4] PUNISHMENT SHOULD THEREFORE PRESERVE A ROUTE BACK TO MEMBERSHIP

|  
v

OBJECTION -> compulsory "TREATMENT" can PATHOLOGISE DISSENT and become INDEFINITE

REPLY ----> REHABILITATION MUST REMAIN BOUNDED BY:

- [i] PROPORTIONALITY -- never beyond the desert ceiling
- [ii] CONSENT WHERE POSSIBLE
- [iii] REVIEW -- no open-ended intervention
- [iv] RIGHTS -- retained throughout

UNDER THESE FOUR CONDITIONS, REFORM IS IN TUNE WITH DIGNITY. WITHOUT THEM, IT IS NOT. <- THE OWNED 2021 STEM IN ONE BOX

RESIDUE --> the HARD CASE: the COMPETENT offender who REFUSES voluntary provision and whose DESERT CEILING EXPIRES while RISK REMAINS. The bounded theory has nothing further to offer there.

|  
v

TWO MISREADINGS BLOCKED

"REFORM = LENIENCY" -> false: reform is compatible with RESPONSIBILITY and PROPORTIONATE RESTRAINT

"REFORM = THERAPY" -> false: reform ADDRESSES AN AGENT; it does not TREAT A PATIENT, and that difference is where dignity is won or lost

CARRY FORWARD PURE INCAPACITATION FAILS NECESSITY once SECURE IMPRISONMENT is available -- the hinge of the capital-punishment answer (Panel 21)

ASCII MASTER FLOW - PANEL 11/22: Proportionality -- ordinal, cardinal and juveniles

TWO QUESTIONS THAT ARE NOT THE SAME QUESTION

ORDINAL PROPORTIONALITY -> RANKS penalties by SERIOUSNESS. A RELATIVE question. RELIABLY supplied by DESERT INTUITIONS.

CARDINAL PROPORTIONALITY -> asks HOW SEVERE THE ENTIRE SCALE MAY BE. An ABSOLUTE question. NOT supplied by desert; needs an ANCHOR FROM OUTSIDE -- DIGNITY, HUMANE TREATMENT, the PROHIBITION OF DEGRADATION.

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v

THE CONSEQUENCE THAT WINS MARKS -> A SCALE CAN BE PERFECTLY ORDINALLY PROPORTIONATE AND STILL BE MONSTROUS. DOUBLE EVERY PENALTY AND THE RANKING IS UNTOUCHED. ORDINAL PROPORTIONALITY ALONE PLACES NO CEILING ON ANYTHING.

|  
v

THE THREE-TERM RELATION (from Panel 4, condition 6)

PROPORTIONALITY HOLDS BETWEEN \*WRONG\*, \*RESPONSIBILITY\* AND \*SANCTION\* -- THREE TERMS, NOT TWO. Any inference from GRAVITY OF OFFENCE straight to SEVERITY OF SENTENCE is a TWO-TERM INFERENCE and is invalid.

|  
v

THE OWNED 2023 STEM: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a JUVENILE the NATURE OF THE CRIME should be considered?

THE TRAP: it offers a PRINCIPLE EVERYONE ACCEPTS, then asks whether it settles a case IT DOES NOT SETTLE.

FIVE FACTORS MORAL ASSESSMENT MUST DISTINGUISH

+---+-----+-----+

|   |                                                           |                                                             |
|---|-----------------------------------------------------------|-------------------------------------------------------------|
| 1 | SERIOUSNESS OF HARM                                       | OFFENCE-CENTRED                                             |
| 2 | INTENTION AND UNDERSTANDING                               | JOINS offence to offender                                   |
| 3 | DEVELOPMENTAL CAPACITY and<br>SUSCEPTIBILITY TO INFLUENCE | OFFENDER-CENTRED                                            |
| 4 | PROSPECTS OF REFORM                                       | OFFENDER-CENTRED / FORWARD                                  |
| 5 | PROCEDURAL RELIABILITY                                    | INSTITUTIONAL -- systematically<br>WEAKER for young accused |

+---+-----+-----+  
|  
v

VERDICT SHAPE -> THE NATURE OF THE CRIME IS \*RELEVANT BUT NOT CONCLUSIVE\*.  
Reduced and developing agency ALTERS CULPABILITY even where harm is GRAVE.  
INTEGRATE the offence-centred and offender-centred perspectives; do NOT  
BALANCE them: capacity is an INPUT INTO CULPABILITY, not a COUNTERWEIGHT.  
ADJUSTING THE SENTENCE IS THEREFORE AN \*APPLICATION\* OF THE PRINCIPLE.  
OBJECTION -> the reasoning extends to adults shaped by DEPRIVATION, dissolving  
responsibility  
REPLY ----> DEVELOPMENTAL INCOMPLETENESS is UNIVERSAL, TEMPORARY and  
PREDICTABLE; adverse circumstance is PARTICULAR, VARIABLE and  
CONTESTED -> a GENERAL RULE for juveniles, CASE-BY-CASE mitigation  
for adults  
RESIDUE --> supports GRADED rather than THRESHOLD treatment; any AGE LINE is a  
practical compromise the philosophy does not generate  
NOT LICENSED [X] juveniles are never responsible [X] harm is erased

ASCII MASTER FLOW - PANEL 12/22: Hart's three questions and the two-level theory

| QUESTION                                    | FORMULATION                                               | FITS WELL                                                                                                                    | FITS BADLY                                                                                      |
|---------------------------------------------|-----------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Q1<br>GENERAL<br>JUSTIFY-<br>ING AIM        | WHY should the INSTITUTION<br>of punishment exist AT ALL? | FORWARD-<br>LOOKING:<br>prevention,<br>protection,<br>security                                                               | PURE RETRIBUTION<br>struggles to explain<br>why the STATE must<br>inflict deserved<br>suffering |
| Q2<br>DISTRIBU-<br>TION /<br>LIABIL-<br>ITY | WHOM may we punish, and on<br>what CONDITION?             | BACKWARD-<br>LOOKING:<br>only the<br>GUILTY,<br>only for a<br>VOLUNTARY<br>act, only to<br>the extent<br>of CULPABIL-<br>ITY | PURE DETERRENCE<br>permits punishing<br>the INNOCENT where<br>it would deter<br>effectively     |
| Q3<br>AMOUNT /<br>SEVERITY                  | HOW MUCH punishment is<br>permissible?                    | PROPORTION-<br>ALITY:<br>ordinal +<br>cardinal                                                                               | PURE DETERRENCE<br>permits ESCALATION<br>WITHOUT CEILING                                        |

+---+-----+-----+  
|  
v  
THE SIX-STEP RECONSTRUCTION  
[1] an institution can be justified by its GENERAL BENEFIT while its  
INDIVIDUAL APPLICATIONS are governed by an INDEPENDENT PRINCIPLE OF  
FAIRNESS  
[2] this is ORDINARY institutional reasoning -- the AIMS of a PROMISE-  
KEEPING PRACTICE differ from the RULES determining who is BOUND BY A  
PARTICULAR PROMISE  
[3] CRIME PREVENTION supplies a plausible AIM for the institution (Q1)  
[4] DESERT and CULPABILITY supply an indispensable SIDE-CONSTRAINT on  
LIABILITY and SEVERITY (Q2, Q3)  
[5] therefore the strongest position is a MIXED or TWO-LEVEL theory --  
CONSEQUENTIALIST IN AIM, RETRIBUTIVIST IN CONSTRAINT  
[6] this DISSOLVES the classical dilemma without conceding that either PURE  
theory is adequate

|  
v  
THE PRESUPPOSITION THAT MUST BE STATED the AIM of an institution and the  
PRINCIPLES GOVERNING ITS APPLICATION can COME APART WITHOUT INCOHERENCE --  
A PURE RETRIBUTIVIST DENIES THIS, so it must be argued, not assumed

|  
v  
THE EXAMINER-FACING PAYOFF -- LOCATE OBJECTIONS, DO NOT MERELY RECITE THEM

"PUNISHING THE INNOCENT" is an objection to DETERRENCE \*AT Q2\* -- NOT at Q1  
"WHY SHOULD THE STATE INFLICT SUFFERING" is an objection to RETRIBUTIVISM  
\*AT Q1\* -- NOT at Q2 or Q3  
AN ANSWER TREATING THE TWO THEORIES AS RIVAL ANSWERS TO ONE QUESTION CANNOT  
MAKE EITHER POINT.

|

v

OBJECTION -> the two levels are UNSTABLE: where punishing within the ceiling  
yields NO preventive benefit, the AIM gives no reason to punish  
while the CONSTRAINT permits it

REPLY ----> the AIM justifies the RULE-GOVERNED PRACTICE, not each  
APPLICATION; a practice making EXCEPTIONS whenever marginal gain  
was absent would NOT BE the practice whose benefit was invoked,  
since its threats would be known to be CONDITIONAL

RESIDUE --> this commits the theory to RULE-LEVEL evaluation and inherits the  
standing difficulty of rule-based consequentialism

HIGHEST-YIELD OPENING IN THE CLAUSE separate Q1/Q2/Q3 in the FIRST THREE  
LINES of any justification stem

ASCII MASTER FLOW - PANEL 13/22: Feinberg -- the expressive differentia  
THE PUZZLE a PARKING FINE, a TAX and a LATE-FILING FEE all impose HARD  
TREATMENT. So does a FINE ON CONVICTION. What makes the second a PUNISHMENT  
and the first three MERE PENALTIES?

|

v

NOT SEVERITY -> SOME PENALTIES ARE HEAVIER THAN SOME PUNISHMENTS

NOT THE AUTHORITY -> the same body may impose both

|

v

THE DIFFERENTIA IS SYMBOLIC punishment conveys the community's RESENTMENT,  
REPROBATION and JUDGMENT OF CONDEMNATION toward the offender for what was  
done. NOBODY REGARDS A PARKING FINE AS A STAIN ON CHARACTER.

|

v

THE ARGUMENT IN FIVE STEPS

- [1] penalties and punishments BOTH impose hard treatment
- [2] yet we DISTINGUISH them SHARPLY
- [3] the difference CANNOT lie in SEVERITY
- [4] it lies in SYMBOLIC SIGNIFICANCE -- authoritative DISAPPROVAL
- [5] therefore CONDEMNATION IS PART OF THE \*CONCEPT\* OF PUNISHMENT, NOT AN  
INCIDENTAL SIDE EFFECT

|

v

FOUR THINGS ONLY THIS ACCOUNT EXPLAINS

- [1] WRONGFUL CONVICTION is a distinct and grave wrong EVEN IF COMPENSATED --  
THE CONDEMNATION CANNOT BE REFUNDED
- [2] the \*FORM\* of punishment matters: DEGRADING punishments are  
objectionable INDEPENDENTLY OF SEVERITY
- [3] ACQUITTAL is not merely RELEASE but VINDICATION
- [4] VICTIMS often want the offence PUBLICLY NAMED rather than only PAID FOR

|

v

OBJECTION -> if CONDEMNATION is the point, SYMBOLIC DENUNCIATION WITHOUT HARD  
TREATMENT would suffice

REPLY ----> HARD TREATMENT makes the condemnation CREDIBLE and NON-CHEAP, and  
distinguishes a PUBLIC VERDICT from MERE DISAPPROVAL

RESIDUE --> this makes hard treatment INSTRUMENTAL TO EXPRESSION, which sits  
uneasily with the claim that it is DESERVED FOR ITS OWN SAKE.  
STATE THE RESIDUE.

SECOND OBJECTION -> the account grounds punishment in a community's ACTUAL  
attitudes, which can be MISDIRECTED or MANUFACTURED

REPLY ----> the thesis is CONCEPTUAL (what punishment IS), not JUSTIFICATORY  
(whether THIS condemnation is warranted). It STRENGTHENS the  
critique of misdirected condemnation, since an unwarranted  
conviction inflicts an UNWARRANTED CONDEMNATION -- a DISTINCT  
injury, not merely an unwarranted hardship.

RESIDUE --> where enforcement is SELECTIVE, the system EXPRESSES that some  
persons' wrongs are the community's business and others' are not.  
SELECTIVE ENFORCEMENT BECOMES A \*SYMBOLIC\* WRONG.

|

v

POSITION ON THE GRID Q1 = authoritative CENSURE | Q2 = only the GUILTY may be  
condemned; condemning the innocent is a DIFFERENT and grave wrong |  
Q3 = constrains the FORM more sharply than the QUANTUM -- rules out  
DEGRADATION directly, leaves SEVERITY to be fixed elsewhere



WHERE IT BITES HARDEST the "PUBLIC AFFIRMATION" argument for CAPITAL PUNISHMENT is an EXPRESSIVE argument -- assess it as one; and the IRREVERSIBILITY objection gets its strongest ground here, since a condemnation cannot be withdrawn from someone no longer alive to be VINDICATED

ASCII MASTER FLOW - PANEL 14/22: Duff -- communication, penance and standing to punish FROM EXPRESSION \*ABOUT\* THE OFFENDER TO COMMUNICATION \*WITH\* HIM

| AXIS              | EXPRESSIVE (Feinberg)                   | COMMUNICATIVE (Duff)                                                                               |
|-------------------|-----------------------------------------|----------------------------------------------------------------------------------------------------|
| DIRECTION         | ONE-WAY: society EXPRESSES condemnation | TWO-WAY: an ADDRESS that INVITES A RESPONSE                                                        |
| OFFENDER AS       | the OBJECT of judgment                  | a RATIONAL PARTICIPANT capable of ANSWERING                                                        |
| AIM               | authoritative DENUNCIATION              | REPENTANCE, REFORM, RECONCILIATION                                                                 |
| HARD TREATMENT IS | the VEHICLE of CREDIBLE condemnation    | a SECULAR PENANCE -- a burden that FOCUSES ATTENTION on the wrong and gives repentance PUBLIC FORM |

|  
v

THE ARGUMENT IN FIVE STEPS

- [1] citizens OWE ONE ANOTHER AN ACCOUNT of their conduct
- [2] a CRIMINAL TRIAL is a process of CALLING TO ACCOUNT, not merely of FACT-FINDING
- [3] the offender REMAINS A MEMBER, so the response must ADDRESS him rather than merely PROCESS him
- [4] a BURDEN IMPOSED AND UNDERGONE can focus attention on the wrong and give repentance PUBLIC FORM
- [5] therefore punishment is justified as COMMUNICATIVE PENANCE

|  
v

THE PRESUPPOSITION -> the political community has the \*STANDING\* to call THIS offender to account, which requires that it has NOT ITSELF DENIED HIM THE CONDITIONS OF CITIZENSHIP

|  
v

THE STANDING ARGUMENT -- THE STRONGEST BRIDGE TO SOCIAL JUSTICE

|                                                                                                      |                                                                          |  |
|------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|--|
| THE LEGITIMACY OF PUNISHMENT IS *CONDITIONAL ON THE JUSTICE OF THE POLITICAL ORDER THAT IMPOSES IT*. |                                                                          |  |
| WHY IT BEATS "POVERTY CAUSES CRIME"                                                                  |                                                                          |  |
| "POVERTY CAUSES CRIME"                                                                               | THE STANDING ARGUMENT                                                    |  |
| an EMPIRICAL claim about CAUSATION                                                                   | a NORMATIVE claim about AUTHORITY                                        |  |
| REPLY THAT KILLS IT: "many poor people do not offend"                                                | that reply is IRRELEVANT: the question is whether THE ACCUSER MAY ACCUSE |  |
| if true, it MITIGATES                                                                                | if true, it CHALLENGES THE STANDING OF THE PUNISHER                      |  |

|  
v

SECOND OBJECTION -> aiming at REPENTANCE is ILLIBERAL; the state may regulate CONDUCT but not attempt MORAL CONVERSION

REPLY ----> the communication INVITES rather than COMPELS, and REFUSAL TO REPENT attracts NO FURTHER PENALTY

RESIDUE --> A BURDEN IMPOSED BY FORCE IS A STRANGE INVITATION

THIRD OBJECTION -> standing has NO THRESHOLD, so every order's standing is partly compromised and the condition distinguishes nothing

REPLY ----> STANDING IS GRADED, not binary: the more SEVERELY and SPECIFICALLY a polity has denied a person the conditions of citizenship, the stronger the case for RESTRAINT IN SEVERITY and INSTITUTIONAL REFORM

RESIDUE --> no PROCEDURE is supplied for making that judgement inside a trial, and the VICTIM'S claim to public condemnation does NOT weaken merely because the state's standing has

LIMIT TO STATE [X] standing does NOT entail that an imperfect state may punish NOBODY. It grounds RESTRAINT and REFORM, never AMNESTY.

ASCII MASTER FLOW - PANEL 15/22: Foucault -- discipline, panopticism and the compulsory caveat  
A GENEALOGY OF PENAL POWER -- \*NOT\* A THEORY OF JUSTIFICATION  
\*DISCIPLINE AND PUNISH\* (1975 French; 1977 English translation)

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v

THE HISTORICAL SHIFT

PUNISHMENT AS PUBLIC SPECTACLE inflicted on the BODY of the condemned  
-> PUNISHMENT AS DISCIPLINE: ORDERING, OBSERVATION, TIMETABLING,  
TRAINING, NORMALISATION of subjects  
USUALLY NARRATED AS: HUMANITARIAN PROGRESS  
BUT IT ALSO CHANGED TWO THINGS:  
THE TARGET .... from the BODY to the SOUL, CONDUCT and HABITS  
THE TECHNIQUE . from OCCASIONAL TERROR to CONTINUOUS SUPERVISION

|  
v

THE NEW TECHNIQUE REQUIRED \*KNOWLEDGE\* OF THE OFFENDER -> generating  
CRIMINOLOGY, PSYCHIATRY and the CASE FILE  
-> THEREFORE POWER AND KNOWLEDGE DEVELOP \*TOGETHER\* rather than  
OPPOSING ONE ANOTHER

|  
v

PANOPTICISM -- THE MECHANISM

+-----+  
| AN ARCHITECTURE OF PERMANENT, \*ASYMMETRICAL\* VISIBILITY IN WHICH THE |  
| OBSERVED CANNOT VERIFY WHETHER THEY ARE BEING WATCHED AT ANY GIVEN |  
| MOMENT -- SO SURVEILLANCE IS \*INTERNALISED\* AND THE SUBJECT |  
| DISCIPLINES HERSELF. |  
| THE APPARATUS'S POWER LIES IN THE \*POSSIBILITY\* OF OBSERVATION, NOT |  
| ITS ACTUALITY -- WHICH IS WHY IT \*ECONOMISES ON FORCE\*. |  
+-----+

RESULT ON THIS ACCOUNT: "DOCILE BODIES", and DELINQUENCY MANUFACTURED as a  
MANAGEABLE CATEGORY rather than CRIME ELIMINATED

|  
v

THE FUNCTIONAL CLAIM [?] the prison's persistent FAILURE to reduce  
reoffending is NOT AN ANOMALY but FUNCTIONAL, sustaining a bounded,  
identifiable delinquent population -- CONTESTED, and STRONGER than the  
historical evidence strictly supports. PRESENT AS A THESIS, NOT A FINDING.

|  
v

THE COMPULSORY CAVEAT -- STATE IT EXPLICITLY OR LOSE MARKS

[1] [X] Do NOT present him as saying punishment is UNJUSTIFIED. His argument  
is about HOW PENAL POWER OPERATES, not about DESERT or LIABILITY. Using  
him as a NORMATIVE ALTERNATIVE to retribution or deterrence is a  
CATEGORY ERROR and will be marked as one.  
[2] [!] The FUNCTIONAL CLAIM is CONTESTED -- a thesis, not a finding.  
[3] [X] Do NOT attach panopticism to ANY named contemporary TECHNOLOGY,  
DATABASE, PROGRAMME or GOVERNMENT. It is an ANALYTICAL MODEL; NO  
empirical claim is made here about ANY surveillance practice ANYWHERE.

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v

OBJECTION -> if POWER CONSTITUTES SUBJECTS, the resources for CRITICISING  
penal power are unavailable; the critique UNDERCUTS ITSELF  
REPLY ----> RESISTANCE IS CO-EXTENSIVE WITH POWER, and the aim is to make  
CONTINGENT ARRANGEMENTS VISIBLE AS CONTINGENT  
RESIDUE --> showing an arrangement is CONTINGENT does NOT show it is BAD;  
without a NORMATIVE CRITERION the analysis cannot distinguish what  
is worth RESISTING from what is worth KEEPING -> so FOUCAULT MUST  
BE PAIRED WITH A NORMATIVE THEORY, NEVER SUBSTITUTED FOR ONE

|  
v

PLACEMENT IN AN ANSWER JUSTIFICATORY PARAGRAPH -> NO. CRITICAL PARAGRAPH ->  
YES, and he is STRONGEST showing why REFORMATIVE RHETORIC can coexist with  
INTENSIFIED CONTROL -- a direct qualification of Panel 10. JUDGE AIMS BY  
TECHNIQUES, not only by STATED PURPOSES.

ASCII MASTER FLOW - PANEL 16/22: Restorative justice and Braithwaite's two kinds of shaming  
SIX AXES ON WHICH RESTORATIVE PROCESS DIFFERS FROM CONVENTIONAL

| AXIS             | RETRIBUTIVE/CONVENTIONAL                       | RESTORATIVE                                          |
|------------------|------------------------------------------------|------------------------------------------------------|
| CRIME IS         | a BREACH OF LAW, an offence against the STATE  | a HARM TO PERSONS AND RELATIONSHIPS                  |
| CENTRAL QUESTION | which law was broken, who did it, what do they | who was HURT, what do they NEED, whose OBLIGATION is |

|                 |                                             |                                                                  |
|-----------------|---------------------------------------------|------------------------------------------------------------------|
|                 | DESERVE?                                    | it to REPAIR?                                                    |
| VICTIM'S ROLE   | a WITNESS for the prosecution               | a CENTRAL PARTICIPANT with STANDING                              |
| OFFENDER'S ROLE | OBJECT of proceedings; INCENTIVISED TO DENY | ACTIVE PARTICIPANT, expected to ACKNOWLEDGE and REPAIR           |
| OUTCOME         | proportionate HARD TREATMENT                | reparation, apology, restitution, changed conduct, REINTEGRATION |
| COMMUNITY       | REPRESENTED by the state                    | DIRECTLY INVOLVED as a STAKEHOLDER                               |

↓  
v

BRAITHWAITE'S MECHANISM -- SHAME THE ACT, KEEP THE PERSON

|                                                                        |                                                               |
|------------------------------------------------------------------------|---------------------------------------------------------------|
| STIGMATISING SHAMING                                                   | REINTEGRATIVE SHAMING                                         |
| condemns THE OFFENDER                                                  | condemns THE ACT                                              |
| LABELS THE PERSON as bad                                               | SUSTAINS RESPECT for the person                               |
| SEVERES bonds                                                          | disapproval WITHIN a CONTINUING RELATIONSHIP OF CARE          |
| offers NO ROUTE BACK                                                   | TERMINATED by FORGIVENESS and REACCEPTANCE                    |
| pushes toward CRIMINAL SUBCULTURES where the label is worn as IDENTITY | returns the offender to the COMMUNITY OF LAW-ABIDING CITIZENS |
| => CRIMINOGENIC                                                        | => REGULATORY                                                 |

ARGUMENT: informal disapproval regulates MORE POWERFULLY than formal sanction -> shaming reduces offending ONLY IF the offender is NOT PERMANENTLY CAST OUT -> stigmatisation SEVERES the bonds that make disapproval MATTER -> reintegration PRESERVES them and provides a ROUTE BACK -> therefore restorative processes are justified BOTH by MORAL CHARACTER and by REGULATORY EFFECT

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v

PRESUPPOSITION [!] the offender VALUES INCLUSION and the community is WILLING TO REACCEPT -- conditions that PLAINLY FAIL for members of ALREADY-EXCLUDED GROUPS. THE THEORY'S MOST SERIOUS LIMITATION. STATE IT.

↓  
v

POSITION ON THE GRID Q1 = REPAIR of harm and RESTORATION of relationships | Q2 = liability STILL requires an ADMITTED OR PROVED VOLUNTARY WRONG, so restoration is NOT a licence to BYPASS GUILT | Q3 = measured by WHAT REPAIR REQUIRES rather than WHAT DESERT PERMITS -- EXACTLY where the PROPORTIONALITY objection BITES

↓  
v

THREE OBJECTIONS, THREE REPLIES

PROPORTIONALITY -> outcomes vary with the VICTIM'S TEMPERAMENT; like cases are not treated alike | REPLY: defensible schemes operate INSIDE UPPER AND LOWER LIMITS SET BY DESERT -- which CONCEDES that the retributive framework remains the OUTER CONSTRAINT

POWER IMBALANCE -> face-to-face process can RE-TRAUMATISE or COERCE where parties are UNEQUAL | REPLY: the STRONGEST objection, and it CANNOT BE FULLY ANSWERED -> restorative process is CONDITIONALLY APPROPRIATE: genuine VOLUNTARINESS, prior SAFETY, skilled FACILITATION, SCREENING OUT of entrenched domination. [X] NOT universally applicable.

PUBLIC WRONG -> if crime is only PRIVATE HARM, DENUNCIATION disappears | REPLY: FEINBERG and DUFF -- some wrongs must be PUBLICLY NAMED, so restoration must SUPPLEMENT rather than REPLACE authoritative condemnation

↓  
v

THE LAYERED VERDICT -- THE BEST CLOSING AVAILABLE IN THE CLAUSE

DESERT fixes the LIMITS | CONDEMNATION supplies the MEANING | COMMUNICATION supplies the ADDRESS to the offender | RESTORATION supplies the REPAIR of harm | FOUCAULT supplies the standing WARNING that ANY of these can be CAPTURED BY AN APPARATUS OF CONTROL

DISTRIBUTIONAL RESIDUE restorative justice is STRONGEST where social bonds are INTACT and WEAKEST where they have been DESTROYED -- so it is LEAST AVAILABLE to those whom conventional process treats WORST

ASCII MASTER FLOW - PANEL 17/22: Corruption I -- entrusted power and the five wrongs DEFINITION

+-----+

| CORRUPTION = THE MISUSE OF \*ENTRUSTED\* PUBLIC OR INSTITUTIONAL POWER |  
 | THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED ADVANTAGE, |  
 | SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS JUSTIFIED PURPOSE. |  
 +-----+  
 WIDER THAN BRIBERY -> BRIBERY (improper exchange) | FAVOURITISM (partial  
 allocation) | NEPOTISM (partiality by kinship) | EMBEZZLEMENT (conversion of  
 entrusted resources) | REGULATORY CAPTURE (the regulated set the rules) |  
 ABUSE OF DISCRETION (lawful power for unjustified ends)  
 [X] An answer that treats corruption as BRIBERY has already NARROWED THE  
 QUESTION -- several owned stems turn on CAPTURE, DISCRETION and PATRONAGE.

|  
 v  
 FIVE REASONS IT IS WRONG -- FIVE \*DIFFERENT\* WRONGS  
 [1] BREACH OF TRUST ..... office creates FIDUCIARY OBLIGATIONS  
 [2] IMPARTIALITY VIOLATION similarly placed persons receive UNEQUAL  
 TREATMENT  
 [3] RULE-OF-LAW INJURY ... PUBLIC RULES are DISPLACED BY PRIVATE ACCESS  
 [4] AGENCY HARM ..... citizens become CLIENTS or SUPPLICANTS rather  
 than EQUALS  
 [5] INSTITUTIONAL HARM ... repeated corruption CHANGES EXPECTATIONS, making  
 [analysis] HONEST ACTION COSTLY and collective trust FRAGILE  
 WHY FIVE AND NOT ONE -> EACH SURVIVES THE FAILURE OF THE OTHERS. Even where  
 NO ONE IS MEASURABLY WORSE OFF, [1] and [3] STILL HOLD -> which is how  
 corruption passes the PUBLIC-WRONG FILTER (Panel 2) WITHOUT an identifiable  
 injured party.

|  
 v  
 THE OWNED 2025 STEM: "Corrupt practices reveal an INHERENT TENSION between  
 PARTICULARISTIC and UNIVERSALISTIC normative standards."

|                            |                                          |
|----------------------------|------------------------------------------|
| +-----+                    |                                          |
| PARTICULARISTIC NORMS      | UNIVERSALISTIC NORMS                     |
| assign SPECIAL WEIGHT to   | require OFFICE-HOLDERS to apply PUBLIC   |
| FAMILY, CASTE, FRIENDSHIP, | CRITERIA IMPARTIALLY                     |
| PATRONAGE                  |                                          |
| generate GENUINE DUTIES    | generate duties owed to ALL who stand in |
| -- NOT mere bias           | the same relation to the office          |
| +-----+                    |                                          |

THE FOUR-STEP ARGUMENT  
 [1] personal relations generate GENUINE DUTIES  
 [2] public office is ENTRUSTED FOR A SPECIFIED COMMON PURPOSE  
 [3] using office to discharge PRIVATE LOYALTY imposes costs on  
 UNREPRESENTED CITIZENS  
 [4] CORRUPTION OCCURS WHEN A \*LEGITIMATE\* PARTICULAR LOYALTY IS ACTED UPON  
 IN A ROLE GOVERNED BY \*UNIVERSAL PUBLIC STANDARDS\*

|  
 v  
 THE REMEDY [X] NOT the abolition of personal loyalty -> [OK] DEFINE ROLE  
 BOUNDARIES, CONFLICTS OF INTEREST and RECUSAL  
 THE CHARACTERISATION THAT EARNS THE VERDICT MARK the tension is between  
 \*DOMAINS\*, not between two RIVAL MORALITIES. Both norms are VALID IN THEIR  
 OWN DOMAIN. CORRUPTION IS A \*CATEGORY ERROR OF ROLE, EXECUTED FOR  
 ADVANTAGE\*. That is why the tension is INHERENT rather than resolvable.  
 ARISTOTLE, BOUNDED friendship and particular bonds MATTER and CANNOT convert  
 public office into private property -> the task is ROLE-DIFFERENTIATION.  
 ONE controlled point; [X] do NOT import a general theory of friendship.  
 LIMIT boundaries work cleanly for DISCRETE DECISIONS and less cleanly for  
 PERVERSIVE INFLUENCE, INFORMAL NETWORKS and AGENDA-SHAPING, where no  
 identifiable decision is diverted and RECUSAL HAS NOTHING TO ATTACH TO

ASCII MASTER FLOW - PANEL 18/22: Corruption II -- diagnosis, regimes and remedies  
 THE OWNED 2022 STEM: SYSTEMIC ISSUE OR ETHICAL ISSUE?

|                           |                                           |
|---------------------------|-------------------------------------------|
| +-----+                   |                                           |
| ETHICAL DIAGNOSIS         | SYSTEMIC DIAGNOSIS                        |
| CAUSE: greed, dishonesty, | CAUSE: OPACITY, MONOPOLY, EXCESSIVE       |
| weak integrity            | DISCRETION, IMPUNITY                      |
| FOCUS: CHARACTER, CHOICE  | FOCUS: INCENTIVES, INSTITUTIONAL          |
|                           | EQUILIBRIUM                               |
| REMEDY: MORAL EDUCATION,  | REMEDY: TRANSPARENCY, AUDIT, COMPETITION, |
| PROFESSIONAL ETHOS        | ACCOUNTABILITY                            |
| +-----+                   |                                           |

BEST POSITION -> CORRUPTION IS AN \*ETHICAL ACT WITHIN A SYSTEMIC ECOLOGY\*.  
 Structure influences OPPORTUNITY and COST but does NOT ERASE AGENCY;  
 character matters, but HEROIC VIRTUE CANNOT SUBSTITUTE FOR SOUND  
 INSTITUTIONS.  
 [!] THE MARK IS FOR THE \*REASON\* THE DISJUNCTION FAILS, NOT FOR SAYING

"BOTH". THE TWO EXPLANATORY RESIDUES:

PURE ETHICS cannot explain VARIATION ACROSS INSTITUTIONS with comparable populations

PURE STRUCTURE cannot explain VARIATION ACROSS INDIVIDUALS in IDENTICAL positions under IDENTICAL incentives

PRIORITY -> STRUCTURE FIRST (it fixes the opportunity set), ETHOS WHERE STRUCTURE CANNOT REACH

REGRESS -> auditors, investigators and rule-designers are THEMSELVES office-holders; design DISTRIBUTES and CHECKS discretion but cannot remove the FINAL LAYER OF JUDGMENT

|  
v

THE OWNED 2020 STEM: HOW FAR DO REGIMES CONDITION CORRUPT PRACTICE?

NO FORM OF GOVERNMENT IS AUTOMATICALLY IMMUNE

AUTOCRACY -> may CONCEAL corruption through WEAK SCRUTINY

DEMOCRACY -> may EXPOSE it, yet ALSO GENERATE PATRONAGE, CAMPAIGN-FINANCE and CAPTURE risks

REGIME TYPE AFFECTS -> INFORMATION | ACCOUNTABILITY | COMPETITION

OUTCOMES ALSO DEPEND ON -> INSTITUTIONAL DESIGN | SOCIAL INEQUALITY | NORMS OF OFFICE

THE PRECISE ANSWER TO "HOW FAR" -> regimes condition the VISIBILITY, the COST and the FORM of corruption FAR MORE THAN ITS EXISTENCE

[!] THE STANDARD ERROR -> CONFUSING \*DISCLOSURE\* WITH \*INCIDENCE\*. A regime that EXPOSES more corruption is NOT thereby MORE CORRUPT.

|  
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THE OWNED 2019 STEM: IS CORRUPTION \*NOT\* A FORM OF MASS VIOLENCE?

STEP 1 -> STATE THE NECESSARY CONDITIONS FOR \*VIOLENCE\* FIRST. TEST, DO NOT ASSERT.

STEP 2 -> TEST CORRUPTION AGAINST EACH

| CONDITION OF VIOLENCE        | MEETS?     | NOTE                                 |
|------------------------------|------------|--------------------------------------|
| large-scale harm to persons  | OFTEN YES  | via DIVERSION of essential resources |
| DIRECT PHYSICAL FORCE        | NO         | THE CORE DISANALOGY                  |
| INTENT TO HARM THE VICTIMS   | USUALLY NO | intent is to GAIN, not to INJURE     |
| IDENTIFIABLE VICTIMS         | NO         | DIFFUSE; causal chains               |
|                              |            | INVISIBLE                            |
| ABUSE OF INSTITUTIONAL POWER | YES        | the SHARED FEATURE                   |

STEP 3 -> VERDICT: CALL CORRUPTION "MASS VIOLENCE" ONLY \*ANALOGICALLY\* AND WITH A DEMONSTRATED, FORESEEABLE HARM-CHAIN; OTHERWISE USE \*STRUCTURAL HARM\*. FOR: diffuse victims, cumulative harm, invisible causal chains, abuse of institutional power. AGAINST: CONCEPTUAL INFLATION erases the distinctive AGENCY and INTENT of PHYSICAL mass violence -- and a concept covering everything DISCRIMINATES NOTHING.

|  
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THE OWNED 2018 STEM: MEASURES TO ERADICATE CORRUPTION

[X] THE TRAP: the stem invites a LIST. [OK] GIVE THE PRINCIPLE THAT

GENERATES THE LIST -> ATTACK THE THREE VARIABLES THAT MAKE OFFICE MISUSABLE

[A] MONOPOLY ... COMPETITION, PLURAL PROVIDERS, EFFECTIVE APPEAL

[B] DISCRETION . RULES, PUBLISHED CRITERIA, RECORDED REASONS, DEFINED CONFLICTS OF INTEREST, MANDATORY RECUSAL

[C] IMPUNITY ... TRANSPARENCY, INDEPENDENT AUDIT, INDEPENDENT INVESTIGATION, CERTAINTY OF DETECTION

[D] ETHOS ..... PROFESSIONAL ETHOS and MORAL EDUCATION for the RESIDUE OF JUDGMENT that no rule eliminates

BECCARIA TRANSFERS EXACTLY HERE -> corruption is the paradigm CALCULATED offence by an actor WITH SOMETHING TO LOSE, so CERTAINTY OF DETECTION is the OPERATIVE LEVER, not SEVERITY OF PENALTY

INDIAN INSTITUTIONAL ILLUSTRATIONS -- CLASSIFY BEFORE USE

PREVENTION OF CORRUPTION ACT, 1988 (amended 2018) = ENACTED CRIMINAL-LAW FRAMEWORK

LOKPAL AND LOKAYUKTAS ACT, 2013 = INSTITUTIONAL ACCOUNTABILITY FRAMEWORK

[!] NEITHER ENACTMENT PROVES THAT CORRUPTION IS ETHICALLY SOLVED.

IMPLEMENTATION, INDEPENDENCE, ENFORCEMENT and PUBLIC NORMS remain SEPARATE QUESTIONS.

LIMIT where corruption is concentrated at the level that DESIGNS AND ENFORCES the rules, there is NO EXTERNAL ARCHITECT and the systemic remedy has NO PURCHASE -- the analysis reaches its limit where the CORRUPT and the REFORMER ARE THE SAME OFFICE

ASCII MASTER FLOW - PANEL 19/22: Mass violence -- mechanisms and responsibility

DEFINITION MASS VIOLENCE = LARGE-SCALE VIOLENCE AGAINST POPULATIONS produced through ORGANISED COERCION, COLLECTIVE MOBILISATION or CASCADING PARTICIPATION. It INCLUDES, but is WIDER THAN, GENOCIDE.

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SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE

- [1] DEHUMANISATION ..... victims represented as CONTAMINANTS, THREATS or NON-PERSONS
- [2] MORAL EXCLUSION ..... ordinary restraints WITHDRAWN from an OUT-GROUP
- [3] DIFFUSION OF RESPONSIBILITY ..... each participant treats agency as FRAGMENTED
- [4] OBEDIENCE AND BUREAUCRACY ..... harmful acts ROUTINISED as ROLE-PERFORMANCE
- [5] POLARISATION AND PROPAGANDA ..... AMBIGUITY and DISSENT SUPPRESSED
- [6] SECURITY DILEMMA [?] ... groups interpret PRE-EMPTION as NECESSARY SELF-DEFENCE

WHAT THE LIST IMPLIES -> MASS VIOLENCE DOES NOT REQUIRE EXCEPTIONAL PERSONS. It requires REPRESENTATION, PERMISSION, FRAGMENTATION, ROUTINE, SILENCE and FEAR.

|  
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ARENDT -- \*EICHMANN IN JERUSALEM\*

the "BANALITY OF EVIL": EXTRAORDINARY WRONGDOING can be performed through CLICHES, CAREERISM and FAILURE OF JUDGMENT rather than DEMONIC DEPTH  
PRESUPPOSITION -> moral responsibility requires REFLECTIVE JUDGMENT, not merely CONFORMITY TO ROLE

OBJECTION -> "banality" may UNDERSTATE ideology, hatred, initiative

REPLY ----> Arendt does NOT DENY THE ENORMITY; she warns that ORDINARY INSTITUTIONAL OBEDIENCE can become ITS VEHICLE

[!] CRITICAL CONTROL -> BANALITY CONCERNS THE \*PSYCHOLOGY OF PERPETRATION\*, NOT THE \*DEGREE OF GUILT\*. SAY SO, OR IT WILL BE READ AS AN EXCUSE.

|  
v

THREE POSITIONS ON RESPONSIBILITY

ONLY INDIVIDUALS -> preserves personal culpability | IGNORES institutions and COMMAND STRUCTURES

GROUPS COLLECTIVELY -> captures organised agency and inherited benefit | PUNISHES PERSONS MERELY BY MEMBERSHIP

DIFFERENTIATED -> assigns liability by ROLE, KNOWLEDGE, CAPACITY, CONTRIBUTION | FACTUALLY DEMANDING <- THE STRONGEST VIEW

LEADERS, PLANNERS, DIRECT PERPETRATORS, ENABLERS, BYSTANDERS and RESISTERS DO NOT BEAR IDENTICAL RESPONSIBILITY.

|  
v

THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY -- THE DECISIVE GRID

| KIND                           | CLAIM                                                                                | DEFENSIBLE?                                              | ATTACHES TO                       |
|--------------------------------|--------------------------------------------------------------------------------------|----------------------------------------------------------|-----------------------------------|
| CRIMINAL GUILT                 | this person PLANNED, ORDERED, INCITED, COMMITTED                                     | YES -- paradigm                                          | INDIVIDUALS ONLY                  |
| ORGANISATIONAL LIABILITY       | a body with DECISION PROCEDURES and a CHAIN OF COMMAND answers for what it DECIDED   | YES, where it has GENUINE AGENCY                         | INSTITUTIONS, COMMANDS, PARTIES   |
| POLITICAL RESPONSIBILITY       | members bear responsibility for what is done IN THEIR NAME and by THEIR INSTITUTIONS | PARTLY: grounds for REPARATION, MEMORY, REFORM NOT GUILT | CITIZENS COLLECTIVELY             |
| RESPONSIBILITY FOR OMISSION    | BYSTANDERS who could have acted at ACCEPTABLE COST and did not                       | YES, GRADED by knowledge capacity risk                   | INDIVIDUALS by role and situation |
| METAPHYSICAL / INHERITED GUILT | guilty because of ANCESTRY or MEMBERSHIP                                             | NO -- THE VERY LOGIC THAT GENERATES                      | REJECTED                          |

```

|                                     | ATROCITY |
+-----+-----+-----+-----+
THE CONTROLLING RULE -> GUILT IS INDIVIDUAL; *RESPONSIBILITY* ADMITS OF
COLLECTIVE FORMS. POLITICAL RESPONSIBILITY GROUNDS OBLIGATIONS TO REPAIR,
REMEMBER AND REFORM; IT NEVER CONVERTS INTO CRIMINAL GUILT BY MEMBERSHIP.
AN ANSWER THAT ASSIGNS GUILT TO A COMMUNITY *AS SUCH* HAS REPRODUCED THE
PERPETRATOR'S OWN REASONING.
RESIDUE [?] -> political responsibility is WEAKEST for citizens who had NO
EFFECTIVE VOICE, on whom it may fall MOST HEAVILY though they were LEAST
ABLE TO PREVENT the wrong

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RELIGIOUSLY FRAMED VIOLENCE -- THREE DISTINCTIONS

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- [1] DOCTRINE vs MOBILISATION -> a tradition's TEXTS and a movement's POLITICAL USE of them are NOT THE SAME OBJECT. Explanation requires ORGANISATION, INCENTIVE, LEADERSHIP, IMPUNITY, PRIOR GRIEVANCE -- not only theology. [X] do not DERIVE violence from a religion; [X] do not EXONERATE a movement by pointing to a peaceful text
- [2] COMMUNAL VIOLENCE vs POGROM vs GENOCIDE -> differ in STRUCTURE, not merely SCALE: RECIPROCAL communal conflict | ONE-SIDED attack with OFFICIAL ACQUIESCENCE | destruction of a group AS SUCH with SPECIFIC INTENT. Three categories, three EVIDENTIARY REQUIREMENTS.
- [3] IDENTITY AS TARGET vs IDENTITY AS MOTIVE -> victims may be SELECTED by religious identity for INSTRUMENTAL POLITICAL reasons (land, votes, markets, labour). That the MARKER is religious does NOT establish that the MOTIVE is -- and the REMEDY differs: THEOLOGICAL ENGAGEMENT for one, ACCOUNTABILITY FOR ORGANISATION AND IMPUNITY for the other.
- [X] ANSWER DISCIPLINE -> NO community, country, party, government, movement or historical episode is named as an instance of ANY of these categories. ANSWER AT THE LEVEL OF \*CRITERIA\*.

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PREVENTION -- INSTITUTIONS THAT PRESERVE PERSONHOOD
INDEPENDENT INFORMATION | PROTECTION OF DISSENT | UNIVERSAL CIVIC STATUS |
ACCOUNTABILITY FOR COMMAND | REFUSAL OF DEHUMANISING CATEGORIES
[!] Education and memory matter, but MORAL EXHORTATION WITHOUT INSTITUTIONAL
CHECKS IS INADEQUATE.

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ASCII MASTER FLOW - PANEL 20/22: Genocide -- Lemkin, the Convention, and the group as such  
HOW THE CONCEPT WAS CONSTRUCTED

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1944 LEMKIN, *AXIS RULE IN OCCUPIED EUROPE* [SCHOLARLY WORK]
    coins GENOCIDE from Greek *genos* (race, tribe) + Latin *-cide*
    (killing)
    LEMKIN'S CONCEPTION -> a COORDINATED PLAN OF DIFFERENT ACTIONS aiming
    at the DESTRUCTION OF THE ESSENTIAL FOUNDATIONS OF THE LIFE OF A
    GROUP, with the aim of ANNIHILATING THE GROUP ITSELF. TARGETS INCLUDE
    political and social institutions, culture, language, national
    feeling, religion, economic existence, personal security, liberty,
    health and dignity -- KILLING BEING ONE METHOD AMONG SEVERAL.

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v
1948 GENOCIDE CONVENTION [INTERNATIONAL INSTRUMENT]
    SPECIFIED ACTS + INTENT TO DESTROY, IN WHOLE OR IN PART, A NATIONAL,
    ETHNICAL, RACIAL or RELIGIOUS GROUP, *AS SUCH*

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v
1951 ENTERS INTO FORCE [ADOPTION and ENTRY INTO FORCE are DIFFERENT
    EVENTS -- do not conflate them]

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v
THE PRECISION THE EXAMINER REWARDS

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+-----+-----+-----+-----+
| THE CONVENTION IS *NARROWER* THAN LEMKIN'S CONCEPTION. |
| [X] Do NOT assert that the Convention adopts Lemkin's conception IN |
| FULL -- the single commonest factual error on this material. |
| [X] POLITICAL GROUPS ARE *NOT* AMONG THE PROTECTED CATEGORIES. |
| [X] Do NOT extend the protected categories beyond the FOUR NAMED. |
+-----+-----+-----+-----+

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v
LEMKIN'S ARGUMENT IN SIX STEPS

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- [1] existing legal categories addressed wrongs done to INDIVIDUALS
- [2] but some wrongs are directed at a person \*BECAUSE OF\* MEMBERSHIP, and aim at the GROUP'S CONTINUED EXISTENCE AS SUCH
- [3] a group's existence is sustained not only by the LIVES of its members but by its INSTITUTIONS, LANGUAGE, TRANSMISSION and SHARED LIFE
- [4] destroying those FOUNDATIONS destroys the GROUP even where MANY



## INDIVIDUALS SURVIVE

- [5] therefore a DISTINCT CATEGORY is required, whose defining element is the  
\*INTENT TO DESTROY THE GROUP AS SUCH\*
- [6] the wrong is IRREDUCIBLE to the AGGREGATE of the individual murders that  
may compose it
- PRESUPPOSITION [!] -> groups have a MORALLY SIGNIFICANT EXISTENCE not  
EXHAUSTED by the aggregate of their members' interests. MUST BE ARGUED --  
INDIVIDUALIST moral theories DENY it and would locate the entire wrong in  
the murders.

|

v

FOUR NEIGHBOURING CONCEPTS -- DISTINGUISHED BY FEATURE, NOT SCALE

|                         |                                                                                                 |
|-------------------------|-------------------------------------------------------------------------------------------------|
| MASS VIOLENCE           | SCALE and COLLECTIVE PATTERN; NO single<br>fixed legal INTENT requirement                       |
| GENOCIDE                | SPECIAL INTENT to DESTROY A PROTECTED<br>GROUP, wholly or partly                                |
| CRIMES AGAINST HUMANITY | specified acts as part of a WIDESPREAD or<br>SYSTEMATIC ATTACK against a CIVILIAN<br>POPULATION |
| WAR CRIME               | serious violation CONNECTED TO ARMED<br>CONFLICT                                                |

UPSC TEST -> \*NOT EVERY MASSACRE IS LEGALLY GENOCIDE.\* THE SPECIFIC  
DESTRUCTIVE INTENT MATTERS.

|

v

WHY GENOCIDE IS A DISTINCTIVE MORAL WRONG -- FOUR REASONS

- [1] victims are attacked NOT ONLY AS INDIVIDUALS but AS MEMBERS of a group  
MARKED FOR DESTRUCTION
- [2] CULTURAL and GENERATIONAL CONTINUITY is targeted
- [3] the perpetrator CLAIMS POWER TO DECIDE WHICH HUMAN PLURALITY MAY EXIST
- [4] INDIVIDUAL KILLING and COLLECTIVE ANNIHILATORY PURPOSE ARE JOINED

|

v

THREE OBJECTIONS, THREE REPLIES

REDUNDANCY -> "if the killings are already the gravest crimes, 'genocide'  
adds a LABEL" | REPLY: the ADDITIONAL wrong is the destruction of a \*FORM  
OF SHARED LIFE\* -- a language, a tradition of transmission, a community of  
memory -- a loss to SURVIVORS, to THOSE NEVER BORN INTO IT, and arguably  
to HUMANITY, NOT captured by counting murders

PROOF -> "SPECIFIC INTENT makes it nearly impossible to prove, so the  
concept PROTECTS PERPETRATORS" | REPLY: a REAL evidentiary problem, met by  
INFERRING INTENT FROM A PATTERN OF CONDUCT -- but a LIMIT to be STATED  
honestly, and it explains why CRIMES AGAINST HUMANITY often does the  
PRACTICAL WORK

PROTECTED-GROUP LIMITATION -> the Convention omits POLITICAL and many SOCIAL  
groups | REPLY: that is a limitation of the LEGAL DEFINITION; broader  
MORAL CONDEMNATION runs through CRIMES AGAINST HUMANITY WITHOUT CASUALLY  
REWRITING THE TREATY TERM

|

v

RESPONSIBILITY, OBEDIENCE AND DENIAL

"FOLLOWING ORDERS" does NOT erase agency where an order is MANIFESTLY  
CRIMINAL. COMMAND RESPONSIBILITY, BUREAUCRATIC CONTRIBUTION and PROPAGANDA  
raise DIFFERENT EVIDENTIARY and MORAL questions, but ROLE NEVER  
AUTOMATICALLY CANCELS JUDGMENT.

DENIAL continues the wrong by attacking MEMORY, TESTIMONY and the STANDING  
OF SURVIVORS -- yet LEGAL GUILT MUST REMAIN INDIVIDUALISED rather than  
INHERITED by later members of a population.

- [X] ANSWER DISCIPLINE name NO country, community, government or episode. Cite  
the 1948 Convention as a DATED INTERNATIONAL INSTRUMENT and Lemkin's 1944  
work as a DATED SCHOLARLY SOURCE; argue the PHILOSOPHY SEPARATELY.

ASCII MASTER FLOW - PANEL 21/22: Capital punishment -- argument tree and custody test

DEFINITION the state's INTENTIONAL EXECUTION of a CONVICTED offender. THE  
HARDEST CASE because punishment becomes IRREVERSIBLE and ELIMINATES THE  
SUBJECT whose RESPONSIBILITY, REFORM and RIGHTS GROUND PENAL THEORY.

|

v

THE ARGUMENT TREE

|                         |                                     |
|-------------------------|-------------------------------------|
| FOR                     | AGAINST                             |
| [1] RETRIBUTION [OK] -- | [1] FALLIBILITY AND IRREVERSIBILITY |

|                                |                                      |         |
|--------------------------------|--------------------------------------|---------|
| exceptionally grave culpable   | [OK] -- WRONGFUL EXECUTION CANNOT    |         |
| killing may DESERVE the        | BE REPAIRED                          |         |
| gravest proportionate response |                                      |         |
| [2] DETERRENCE [?] -- may      | [2] HUMAN DIGNITY [OK] -- the state  |         |
| deter BEYOND LIFE IMPRISON-    | CONTRADICTS ITS OWN CONDEMNATION OF  |         |
| MENT; an EMPIRICAL claim that  | KILLING by deliberately              |         |
| CANNOT BE ASSUMED              | extinguishing a RESTRAINED person    |         |
| [3] INCAPACITATION [OK] --     | [3] DETERRENCE UNCERTAINTY [?] --    |         |
| permanently prevents           | comparative claims are EMPIRICALLY   |         |
| reoffending, THOUGH SECURE     | CONTESTED; the argument MUST STATE   |         |
| IMPRISONMENT ALSO              | the uncertainty                      |         |
| INCAPACITATES                  |                                      |         |
| [4] PUBLIC AFFIRMATION [!] --  | [4] UNEQUAL ADMINISTRATION [OK] --   |         |
| may EXPRESS the equal value of | unequal defence, bias and discretion |         |
| victims; an EXPRESSIVE         | UNDERMINE PROPORTIONALITY            |         |
| argument -- ASSESS IT AS ONE   | [5] FORECLOSURE OF REFORM [OK]       |         |
|                                | [6] CRUELTY AND DEATH-ROW PROCESS    |         |
|                                | [!] -- prolonged uncertainty can ADD |         |
|                                | SUFFERING BEYOND the formal sentence |         |
| +-----+                        | +-----+                              | +-----+ |

|

v

THE OWNED 2025 STEM: CAN THE RIGHT TO LIFE BE ABSOLUTE? -- FOUR MOVES IN ORDER

- [1] THE RIGHT TO LIFE IS NOT TREATED AS ABSOLUTE \*EVEN BY ITS DEFENDERS\*:  
 SELF-DEFENCE and NECESSITY are accepted limits. A right can be  
 FUNDAMENTAL WITHOUT BEING EXCEPTIONLESS. [X] asserting absoluteness  
 chooses the WEAKEST premise and is refuted by one counter-example.

v

- [2] SO THE QUESTION IS WHETHER \*CUSTODIAL\* KILLING MEETS THE SAME CONDITIONS

|                          |                                    |         |
|--------------------------|------------------------------------|---------|
| +-----+                  | +-----+                            | +-----+ |
| IMMEDIATE DEFENCE        | EXECUTION                          |         |
| responds to a PRESENT    | FOLLOWS CUSTODY and ADJUDICATION   |         |
| UNJUST THREAT            |                                    |         |
| NO ALTERNATIVE available | LESS FINAL MEANS of INCAPACITATION |         |
| in time                  | ARE AVAILABLE                      |         |
| NECESSITY SATISFIED      | NECESSITY *NOT* SATISFIED          |         |
| +-----+                  | +-----+                            | +-----+ |

=> LIMITS ON THE RIGHT TO LIFE IN DEFENCE DO \*NOT\* AUTOMATICALLY JUSTIFY  
 CAPITAL PUNISHMENT

v

- [3] THEN DESERT and DETERRENCE, EACH ON ITS OWN QUESTION (Q1/Q2/Q3), NOT AS  
 A HEAP

v

- [4] THEN FALLIBILITY, UNEQUAL ADMINISTRATION, FORECLOSURE OF REFORM -> AND  
 THE CONDITION-SPECIFYING VERDICT

|                                                                  |         |         |
|------------------------------------------------------------------|---------|---------|
| +-----+                                                          | +-----+ | +-----+ |
| THE STRONGEST ABOLITIONIST CONCLUSION IS *NOT* "ALL RIGHTS ARE   |         |         |
| ABSOLUTE" BUT: *DELIBERATE IRREVERSIBLE KILLING AFTER CONTROL IS |         |         |
| ESTABLISHED FAILS NECESSITY UNDER CONDITIONS OF FALLIBILITY AND  |         |         |
| ALTERNATIVE PROTECTION.*                                         |         |         |
| +-----+                                                          | +-----+ | +-----+ |

|

v

THE KANTIAN TENSION KANTIAN RETRIBUTIVISM supports punishment ACCORDING TO  
 DESERT and famously treats MURDER as demanding DEATH -- YET the wider  
 KANTIAN COMMITMENT to PERSONS AS ENDS INTENSIFIES concern about PROCEDURAL  
 CERTAINTY and INSTRUMENTAL DETERRENCE.

[!] A KANTIAN ABOLITIONIST CANNOT SIMPLY CITE DIGNITY. The argument must  
 show WHY EQUAL RESPECT FORBIDS EXECUTION EVEN WHERE GUILT AND DESERT ARE  
 ESTABLISHED -> the available route is the IRREVERSIBILITY + FALLIBILITY +  
 UNEQUAL-ADMINISTRATION chain, which attacks the CONDITIONS OF  
 DESERT-TRACKING rather than desert itself.

|

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THE OWNED 2019 STEM: DOES IT WEAKEN SOCIAL JUSTICE? -- THREE VARIABLES

PROPORTIONALITY -> seriousness is NECESSARY but NOT SUFFICIENT; culpability,  
 mitigation, consistency and ALTERNATIVES matter

SOCIAL JUSTICE -> a penalty administered THROUGH UNEQUAL SOCIAL CONDITIONS  
 can MAGNIFY INJUSTICE even where its ABSTRACT RULE IS NEUTRAL (condition 7,  
 Panel 4)

DETERRENCE -> SEPARATE empirical EFFECTIVENESS from moral PERMISSIBILITY: an  
 EFFECTIVE deterrent may still VIOLATE RIGHTS; an INEFFECTIVE one LOSES its  
 utilitarian basis

+ DUFF'S STANDING ARGUMENT (Panel 14) is the sharpest link available

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# INDIAN LEGAL ILLUSTRATIONS -- CLASSIFY BEFORE USE

\*BACHAN SINGH v. STATE OF PUNJAB\* (1980) = SUPREME COURT \*JUDGMENT\*;  
retained capital punishment while formulating the "RAREST OF RARE"  
limitation. [X] NOT LEGISLATION.

LAW COMMISSION OF INDIA, REPORT NO. 262, \*THE DEATH PENALTY\* (2015) =  
OFFICIAL \*ADVISORY REPORT\*; recommended ABOLITION FOR ORDINARY CRIMES  
while EXCLUDING specified TERRORISM-RELATED and WAR contexts from that  
recommendation. [X] IT RECOMMENDS; IT DOES NOT ENACT.

[!] THESE ILLUSTRATE INDIA'S LEGAL COMPROMISE. THEY DO NOT SETTLE THE MORAL  
DEBATE OR ESTABLISH DETERRENT EFFECT.

OBJECTION -> "necessity is the WRONG TEST: no punishment is 'necessary' once  
the offender is in custody, so the argument would abolish  
IMPRISONMENT too"

REPLY ----> NECESSITY GOVERNS ONLY \*PROTECTIVE\* RATIONALES. Where the defence  
is INCAPACITATION or PUBLIC SAFETY, necessity applies and SECURE  
IMPRISONMENT satisfies it at LOWER COST. Where the defence is  
DESERT ALONE, the argument shifts to the SECOND CHAIN --  
FALLIBILITY, IRREVERSIBILITY, UNEQUAL ADMINISTRATION.

RESIDUE --> a PURE DESERT RETENTIONIST who concedes non-necessity and claims  
SUFFICIENT PROCESS RELIABILITY has been CONTRADICTED on a question  
of INSTITUTIONAL FACT, not REFUTED. Philosophy FRAMES that debate;  
it does not SETTLE it.

## ASCII MASTER FLOW - PANEL 22/22: The integrated answer spine, the evidence bank and the ledger DIRECTIVE DECODER -- THE VERB FIXES THE STRUCTURE

| DIRECTIVE                          | COMPULSORY STRUCTURAL MOVE                                                                      | FAILURE MODE                                            |
|------------------------------------|-------------------------------------------------------------------------------------------------|---------------------------------------------------------|
| EXPLAIN/ELUCIDATE                  | statement -> premises -><br>key distinction -> example                                          | MORALISING instead of<br>EXPOUNDING                     |
| DISCUSS                            | theory -> rival -><br>objection -> reply -><br>verdict                                          | LISTING the theory<br>catalogue with NO<br>ADJUDICATION |
| CRITICALLY EXAMINE<br>/ EVALUATE   | TWO objections, each with<br>REPLY and RESIDUAL PROBLEM                                         | EMOTIVE denunciation<br>of crime or penalty             |
| IS X JUSTIFIED?                    | Q1 aim -> Q2 liability -><br>Q3 amount -> verdict                                               | ONE answer offered to<br>THREE questions                |
| SHOULD X BE<br>ABOLISHED/RETAINED? | NAME THE TEST (desert,<br>deterrence, dignity,<br>fallibility, equality) -><br>apply -> verdict | asserting a position<br>then listing both<br>sides      |
| IS X A FORM OF Y?                  | define Y's NECESSARY<br>CONDITIONS -> test X -><br>verdict INCLUDING partial<br>fit             | ANALOGY ASSERTED<br>WITHOUT A TEST                      |
| DO YOU AGREE THAT..                | COMMITMENT is compulsory<br>and must be QUALIFIED                                               | a SURVEY with NO<br>POSITION TAKEN                      |

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## THE THREE ANSWER METHODS

10 MARKS (~150 words, 4 moves, ~12 min) -> PRECISE CONCEPT in technical  
vocabulary -> ARGUMENT as numbered premises + the ONE distinction the stem  
turns on -> ONE EVIDENCE UNIT with its LIMITATION -> GRADED VERDICT  
stating the CONTROLLING PRINCIPLE. [X] do NOT run the theory catalogue.

15 MARKS (~220 words, 6 moves, ~18 min) -> identify the PENAL PURPOSE or  
INSTITUTIONAL WRONG at issue -> the relevant THEORY with its  
PRESUPPOSITION -> the STRONGEST RIVAL on the SAME question -> ONE TABLE  
(the three questions | retributive vs restorative | the five kinds |  
expressive vs communicative) -> ONE fully worked OBJECTION -> REPLY ->  
RESIDUAL PROBLEM -> VERDICT separating PHILOSOPHICAL VALIDITY from  
IMPLEMENTATION and from EMPIRICAL EFFECT

20 MARKS (~300 words, 8 moves, ~25 min) -> state WHAT MAKES THE CASE  
DIFFICULT (desert vs consequence vs dignity) -> SEPARATE Q1/Q2/Q3 -> the  
competing theories in their STRONGEST form -> rights, dignity,  
culpability, proportionality APPLIED -> TWO objection->reply chains, one  
using FALLIBILITY, DIFFERENTIATED RESPONSIBILITY or STANDING -> the  
CRITICAL QUALIFICATION (Foucault with its caveat, or Duff's standing) in  
the CRITICAL paragraph -> ONE PRECISELY CLASSIFIED Indian legal  
illustration -> GRADED VERDICT naming the CONDITIONS under which it holds

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## SELECTABLE EVIDENCE BANK -- 1 UNIT AT 10 MARKS, 2 AT 15, 4-5 AT 20

C1 Kant: punishment for the CRIME, never merely as a MEANS | LIMIT: strong  
at Q2/Q3, weak at Q1

- C2 Hegel: crime ANNULS RIGHT; punishment ANNULS THE ANNULMENT | LIMIT: abstract; supplies NO measure of severity
- C3 Bentham; Beccaria: all punishment an EVIL; CERTAINTY and PROMPTNESS over SEVERITY | LIMIT: unconstrained at Q2 and Q3
- C4 The three-question grid | LIMIT: presupposes aim and application can come apart
- C5 Feinberg: PUNISHMENT CONDEMNS, PENALTIES DO NOT | LIMIT: hard treatment then needs a separate justification
- C6 Duff: COMMUNICATIVE SECULAR PENANCE; the STANDING condition | LIMIT: an invitation backed by force
- C7 Foucault: DISCIPLINE and PANOPTICISM | LIMIT: genealogy NOT justification; functional claim CONTESTED; attach to NO actual practice
- C8 Restorative justice: harm to PERSONS, REPAIR as response | LIMIT: proportionality varies; POWER IMBALANCE
- C9 Braithwaite: STIGMATISING shaming is CRIMINOGENIC | LIMIT: presupposes valued inclusion and willing reacceptance
- C10 ORDINAL vs CARDINAL proportionality | LIMIT: ordinal is easier to defend than any cardinal anchor
- C11 Arendt: EVIL CAN BE BANAL | LIMIT: psychology of PERPETRATION, NOT degree of GUILT
- C12 The five kinds of collective responsibility | LIMIT: political responsibility is contested where citizens had no effective voice
- C13 Lemkin 1944; Convention 1948 | LIMIT: the Convention is NARROWER and OMITTS POLITICAL GROUPS; name NO episode
- C14 Corruption as betrayal of ENTRUSTED ROLE | LIMIT: the mass-violence analogy is PARTIAL -- state the conditions, concede the disanalogy
- C15 Indian penal illustrations, correctly classified | LIMIT: a judgment, report or statute is a DATED LEGAL FACT and NEVER a philosophical proof
- C16 Wrongdoing, culpability and defences are SEPARATE | LIMIT: philosophical prerequisites, not a complete legal test
- C17 COMPATIBILIST responsibility needs no causal exemption | LIMIT: the threshold of ADEQUATE CONTROL is contestable
- C18 The three justificatory logics | LIMIT: mixed theories must explain how components COHERE
- C19 RESTITUTION is not the whole of RESTORATION | LIMIT: serious public wrongs still require authoritative condemnation

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GRADED VERDICT FORMULAS -- ADAPT, NEVER REPRODUCE MECHANICALLY

LAYERED -> desert fixes the LIMITS, condemnation the MEANING, communication the ADDRESS, restoration the REPAIR; retribution vs reform is a FALSE ALTERNATIVE

QUESTION-SEPARATING -> the institution is justified by PREVENTION; its application is constrained by DESERT; the dilemma DISSOLVES

FALLIBILITY -> even granting desert, an IRREVOCABLE penalty administered by a FALLIBLE and UNEQUALLY APPLIED process cannot satisfy the very principle of PROPORTIONATE DESERT offered to justify it

STANDING -> legitimacy is CONDITIONAL on the JUSTICE OF THE ORDER that imposes it

CONDITIONAL-APPROPRIATENESS -> restorative process is justified where participation is VOLUNTARY, safety SECURED and NO ENTRENCHED DOMINATION is present

DIFFERENTIATED-RESPONSIBILITY -> leaders, planners, perpetrators, enablers, bystanders and resisters DO NOT BEAR IDENTICAL RESPONSIBILITY; GUILT REMAINS INDIVIDUAL

CRITICAL-QUALIFICATION -> reformatory language is NOT SELF-VALIDATING; a regime can INTENSIFY CONTROL while calling itself REHABILITATIVE, so ASSESS AIMS BY TECHNIQUES

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THE SEVENTEEN TRAPS -- ONE LINE EACH

- [1] every moral wrong is NOT a legal crime
- [2] RETRIBUTION IS NOT REVENGE -- public, proportionate, impartial desert
- [3] never say deterrence is "PROVED" or "DISPROVED" without evidence
- [4] REFORM IS NOT LENIENCY -- it keeps responsibility and proportionate restraint
- [5] NOT EVERY MASSACRE IS GENOCIDE -- specific destructive intent is decisive
- [6] NO COLLECTIVE GUILT FROM GROUP MEMBERSHIP
- [7] corruption is NOT only bad character NOR only bad structure
- [8] the 2015 LAW COMMISSION REPORT IS ADVISORY, NOT ENACTED LAW
- [9] \*BACHAN SINGH\* IS A 1980 JUDGMENT, NOT LEGISLATION
- [10] "the right to life has limits" DOES NOT ENTAIL capital punishment -- NECESSITY and the CUSTODY DISTINCTION remain
- [11] DO NOT PUNISH THOUGHT ALONE -- act/omission, fault, causation, notice
- [12] JUSTIFICATION defends the ACT; EXCUSE concedes wrong and reduces BLAME

- [13] RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION ALONE
- [14] determinism is NOT automatic acquittal; metaphysical freedom is NOT a courtroom fact
- [15] RESTITUTION (an outcome) != RESTORATIVE JUSTICE (a process)
- [16] DENUNCIATION ALONE DOES NOT JUSTIFY HARD TREATMENT
- [17] DO NOT IMPORT GANDHI OR RAWLS into penal theory without a stem-specific reason
  - |
  - v

PYQ LEDGER 2018-2025 -- 12 OF 112 OWNED PARTS

- 2018 Q1(e) 10 -> measures to ERADICATE CORRUPTION in Indian democracy
- 2019 Q1(d) 10 -> is CORRUPTION NOT A FORM OF MASS VIOLENCE?
- 2019 Q4(c) 15 -> does CAPITAL PUNISHMENT WEAKEN SOCIAL JUSTICE?
- 2020 Q3(c) 15 -> is RETRIBUTIVE THEORY AGAINST HUMAN RIGHTS?
- 2020 Q4(c) 15 -> how far do REGIMES CONDITION CORRUPT PRACTICES?
- 2021 Q2(b) 15 -> REFORMATIVE THEORY and HUMAN DIGNITY
- 2022 Q1(c) 10 -> is CORRUPTION SYSTEMIC OR ETHICAL?
- 2022 Q1(e) 10 -> MORAL JUSTIFICATIONS of CAPITAL PUNISHMENT
- 2023 Q4(a) 20 -> SEVERITY PROPORTIONATE TO SERIOUSNESS; the JUVENILE case
- 2024 Q3(b) 15 -> CAPITAL PUNISHMENT as an EFFECTIVE DETERRENT
- 2025 Q1(a) 10 -> PARTICULARISTIC vs UNIVERSALISTIC standards in corruption
- 2025 Q3(a) 20 -> can the RIGHT TO LIFE be ABSOLUTE? (capital punishment)
- DISTRIBUTION -> CORRUPTION 5 | CAPITAL PUNISHMENT 4 | THEORY 2 |
- PROPORTIONALITY 1 | GENOCIDE 0 AND STILL A FULL SYLLABUS OBLIGATION